

TIBERIUS THE TYRANT



By J. C. TARVER

1902

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TYRANT ***

TIBERIUS THE TYRANT



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Tiberius.

TIBERIUS THE TYRANT

By J. C. TARVER

AUTHOR OF "LIFE AND LETTERS OF GUSTAVE FLAUBERT"

"SOME OBSERVATIONS OF A FOSTER PARENT"

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Introduction

I

The Expansion of Rome and the Equestrian Order

USED as we are to the terminology and conditions of hereditary monarchy and territorial sovereignty, we find it hard to appreciate, or even to express in terms of modern politics the difficulties which beset the statesmen of Rome at the death of Augustus; and we are further tempted to read into the story of that critical period ideas, which were only conceivable after the crisis was over; we can hardly avoid seeing those days in the light of subsequent events, or speaking of them in language which involves anachronism. Our information is principally derived from historians, who wrote a century and a half after the death of Julius Cæsar, when the Government of the Emperor and the Senate was established; but the position of the Emperor of those days was not the position of Augustus, and the Senate of Trajan was not the Senate of Tiberius. The experienced officials who formed the majority of the Senate of the Flavian Emperors were no longer the hereditary oligarchy by whose capacity Rome had been brought to be first among the city states of the world, but which was unequal to the task of organizing the Roman empire. The change had, however, escaped observation, and the warmest admirers of the Senate of the Republic were men whose position had been won for them by the Emperors. Between the death of Augustus and the death of Vespasian we have but few contemporary historians; we have no letters of Cicero to throw light on the inner life of the statesmen of those days; there were private records, private letters, and private biographies; we can gather their tone from the extracts that have been preserved for us, but we have no opportunity of comparing them or checking them. Velleius Paterculus is the only contemporary historian of the reign of Tiberius, a portion of whose work still exists unabridged; and his narrative stops just at the period when

we require most light—at the conspiracy of Sejanus—where there is also a gap in the annals of Tacitus. From the books of the New Testament we may infer much as to how the Empire appeared at a comparatively early period to the inhabitants of Greater Rome, much also from Josephus, a little from Philo, but we cannot re-people the Rome of Tiberius, as we can re-people the Rome of Augustus and the Rome of Cicero. Two facts stand clear to us from the pages of Tacitus, and in a less degree from those of Suetonius, that the Imperial Family was divided, that the old Roman princely houses never forgave the Empire, and that there was a Republican reaction in opinion at the centre of the Empire. History has repeated itself; just as the Curia of to-day cannot forgive the monarchy which represents the unity of Italy, so the Curia of the first century of the Christian era was irreconcilable to the monarchical constitution which represented the unity of the Empire. The Roman princes who wrote the memoirs of their houses for the edification of their children, and the delectation of their friends never inquired into the authority of a story derogatory to the Emperors, and the one Emperor, who was never spared was Tiberius; it is no exaggeration to say that the madness of Caligula, and the monstrous freaks of Nero are dealt with tenderly by the writers of the silver age, if we compare the accounts of these with the deliberate malignity which attends on every word and action of Tiberius; and yet common sense tells us that only a very able man could have succeeded Augustus without breaking up his work. At the death of Augustus it was still possible that there would be no second Emperor; at the death of Tiberius the Roman Emperor had become an institution, the pivot upon which the whole machinery of civilized existence turned throughout the world. Hence the peculiar bitterness against Tiberius; the Curia felt that in his reign their last chance had gone, and more than this, that he had been in some sense a traitor to his own caste. Neither the Julian nor the Octavian families had been among the foremost houses of Rome, till the genius of the first Cæsar raised them from their comparative obscurity; but many of the most important events in the history of Rome, no less than her buildings, her roads, her aqueducts, and many of her public monuments, were associated with the Claudian stock, and the Livian, with which it was inter-married, was only less distinguished. Augustus had been tolerated, for his services to the State could not be disregarded, but some day Augustus would die; he did die; his power fell into the hands of the most prominent representative of the old Roman nobility; the opportunity for a restoration

of the narrow oligarchy of the Republic came, and it passed away for ever. Two years after the death of Tiberius his lunatic successor was stabbed by a soldier whom he had insulted; the State was left a few days without a head, and the Curia was so inanimate that it could neither restore its own rule, nor provide a new Emperor; it had to accept apparently at the dictation of the soldiers in the Prætorian barracks a man of letters who had hitherto been the laughing stock of the Imperial family.

The contemporary history of the years during which the Roman Empire took organic form is written in terms which tend to disguise the real significance of the change; our attention is attracted almost exclusively to the internal politics of the city of Rome; it is withdrawn from the politics of the Empire; the long struggle which ended by giving the whole civilized world one system of Government, which welded together in orderly association Italians, Greeks, Syrians, Africans, Egyptians, Spaniards, Gauls, Germans, and even Britons, is represented to us as being little more than a constitutional revolution inside the city; we see the external pressure, which forced a revised constitution upon the Roman oligarchy, but we only see it dimly; no Roman historian has been at the pains to trace out the process by which the civil administration of the Roman Empire was developed—surely no less wonderful an achievement than the conquests of the Roman generals. We have seen other conquerors, and more brilliant feats of arms than any Roman general achieved, but we have not seen any other nation impress its language and its law upon the populations of so wide an area or so permanently. Alexander did much, but the effects of the conquests of Rome have been more lasting than those of the conquests of Alexander; except in Asia there is not a civilized people in the world which does not somewhere or other bear the impress of Rome, or cannot trace the pedigree of its religion and its law back to the Italian city. This great destiny was concealed from the makers of the Empire, but the immediate possibility, the consolidation of the conquests of Rome, and the permanent establishment of order over the whole area which drains into the Mediterranean was present to their minds; unfortunately the makers of the Empire have been mostly silent, and the only voices which have reached our ears are those of men who could only grasp the great idea intermittently, if at all, or who were annoyed by its insistence. Under Augustus for the first time the Empire became conscious, Virgil and Horace spoke in terms of the larger

conception, but the grip of the Roman oligarchy has never relaxed its hold upon the imagination of educated men.

Conquest did not involve in ancient times any responsibility towards the conquered; war was believed to be, and was, a profitable investment; as Rome pushed her conquests, the organization which she gave to the conquered peoples was one which suited her own purposes, she did not consult their convenience, external pressure alone forced her to modify the conditions of conquest which were universally accepted by the ancient world; very gradually and very reluctantly she broke down the barriers which surrounded the city state of antiquity, and admitted first her immediate neighbours, and lastly the whole of Italy to some sort of constitutional communion with her. For a long time war had been forced upon Rome, the invasions of the Gauls, the domination of Carthage in the Mediterranean, the invasion of Pyrrhus, the invasion of Hannibal, and lastly the invasion of the Cimbrians and Teutons involved her in a succession of defensive wars; the city itself could not find a sufficient supply of soldiers, and the price which Rome had to pay for being allowed to recruit over Italy was the partial incorporation of the Italians in the State. Wars of defence were accompanied and followed by wars of aggression; success encouraged speculation; after the happy issue of the second war with Carthage the Roman oligarchy began seriously to turn its attention to the Eastern Mediterranean, and another century found it entering upon the heritage of Alexander. This is the turning point of Roman history; from this time onwards a new conception occupied the minds of ambitious Romans; alongside of the ideal of the city State there existed the ideal of an extended Empire, of a world-wide organization, of something more permanent than conquest; alongside of the men who dreamed of Platonic republics in which perfect justice would be realized, there grew up men who formed a yet grander and no less civilized ambition. Pompey triumphed over Mithridates wearing a robe which had been worn by Alexander; Augustus used a head of Alexander for his signet ring; it was by the example of Alexander that Cleopatra seduced Mark Antony.

Alexander was no vulgar adventurer; he solved a problem which had hitherto baffled the most highly civilized race of the ancient world; he combined the city state of the Greeks with the Imperial organization of the Persians; and though, when the Romans came into close contact with

Alexander's Empire it had fallen into fragments, each fragment preserved the impress of the great whole, and Roman generals could converse at Pergamus, at Antioch, or at Alexandria, with men trained to administer states in terms of the wider conceptions derived from Alexander and possibly through him from Aristotle; at the same time many men accustomed to deal with financial problems on a large scale passed into the service of the Roman conquerors as slaves or honoured dependants.

While the possibility of a beneficent organization of the conquests of Rome was thus presented to one order of mind, to another the same events introduced another set of ideas; while some Romans studied Alexander in the vestiges of his work, others entered into the full possession of the Greek historians and philosophers; the ideals of the Greek city state were replanted in a virgin soil, and the Romans for the first time began to theorise about their own Constitution. The men who were taken captive by Plato and Demosthenes did not see that Rome had long outgrown the conditions under which the theories of these men were applicable to her political life. The true liberal policy was the policy of Alexander, the false liberal policy unintentionally gave a new lease of life to the blind selfishness of the narrow oligarchy which had governed Rome. The daggers which struck down Cæsar were aimed by admirers of Verres no less than by students of Plato; and Cicero's effusions over the merits of the tyrannicides were effectively stopped by the unforeseen but necessary emergence of Mark Antony, a tyrant of the conventional type.

From the moment when a year's office as Consul or Prætor in the city of Rome was followed by a term of practically irresponsible government in a dependency, the Civic Constitution was doomed; the magistracies of Rome were now of minor importance compared with the career to which they opened the way; it was impossible any longer to discuss the politics of Rome in terms of the politics of Athens or Plato's Republic with any practical advantage, and indeed without inviting anarchy; but it was highly convenient to the hereditary aristocracy of Rome and its adherents that it should pose as representing the principles of Harmodius and Aristogiton; it found a clever man of letters and a skilled advocate, who had his own reasons for falling in with this conception, and who perpetuated it long after the facts had demonstrated its hollowness even to himself. Cicero as a politician is alternately a tragic and a comic figure; he is comic because he

lived complacently in a world of his own imagining, which seldom lost its hold on his imagination, in spite of the rudest shocks, for it satisfied the promptings of his child-like vanity; he is tragic because he had his moments of seeing the realities clearly, and because combined with his vanity there was a genuine admiration for fine conduct, which led him to face danger manfully in his old age, and in some sense invite the death of a political martyr; he is yet further tragic, because he became the father of an equally blind posterity of politicians, who wasted their energies in spoiling the work of men of greater enlightenment; it is perhaps due to Cicero, more than to any other man, that the city of Rome has persistently filled a larger space than that of the Roman Empire in the works of subsequent historians.

In an expanding community the actual facts of the administration are seldom in exact correspondence with the forms; apparent rigidity, real elasticity, enable business to be carried on in accordance with the claims of new social factors without any sense of insecurity. The Roman, like the Englishman, preferred making new laws to repealing old ones; and when he made a fresh departure, he was at pains to represent it as a development of something by which it had been preceded; in both cases this profound respect for the historical aspect of law has been the foundation of national greatness; it has been extended beyond the races in which it originated, and in the case of England, as in that of Rome, has resulted in an exceptionally successful government of alien communities; laws and customs which are sanctified by immemorial usage appeal to the sympathy of the Englishman and command his respect; it was the same with the Roman. England has had her periods of aberration when she has given way to the proselytizing tendencies of sections of her population, but the broad lines of her policy in dealing with subject nationalities have followed the principle of accepting the existing conditions; in the same way Rome accepted the laws and customs of the Eastern Mediterranean and of Western Europe; she supplied a common law for her Empire, which applied where the local law had no application; its excellence was such that it became predominant, but she did not insist on remodelling every community over which she held supreme power in terms of her own constitution. This respect for antiquity and adherence to established forms has resulted in a misrepresentation of some of the facts of Roman constitutional development, and especially of those which concern the development of the Empire, which is in the highest degree embarrassing to the student of the period in which the change took

place. There was a time when the constitution of Rome and her political history differed little from that of any other city state of antiquity, but it would not be easy to state when that period began or ended; of one thing we may be quite certain, viz., that after the destruction of Carthage and the completion of the first great period of conquest in the Eastern Mediterranean in 145 B.C., the political life of the city of Rome was no longer comparable to that of any other city state; the forms remained, and the faith in the forms remained, but the substance was gone. There is for instance no term so misleading as one which was seldom out of the mouth of Cicero, "the Roman people"; there unquestionably was a time when the Roman people was an organized part of the Roman constitution, when it voted in an orderly fashion according to a property qualification for the election of certain magistrates, and the ratification of certain laws; when it voted according to a residential organization for the election of other magistrates, and to pass other laws; but the forms of popular government were maintained long after the reality of popular government had departed. It suited the convenience of noble agitators, such as the Gracchi, to see in the rabble of the streets the *Comitia Tributa*, it was equally convenient to the princely houses to dignify their own private arrangements with the forms of an election in the *Comitia Centuriata*, it was particularly pleasing to the middle class Roman to share in the spoils of the Empire by exacting direct or indirect payment for his vote, and so the forms were maintained; an outward deference to them answered everybody's purpose, but the real political power and the real political struggles lay outside and beyond them. The Roman people, as a body of civilians, could riot, as the raw material of the Roman army it could strike, it was necessary to keep it in good humour, and to allow it to regard itself as an organized part of the constitution, as a body of free and independent electors; but to accept its own estimate of itself as an important factor in the politics of the Empire is to misread history; popular Government in any sense which would commend itself to the intelligence of an Englishman of to-day, or of an Athenian who listened to Demosthenes, did not and could not exist in the Rome which had begun to control the destinies of the Mediterranean; it was a legal fiction which it was convenient to maintain, the attempt to make it once again a reality resulted in the revolutionary excesses which preceded the Empire.

The real government of Rome was in the hands of the Senate, an assembly of nobles and capitalists, who shared between themselves the

profits of the Roman conquests. Like all such assemblies, the senators had their good times and their bad; between the second and the third wars with Carthage they so conducted themselves as to impress the imagination of the civilized world; the successes of their armies, their fidelity to engagements, their comparative moderation in conquest, were the wonder of men; admiration for these qualities tempted Judas Maccabæus to engage their assistance in checking the aggressions of the Greek rulers of Antioch; their mediation was invited by the chieftains of Gaul; it was recognized as an honour to them to be called friends of the Roman people, and the honour was attended by practical advantages. Success was followed by intoxication, and the time came when the sense of responsibility was lost in the secure accumulation of riches, and when the unscrupulous venality of the Senate became a by-word. Then the power of Rome seemed to be tumbling to decay; Jugurtha defied her in Africa, Mithridates in Asia, Spain threatened to organize itself against her under a Roman general, the Cimbrians and Teutons swarmed over her borders, her Italian allies made war upon her, she could with difficulty suppress an organized revolt of her rural slaves, at home she was at the mercy of the savage mob in her streets; out of this confusion she emerged victorious, and greater than before. The reason is a simple one; during her period of good behaviour Rome had become the financial capital of the world; she was indispensable, and when she could no longer help herself, others were ready to help her. Left to itself the Roman Senate would have brought ruin on the Roman Empire in the first half of the century preceding the Christian era; but it was not left to itself; its incompetence involved the ruin of too many other interests. We have the story of the Roman generals in full, but nobody has yet written the story of the Roman bankers; we are accustomed to think of the Romans as soldiers and lawyers, we forget that they were also shrewd financiers; with the Romans, as with ourselves, commerce usually preceded the flag; the soldier completed the work begun by the capitalist. We are told that the first war with Mithridates began with a massacre of 80,000 Roman citizens in Asia Minor; the figures are probably exaggerated, but they are not questioned by any Roman historians; it did not appear improbable to them that the Roman residents in Asia should have been so numerous at that comparatively early date; and though part of the country was already a Roman province, and we may assume that the popular fury was largely

directed against collectors of taxes, even the rich towns of Asia Minor can hardly have acquired the services of so large a body of revenue officials.

The political genius of a nation is shown by nothing so much as the success with which it supplements the deficiencies of its formal constitution by informal but recognized agencies. Rome was provided with a machinery for collecting and distributing her domestic revenue; she had a treasury and a staff of clerks, but she had no separate civil service for the Empire; the constitution of a city state did not admit of such a thing, and the collection of the revenue of a province was left to semi-private agencies, its taxes being farmed. At fixed periods the right of collecting the taxes assigned to the public treasury from the provinces was sold by public auction; the purchaser paid a lump sum to the treasury, and made the best of his bargain in the provinces; the speculation was an exceedingly profitable one, but its profits threatened to disappear owing to excessive competition among the farmers of taxes; in order to eliminate competition the farmers of taxes formed themselves into a close corporation, the taxes were bought in the name of an individual, but in fact by an association.

Alongside of the Senate there thus gradually grew an organized body which formed the permanent civil executive of the provinces, the body which was known as the Equestrian Order. As in our own history, so in Roman history, the value of terms alters from period to period, almost from year to year; it would therefore be rash to declare that at any one period every titular Roman knight was an active member of the Financial Corporation which farmed the taxes, or that the collection of revenue was the sole business of the corporation as a whole, or of its individual members. Again, that differentiation of functions in the case of the individual, or the association, which is to us almost a law of existence, was unknown to the ancients, or worked on lines of division not readily comprehensible to ourselves; there was, for instance, nothing absurd to Roman conceptions in sending out an advocate like Cicero to govern a frontier province, and placing him on active service in command of an army, for civil, military, and judicial functions of the highest responsibility were exercised simultaneously or successively by the same individual as a matter of course. But though it is difficult to draw fixed lines, there is quite sufficient evidence to warrant us in asserting that the Equestrian Order held a recognized position in the State, that it practically formed the Civil

Service of the provinces, that its interests were repeatedly opposed to those of the Senate, that it roughly represented Greater Rome, as opposed to the city of Rome, that through all the disturbances of the Civil Wars it kept the machinery of Government outside Italy in working order, that it was the channel through which the leading provincials gradually passed into the Civil Administration, and that eventually the Imperial Executive was built up on the foundation, not of the Senate, but of the Equestrian Order, and the Imperial Household.

The origin of the Equestrian Order is to be found in the Servian Constitution; we may not altogether believe in the Servian Constitution, which, as it is presented to us in the pages of Livy, looks like the clever guess of an antiquarian who was familiar with the Constitution provided for Athens by Cleisthenes, but we have no difficulty in believing that there was a time, when every citizen possessed of a certain amount of property was obliged to keep a horse for the service of the State, and was expected to take the field as a cavalry man; or that he was allowed certain distinctions of dress, and other privileges indicating public consideration; it is also easy to imagine the process by which the yeomanry force so constituted was replaced by more efficient cavalry soldiers, and the military significance of the Equestrian Order disappeared, while the name remained; of the intermediate steps which followed we have no detailed account; in theory every Roman citizen possessing more than a definite amount of property was entitled to be enrolled in the list of the Equestrian Order by the Censor, and if his property reached a yet higher value to be similarly called to the Senate, but the practice must have been different; not every man became a senator or a knight, who had the necessary property qualification, though demonstrated want of means might be a disqualification, and entail a loss of position when the Censor was rigorous, or when an excuse was wanted for reducing the numbers of the Senate or the Order, or setting aside an undesirable personality. The time came when two political careers were open to the ambitious Roman; he could become a candidate for Public Office, and under the forms of public election eventually gain admission to the Senate through the Quæstorship, or he could be enrolled on the lists of the Equestrian Order. In the first case he might eventually become Prætor, Consul, and then Viceroy of a Province; in the second he became a member of the great financial corporation which supplied the Civil Service of the Empire; in the first case he might command armies and figure prominently

before the eyes of men; in the second he might make a large fortune, but would not enjoy some of the sweets of power which attract ambitious men.

The relative positions are fairly comparable to those of an English member of Parliament, and an English clerk in a Public Department in the days before the Reform Bill; a young Englishman of good position could be nominated in those days by an influential friend either to a seat in the House of Commons, or to a subordinate place in one of the Executive Departments; in the former case he might ultimately become Prime Minister, in the latter Permanent Head of his department. In the one case he would be widely known and possibly respected; in the latter he might do work of the highest public utility, and never be heard of outside official circles.

To be successful in a senatorial career was an expensive and arduous process; it was necessary to pay a heavy initiatory fee in the form of direct and indirect bribery to the electors; it was then necessary to force a way into the inner circle, which distributed the honours and emoluments; a new man could only do so by showing that he had a very strong force of public opinion behind him, and that he could make himself felt; admission to the Equestrian Order was less costly, and there was less risk; in consequence the career was deliberately chosen by large numbers of Romans, whose wealth and family connections might have tempted them to enter the ranks of the Senate; further, admission to the Equestrian Order was less jealously guarded; it probably had its hierarchy, and its inner circle like all similar organizations; and the summons of the Censor was possibly a mere formality, the nominations made by him having been previously determined by others; but it was much easier for an Italian, and eventually for a Provincial to become a Roman Knight than a Roman Senator. A Provincial, who had once secured the status of a Roman citizen, could secure the further dignity of a Roman Knight by processes which we may surmise, but cannot definitely prescribe; once a Roman Knight, he might look forward to a share in the financial administration of the provinces during the reign of the Senate, and to a Governorship under the Emperors.

It would be a mistake to assume that all Roman Knights were members of the Civil Service, that is to say, that they all belonged to the hierarchy which farmed the taxes and managed other business necessarily connected therewith; there were doubtless many Equestrians whose dignity was

chiefly titular; others who as private financiers and contractors only were connected with the Order, but the continued allusions to the status of "Eques Romanus," which multiply as the Empire takes shape, forbid us to believe that this was in all cases a purely honorary dignity, which could be assumed by any wealthy man on application to the Censor. Were there no other evidence, the fact that we find the Equestrian Order ranged formally against the Senate at the beginning of the great constitutional struggle which ended in the Empire, shows that we have to do with no haphazard collection of wealthy individuals, distinguished from their fellow-citizens by an honorary precedence.

Cicero made his first triumphant appearance as a public man at Rome, when he conducted the case against Verres; whatever may have been the misconduct of Verres, and it was undoubtedly very serious, the action against him was not promoted by pure philanthropy; the case was a test case, it was part of a campaign directed against the provincial administration of the Senate by the Equestrian Order, whose interests were imperilled by rapacious Viceroyes. The only check upon the proceedings of a Roman Proconsul lay in the possibility of bringing an action against him for improper exactions; in the purer days of the Senatorial administration such an action when instituted by the provincials might be successful, and the possibility of its success might be a deterrent, because though the offending Senator was in such a case tried by his peers, those peers, even if influenced by no higher motive, were interested in preventing the exhaustion of a province; any one of them might succeed to the wasted estate; the Proconsul who succeeded a Verres was not likely to make much out of his office, for he found the estate stripped. As the Senate became reckless, having found fresh and apparently inexhaustible pastures in the East, scant attention was paid to the complaints of provincials till their cause was taken up by the Equestrian Order.

The Roman Proconsul was supreme Judge and supreme executive authority in his province; he imposed, sanctioned, and sometimes encouraged public works, such as roads, harbours and buildings; he regulated the mutual relations of the different independent communities within the area over which his authority extended; he had ample opportunities for indirect and direct extortion, but he did not collect the taxes; the collection of revenue was in the hands of the farmers of the taxes,

that is to say, as time went on, of the Equestrian Order. A divergency of interests soon declared itself: if the Proconsul harried the province unmercifully, the tax gatherer found little or no revenue to collect, and could not reimburse himself. The Proconsul had the unfair advantage, that cases between the collectors of revenue and the provincials were tried in his court; thus the farmers of the taxes found that they had an interest in promoting appeals to Rome, and in aiding the provincials to bring actions for extortion against the provincial Governors at the end of their term of office. So long as the Senate acted equitably no great harm was done, but as soon as the Senate was found invariably to acquit its own members, the Equestrian Order became ranged formally against it, and pressed for reforms; it succeeded for a time in getting these cases tried before a court composed entirely of its own members; Sulla the reactionary gave back the jurisdiction to the Senate. One consequence of the trial of Verres was the establishment of a mixed court composed partly of Senators, partly of Equestrians. The net result was that the Equestrian Order formed an organized party, commanding enormous financial resources, in sympathy with the provinces, and more thoroughly conversant with the details of provincial business than the Senate. Thus eventually the Equestrian Order came to represent the party of the Empire, as opposed to the Senate which was the party of the ancient oligarchy of the city; for with the internal politics of the city the Order was only concerned so far as they affected or were affected by the standing quarrel between itself and the Senate. There were men of high moral standards at Rome both in the Senate and in the Order, who wished to deal justly with the provinces; but they were few. Either party left to itself would have plundered the provincials unmercifully; circumstance ruled that the selfishness of the Equestrians should be enlightened, that of the Senate unenlightened, while financial relations with men of business in the provinces, with skilled Greeks and Jews, taught the Order sounder views of political economy than were open to the average Senator. However oppressive the methods of the Equestrian Order might appear when judged by modern standards, they commended themselves to the favour of antiquity; the Roman Civil Service worked better than its predecessors, otherwise there would have been no Roman Empire. The ultimate collector of taxes is never a popular character, and the Roman Publicans enjoyed to the full the unpopularity which has been the fate of their brethren at all times, and in all places; but the revenues of the

provinces were collected by the Roman Knights with less friction, and less capriciously, than by the representatives of Perseus of Macedon, or Mithridates, or Antiochus; and in their own interests the Equestrian Order discountenanced other extortioners, whether high-placed officials or private adventurers. When the Civil Wars came the Order was interested in finding a counterpoise to the Senate, and eventually in arresting the progress of anarchy. Cæsar backed by the Order could confidently face the Senate and Pompeius; similarly his nephew having once gained its confidence was a match for the spendthrift Marcus Antonius. The Cæsars and the Order were of one mind in putting an end to the Senatorial misgovernment of the provinces, therefore Greater Rome recognized its champions in the Cæsars, and supported the organization of which they were the head without stopping to inquire whether the officials whom they employed were Freedmen or of the purest Roman nobility.

In order not to form a mistaken conception of the process by which the Roman Empire was built up, it is important to bear in mind that the term “province” only gradually acquired the territorial significance with which it is now inseparably associated. Any responsibility outside the city of Rome and the domain governed directly by the annually elected magistrates of the city might be called “a province.” The “province” at one time assigned to Pompeius was the duty of repressing piracy throughout the Mediterranean. The territorial aspect of a “province” was in fact accidental. The first territorial provinces, Sicily, Sardinia, and Corsica, happened to be islands, and a natural limitation was thus fixed to the responsibilities of the Roman Governors, whose duty was to maintain the Roman interests in Sicily and the other islands against the aggressions of Carthage; the result was the unification of Sicily, and the realization of a political condition closely resembling though not absolutely identical with the modern conception of a province. As the dominions of Alexander successively passed into the hands of the Senate, it was convenient to use previously existing boundaries for the delimitation of the several spheres of influence for which the Roman Proconsuls were responsible, and thus a territorial significance increasingly attached to the words province and provincial. Similarly modern usage perverts the significance of the word “provincial” as applied to the inhabitants of those cities which passed under the protectorate of Rome. There was not quite the same quality of disparagement in the ancient use of the words as in the modern. The units of the Roman Empire were not

originally territories, but individual cities, then, as the conquests of the Roman Generals extended to peoples not living under the city organization of the Greeks, Italians and Phœnicians, tribes or nationalities. Rome was first the universal peacemaker; only at a later time and by a gradual process did she become the universal ruler, and the centre of a hierarchy of officials. Such centralization of the details of Government as we are now familiar with was never realized by the Roman Empire; the inhabitants of the great cities of the East did not consider themselves “provincial” in our sense of the word.



II

The Roman People

THE official style of the Roman Government was that of the Senate and the Roman people. It is not easy to form an estimate of what constituted the Roman people at any particular date. In these days of individual freedom and independence the term people has a definite meaning; we know that for political purposes the English people means every registered voter, and that the process by which any resident within the limits of His Majesty's dominions can acquire a vote are comparatively simple for white men; but citizenship was not so simple a matter in ancient times, and antiquarian research fails in some measure to enlighten us, because the Romans had a habit of keeping the old names and the old forms long after their original significance and the powers implied had passed to new institutions or suffered complete change.

The very phrase the Senate *and* the Roman people is deeply significant, for it excludes the Senate from the people. Whatever may have been the original meaning of the word "Populus," it was clearly something distinct from the Senate, which was not *representative* of the people, but another power. The fusion between the two powers was in fact never completed till the predominance of the Imperial Hierarchy practically eliminated the Senate. There was a time in the history of the Republic when this fusion seemed to be approaching completion, and when the Senate moved in the direction of becoming a representative body; but the Roman conquests threw such preponderating influence into the hands of the Senate, that the constitutional position which had been slowly won for the "people" became nominal rather than real. The oligarchy of Rome was never in the Republican period disestablished as the oligarchies of many Greek cities were disestablished.

The Roman historians have preserved for us a constitution based on property qualifications, which might tempt us to imagine that there was a time when a Government with something approaching to a democratic organization controlled the destinies of Rome. It is possible that there was a time when the Roman people was divided into classes according to their assessed property, and when each class voted separately; but it is exceedingly improbable that even in that golden age of liberty there was anything approaching to free and independent elections as we understand them.

The independence of the individual has always been tempered by the necessity of belonging to some form of organization. In these days a man belongs to a party, or a trades union or an association, and sacrifices a portion of his independence to the advantages gained by sharing in the strength of an organized coherent body; in ancient times even a modified independence of this kind was not possible, and in early times at Rome a man was expected to vote for his patron through thick and thin. To us it would appear that a man lost personal dignity by following blindly the fortunes of a greater man than himself; to a Roman it would seem that the individual had no personal dignity, if he were not recognizably attached to a patron.

Individual independence is only possible in a very highly civilized society. Men may be technically equal in the eyes of the law long before they are so practically; even in modern England it has been found necessary to form associations whose members are bound to mutual assistance in defending or instituting some actions-at-law. The difference between ancient and modern society, and indeed between modern society before and after the French Revolution, lies in this, that the modern association is most commonly one of equal individuals for certain definite purposes, while the ancient association was one of inferiors of various degrees with a superior for all purposes. It would be rash to attempt to define too closely, but the general statement that in ancient Roman society there was no such thing as a free and independent individual, except among the wealthiest or otherwise most powerful, is near the truth. Numberless conditions unknown to modern society contributed to produce the same result; among them the following may be mentioned.

Residence as a means of acquiring political status was not recognized by the ancients; a man might reside in the same town all his life, and his children might succeed him, but neither he nor they could buy or sell, plead in the law courts, intermarry with the citizens, acquire real property, or in fact enjoy any of the benefits of civilized society, without making special arrangements; the resident was an alien until the authorities of the town in which he dwelt had conferred upon him a political status. Towns such as Rome and Athens, which admitted resident aliens comparatively readily to a modified form of citizenship, expanded more quickly than other towns, and the history of the expansion of Rome is from this point of view the history of the processes by which she gradually admitted the stranger within her gates, and then the stranger without her walls to the privileges of citizenship.

The privileges of a citizen according to ancient ideas were separated into two classes: they were private and public; to the first class belonged the rights of buying and selling, intermarrying, making valid contracts, and acquiring by various tenures real property; to the second the right of voting in all or some elections, and, as the climax, of standing for some or all magistracies. The various degrees of citizenship might be conceded to individuals or to communities; Rome might admit all full citizens of Arpinum to all or some of the rights of Roman citizenship, and vice versa, or similarly favour an individual citizen of Arpinum. Long before an alien community or individual received the benefits of citizenship business relations might be necessary, and in order to get over the difficulty of conducting business with persons who had no legal status, it was customary for aliens to form private relations with full citizens through whom their business was conducted; and here again the alien might be a whole community or a single individual. At Rome the citizen who thus took charge of an alien's business was called his patron, and the alien was called a client. The principal service rendered by the patron was to appear on his client's behalf in those law courts to which the client had otherwise no access; the case was dealt with as the patron's case by a convenient legal fiction. The service rendered by the client was not definitely prescribed in this case; it could not be, for he was unknown to the Roman law; but we have no reason to suspect the Roman patrons of not exacting a satisfactory equivalent for their services. The same men who were clients at Rome would be patrons in their own towns, and transact business for their Roman

friend at Ephesus or Alexandria in return for his services at Rome. In the same way aliens resident at Rome, who for various reasons were unable or unwilling to acquire rights of citizenship, enrolled themselves among the clients of a patron. The system added enormously to the wealth and influence of the powerful men at Rome; for much in the same way that the status of citizen in its various degrees was personal and transmitted by descent, only to be revoked by a solemn process, so the relation of patron and client was personal and heritable on both sides. This combination of personal with business relationships is one of the peculiarities that make ancient society so difficult for us to understand.

Even after an alien had acquired the rights of citizenship the tie between his family and the patron's family would continue. It would not be easy to prove that it was strictly obligatory in the eye of the law, but it was recognized by sentiment, and ingratitude on the part of the client, or neglect on the part of the patron, were severely punished by the unwritten law, and in certain cases by the written law.

Thus one form of the relation of patron and client arose out of the difficulties of intercourse between communities and individuals for business purposes in a state of society which regarded citizenship as a special personal qualification, and not as an incident of residence.

A second form was the relation between a Roman noble and his freeborn dependants in various degrees.

Such a city as Rome was not comparable to a modern city in many particulars; even after the definite establishment of the Empire when it had approached the modern conception, there were still survivals from a previous state of things. It would not, for instance, occur to a wealthy citizen of London to start from his residence in Park Lane with a pack of hounds, and all the other paraphernalia of a hunting expedition, in order to impress his fellow-citizens with a sense of his importance as a territorial magnate; such a thing was possible at Rome even in the reign of Domitian, or there would be no point in one of Martial's epigrams. The heads of the great Roman families were not originally rich men who conducted their business in Rome, and possessed houses in the country to which they went to enjoy sport and the amenities of Nature; they were originally territorial magnates, whose importance was due to the fact that they were such; it was

a later development which made them approach to the position of our great commercial princes in London. The ancient city community was not a thing enclosed within walls; it extended over a considerable area. The land outside the city walls might be held under some form of communal tenure and subdivided into small plots, but it might also be occupied by large holders in positions analogous to our conceptions of a tenant-in-chief, whose subtenants were free citizens with full civic rights in the eye of the law, but who were also in many respects vassals. Dionysius has a statement of the relations between patron and client which may be inaccurate in the letter, but which in its spirit at once suggests the feudal system. It is inevitable in certain stages of social development that the small man should associate himself in some way or other with the big man, in order to be able to render effective the rights which the law gives him. The Roman noble took charge of his client's interests in the law courts, the client voted as his patron directed at the polling booths. The free and independent electors who swarmed in from the country to give their votes were pledged to support the candidates and measures recommended to them by their patrons; had they failed to do so, they would have been thought deficient in a Roman virtue.

There was a third relationship of patron and client which was fairly strictly defined by law; when a man emancipated a slave, the relations between them were changed from those of master and slave to those of patron and client. The slave did not always receive full citizenship on emancipation, but all through the various degrees by which he passed from the servile status to that of full citizen, he and his descendants continued in the position of client to the original manumittor and his descendants; the relationship was so close that the property of an intestate freedman went to his patron or his patron's representatives. The legal statements on this subject are somewhat obscure, but enough remains to show that the connection was recognized by the law as a close one, and that there were rights on both sides; the relationship was not purely a matter of personal choice nor readily dissoluble.

All these three ways in which the relation of patron and client might be created tended even in the purest days of the Roman Republic to make an election a struggle between big families and groups of big families rather than a political struggle in which each elector formed an opinion upon a question of policy and gave his vote independently. The Senate, that is to

say, the assembly of heads of houses, divided into parties or groups, and each head of a house could bring so many electors to vote at the polling booths with tolerable certainty. The ultimate political unit for practical purposes was not the individual but the group formed by a patron and his clients, who in their different degrees voted as the patron directed.

A free Government controlled by an electorate, in which each individual elector votes according to his own judgment, is a dream of political theorists. It may have existed for a short time in some of the small city states of antiquity, but in practice the individual elector is too lazy to exert his own judgment; he votes, if it is made worth his while to vote, either by the pressure of some extra constitutional association to which he belongs, or by direct bribery, or by the more insidious indirect bribery of party leaders who promise pecuniary or sentimental satisfaction.

In political life the letter of the statute book is always in process of modification by custom and convenience. No state which is expanding can hope to keep the letter of its constitution up to date; the changes are too rapid, too subtle. Constitution makers are thus commonly disappointed in the results of their labours, partly because they are not in possession of all the facts, and partly because the conditions have changed even in the time required to frame a constitution. At Rome the letter of the constitution was but slightly changed during the two centuries preceding the Empire; there were the same magistrates, the same Senate, the same electoral and legislative bodies, very nearly the same methods of voting, and the same qualifications of an elector, but the working of the constitution changed; the admission of large numbers of fresh citizens expanding the mass of voters beyond manageable numbers, the changed responsibilities of the magistrates, the widened career open to successful politicians rendered the old terminology almost meaningless in reference to the actual working of the constitution.

There was a time when the extra constitutional organization of the electors was entirely in the hands of the great families; this arrangement broke down gradually before the influx of new citizens; direct bribery took its place alongside of personal influence. Up to the year 180 B.C. Rome had pursued a policy in relation to her allies which, judged by the standards of antiquity, was liberal; she admitted her immediate neighbours to a modified form of citizenship, she gave the citizens of certain towns the right of

voting in some of the Roman elections, and she even gave those citizens of these towns who had held the highest offices in their own towns, the right of standing for the magistracies at Rome; she pursued a policy of expansion; at that date her policy changed; she began to check the admission to citizenship, which was afterwards only wrung from her by war, till the city constitution was all but lost in the building of the Empire.

On the one hand, the great families discovered that they had entered upon the possession of a magnificent property, which they were not disposed to share with an indefinite number of partners; on the other hand, they felt that owing to the influx of numbers they had lost their grip of the electorate, for the men who came to vote from outlying towns were often sheep without a shepherd. It proved, however, impossible to keep the electorate restricted. Rome herself could not supply the armies necessary to carry on the career of conquest upon which she had embarked; she was forced to depend upon allies to supply the men whom she organized, and she was forced in various ways to pay the price. One form of payment was the citizenship, which enabled the Samnite or other Italian soldier to come to Rome for the elections, and extort extra payment for his military services; whether he was feasted, or amused, or actually paid for his vote, he shared with his Roman fellow-soldier in the spoil of the provinces which he had helped to conquer. Every fresh concession of citizenship rendered the electorate more unwieldy, till the Roman people of whose favours Cicero so often boasts had become little better than a mob.

While the Roman Electorate was thus outgrowing all possible organization, and the constitution of a city state was breaking down in every direction under the weight of burdens which it was not constructed to carry, the minds of liberal statesmen at Rome were unhappily occupied largely with city constitutions. The enlightened circle of the Roman nobility, which was represented by such men as Scipio Æmilianus, studied the Greek political writers rather than the events which were going on around them, and were tempted to see in the creation of a really democratic constitution the remedy for the disorders which were only too obvious. They were liberal in one sense, but it was in terms of the city state, which no longer existed.

We have had an analogous process in our own history. The expansion of England for a long time escaped the notice of men, who, frightened by

the French Revolution, were concerned in demonstrating the incomparable merit of representative government, and of establishing the fact that the English constitution had always contained in it the democratic principle. One of these men rewrote for us the history of Greece in terms of the praise of democracy; another proclaimed the merits of liberty and representative government; a whole school of historians is interested in showing the popular share in such events as the extortion of Magna Charta from an unwilling King, and in the constitution of the Parliament summoned in the King's name by Simon de Montfort; as the result of the labours of these and other men our attention was drawn for many years exclusively to problems of domestic government; the far greater problem, the relations of England to her colonies and dependencies, and the necessary modifications in her internal constitution, escaped notice.

At Rome the first important act of the new Liberal school was the attempted agrarian legislation of Tiberius Gracchus; Rome was to deal with her conquered territory in the terms of a city state; conquered land was public land; in such states it had always belonged to the whole people, and had been shared between them; Rome had neglected this salutary arrangement; her public land had passed into the possession of the wealthy few; it must be resumed, and redivided. The proposal was about as practical as an attempt to restore all the common lands to the English peasantry would be at present; it failed; the originator was assassinated.

Ten years later his brother proposed further liberal schemes; he was less of a dreamer; he looked forward rather than back; he saw that Rome must provide for her time-expired soldiers, and must give non-Roman Italians who had fought under her standards a larger share in her conquests; but he was before his time, and was in his turn assassinated; a similar fate befell a leader from the ranks of the Conservative nobility, a Livius Drusus, who a few years later advanced the same political programme. The expansion of Rome to include Italy had thus become part of the policy of a definite party at Rome; but this party was not always a popular party, for the men who idled about the streets of Rome, living on the profits of citizenship, were no more disposed than the great families to add to the number of the partners.

During the second century before the Christian era, the forms of popular government were maintained at Rome ready to become more than forms when an organization was also ready to use them. The most

important effect of the political work of the Gracchi was to breathe fresh life into the popular assembly; but this was no sooner done than the constitution proved to be unworkable; then followed a period of anarchy in Rome itself, which lasted for seventy years; during this period one party, the party of Greater Rome, steadily grew, and eventually left the constitution so modified that the local politics of the capital no longer had a predominant weight in the Empire. The first great step towards this end was made in the period during which C. Marius had an overpowering influence in Roman politics. Marius is represented to us by the historians from an unfriendly point of view; it is not easy to get at the real man through the mass of legend which obscures his real story. We see him a capable general who reorganized the Roman Army; we also see him incapable as a politician; he figures as the rough brutal demagogue whose violence stands in unpleasing contrast to the suave manners of Sulla; but whatever he may have been personally he represented definite political tendencies. The Marian party survived Marius, and found its most distinguished representative in the great Cæsar, who was a nephew of Marius.

A significant fact about Marius is that he was not a Roman; he came from the small town of Arpinum. Technically he was a Roman citizen, for Arpinum was a community which had enjoyed for nearly a century the privileges of Roman citizenship; but his connexion with Rome was not the connexion of a Cornelius or an Æmilius. He was one of the many men from Italian towns who used their Roman citizenship to push a career at Rome; Cicero, also from Arpinum, and Pompeius from Picenum are well-known examples of the same class of men.

Each of these three men failed as a politician at Rome, and in much the same way each of them transferred to the wide arena of Roman politics the limitations imposed by the traditions of a small city state. Marius could not manage the Electorate nor the Senate; Pompeius could not manage the Senate; Cicero saw in Rome a magnified Arpinum. Of the three, Marius, in spite of the clumsiness which defeated his own purposes, had grasped the one political idea which was to conquer all others in the end; he saw that the men who fought in the armies of the Empire must have a share in the government of the Empire; he contributed to this end, perhaps unconsciously, by his reorganization of the Army. The reforms of Marius in military organization were in the first place technical, and unfortunately we

cannot assign the several details to their responsible authors. We do not know exactly what was done by Marius himself, what by his successors; but we do know that his administration marks the period at which the Roman Army took the form of a professional standing army as distinct from a militia. The change had been long in progress, military necessities had imposed it; occasional service had been practically replaced by continuous service. Marius substituted in fact, if not in every form, a military organization in the army for a civil organization; the change was forced upon the Roman by the dangerous invasions from the north which had found the Government unprepared. Marius dispersed the invaders; he stood forth as the saviour not only of Rome, but of Italy, and he was able to reorganize the army in terms not of the Roman constitution but of military necessities. The Roman Armies at this date were not recruited exclusively or even in the greater proportion from Rome herself; not only was each legion supported by auxiliaries, such as cavalry and light armed skirmishers, drawn from non-Italian territories, but the legion itself was recruited from the allies in Italy as well as from Rome, and the balance of military strength was against the capital.

The State at once found itself confronted with a difficult problem: what was to be done with the professional soldiers when their time of service had expired? Men who had served for a term of years found their previous employments closed to them. Alongside with the expansion of the Empire went the depression of Italian agriculture; the food supplies of the capital were increasingly drawn from Sicily, Africa and Sardinia; soldiers who had been free agricultural labourers found their places taken by the captives whom they had themselves reduced to slavery. The remedy that suggested itself was to assign lands to the soldiers; they could either be sent to form military colonies in conquered territory, or be provided with land in Italy confiscated on various pretexts, or simply taken without further excuse. This remedy was not in all respects successful. Men who had become used to the excitements of war and the pleasures of looting, did not settle down readily to the drudgery of farming; some parted with their farms, others in cases where the farm had been one appropriated by the State, allowed the proprietor who had been defrauded to retain possession on condition of paying a rent; some of these men re-enlisted, others went to swell the mob of the capital and enjoy its amusements. The Roman people of Cicero's days largely consisted of men drawn from many parts of Italy, who had

been, or still were, soldiers, and who had no objection to being bribed to give their votes; if they had any political convictions they were Italian rather than Roman; if they resisted any further extension of the privileges of citizenship it was from interested motives, and not because they loved the Conservative party in the Senate. As Rome was the only place in which votes could be given, the tendency was for all Italians possessing the status of Roman citizens to drift into Rome, if they had no occupations to detain them elsewhere. Men who aspired to be political leaders had to win the favour of this increasing multitude.

The Roman people so constituted had no particular affection for Rome, and none for the Senate of Rome as a body; its affections were centred on those who could promote its own interests, on those who were lavish in providing it with amusements and distributing doles, on generals who promised large rewards to their soldiers, on orators who flattered the vanity of the mob; if it had any genuine political sympathies they were with the Army, and with Italy rather than with the hierarchy at Rome. The greatness of the Roman statesmen lies in this, that though nominally the magistrates were elected and laws passed by this rabble, and the whole administration lay at its mercy, outside Italy the Roman Government steadily grew in strength; the love of order and faith in law were so deeply implanted in the Roman character that the administration was not shattered by years of apparent anarchy, in which the constitution seemed to have fallen into abeyance, and the fate of the civilized world to depend upon the caprices of a mob or the loyalty of soldiers to their leaders. The Roman resembled the Englishman in being able to make the best of a bad government or no government; disorder called his reserve of moral strength into action; the executive was always superior to the constitution; however unruly the city, the Roman citizen in the provinces preserved the qualities which had made Rome the ruling power in the Mediterranean.

The character of the Roman people having changed, the mass of citizens being no longer Romans and nothing else, the ruling classes at Rome did their best to organize the numbers who filled the streets. All the methods by which elections may be controlled were resorted to: political clubs were formed, the great families looked up their clients, some of them provided themselves with armed bands of retainers, bribery was systematic and constant; but all efforts to introduce order into the unwieldy body of the

Roman people alike failed. It is possible that if the popular assembly had had no further voice in public affairs than to elect magistrates, a way might have been found out of the difficulty; but the mob was not only the electorate, it was also the legislative body, or rather a legislative body. It could not only pass laws, but it could prevent through its representatives, the tribunes, any laws being passed, or any business being conducted. The rule of the Roman people under these conditions was simply authorized anarchy, and the deeply lamented fall of the Republic with which school histories are apt to close, was the restoration of order. In fact just at the time when the history of Rome became the history of the civilized world, there was no longer any political meaning in the term “the Roman People”; it was a survival from previous conditions. The attempt to call to life the forms of popular government resulted, as it was bound to result, not in government, but in anarchy.

III

The Senate

IF the Roman people acquired a political significance in the later days of the Republic only to show that it was an unmanageable part of the constitution, the Roman Senate had always been an organized power. Had it pursued the comparatively liberal policy which prevailed in its councils immediately after the second Punic War, the Empire would probably have come, but it might have come without the intervening period of revolution; this, however, was not to be; the temptations of wealth and power were too strong. While, however, we are at liberty to condemn the Senate as it is revealed to us by the transactions with Jugurtha and other scandalous incidents, we must not forget that the same body which failed so deplorably at one period of its career produced the men by whom the Empire was made. It was the embodiment of all that was politically good in the Roman character, as well as of much that was evil; its faults were the faults inherent to a close corporation of nobles enjoying vast responsibilities which it did not altogether comprehend; its virtues have impressed themselves upon subsequent history.

A peculiarity of the Roman constitution in the later centuries of the Republic is that it was practically unworkable even as a city government, unless everybody was agreed to exercise forbearance, and not to push constitutional powers to their legitimate extremes. Two chief magistrates were elected every year, each of whom could neutralize the work of the other; all public business could be stopped at a moment's notice on religious grounds; the magistrates elected by the popular assembly could impose their veto upon the action of all other magistrates. As long as the Senatorial families worked together, and abandoned their mutual differences in the presence of external pressure, the popular element in the constitution could be disregarded; but when the Senate became divided against itself, or when individual Senators chose to ignore the traditional

checks by which the whole body was enabled to work in the interests of the order rather than of the individuals composing the order, it was possible to paralyze the Government without departing from the strict letter of the constitution.

The Senate was a strictly aristocratical body, practically a co-optative body, for every five years the Censor, himself a Senator, revised the list of the Senate. It was in his power to remove members, who had in various ways disgraced themselves, or who had fallen below the property qualification demanded of a Senator; he could summon new members, and though, after Sulla had passed a decree to that effect, he was bound to summon all men who had held the elective office of Quæstor, so long as the Senate was united, it could control the elections, and take care that no undesirable politician should in this way effect his admission to the order. This quality of an Aristocratical Order still hung about the Senate in the early days of the Empire; it was felt even then to be a public misfortune that a Senatorial family should be unequal to maintaining its position, and such families were occasionally subsidised by the Emperors.

The Senate was chiefly composed of men who belonged to an aristocracy by birth, and it admitted new men very unwillingly; a Marius with the power of the Army behind him could force his way into the Senate; a useful advocate like Cicero, or general like Pompeius, could be summoned to its ranks, but such men were unwelcome; they were accepted as a disagreeable necessity; all three learned at different times by bitter experience, that they were, at the best, tolerated.

An indication of the aristocratic nature of the Senate is afforded by the fact that Senators were forbidden to engage in trade, a prohibition which however they contrived to evade.

The school of writers which is interested in representing all forms of government, which have been successful as democratic, has done its best both in ancient and modern times to minimise the aristocratic character of the Roman Senate no less than its legislative supremacy; but the whole tone of Roman history is against them. A Roman Senator was distinctly a nobleman. Inside the Senate rank went by office; those Senators who had held the higher offices took precedence of others according to dignity of office; those families were most highly honoured who could show the

greatest number of dignitaries among their ancestors, but the qualification of birth co-existed with rank, derived from office or a long ancestry of office holders. Long after the distinction between patrician and plebeian had ceased to have any meaning except in reference to certain priesthoods and religious ceremonies, the distinction between patrician and plebeian families was remembered, and occasionally reasserted itself practically; and it was some time before the official rank of Senator conferred by an Emperor was respected unless the recipient was entitled to Senatorial rank by descent. Among the few acts of the early Emperors which win the respect of contemporary historians, purgations of the Senate are included. Julius Cæsar tried to make the Senate a council of the Empire by enrolling in it non-Italians; but he was before his time, and his astute successor acted in a contrary spirit.

During all the constitutional changes of the last centuries of the Republic, the position of the Roman Senate remained unchanged in two particulars: it was the fountain head of Roman religion and of Roman law, and though the former might be held to be of transitory importance, the latter was undeniably permanent in its effects.

The Roman Senate did not alone make law, though it alone through the Prætors interpreted law. As a legislative body it shared its functions with the popular assemblies; its decrees were rather administrative than legislative, but it has never been rivalled, except, perhaps, by the English judges, in its power of expanding the application of existing laws and creating a legal system. This peculiarity of the Roman mind, its conservatism combined with a capacity for readjustment, gave us the Roman Empire; without it the Roman conquests would have gone for nothing. The Greek, far quicker witted than the Roman, was ready to change his laws at a moment's notice. It was to him an open question whether his state should be democratic or oligarchic; the question could be settled according to convenience, by voting or by force; a new constitution could be framed to suit new emergencies. The Roman mind worked differently; with the Roman the new had, if possible, to be read into the old. The Roman did not become a constitution maker till he had passed under Greek influence, and he was remarkably unsuccessful in the task. He soon abandoned it, but he never failed in his casuistry; there was no conceivable adjustment of human relations which the Roman jurisconsult could not refer back to the Twelve

Tables; he never troubled himself as to what was to the advantage of the greatest number, or as to the precise definition of justice; he simply took his law, his precedents, his authorised interpretations, and worked the new circumstances into line with the old forms.

Till the Greek influence modified Roman habits the education of the young Roman noblemen was largely legal; while the Greek youth was discussing morality speculatively, the Roman youth was being instructed in the application of law. He sat at the feet of some Mucius Scævola, and heard his solutions of knotty entanglements; the oratory in which he was trained was not the florid rhetoric, which may be addressed successfully to a mob, but forensic oratory addressed to trained intelligence.

With the legal temperament, the Roman combined the religious temperament, the habit of looking to authority rather than to speculation as a guide for his actions. The Sibylline books continued to be consulted in form, if not in fact, on occasions of emergency, long after the cultivated Roman had become familiar with the rationalistic speculations of the Greeks and the mathematicians.

The Senate might under these influences have easily degenerated into a futile subservience to stereotyped forms and habits which would have rendered expansion impossible; it might have opposed a Chinese rigidity to necessary innovations; but the destinies of Rome had ordained that from the beginning the principle of modification should exist alongside with a strong conservative tendency. It may be left to the antiquaries to decide exactly how much truth survives in the legends which form the chief part of early Roman history, but even if it were not demonstrable that the population of Rome was a composite population at a very early time, the fact would remain that the Romans themselves believed it to be composed of three elements: they believed that Latins, Sabines and Etruscans had been welded together under the Kings, and that the titular distinction between patrician and plebeian families survived from a further process of incorporation of aliens; thus there was ancient authority for innovation in such an important matter as the admission of new citizens. Athens was in this respect more conservative than Rome; the citizens of the most democratic state of the ancient world boasted of their pure native descent, while the conservative Roman found in his history a continuous process of immigration to the hills by the Tiber, repeated coalition, continued absorption.

While the Roman Senate was in one aspect a body of trained lawyers, in another it was a body of priests. The evolution of the priesthood as a separate profession is a comparatively modern process. In the history of Rome we see the first step in the process, the changes by which the men appointed to maintain the state religion or to conduct the ceremonial observances paid to particular gods became elected officials, after having been the representatives of certain families upon whom those obligations rested. The duties of religion which had previously been family duties became state duties; but this change did not relieve the Senate of its charge of the national religion. Just as the Senator was an expert in law, so he was an expert in ritual; he did not discuss questions of faith, but he decided points of ceremonial. Though the Colleges of Pontiffs and Augurs were not in the later days of the Republic necessarily drawn from the Senators, and though for a short period a restricted form of public election was applied to the former, practically the Senatorial families held these offices in their own hands, and the power which they thus wielded could only be taken from them by the expedient of combining in the person of the chief of the State the functions of chief Pontifex and chief Augur. Any public business could be suspended by the declaration of a Pontifex or Augur, that it was contrary to established ritual, or that the gods had by means of recognized signs and omens signified the occasion to be unfavourable.

The Senate was also an assembly of heads of families; when a Roman youth of Senatorial descent came of age, his father presented him to the Senate. Though inside his family the father was omnipotent, the Senate decided what actually was the family law; and in this respect the Senate dealt with the family, not with the individual. If the head of the family failed to rule his family properly, and thereby occasioned scandal, he might be marked by the Censor and degraded from his rank. In the family were included many persons whom we consider to be outside the family; slaves, freedmen and certain clients had rights as well as duties; the father of a family who contravened the regulations of the Senate in his relations with such persons caused a scandal, no less than in irregular relations with his wife or children. We are frequently surprised in reading the history of the early Emperors by the freedom with which they appeal to the Senate for commiseration in their private misfortunes, by their habit of assuming that the Senate is interested in their family affairs, but in this they were only acting as any other Senator would act. The point of view may be well

illustrated from the procedure in divorce; divorce was a purely family affair with the Romans; a wife guilty of misconduct was divorced by her husband without any appeal to a law court. With ourselves a man is at liberty to apply for a divorce; if under certain circumstances he does not do so, we may admire his forbearance or despise his laxity, but there is no constituted authority which can force him to start an action; whereas a Roman Senator who permitted flagrantly scandalous conduct on the part of his wife could be, and sometimes was, degraded by the Censor, the good order of the State being imperilled by the irregularities in his family; cruelty to slaves or neglect of freedmen and clients were in the same way matters that came under the observation of the Senate, and of the Emperors as the leaders of the Senate.

These characteristics of the Roman Senate, that it was broadly speaking an assembly of lawyers, priests and heads of families, of which any individual might and often did combine all three functions in his own person, were most strongly marked in the period during which it commanded the respect of Polybius and Judas Maccabæus; the policy of Augustus was to restore these characteristics; they were partly in abeyance during the period of the greatest prosperity of the Republic, when the attention of the individual Senator of Rome was irresistibly drawn to the administration of her conquered territories, and to the regulation of her relations with potentates on the confines of her Empire.

At the beginning of the first century before the Christian era, the Senate was divided into parties evolved by the new responsibilities, and the changes in opinion caused by the influx of Greek ideals. The most important problem was the administration of the provinces, but along with it there had to be considered the organization of the internal constitution of the city itself. Thus there were two groups of reformers, those who were chiefly concerned in the adjustment of the relations between the city and the Empire, and those who were more actively interested in the reorganization of her local constitution. The questions which presented themselves to the individual Senator were three in number: first, were the provinces to be governed rigorously as conquered territories, or were they to be admitted to a share in their own government and the government of the Empire? secondly, if they were to be governed by Rome and for Rome, was the administration to continue to be exclusively in the hands of the Senate?

thirdly, whatever might be Rome's relations with her provinces, was it not necessary to give reality to those germs of popular government which existed in the Roman constitution, and to make the Senate directly or indirectly an elected assembly of notable men?

Thus a Senator might be Conservative with reference to the provinces, but liberal with reference to the city, or he might hold that the Senate must be the centre of government, and yet be capable of such internal reforms as to make it the best protector of provincial interests; or he might say that the rule of the Senate was good for the city, but unworkable in the provinces.

Outside the Senate there was the Equestrian Order representing both the Civil Administration of the Empire, and non-Roman as well as Roman financiers, supporting any man or group in the Senate which seemed favourable to its interests; there was also the body of Roman citizens partly composed of men who were still bound by various ties to individual members of the Senate, and partly of men who had served in the Roman armies, and supported the policy of distinguished generals by whom they were organized and in various ways paid for their help.

A peculiar quality of the Roman Senate was the romantic affection with which it was regarded by its members and adherents; it was no mere house of representatives; it was a dynasty. Men not only in Rome, but in the provinces, tolerated its scandalous misgovernment after the third Punic War, as men have tolerated the government of a bad King without losing their faith in monarchy and their affection for the institution. Hard-headed politicians may see in the suicide of Cato at Utica nothing but contemptible weakness; to them the Roman Senate is only one of many political organizations; but Cato's act was otherwise regarded in antiquity. To find a parallel we have to search among those adherents of the Stuart Dynasty in England and Scotland, to whom the cause for which they fought was not merely a political cause, but a religion. We do not condemn men who committed political suicide after 1715, and abstained from public affairs, or even left their country; we feel that, for men believing as they did, no other course was open; it was precisely in this light that the death of Cato appeared to his contemporaries.

The resistance of the Senate to the various reforms pressed upon it from 131 B.C. onwards has been represented as simply a resistance of vested

interests; that it was so in some measure even at first, and increasingly so as time went on, is indisputably true, but Cato did not kill himself as a martyr to the cause of vested interests. The Senatorial position was that of a monarch by divine right; the Senate could not accept reforms in deference to external pressure without in a measure abdicating; it was in itself both Church and Crown; it could no more make terms with a Gracchus or a Livius Drusus than could Charles I. with a Pym or a Cromwell.

This point has been largely concealed from us by the Greek influences under which the history of Rome has been written; we are tempted to think of the Roman Senate as of the Athenian Boulé, as of an Upper House, whose powers and privileges could be curtailed or prescribed at the will of a popular assembly; but to concede that point was to concede everything. The bad faith of the Roman Senate, its desperate expedients to maintain its position alike against the rising power of the Army, the organization of the Equestrians, the body of Roman citizens, or the reformers within its ranks, become in a measure respectable when we reflect that the Senate believed itself to rule by divine right.

Similarly faith in the detestation of monarchy ascribed to the Senate is the result, in some measure, of giving undue weight to Greek prejudices, and to the words of men who were unconsciously enthralled by them.

The Senate so arranged matters that no member of the oligarchy should acquire a preponderant position, and disturb the equality which in theory prevailed between individual Senators; hence various enactments as to the intervals between holding the Consulate twice over, the limited period of a provincial appointment and the disbanding of a Consul's army outside Rome. In the decadence of the Senate piracy was not quelled in the Mediterranean, and inadequate provision was made to repel the Teutonic invasion from the North, because the immense power wielded by the man to whom either of these enterprises was entrusted threatened to overbalance the constitution. The Senate felt, and rightly felt, that its greatness had been achieved by the relatively unselfish co-operation of its members; when the sentiment, which had rendered that unselfish co-operation possible, had given way before the immense opportunities offered by provincial governorships and the successful command of Roman armies, the Senate endeavoured to restore the effects of that sentiment by insisting more and more strongly upon regulations which tended to equality; but this was

something different from the Greek antipathy to the tyrant. Equality between its members was a fundamental theory of the Senate, but it had so little antipathy to monarchy as to provide for the rule of one man in the event of great dangers. The Dictatorship, so long as it lasted, was an absolute monarchy; to the Greek a Dictator was the negation of civil order; hence in a Greek town the assumption of the supreme power by one man, however great the emergency, was a revolutionary proceeding; at Rome the appointment of a Dictator was a recognized constitutional expedient.

Thus the divine right of the Senate did not exclude the possibility of making one of their own number supreme executive magistrate; and monarchy was abhorrent to the Senator, not because it was a thing contrary to nature, as some Greek philosophers held, but because it disturbed the balance of the Senatorial constitution.

By laying undue stress on the Senatorial objection to the rule of one man, writers of the school of Cicero have concealed the real position of an orthodox Roman Senator. Cæsar was hated by the old Senatorial party, less because he was in fact King than because he had changed the constitution of the Senate, and endeavoured to make it a council of the Empire by inviting provincials to its ranks.

There is this essential difference between the suicide of Cato and the subsequent suicide of Brutus: the former was a legitimist, to whom the defeat of his cause meant the destruction of all that was holy, the final collapse of law and order and religion; the latter, if an honest man at all, was a fanatical doctrinaire who had been disappointed in his expectation of regenerating society; Cato died because he could not live under the new conditions, Brutus partly because he was disgusted with his failure, partly because he preferred death by his own hand to death at the hands of the ruffians of Antonius.

The conservative Senator objected to a King, it is true, but he objected no less and perhaps even more to such a reconstitution of the Senate as commended itself to Cicero and other reformers, who wished to remodel the political arrangements of Rome in terms of the Athenian Constitution or of some less extravagant ideal republic than that imagined by Plato.

While the Senate contained a party of irreconcilables whom we may call the Legitimists, it also contained a party who believed in the possibility

of a genuine reform, and adaptation of the Senatorial constitution to the needs of the Empire; there was a liberal tradition as well as a conservative tradition inside the Senate; the men who had gradually broken down the barriers between Patrician and Plebeian in the early days of the Republic, and who had gone some distance in admitting the allies to a place in the constitution, had been succeeded by the men who had recognized the claims of the Equestrian order, and saw that some equitable distribution of the rewards of victory among the rank and file of the army was necessary to the well being of the State. The names of the men who took the lead in forcing reforms upon the Senate are Senatorial names, Glaucia, Fimbria, Saturninus, Livius Drusus, Cinna, no less than the Gracchi were Senators; and though they were ill advised in mistaking the Roman mob for a constitutional party, they were not demagogues in the sense that Danton was a demagogue; they belonged to the body which they wished to reform; their methods were injudicious, as was proved by the result, but it is not easy to see what other methods were open to them. After Cicero had pledged himself to the cause of the Conservative party in the Senate, he spoke of these men and other men who had proposed and passed measures of reform in terms of unmeasured reprobation, but we are no more bound to accept his condemnation as historically accurate than we are at liberty to accept the current terminology of political abuse in our own day as indicating anything more than the malignity of the speaker. Even the moderate reformer is stigmatized as a demagogue by those who object to his reforms.

Had Marius been as capable a politician as he was a general, it is possible that the reform party in the Senate might have brought about a gradual transition from the rule of the Senate to the inevitable monarchy, but the incapacity of Marius gave the reins to violence, and brought on the proscription of Cinna to be followed by the reaction and yet more violent proscription of Sulla.

Constitutional reform failed, but the breed of constitutional reformers was not extinguished even by the second proscription. Sulla had recognized this party, and had adopted two of its projects of reform; he had, in a measure, unified Italy, and he had provided for a quasi-representative constitution of the Senate by ordaining that men who had held the elective office of Quæstor should after their term of office pass into the Senatorial

ranks; this did not exclude other means of admission to the Senate, but it partly broke down the exclusive system of co-optation through the Censor, and it gave a capable and pushing man from an Italian municipality, such as Cicero, a better chance of attaining the highest position at Rome.

The party of moderate reform was divided into two sections, the section which recognized the Empire, and the section which thought in the first place of the city; the former became the mainstay of Cæsar, the latter soon ceased to have any practical weight except in literature. When the great crisis came, it ranged itself for the most part with the Pompeians; but the former section was not able to accept Cæsar's radical reforms, and became after his death anti-Cæsarian, till after being frightened by the extravagance of Antonius and the brigandage of Sextus Pompeius, it was won over by the moderate and cautious policy of Octavian. These were the men who fought beside Brutus and Cassius, and joined Lucius Antonius in the Perusine war, but when they saw that the choice was between anarchy and Octavian, gave their adhesion finally to his cause; the reign of Augustus bears the impress of their influence throughout. Among them were two men of note, Livius Drusus, father of Livia and grandfather of Tiberius, and Tiberius Nero, the father of the future Emperor.

The reign of Augustus did not finally conclude the reign of the Senate, but it removed from practical politics the party who could not see beyond the city State, and it definitely concluded the pretensions of the rabble of the streets to act in the capacity of the Roman people. It was only gradually that the Senate became an advisory council to the Emperors, recruited from the distinguished officials of the Empire, or from the legal profession; it retained for a long time its hereditary and domestic character.

It might have been anticipated that there would be a clear division of functions between the officials of Greater Rome and of the city itself, that the Emperor with his staff would manage the concerns of the Empire, and the Senate would govern the city; but it was long before the Government of the city sank to the position of an ordinary municipal Government. The division of the provinces into Senatorial and Imperial ultimately broke down, and was indeed from the beginning formal rather than real; it was a compromise by which the old nobility was conciliated, but the honours conceded to the old aristocracy became more and more titular as time went on; the Roman Senate could not step down, and it refused to accept the

position of the city Council of Rome, or even of the Council of Italy. It was never formally disestablished, but it was eventually crowded out, though it was still sufficiently self-conscious, when Tacitus and the younger Pliny were writing, to resent the predominance of the Imperial Household, and to worship the traditions of an omnipotence which it believed to have been the realization of those dreams of liberty so dear to the Greek philosophers. So long as Rome continued to be the centre of the administration of the Empire, the Senate of Rome was always something more than a municipal council, and the name of the body which had once governed the Empire was always dignified by associations which could attach to no other assembly.

IV

Slavery

THE politician of to-day is as incapable of imagining a wholesome state of society in which slavery is a recognized and universal institution, as he is of believing that any political constitution can be really good without representative government. The Romans, however, contrived to civilize the world, so far as it was accessible to them, without representative government and with slavery. Slavery is, in fact, a necessary condition in the evolution of civilized society, and was an important factor in the evolution of the Roman Empire. Teuton and Celt, no less than Greek or Roman or Phœnician, equally used and doubtless equally abused the institution; no race can claim to have been at all periods of its history free from the curse.

In order to arrive at a fair conception of slavery as it existed in antiquity, it is necessary to clear our minds once for all of prepossessions created by the conditions of slavery in America or other countries, where the slave and the slave owner have been distinguished by such marked racial differences as exist between the white man and the coloured man, between the highly civilized man and the savage. Even in the department of negro slavery, as practised in America, there are two sides to the question, and *Tom Cringle's Log* must be set against *Uncle Tom's Cabin*. Mr. T. Booker Washington, an American negro who has done perhaps more for the emancipated black men than any living man, himself born a slave, refuses to join in the wholesale condemnation of American slave owners; to him the mischief of the institution lay less in its injurious effects upon the negro than upon the white man, who despised wholesome industry, and tended to become useless rather than cruel.

The political student has to approach the subject without prejudice, and investigate all the consequences and accompaniments of slavery, not only

some of them. It is further necessary in dealing with such a question to discount the antipathy to pain and discomfort which is so marked a feature of modern life. Granted that under certain circumstances slavery resulted in a vast amount of hideous suffering, still slavery was not the only condition in ancient life, or mediaeval life, or even modern life, that has resulted in suffering. Wherever a man finds himself in an irresponsible position towards a number of his fellow creatures, wherever a society or the rulers of a society live in terror of any section of that society whether slave or free, there is always the probability of great cruelty. If all the pain and sorrows of humanity from the beginning of time until now could be reckoned up and estimated, and assigned to their various causes, it is questionable whether slavery would show the blackest record.

Antiquity has left us some notorious instances of cruelty to domestic slaves, and the stories of a few sensational cases have been preserved; but even the English domestic servant in Christian London in the nineteenth century is exposed to cruelty, and if the records of our law courts survive, posterity on the evidence of a few exceptional cases will be able to pass a stern sentence upon English men and women of today. Could we estimate all the pains of all the operatives in modern England, all the lives that are shortened, or rendered intolerable by disordered health, could we arrive at a clear understanding of all that is suffered by puddlers in iron foundries, by stokers on our great ships, by men and women employed in lead works, in brick works, in chemical works, in numberless other dangerous industries, we might well pause before condemning slavery as the one social condition predominantly productive of human suffering. True, the modern operative is free, but free to do or to be what? The chain is there; it is only a different kind of chain.

When St. Paul travelled from Puteoli to Rome, he passed through a country in which a form of slavery was universal, which is commonly held to have been the cruellest known to Italy; he passed by the barracks of the agricultural slaves, and the conditions of travelling were such as to give him every opportunity of making observations; he lived certainly for two years after this date, and possibly much longer, but he nowhere lifts up his voice against slavery in general, or even this particular form of slavery. Not long before St. Paul made this journey, it had been necessary to inspect the slave

barracks in the same part of Italy, because free men had acquired the habit of adopting servitude in order to escape military service.

In fact that picture of antique slavery which represents it as a scene of whippings and tortures, of rapes and murders, of humiliating or disgusting services exacted by one man from another, and as the exclusive condition under which such things occur, is a false picture.

The importance of slavery as a factor in the life of the ancients does not in fact depend so much upon its moral influence upon individuals as upon its political consequences, which were many and far-reaching in their effects.

The condition of slavery in the ancient world did not in itself involve the same measure of personal degradation with which it is associated in these days; it was only one of many inequalities recognized by society. If a slave could not appear in the law courts of Rome, no more could the resident alien, however rich, however noble in the city from which he came; if the slave could not hold real property, no more could the sons of his master; if he could under certain conditions only acquire personal property, his master's son was similarly disqualified; the ceremony by which each acquired freedom was the same; neither could make a will, nor work entirely for his own profit; both were included in the family; the domestic disqualifications under which the slave lived were common to him and the children of the house; the political disqualifications he shared with the free citizens of any community not expressly recognized under treaty by the inhabitants of the community in which he lived. Ancient society never contemplated individual independence as the fundamental condition of human existence; it was based on the contrary theory, that individual independence was the exception, and the privilege of the few; only gradually, and as the consequence of established law and habitual order rendering personal security possible for the mean man without the intervention of a powerful protector, did the modern conception of the rights and obligations of the individual human being grow up; and in its perfect development the conception has only very recently been realized.

The slave and his master might be, and commonly were, members of the same race; if they were of different races, the slave might be a more highly civilized man than his master, better educated, more capable in many

respects; there were hordes of slaves drawn from less civilized races, and even from savage races, and the work which fell to their share tended to be menial or arduous according to their unfitness for work demanding previous training; but the fact that the slave was by no means universally of an inferior type of humanity to his owner, and frequently quite the reverse, put slavery as an institution on a totally different footing from that which it has held in modern times.

Again, if the slave had to suffer from political disqualifications, he had corresponding immunities; for one thing, he was exempt from military service. One very important consequence of this aspect of slavery was the restriction of the field from which recruits could be drawn for armies; it would perhaps be an exaggeration to say that the whole of the industrial population of antiquity was not available for military purposes, but the statement is somewhere near the truth; and from this followed a further consequence, which eventually helped to break up the Empire, viz., that the armies were increasingly recruited from the populations on the confines of the Empire, and ceased to be Italian. First Gaul, Spain and Illyria, and Thrace, then the Teutons from Central Europe, sent free recruits to the Roman armies, till the time came when the less civilized military element threw off the traditions of the civil government, and society returned to the conditions which had prevailed before the Roman Empire inaugurated the reign of peace. Agricultural slavery in Italy is sometimes said to have been the cause of the depletion of the Roman armies; ancient authors complain that the hardy breed of peasants from the central hills of Italy disappeared, and that, because their place had been taken by slaves, the recruiting grounds were barren of the right kind of population. The real state of the case was the reverse: the Roman wars had exhausted the Roman free population, which was then replaced by slaves. Between the end of the second Punic War and Cæsar's campaigns in Gaul, Rome had been continuously draining Italy of her free population; it was inevitable that the sons of the small farmer should be replaced by slaves, and that eventually small farms should be merged in large holdings, and that the slave barrack should stand alone where the scattered homesteads of the peasant proprietor had adorned the landscape.

Two forms of slavery in antiquity have almost monopolized the attention of most writers on the subject—domestic slavery and agricultural

slavery; both lend themselves to sensational treatment; but along with these there was industrial slavery in all its forms; where we have free artisans, antiquity had slaves; and it is questionable whether the slaves employed by a great manufacturing firm in antiquity were less well off than the mill hands of a Lancashire town of today; in many industries they were possibly better off than the class of operatives who are “sweated” in East London; the slave of antiquity was at least provided with the necessities of life by his employer. It is true that the slave operative could be bought and sold and even mortgaged; he could be bequeathed by will, but these mischances commonly happened to him collectively, and no more affected him individually than a change of owners affects the men working in an English manufactory; indeed, the slave had an advantage over the free artisan; he was part of the capital, his value was relatively greater, he occupied the place now taken by the machinery. A body of well trained, well organized slaves stood in much the same relation to capital in ancient times as the plant of a manufactory to the modern capitalist; and a new owner would no more have thought of disbanding or disabling the slaves employed in a publishing establishment, or brick works, than a modern owner would break up the machines in a cotton mill which he had acquired. When we read of the enormous number of slaves owned by some ancient millionaire, we must not think of butlers and grooms and footmen, but of clerks and “hands”; where we now say that such and such a capitalist employs so many thousand men, the ancients said that he owned so many thousand slaves.

The slave could earn money for himself, and we can see through the minute regulations of the codes as to the conditions under which he could earn and hold money, a recognition of the fact that a man’s free labour is generally more effective than his forced labour; the slave’s opportunity of earning put him, as we should now say, upon piece work; he earned so much for his master, so much for himself; his master gave him the advantages of organization, of capital, of a commercial reputation, and for these he paid in a proportion fixed from time to time by legislation, keeping the remainder of his earnings; that he paid more highly for these advantages than the present value of money, and the general security of society would render equitable, is quite true; but then the whole scale of interest on capital was far higher than it is now. The slave who traded, as he often did, with his master’s capital, paid less for its use than the interest which would have

been demanded of a stranger. We must not think of the “peculium,” the slave’s private earnings, as we may think of the purse accumulated by a modern domestic servant from gratuities and other sources of private revenue, but as a real wage earned even by a slave. The regulations which still bound the enfranchized slave to his master in the new relation of patron seem at first sight harsh, the liberty in reference to the former master remaining incomplete, but their aspect changes when we reflect that they rendered manumission more easy, and that the slave’s opportunities of earning money both before and after manumission were made for him by his connexion with his master. The proprietor of a large business might have every feeling of kindness and consideration for a trusted slave, who managed some department of that business, but he might think twice before rewarding him with his liberty, if that act involved not only the loss of the slave’s services, but the creation of a commercial competitor.

Much has been written in condemnation of Roman agricultural slavery, and justly so, if the agricultural slave was dealt with in the spirit of the elder Cato; but here again we must be careful to distinguish. The *ergastula*, the slave barracks, did not account for all the agricultural slaves, and in the later days of Augustus the *ergastula* were preferred by free men to military service; nor can the system of the *ergastula* have been as rigorous in practice as in theory; the two great servile insurrections which proved so serious a danger to Rome could not have assumed such alarming dimensions, had not the slaves who organized them been in possession of means of communication. Nor must it be forgotten that there were many slaves who would now be convicts, many who had been sold into slavery from a conquered country, never having known any other condition of life. The ancients did not often make the mistake of setting a delicately nurtured man to hard menial labour, for his value in that capacity was small; similarly the increasing difficulty of finding slaves after Rome ceased to extend her conquests increased the value even of navvies, and their condition was improved by the exigencies of sound economy; even a Cato, when slaves were dear, took care not to wear them out before their time. Though a slave was not protected except by public opinion against his master, who might beat and even kill him, he was protected against all other men, who could not injure him without incurring damages for wanton destruction of another man’s property. There were cruel savage men among the ancients as there are among the moderns, but on the whole the servile

condition does not seem to have been abused. Roman masters and even mistresses occasionally beat their slaves, but vapulation was a constant feature of human existence till a very few years ago even in Europe. Shakespeare's masters frequently strike their servants; that worthy though foolish citizen, M. Jourdain, after frequent threats and much aggravation, slapped his maidservant on the face; the use of the stick is not an exclusive prerogative of the slave owner.

The more domestic of the Latin authors, such as Cicero and Horace, do not give us a disagreeable picture of slavery; the relations between slaves and masters in their day seem to have been in every respect as pleasant as those between employers and servants in these days; and the taunt of servile origin so frequent in the Classics amounts to little more than the taunt of connexion with trade so common in some circles in the eighteenth and early nineteenth centuries. In fact the frequency of this disparagement tends to prove that it was easy to rise from the servile condition to positions of great wealth, and even political influence. The two vulgar rich men in the *Satyricon* of Petronius, Trimalchio and Habinna, had both been slaves; and the latter is made to say that he had become a slave voluntarily, as that was the easiest method of becoming a Roman citizen; this may be wilful exaggeration on the part of Petronius for a satirical purpose; but it would have no point if it did not carry a certain element of truth. Pallas and his brother Felix, the freedmen of the Emperor Claudius, were, the former practically Prime Minister, the latter Procurator of Judæa; numerous similar instances show that a man might have been a slave and yet rise to high office; the intermediate step seems generally to have been through the Equestrian Order—in one of its aspects, as we have seen, the financial department of the Civil Service.

This introduces us to another feature of slavery as practised in antiquity, viz. its cosmopolitan influence, which was at work in every class of society, but in the highest class most of all; nothing else so effectually broke down the barrier between the Greek and the Roman, between the Eastern and Western half of the Mediterranean, between North and South.

War in ancient times had many of the aspects of a speculation, and among the profits of war the sale of captives was reckoned; the conquered had no rights against the conqueror except under special terms. When the victim was a civilized State, the free men who were thus sold into slavery

had the opportunity of buying back their own freedom; they practically paid a ransom; the transaction was a rough and ready and efficacious method of exacting an indemnity. There would be a certain proportion who could not pay the indemnity, and these became slaves, but in their new status they were not wasted on unprofitable occupations; the philosopher, the physician, the accountant, the merchant, continued their various occupations in the service of their master, and if they proved their efficiency rapidly passed through the stage of slavery to that of freedmen.

Of the twenty famous schoolmasters whom Suetonius honours with short biographies, three only were certainly not freedmen, Orbilius, the teacher of Horace, Pomponius Marcellus, and a certain Valerius Probus, who hailed from Beyrout, and must have been himself free, whatever his parentage, as he began life with the endeavour to get a centurion's commission; fifteen were certainly freedmen, and two probably. Their nationalities are strangely varied; three were certainly Italians, three others possibly, two were Syrians, if we so class Probus, three Gauls, one Spaniard, one Illyrian, six certainly Greek, and one probably. Of the three Gauls, one, M. Antonius Gniphos, gave lessons first in the house of Julius Cæsar during the latter's boyhood; he was a man of exceptional intellectual brilliance and generous character. Suetonius does not state that Gniphos actually taught Cæsar, though the inference suggests itself, and in any case the youthful Cæsar must have known him, and have received impressions, if not information, which may have influenced the future conqueror of Gaul. These men were for the most part highly respected and made large professional incomes; they taught either in houses of their own, or by special arrangement in the houses of their patrons; one of them, M. Verrius Flaccus, taught on these terms the grandchildren of Augustus, who paid him a handsome annual stipend on condition that he only admitted such pupils to his classes as were approved of by his employer; he had previously taught independently; a statue was erected to his memory at Præneste; this indicates that in spite of his servile origin he was held in high honour. Horace must have known Verrius Flaccus, even if he were not actually a relative, and Horace's allusion to the persuasive schoolmasters, who coax children to learn the elements by giving them biscuits, suggests a well known trait of this Verrius Flaccus, who was the first schoolmaster to offer prizes, "some ancient book handsome or scarce," says Suetonius. It is interesting to note that the most fashionable of these schoolmasters, and the

one who made the largest fortune, was a man who, in the opinion of the Emperors Tiberius and Claudius, both good judges, was totally unfit to be entrusted with the charge of youth; while the one of whom it is recorded that in his old age he sank into extreme poverty is Horace's old friend, the freeborn Italian Orbilius. This man also was honoured with a statue.

The proportion of men of servile origin in this one profession was very large, if we may infer that the short list given by Suetonius of its leaders indicates conditions which prevailed through the rank and file; nor was it held in special disrepute. Tacitus mentions a schoolmaster not included in this list who became a Senator; another, M. Pomponius Marcellus, was admitted to the inner council of Tiberius, and anticipated the "supra grammaticam" episode of a much later age; he reproved the Emperor for a solecism in the wording of a decree, telling him, "You can give the citizenship to men, Cæsar, but not to a word."

Men who had been freeborn in their native countries, but had passed into servitude by fortune of war, found new and wider careers open to them in the service of their conquerors; they obtained access to the masters of the world, and were able to direct their thoughts to new channels, and directly influence their policy; they were further able to push the fortunes of their relatives and connexions at home; for as freedmen, and even as slaves, they were not cut off from correspondence with the countries which they had left.

Their influence, great as it was in breaking down the intellectual barriers between Rome and her allies and subjects, and in forming the conception of a world-wide empire, was even greater in the world of finance. Even the great Cæsar failed to throw open the Roman Senate to the civilized world, and admission to that body continued to be jealously guarded, in spite of occasional exceptions, till the Senate had been practically superseded by the Imperial Household; but admission to the Equestrian Order was a relatively easy matter; no sanctity attached to the Order, no historic glamour; and a skilled financier found his way into its ranks with comparative ease. Roman bankers such as Cicero's friend Atticus, needed the assistance of clever Jews and Greeks, for Roman money was invested privately as well as publicly in all parts of the Empire; municipal securities, then as now, were a favourite investment; cities and colonies were in the habit of borrowing money for local improvements; the

knowledge possessed by men, who had been acquainted with the local and personal conditions was a valuable commodity; and any Roman, who aspired to play a great part in the financial world, drew into his service men from all parts of the Empire; these men were not infrequently rewarded by admission to the Equestrian Order; some of them were free men, the majority were slaves to begin with. The process was so common that the term "Libertus" is used much in the same way as we employ the terms "agent," or "man of business." Not the least important consequence of the system was the admission of the Jews to a share in the control of administration; "they of Cæsar's Household" were not domestic servants, but financial secretaries of considerable importance.

Slavery has been reproached with being responsible for the horrors of the arena, and a general indifference to the sanctity of human life; but this love of spectacular bloodshed, this indifference to the sufferings and death of human beings and animals, is by no means an exclusive feature of societies in which slavery is an accepted institution. Bull fights are being extended at the present day from Spain to France; bull baiting, bear baiting, badger baiting, prize fighting, cock fighting, were accepted amusements in England till the beginning of the present century, some of them are not unknown to our contemporaries; nor is it easy to distinguish that delight in the sufferings of condemned criminals, or in the encounters between trained combatants, which filled the Roman amphitheatres, from the excitement which drew crowds to look on at the merciless tortures and executions of the period of the Reformation, and led the fashionable friends of Madame de Sevigné to watch a woman being burned alive. So far were gladiatorial combats from being one of the hardships imposed by slavery, that we have repeated references in the early Imperial period to the misconduct of Roman knights, and even Senators, who exhibited themselves in the arena. A skilled gladiator risked his life, as does a skilled toreador, and he enjoyed the same measure of popular favour; there were statues of gladiators as well as of schoolmasters.

The tendency of the Empire was to break down the barriers between the free man and the slave; as political power ceased to be the privilege of a caste, and became the reward of recognized merit bestowed by the head of the administration, the importance of free descent was diminished; the spiteful remarks about freedmen and servile origin, which we occasionally

find in the Latin authors, were suggested by the improved position of slaves and freedmen; they represent the impotent malice of a caste, which saw that the sceptre was departing from between its knees; the distinction was long preserved by literature, for the boys of the Roman Empire, like the boys of England, were brought up on the works of the great Athenians, who spoke of the slave as the slave was spoken of when the free citizens in the most liberal of Greek States were really an aristocracy of birth entrusted with the conduct of affairs among a population by which they were far outnumbered, and which included many men as wealthy as the freeborn citizens, and no less enlightened.

It was largely through slavery that men of letters, men of science, architects, engineers, sailors, and even soldiers, found their way from all parts of the world into the executive services of the Empire. Rome had become cosmopolitan without being aware of the fact, long before the genius of Cæsar finally started her on an admittedly cosmopolitan career.

In spite of the pleasant personal relations which often prevailed between slaves and their owners, emancipation on a large scale was not regarded with favour, the statesmen who on different occasions of emergency released slaves in large numbers in order to fill up vacancies in the army were spoken of reproachfully; the step was always felt to be a desperate one.

The reason, however, of the objection to such emancipations was less fear of the slaves, or dislike, than the interference which it involved with industrial pursuits; it amounted to a wholesale confiscation of property; an analogous process at the present day would be summarily to impress large bodies of operatives; this would bring many industrial communities to a standstill. Similarly when at a later period we find restrictions imposed upon the custom of emancipating slaves by testament, this may well have become a means of throwing the responsibility of maintaining superfluous slaves upon the public dole fund, and of exempting the heir from the necessity of supporting them. Emancipation does not seem to have been regarded as an unmixed blessing. We have the well known case of Cicero's secretary Tiro; Tiro was a slave, but he was his master's friend; the relations between them were of a most affectionate nature; Cicero's letters to him are full of anxious inquiries after his health, of demands that he shall run no risk of over fatigue; that he shall take the best medical advice; and yet it

was only late in his life that Cicero bestowed liberty on Tiro. The letters in which Cicero's relatives, and especially his son, congratulate Tiro on his elevation, show that, slave though he was, he was no less respected than loved. That such relations were common we may infer from the statement made by Paterculus, that in the proscription of B.C. 43 the fidelity of sons to their fathers was least; the merit of wives stood first, of freedmen second, of slaves third.

The institution of slavery did not demoralize the ancients in the same way that negro slavery is said to have demoralized the Americans, or coloured slavery in general to demoralize white men; it was a totally different institution.

In this, as in all other details of ancient history, the memory of the bad, the exceptional, the sensational, is preserved; the normal conditions are forgotten; and as it is much easier to declaim than to inquire, the essential but unobtrusive features of any particular institution escape notice. On the whole, the action of slavery in ancient times was beneficial to civilization, and the eventual dismemberment of the Empire was not due chiefly to the existence of slavery. The races who broke up the Empire themselves recognized slavery, and it was long before agricultural slavery disappeared even from England.

I

The Death of Augustus

IN the hottest weather of the year 14 A.D., a hush fell upon the streets of old Rome, as the news rapidly circulated that her foremost citizen was dead, and that the man whose name had spelled peace and prosperity for the whole civilized world was no longer at the head of affairs. Few men were still living who could remember any rule but his; for forty-five years he had controlled without serious opposition the destinies of an Empire which stretched from the Euphrates to the English Channel; the men who had taken an active part in the events before the reins of government dropped into his skilful hands were now but few, and if they ever spoke of the days which immediately preceded his reign, it was to contrast fourteen years of anarchy with nearly half a century of order. Here and there in the palaces of the few old Roman families that had survived the revolutions of the middle of the last century the good old times were bewailed, when the spoils of the world were distributed between the members of a few princely houses theoretically associated in administering the affairs of only one Italian town, and bitter epigrams were circulated at the expense of the monarch who posed as the first man of a free city; but the vast body of the population had long forgotten the days of a liberty in whose privileges they had never shared, while they had suffered from its concomitant licence; the streets were no longer the scene of furious fights between the retainers of great noblemen, the citizens regularly received their supplies of corn, holidays were frequent and the amusements of the public provided for on a liberal scale; the Prince himself had been the foremost to enjoy all that delighted the hearts of his fellow citizens.

As the fierceness of the hot Italian sun diminished, and the streets began to fill, the praises of the dead man passed from mouth to mouth; one would remember the humility with which he had pressed the claims of his

chosen candidates for public office, and the courtesy with which he had asked for a vote; another would recall him studiously fulfilling the sacred duty of a patron, and pleading in the Forum on behalf of a humble client; yet another would describe him standing at his own door once a year dressed in white begging for alms to bestow on the needy; others would speak of the modesty of his household, the model of an ancient Roman family where Livia his consort herself superintended the weaving of her maids; nor would the gayer sort forget his interest in the shows of the circus, or fail to tell stories of his modest bets, and somewhat liberal jokes; the scholar would speak of his simple entertainments in which the poet and the historian shared in the conversation on terms of equality with their host; those of more serious mind would dwell on his scrupulous attention to the ordinances of religion, his restoration of temples and shrines and their various cults; while the tender-hearted would deplore his private sorrows, the premature deaths that had snatched away his grandsons, the scandals that had bereft his home of his daughter and granddaughter; nor would they fail to bewail the fact that the only possible successor to his heritage and his power was an alien in blood.

As the days wore on the symptoms of the public sorrow increased, and the authorities began to fear that the order of the funeral might be marred by some such frantic outburst as had attended the obsequies of the first great Cæsar, whose body had been seized by an excited mob and burned in the public market place; regulations were issued to ensure such order as the Prince himself would have commanded, and to prevent the licences into which an orgy of sorrow might degenerate. Day by day was reported the slow progress of the procession from the small country house in Campania in which he had died to the gates of the city; here the body had been guarded and carried by soldiers, there by the knights, the second order in the State, and lastly the Senators themselves were waiting to receive it, and conduct it on the final stage of its journey into Rome.

The day came at length when the long train of mourners filed through the narrow streets, at its head the ivory bier draped in purple, behind it the effigy of the dead man, and a stately series of similar effigies leading back through the great Cæsar himself to mythical Æneas and Anchises and the goddess Venus; there were no deep-voiced bells, no dull minute guns to express and intensify the public sorrow, but the silence was broken by the

shrieks of dishevelled women and the monotonous blare of hoarse trumpets. After the images came the chief mourner, a tall and stately man with bowed head, the Commander-in-chief of the Roman armies, descended from the noblest blood of ancient Rome; behind him walked members of the family, high officials, statesmen, senators, the representatives of kings and cities. Principalities and powers were all assembled to do honour to the dead. The heat of the season had rendered it necessary to conduct the ceremony by night, and the flare of torches fell fitfully on the procession and on the faces of the spectators. At length the tedious ritual was completed, the wine, the oil and the spices were thrown on the pyre, thrice was the dead man called by name, and the silence was broken by no answer; the chief mourner applied the torch with averted face, the crackling flames rose to the sky, the soldiers ran round the burning pile, an eagle sped heavenwards through the smoke; when the fire had at length died down, and wine had been sprinkled on the ashes, a cry arose of Farewell, and yet again Farewell; then the mourners departed to their homes, and the Roman people dispersed to magnify the events of the last few hours, and to remember portents: stars had fallen from their places in the sky, the earth had been shaken, rivers had reversed their course, the kindly rain had been turned into blood, and even small domestic catastrophes were now known to have had their significance; a Senator had seen the soul of the deceased rise to heaven from the midst of the flames, and the credulous were comforted by reflecting that the Genius of Augustus still watched over the destinies of the Roman people.

Meanwhile in the palaces of the Senators one question of supreme interest was debated: What was to be the new order of things? and, indeed, was there to be a new order?

It was fortunate for the destinies of civilized humanity that a successor was ready at hand to take up the reins of government which had dropped from the tired hands of Augustus, and that the question of succession was not left to be settled by debate in the Senate, or the result of a civil war. Tiberius was on the spot; he had been for all practical purposes his stepfather's colleague for ten years; he was acting Commander-in-chief of the Roman armies; he was of ripe age and ripe experience; his personal knowledge of the Empire was almost co-extensive with its limits; he does not seem to have visited Africa or Egypt, but he had served or commanded

armies, and conducted negotiations over the whole area between the sources of the Euphrates and the North Sea. There was no living Roman with equal knowledge of affairs, or of superior rank; his succession was inevitable, if there was to be a successor to Augustus.

The life of Tiberius is from every point of view profoundly interesting; it began in the middle of the great revolution which eventually substituted the rule of one man for the rule of the Senate, and which left the city of Rome the capital rather than the mistress of an Empire; it ended after nearly fourscore years, during which the constitution of that Empire was so firmly established that the incapacity of individual rulers, and the mutual rivalries of aspirants to the chief power, though sometimes resulting in civil war, failed to shake its stability; it coincided with a great step in the forward march of civilization which has left its impress upon all subsequent history. If the political events which occurred during the life of Tiberius are of supreme interest, his personal history is no less attractive to the student of character, and of the strange vicissitudes which may occur in the life of a human being; not the least of the many contradictions in this life is the fact that the man, who is called by the great German historian, Mommsen, "the ablest of the Roman Emperors," should have become the recognized type of all that is most evil in a ruler, and left a name which is seldom mentioned without an expression of detestation.

II

Parents and Childhood of Tiberius

THE connexion of the Claudian clan with Rome was referred by the Roman historians to the very beginnings of her history; they had no doubt of the antiquity of the event; it was only debated whether this Sabine stock was received into the community on the Tiber at the suggestion of Titus Tatius, the consort of Romulus, or four years after the expulsion of the Kings. The headquarters of the Claudians were the region round Tusculum, in which town its chiefs had a fortress; their domain gave its name to one of the later electoral divisions of the Roman territory. From the beginning the Claudian stock was credited with an unusual measure of aristocratic pride and public spirit; the legends said that one Claudius caused by his intemperance the secession of the plebs to the Mons Sacer, and that the unbridled lust of another brought about the downfall of the Decemvirate; we are on firmer ground in attributing to the Appius Claudius who was Censor in B.C. 312 the inception, if not the completion, of two works of great public utility, the Appian Aqueduct, and the even more famous Appian Way, the great South Road, the first link in the chain of highways which bound the Empire together. Appius Claudius the Censor had two sons, who took the additional names of the Handsome and the Strong; the descendants of both were to do good service to their country; a Claudius Pulcher fought the Carthaginians in Sicily, a Claudius Nero defeated Hasdrubal at the battle of the Metaurus. The Censor is further credited with having been the earliest Roman writer in prose and verse. Intellectual and administrative eminence was thus ascribed to the Claudians, also a touch of arrogance extending to relations in which arrogance was out of place; for it was Appius Claudius Pulcher the Admiral who, when the unwonted abstemiousness of the Sacred Chickens portended disaster, threw them into the sea, and was deservedly rewarded by a defeat.

Both the leading Claudian families were united in the person of the Emperor; his father was a Nero, his mother was a Pulcher, for though her father belonged legally to the Livian Gens, he had been adopted from the Claudian. The family enumerated among its distinctions thirty-three consulships, five dictatorships, seven censorships, six triumphs, and two ovations.

In the last century and a half of the Republic the Neronic branch was less distinguished than that of Pulcher; no records survive of the immediate ancestors of the Emperor on the father's side, and no Claudius Nero appears in the consular list after 204 B.C. When Horace wished to remind the Romans of their debt to the Neros, he had to go back to the battle of the Metaurus. The family had become so obscure that the genuine descent of the Emperor from the conqueror of Hasdrubal has been questioned; but it was not questioned by his contemporaries, who would have been only too glad to add the reproach of an obscure ancestry to the other indignities which they fastened upon him. It would be in accordance with the pride, and even rectitude of conduct, ascribed to the Claudians, that this branch of the family preferred comparative poverty to taking part in the scrambles for office, and interested intrigues, which marked the decadence of the Senate; and that its successive chiefs chose the dignified life of a Roman noble of the old-fashioned type, concentrating their energies rather upon the management of their ancestral domains than upon pushing themselves into the inner circle of Senators who sped to exploit the Roman conquests.

Tiberius Claudius Nero, the father of the Emperor, appears first in the party of Cæsar; he was already a quæstor, and while holding that office commanded the fleet which besieged Alexandria, and rescued Cæsar from the insurrection of the Alexandrians; he was rewarded by being made a Pontifex, and entrusted with the establishment of colonies in Gaul, at Narbonne and Arles among other places. This was work which required considerable tact; it was not always easy to satisfy both the veterans who formed the colony and the population whom they displaced. Cæsar was not in the habit of employing incompetent agents, and the selection of Tiberius Nero for this work is an evidence of his capacity. After the assassination of Cæsar he became a warm partisan of the Liberators; he is even said to have proposed in the Senate that the Tyrannicides should be rewarded, when others thought that an amnesty was sufficient for their deserts. It is not clear

whether he was Prætor at this time or shortly afterwards, but he certainly held that office when Lucius Antonius and Fulvia making a diversion against Octavian at Præneste; before the fall of Præneste he had slipped away to Campania, and endeavoured to form an army from the proprietors in that district who were threatened with the confiscation of their land for the benefit of Octavian's soldiers; in this enterprise he was unsuccessful, and had to flee for his life to Sicily, where he took refuge for a short time with Sextus Pompeius.

As we afterwards find Tiberius Nero in the closest association with Octavian under circumstances which, judged by our standards of conduct, are discreditable, it is advisable to stop to consider whether a man could with any measure of consistency serve under Cæsar, and then join hands with his murderers; on the solution of this question depends the claim of Tiberius to be considered an honourable man; for in this relation we can measure him by standards which are applicable to ancient and modern life alike.

Velleius Paterculus, the historian to whom we owe a conception of the early days of the Empire different from that suggested by Cicero and Tacitus, was hereditarily associated with the family of Tiberius Nero; his grandfather was his most intimate friend; he calls Tiberius Nero a man of generous spirit, and strongly inclined to learning. A man of this nature would be attracted to Cæsar by a similarity of character and tastes. The ambition of Cæsar was a generous ambition; he was one of those born organizers to whom muddling is a painful and personal annoyance; he valued power for no vulgar reason, but because it gave him the opportunity of realizing his conception of a well ordered world. Endowed with an enormous intellectual ability, inexhaustible physical vitality, an irresistible personal charm, Cæsar attracted to himself all the men who really meant work. Cicero himself very nearly succumbed, and would have done so entirely had his uneasy vanity allowed him to work in a subordinate position. There is a limit to the incompetence of constituted authorities; a time comes when all earnest men in a State, whose public business has gradually been monopolized by respectable incompetents, look eagerly for a deliverer; such men do not welcome the noisy reformer, or the narrow doctrinaire, and so long as these alone present themselves, the earnest men hold back, but as soon as the really capable hard-working man appears, they

give him their confidence, and pass naturally into his service. Cæsar's campaigns in Gaul enabled him to select his men; at first the fashionable young men of Rome hurried to his standards attracted by the prospect of a pleasant picnic in charming country with an agreeable climate; no serious danger was anticipated, and there was a pleasing prospect of loot. The behaviour of these gentlemen, when it was realized that the advance of Ariovistus meant serious business, supplies the one comic interlude in Cæsar's commentaries. During the nine years which Cæsar gave to the conquest of Gaul, the earnest workers found their leader; the intercourse between Cæsar's camp and the capital was constant; men learned to contrast the vigorous administration of the Governor of the two Gauls with the imbecility of the Senate; it was not foreseen that the contrast would result in the absorption of the powers of government by this one man. When the time came at which Cæsar had either to abandon all his work or force the Senate to give him a continuance of office, his fellow workers were naturally disposed to give him their continued support. Men who had learned what good work was, and had had their share in it, were inclined to hope for the best; there were many self-seekers, doubtless, but it was possible to follow the fortunes of Cæsar under the influence of the highest motives. The man who had done such magnificent work in the two Gauls might be trusted to reorganize the Government. The reaction came, when the continuance of opposition at Rome forced Cæsar to become an autocrat; his work was only half done when he had beaten the Senatorial armies in Macedonia, in Egypt, in Africa, in Spain, in Asia Minor; he had further to clear away all the obstructions, get rid of all customs and precedents by which the machinery of the administration was impeded; it was root and branch work; and Cæsar was impatient; he attacked everything at once; no ties of affection, no sentimental associations were spared, no prejudices; he saw everything in the clear light of reason; he knew what was best for the Empire, and he was determined to have his own way.

To Cæsar the Senate was the embodiment of obstruction and incompetence; he did not propose to repeat the mistake of Sulla and give it a new lease of power, for his contempt for the Senators was unbounded; but the Senate had a name; it could not be disbanded; the better course seemed to be to swamp the Senate of Rome in the Senate of the Empire, to make it almost a titular body. He enlarged its numbers, added to it distinguished provincials, his personal adherents among the noblemen of Gaul. The

figures that are given us may not be absolutely trustworthy, but there can be no doubt that the Senate was increased to a number which destroyed its capacity for united action. By this measure Cæsar alienated the affection and destroyed the confidence of the liberal members of the old aristocracy; they had been prepared to pay a heavy price for good government; they were at one with Cæsar in recognizing the expansion of Rome, but they had not anticipated a time when a Julius Florus or Cornelius Gallus would not only be dignified with Roman names, but would have the same social rank as a Claudian or Sempronian. So determined was Cæsar to convince the Senate that its day was over, that in transacting business with it he neglected even the ordinary courtesies, and received its deputations without rising from his seat. The dagger of Brutus was the result.

In some respects the assassination of Cæsar was fortunate for his reputation; there was no widespread conspiracy; his government had been of so short a duration that the disaffected men had no time to find one another out; their victim had never realized that there was a formidable opposition, and he fell before his qualities of clemency and moderation were put to the severest test, which tries the virtue and capacity of a successful reformer. The men who murdered him were his chosen friends and servants, many of them were either holding or were awaiting their turn for holding important provincial appointments. The conspiracy was not organized; no provision was made for carrying on the Government after the keystone of the fabric had been removed; it was enough to kill the tyrant. In one respect the conspirators had correctly estimated the result; there were men who, bound to Cæsar by various ties, would not take an active part in any conspiracy against his person, but who, if once that obstacle to the restoration of the Senatorial Government were removed, would declare their detestation of autocracy, and assist in remodelling the State. Tiberius Nero was one of these; Cicero was another, and there were many others who, during the last four years, had been ill at ease in the attempt to reconcile their personal affection for Cæsar and confidence in his ability with their conception of what constituted political righteousness. Unfortunately for these men, they were but few in number; within three months' time it had become clear that neither the Army, nor the provincials, nor the subordinate officials had any objection to an autocrat; the myth of the Senate had been replaced by the myth of Cæsar; the only question was who would become the centre of the cult.

Two men considered themselves most likely to attract to themselves the passionate adoration with which the soldiers of Cæsar had regarded their general; they were his trusted lieutenants, Marcus Lepidus and Marcus Antonius, the former a Proconsul in command of an army, the latter Cæsar's colleague in the Consulship at the time of his death, and his intimate friend; Cæsar's widow placed all her husband's papers in his hands. Antonius had the advantage of being constitutional head of the Government, and as soon as it was clear that the popular feeling at Rome was strongly adverse to the Liberators, he procured a decree from the frightened Senate sanctioning all Cæsar's arrangements. Any other course would in fact have produced intolerable confusion. The most important consequence of this measure was that the Liberators were put into positions of great power and influence by the voice of the man they had killed, and were protected from the consequences of their own imprudence. Cicero threw aside his literary work and rushed to Rome, to assist in the restoration of the Republic, and to revive the party of Pompeius. Antonius, however, had no intention of letting the reins of Government slip from his grasp; being possessed of the dead Cæsar's papers, he was able to produce at his pleasure decrees which the constitutional party had already sanctioned by anticipation, and the partisans of the dead man were bound to support. Moderation was no part of the character of Antonius; he prepared himself to enjoy thoroughly the wealth which was poured into his hands; with Cæsar's soldiers at his back, he felt that he could do what he pleased. An unexpected event shook his self-confidence, and revived the prospects of the constitutional party by dividing the Cæsarians.

The young Octavian crossed from Apollonia and landed at Brundisium.

Cæsar had left no direct descendants except an illegitimate son by Cleopatra, but he had distinguished his great-nephew Octavius by such indications of his confidence and affection as a Roman would bestow upon his destined heir. The year before his death he had taken the young man with him to Spain, on the expedition against the sons of Pompeius, which ended in their defeat at Munda; he had attached him closely to his person, shared his tent with him, conducted all his business in his presence, had in fact begun his political apprenticeship. Apparently Cæsar came to the conclusion that his nephew's education was inadequate, and on the return from Spain he sent him to Apollonia on the Illyrian coast, a Greek town of

considerable commercial importance, which was the seat of a University largely frequented by Roman students. So far Cæsar had not taken the final step of adopting Octavius, but he did so by his will.

Octavius was at this time little over eighteen years of age; his mother and stepfather were alive, both of them devoted to his interests, but nobody seems as yet to have thought of him as a possible factor in the politics of the future.

By removing him to Apollonia his uncle had to some extent withdrawn him from political life, and the Liberators had forgotten his existence. He was of weakly health, and had shown no particular aptitude for military pursuits. Antonius thought him of such small importance, that he disregarded those portions of Cæsar's will which referred to him, and actually seized the private treasure which had been bequeathed to him.

Friends and relatives were alike urgent that Octavian should either remain where he was, or delay his journey to Italy till he was assured of the support of an Army. The young man wisely relied on his own judgment; he was Cæsar's heir and adopted son, but Cæsar could only bequeath to him his private inheritance; it was not in his power to transfer the reins of Government; the nature of the conspiracy against Cæsar and its extent was still unknown; Antonius and other leading Cæsarians had been spared, it was clear that no proscription of the adherents of Cæsar had been contemplated, or, if contemplated, it had been abandoned. If Octavian were marked out for slaughter, he was already doomed; nothing could save him but the affection of Cæsar's veterans; they were all in Italy, and there was as yet no evidence that they were prepared to transfer their allegiance to so distant a relative of their late commander. To appear with an army would be to invite attack, and Octavian knew his own limitations better than anybody else; he knew that he was no general, and he had not as yet a general in whom he could trust. By appearing in Italy simply as a private person engaged in an ordinary matter of private business, the formal succession to an inheritance, he disarmed prejudice. If Antonius wished to put him out of the way, he could do so in any case. On the other hand, by appearing simply as a defrauded heir, he might attract popular sympathy; Cæsar's will had already proved to be a political force; and the Constitutional party might be glad of a counterpoise to Antonius.

Such considerations may well have influenced Octavian in the adoption of the important step which he took contrary to advice. It is even possible that he contemplated nothing more than the assertion of his undeniable right; and that the consequences of his daring step took him by surprise. It is certain that he had no sooner landed at Brundisium than he found himself a power; the soldiers flocked to meet him, and his march to Rome was a triumphal progress.

The events of the next three years are difficult to disentangle; to the actors they must have been perplexing in the extreme. The factor which had been omitted from the calculations of all the leaders was the character of the army, which Cæsar had created. As fast as Cæsar made way in Gaul he enlisted the Gauls in his service; his legions were in the end less Italian than Gallic; to the Gauls the abstraction called the Roman Senate had no more significance than the House of Commons to Sikhs and Gurkhas; they had not got beyond, or not fallen behind, the conceptions of personal fidelity to a chieftain which are developed by the clan system. Not only was it natural to them to transfer their fidelity from the person of a father to that of his son and successor, but such personal ties were their strongest political passion. They would obey Antonius and even Lepidus as Cæsar's friends and trusted subordinates, but their affection for Cæsar's heir was of a different character; to avenge their dead commander, to put his son in his rights, were to them matters of the first importance; as for the Roman Constitution and theoretical Republics, they neither cared about them nor understood them. At first Octavian did not grasp the situation; his temperament was legal and formal; his first preoccupation was to assert his legal rights against Antonius, and in order to do this effectively, he had no objection to using such help as might be given him by Cicero and the Constitutional party, who for their part proposed to use against him Antonius and then put him out of the way. The first serious operation in the field showed Octavian his mistake; the Senate sent him with the Consuls to relieve Decimus Brutus, brother of Marcus Brutus, who was being besieged by the Cæsarians under Antonius at Mutina; both Consuls, old Cæsarians, were killed, and the soldiers insisted on bringing Octavian back to Rome and making him Consul; it was not long before they also insisted on a reconciliation between the Cæsarian leaders, compelling Antonius, Lepidus, and Octavian to work together and unite in the task of punishing the enemies of Cæsar. The proscription was partly the work of the army; so far as it was a punishment

of the enemies of Cæsar, Octavian was an accomplice, though an unwilling accomplice; Antonius and Lepidus both took advantage of it to satisfy old grudges and make large confiscations. Meanwhile the general disorganization invited any man who found himself in command of troops, or was otherwise favourably circumstanced, to fish in troubled waters; Cicero's son-in-law Dolabella, the dissolute little gentleman who was "tied to a sword," was not the only man who saw an opportunity of doing something to his own advantage. Adventures of this kind disturbed the world for a few months, but after Brutus and Cassius had been beaten near Philippi a fairly definite division declared itself; the world was again divided between Cæsarians and Pompeians, and the chief Pompeian leader was Sextus Pompeius. Antonius had gone off to the East to meet Cleopatra and his fate on the Cydnus. Lepidus, though in command of an army and Governor of Africa, was a negligible quantity, destined to suffer a very remarkable disillusionment as soon as he ventured to assert himself in an independent position.

Few men have ever been so fortunate as Octavian in the mistakes of their adversaries, and few have ever turned them to such good advantage.

East and West alike were taught to adore the memory of the great Cæsar by the incompetence of the men who proposed to succeed to his power; under his sway the commercial cities of Asia Minor had thriven; Cassius plundered them in the name of the Senate, Dolabella on his own responsibility, Antonius as the successor of Cæsar; Italy had no sooner begun to look forward to relief from civil war on the departure of Antonius than the Constitutional party allied itself with Lucius Antonius and Fulvia, the brother and wife of Marcus Antonius, to impede the settlement. Tiberius Nero was among those who joined the new movement. Relieved of the presence of Antonius, who in spite of all his faults was a general of ability, the Pompeians hoped to be able to crush Octavian, who was no general; the proscription had left very bitter feelings; Octavian had so far had no opportunity of indicating his pacific inclinations; he had had to do what his soldiers required of him; Antonius was obviously a self-indulgent adventurer, with whose fortunes no self-respecting man could ally himself; Fulvia was a virago, and Lucius Antonius no less greedy than his brother, though less amiable; still it seemed that these latter with their adherents embodied the Republican principle; and the remnants of the Constitutional

party joined them. Incompetent generalship allowed their forces to be locked up in Perugia, and after a siege of three months the soldiers of Octavian glutted their vengeance upon the enemies of Cæsar; the terror that was inspired served its purpose in two ways: there were no more conspiracies in Italy, and Octavian made up his mind never again to be the slave of his own army.

Tiberius Nero either escaped from Perugia before the town was completely invested, or had started on a special mission to Campania with the object of creating a diversion in Southern Italy. He still held the office of Prætor though his legal term had expired, and thus invested his enterprise with a legal and constitutional aspect. The territory of Capua had been confiscated by Rome after the second Punic War, the penalty of the destructive friendship which that city had conferred on Hannibal; the Senate of those days had appropriated the land to its own purposes; the redivision of this land had been part of the programme of the popular party from the days of the Gracchi, and their heirs the Cæsarians now proposed to assign it to Octavian's veterans. Tiberius Nero took up the cause of the proprietors, who were threatened with expropriation, thus adopting the old Senatorial standpoint; he doubtless expected to find that the Campanians, to whom the existing conditions, sanctioned as they were by the precedents of a century and a half, caused no grievance, would flock to his standards; but he met with languid support from the beginning, and the fall of Perugia with the subsequent atrocities destroyed every prospect of success; the Campanians preferred a peaceful spoliation to the chances of war. Tiberius Nero was obliged to fly for his life; accompanied by his wife, his eldest son barely two years of age, and only one attendant, he made his way to Naples. Here a romantic incident took place. C. Velleius Paterculus, the grandfather of the historian, had been associated with Tiberius Nero in all his enterprises; he had been his friend all his life; he had served under him as Chief Engineer at Alexandria, and in his subsequent campaigns; it is not clear whether he had been the sole companion of the flight from Campania, but in any case he rejoined his friend at Naples; but Naples was no safe refuge; Octavian was pressing southwards; it was necessary to cross to Sicily; when it proved to be difficult to provide for the escape of the whole party, the old man committed suicide rather than be an impediment to his friend.

Tiberius Nero had suffered two disappointments: he had been disappointed in Cæsar; he had been disappointed in the attempt to form a constitutional party in opposition to Cæsar's heir; a third and severer disappointment awaited him in Sicily.

Of the two sons of Pompeius, the elder had been killed in Spain at or after the battle of Munda; the younger, Sextus, had escaped, and adopted the life of a corsair in the Mediterranean; during the confusion which reigned in Italy after the death of Cæsar he had escaped notice, and had been able to get together a formidable fleet of pirates; he had seized Sicily, and now hoped to be able to secure the restitution of his father's property by imposing terms on Rome, for he controlled the food supply of the capital. The proscription had sent him many valuable allies, and the anti-Cæsarian party began to look to him to take his father's place as their leader. Sextus, however, was no politician; he was a mere marauder; the corsairs whom his father had dispersed reassembled from the bays and islands of the Mediterranean, and joined in an organized system of brigandage; the subordinates of Sextus were adventurers of the type which has been the perennial curse of the inland sea, repeatedly stamped out, and ever ready to reassert itself till the advent of steam power made such operations too dangerous. It was not the policy of Sextus, but circumstances beyond his control, which elevated him from being a leader of bandits to the position of an umpire between parties in the threatened break up of the Empire. Outlaws and broken men of all kinds gathered to his headquarters, and the grave Senators of Rome found themselves strangely out of place in this assemblage of cut-throats and their mistresses. Tiberius Nero was among the last to arrive; he attempted to assume the position of a Roman official, and to exact the respect due to one before whom the prætorian fasces were carried. Sextus, however, was by no means inclined to put himself under the orders of men of respectability; still less so the Greek corsairs, who looked forward to unlimited plunder under his flag.

When Octavian arrived in due course he temporized; his advisers saw that for the time being nothing could be done; the Cæsarians had no fleet; on the other hand, Sextus was glad to disembarass himself of the Roman notables; and the result was that the victims of the proscription were pardoned and received into the Cæsarian ranks. This was the first occasion on which Octavian was able to manifest his moderation, and to begin his

career of conquest by diplomacy. Sextus was recognized, admitted to a share in the dismembered Empire; there was no alternative; Rome was relieved from the danger of starvation, and Octavian was left free to deal with the veterans and the consolidation of Italy.

Tiberius Nero was not among those who accepted the amnesty; he again fled, this time to Corinth, which was associated with his family by ancient ties of patronage. He became a wanderer, a hunted man; romantic adventures are assigned to the months of danger and hardship which followed; he even sought the protection of Antonius; at length he too made terms with Octavian and returned to Rome, where a further disappointment awaited him; his young wife attracted the notice of Octavian; she accepted his attentions, and shortly afterwards an amicable divorce and re-marriage were arranged. Six months later Livia bore a second son, who was sent to her first husband by Octavian, and acknowledged by him as his own. The families lived on terms of intimacy, and when Tiberius Nero died five years later, both his sons passed under the care of their mother and Octavian, whose family now consisted of his own daughter Julia by a previous wife, Scribonia, and his two stepsons. Julia was a little over a year younger than Tiberius the future Emperor.

So far there had been nothing discreditable in the life of Tiberius Nero, and it was never attacked even by the bitterest enemies of his son. He followed the fortunes of Cæsar, so did many men who saw in Cæsar the only hope of a reformed constitution; he was frightened by Cæsar's root and branch reforms, so were many moderate men; he saw in Cæsar the tyrant, and applauded the men who cut him down, so did Cicero and many honourable men; in the confusion that ensued he steadily clung to any power that seemed to make for the restoration of the Republic; in this he may have been mistaken, but was not dishonourable; he eventually made terms with the one party which promised a restoration of order—no other policy was open to a wise and prudent man; he surrendered his wife to the conqueror; at this point we withdraw our approval; we think of Cæsar, who refused to put away his wife at the bidding of Sulla, and our inclination is to see in the action of Tiberius Nero contemptible weakness.

Apart, however, from the fact that marriages of convenience and divorces of convenience were of frequent occurrence among the members of the princely houses of Rome at this period, the personal conditions in this

case may have been such as to render the divorce in question as little disgraceful to the injured husband as such an event can be. There is nothing contrary to probability in assuming that Tiberius Nero at the time of his marriage to Livia was an elderly, if not an old man; his intimate friend Velleius Paterculus was certainly an old man when he killed himself at Naples. The father of Livia had been a political and possibly personal friend of Tiberius Nero; he fought on the losing side at the battle of Philippi, and was among those who killed themselves after their cause seemed to be irreparably lost; immediately afterwards Tiberius Nero married Livia, who, if she was eighty-six at the time of her death in A.D. 29, can have been little more than fourteen at the time of her first marriage. According to Paterculus the historian, the Emperor Tiberius was less than two years old when his parents fled to Naples after the fall of Perusia in B.C. 40; this places the marriage somewhere in 43 B.C., or at the latest very early in 42 B.C. We have no mention of brothers or other relatives of Livia in her later life; it would seem that her father's death left her alone and friendless; it is a possible conjecture that Tiberius Nero married the daughter of an old friend, partly in order to save her life and fortune. The disparity of age must have been great in any case, and Livia must have accepted the marriage as the only way out of a position of great peril. It is in accordance with all that we know of Livia that she should have conducted herself with the strictest propriety as a Roman matron, though the youthful wife of an elderly or aged husband; and it is more than probable that he became strongly attached to her, even though her feeling towards him was dutiful rather than affectionate. When she met Octavian, she met a man but little older than herself, who fell passionately in love with her; of their mutual attachment there can be no doubt; it lasted through the whole of their life together, and on his deathbed Augustus bade her never to forget their union. Under these circumstances what was the best thing that Tiberius Nero could do to secure the happiness of the child whom he had taken to his home, and who now wished to leave him? By the custom of his time and race no disgrace attached to a divorce in itself; the Romans had no conception of a holy estate of matrimony indissoluble except under scandalous circumstances; it was better that Livia should be transferred peaceably to the man of her choice than that her good name should suffer. Tiberius Nero accepted the inevitable, not necessarily because Octavian could have compelled, but

because Livia had given to her young lover the affections which she had never been able to give to her elderly protector.

Tiberius Nero died in B.C. 33; his eldest son was then only nine years old, but had already been sufficiently well trained to be able to recite the customary oration as chief mourner at his father's funeral; both he and his brother are said to have been exceptionally well educated. We may imagine the solitary father with his strong love of learning, the victim of so many disappointments, finding some alleviation to his sorrows in bringing up his boys in the strictest traditions of an old Roman house.

III

Octavian

TO the student of even the clearest narrative of the events which followed the assassination of Cæsar, the impression conveyed is one of absolute chaos; officials are appointed and removed, decrees passed and rescinded, provinces assigned and redistributed, leaders combine and separate only to combine again; it is difficult to distinguish any guiding principle, any organized force, by which order might be restored. War and spoliation seem to be universal and continuous, and the direction of the march of events to be subject to the caprices of a licentious soldiery, led by rapacious adventurers, who can keep hold of their troops only by extravagant largess and promises of plunder. Licensed brigandage rules the world. And yet this turmoil was immediately succeeded, and in part accompanied by such prosperity as the civilized world had not yet known; trade flourished in spite of piracy, great public improvements were designed and completed, young men went to universities, travellers passed from one end of the Empire to the other.

The exact date of the journey which Horace took from Rome to Brundisium in attendance upon Mæcenæ is still a subject of dispute among scholars, but it certainly cannot be placed later than the battle of Actium, and is generally assigned to a time before Sextus Pompeius had been driven from Sicily; neither Italy nor the world were at peace, and Italy had recently been the scene of civil war. There is, however, nothing in the description of this journey to suggest a ruined or disordered country; before Horace caught up the suite of his patron he travelled by the ordinary conveyances along the road or the canal to the South; the misadventures of his journey are only such as happen to travellers in a well ordered country in times of the profoundest peace. The ordinary routine of life can have been but little disturbed by the marchings and counter-marchings of armies; and the habits

of order must have been too firmly established to be much shaken by the apparent anarchy at the capital.

In one respect the accounts of these times are necessarily misleading; as our information comes from Rome and Rome alone, we forget the enormous area over which the transactions took place. We should not to-day be surprised to find France prosperous when war was raging in Italy; we should not expect Spain to be affected by occurrences in the Balkan Peninsula, or Egypt to be ruined by marauders in Asia Minor; and we can even imagine a war in Lombardy which would leave Calabria undisturbed. Roman history gives us all the military operations of all the countries in Europe South of the Alps and West of the Rhine, and of all the East that is washed by the Mediterranean, as the history of one state, and we forget that large though the armies were which disputed the Empire of the world, they fought over a very large area, and that the greater part of the Empire was only for short periods or indirectly affected. Even inside Italy the fighting was carried on at a distance from the capital; the scenes of actual war were Lombardy or Northern Tuscany or again the coast opposite Sicily; the marching of the troops along the great roads did not disturb the country between the scenes of operations. In all periods of social disturbance the attention is drawn so exclusively to the sensational events, that the continuance of the ordinary routine alongside of the confusion escapes notice. A community which has long been settled parts unwillingly with its fixed habits; it is only very long periods of war that leave their mark permanently on a country. Perpetual disorder and perpetual invasions prevent progress, but even such violent outbreaks of disorder as the early years of the French Revolution may be followed by a speedy recovery.

Julius Cæsar did not hold absolute power for more than four years; during those years he had time to remove obstructions, but not to build; his death did not involve a general collapse of the Government; the permanent officials continued in their places, the ordinary routine of public and private business remained much as before. The real danger which threatened society was the domination of the army under the command of a licentious adventurer such as Antonius, or the breaking up of the Empire and its distribution among similar leaders. That this did not happen is due chiefly to the personal qualities of one man, and that man a youth, who at the

present day would be just leaving school to begin his career at the University.

It is possible to overrate as well as to underrate Octavian, to ascribe to him much that he could not possibly have done, as well as to refuse to him the credit due for what he actually performed.

In contrast with the achievements of his adoptive father, Octavian stands out in history as the great civilian; he hardly ever fought a successful battle; even his personal courage was suspected, but he succeeded where a long line of predecessors had failed and his success was in part due to the fact that he was not a soldier; he was never tempted to conquer for the sake of conquest, or to enter on campaigns in order that he might win glory; he was entirely free from the weaknesses of a Napoleon.

The precocity of the young Romans of the great families continually astonishes us, but Octavian would indeed be a marvel if, alone and unaided, he had placed himself among the four competitors for universal dominion at the age of twenty. Had he really been the son of Cæsar, and not a comparatively distant relative, had Cæsar himself been a constitutional monarch, and the monarchy an institution sanctioned by long precedent, his succession would not have surprised us; dynasties are upheld in spite of the youth or feebleness of the successor to the dynasty; but in this case there was no recognized dynasty, no prejudice outside the army in favour of the dynast, and the heir could not expect to inherit anything from his predecessor except his private property. This was his own view of his own position; he claimed no more.

Octavian was probably no less surprised than the Liberators or Cicero by his own popularity; the depth of the affection and admiration inspired by the great Cæsar was not at once comprehended by his contemporaries; they did not realize that he had become a myth in his lifetime, and on his death a god; the strength of the sentiments which he had evoked escaped the notice of the constructors of Utopian Republics and devotees of the rule of the Sacred Senate. Here was a new cult, and even a new incarnation of divinity. So little did Octavian understand the real foundations of his popularity that on his first arrival in Italy he made overtures to Cicero and the Constitutional party, to the men who approved of his adoptive father's murder; so little did they understand the hold which he had upon the

affection of the soldiers that they prepared to use him for their own purposes and then throw him over; they wanted a piece to play against Antonius, Octavian wanted power to force Antonius to disgorge his inheritance. His first important step was a masterly one. Upon Cæsar's heir devolved the duty of paying Cæsar's bequests to the Roman people, and expending money upon the great shows in honour of the dead hero. Antonius refused to surrender the treasures which he had seized. Octavian, whose natural father had been a very rich man, sold all his private property, sold all Cæsar's property that had escaped Antonius, persuaded two of his relatives to forego their own share of the inheritance, and fulfilled the obligations imposed by the will. The contrast between him and Antonius was thus emphasized; Antonius had seized, confiscated, squandered upon his personal pleasures; Octavian gave, and paid for the pleasures of the people. It was this characteristic of Octavian, his indifference to personal display and personal luxury, that was one source of his strength throughout life; nobody could be more magnificent or spend more lavishly when such a course was required by the public interest, but in his personal expenditure he was rigidly economical. No Roman or provincial ever felt that his property was held in jeopardy, because Octavian needed money for his private pleasures. The ruler himself set the example of that moderation in expenditure which Horace so repeatedly commends to his contemporaries.

The moderation of Octavian recommended him to the financiers, and he at once found a valuable friend in the person of C. Cilnius Mæcenas. The Roman historians, in accordance with their invariable custom, ignore this great permanent official; they have no eyes for any man who has not held the great magistracies of the Republic, and the share of Mæcenas in building up the power of Octavian occupies but a small place in their writings; it is in fact only as a patron of literary men that Mæcenas is widely known, and the superficial observer might be tempted to infer that Mæcenas was a private friend of Octavian, whose influence was due solely to the Emperor's favour. We know when Mæcenas died, but we do not know when he was born; his death occurred twenty-two years before that of Octavian, and as there is no indication that the event was considered premature, we are justified in assuming that he was so much older than Octavian as to have had considerable experience of affairs, and a sufficiently recognized position, when the younger man was seen to be a possible successor to the great Cæsar. Mæcenas was a prominent member

of the Equestrian Order, of the body which had been supported in its struggles for recognition against the Senate by the Marian party, and by Cæsar himself; its interests coincided with those of the whole body of permanent salaried officials, who owed their appointments to Cæsar; the collection of the revenue of the Empire was in its hands; of the candidates for power, the one who secured the confidence of the Equestrians was the most likely to be successful. We do not know what had been the previous connexion between Octavian and Mæcenas, but we do no violence to probability by assuming that Mæcenas was known to Cæsar, and had enjoyed a measure of his confidence, that he belonged to the inner circle of financiers whom Cæsar must have repeatedly consulted, and that he had frequent opportunities for forming an opinion as to the capacity of the young Octavian.

In any case, and however the connexion was brought about, the man who formed the alliance between Octavian and Mæcenas acted more wisely than Octavian had acted when he placed himself at the feet of Cicero. By himself Octavian might have appeared to be a risky speculation to the orderly men who were gradually attracted to his party; backed by the great financier he was safe; the clients of Cæsar in all parts of the Empire were provided with a guarantee which encouraged them to transfer to the nephew the allegiance which they had previously given to the uncle. Octavian's merit lies in the fact that he was able to use the wisdom of this cautious adviser and submit to his diplomacy; his head was not turned by the popular declarations in his favour. He is frequently reproached with a lack of initiative, with a cynical indifference to the higher morality, with a cool calculation of his own interests, and of his own interests to the exclusion of all others; but to judge thus is to fall into the common error of condemning a man on his success; there is a natural tendency to ascribe to every man who eventually succeeds a deliberate intention of success from the commencement, and the careful working out of a preconceived plan. Royalists after the Restoration in England could only see in Cromwell a crafty plotter, who had proposed to himself the usurpation of the throne. It is assumed that the power of the men who rise to great positions was at the beginning the same that it was at the end, and that in the first stages of their career they could have refused to do things of which they disapproved.

When Octavian made overtures to Cicero and called him his “father,” he was in earnest, and acted according to his own inclinations, but he took a false step from which he was forced to recede; he quickly learned that he commanded sympathy as the avenger of his father’s murderer, that on those terms he was the darling of the fierce legionaries; he also learned that the Constitutional Party, to whom his temperament inclined him, regarded him as a necessary evil, and that his “father” proposed to use him and then remove him; after the publication of the Second Philippic, in which Cæsar was denounced no less savagely than Antonius, Octavian could no longer keep on terms of friendship with Cicero; he would have been treated as a renegade by his own soldiers; he had not even the alternative of retiring into private life; he was too dangerous to both parties alike; had he rejected the devotion of the legions, the daggers of the Constitutionals or of the emissaries of Antonius would have struck him down; nominally a leader, he was really a hunted beast. The soldiers forced him into alliance with Antonius, the soldiers forced him to marry the daughter of the tigress Fulvia, the combination of ferocity drove him to his share in the proscription. To Antonius the proscription was a means of filling his ever leaky purse; to Fulvia, the sister of Clodius, it was a vengeance, she had an old score to settle with Cicero, to the soldiers it was the merited punishment of the murderers of Cæsar; Octavian could not hold back; he, however, did the best thing that was permitted by the circumstances, as soon as Antonius departed for the East he let the pursuit of the proscribed lapse; he broke with Fulvia and sent back her daughter; he proved singularly placable to those who wished to make terms with him.

At this period Octavian can hardly have designed the universal dominion to which he afterwards succeeded; it was enough to enjoy comparative security in Italy, and to be recognized as the chief agent in restoring safety to the peninsula; none of his military operations were aggressive, and he preferred diplomacy to war; he was content to let Antonius carry off the richest part of the Empire; he was content to make terms with Sextus Pompeius, and allow him to take his share of the provinces, provided the commercial interests of Rome were respected, and the corn ships allowed to find their way into the harbour. He required time to deal with the most difficult of tasks, the reabsorption of Cæsar’s veterans in the civilian population; in order that Octavian might be personally safe, it

was necessary gradually to break up the army which had dictated to him, and replace it by one of which he would be master.

This operation must have required consummate skill and coolness; the financial problem alone must have been serious; it was, however, rendered much easier by the departure of Antonius to the East; to the Roman soldiers, as to ourselves for many centuries, the East was the El Dorado, and service or even settlement in Italy presented small attractions to the legionary compared with service on the Euphrates; the gold which had tempted Crassus still glittered in the imagination of the centurions. Octavian and his advisers were glad to see the more restless spirits stream after Antonius, it lightened their burden.

Meanwhile Octavian had the good fortune to find a War Minister of rare genius and unexampled personal devotion; if the career of Octavian is marvellous, that of his friend Agrippa is no less so; the two men were of the same age; they were fellow students at Apollonia when the death of Cæsar summoned Octavian to Rome; they had already laid the foundations of a friendship which is among the most noteworthy in history.

Agrippa as a military genius has received scant consideration; but the man must have been a genius, who at the age of twenty-seven made a navy for Rome and re-organized an army, and who further contrived to place that army on a footing, which restored it to its proper position of subordination to the civil administration. All Agrippa's projects bear witness to the mind of a daring planner and a consummate master of detail. It was necessary to build and train a fleet in the face of the opposition of Sextus Pompeius, who held the command of the sea; Agrippa at once bethought himself of an inland lake in which his ships could be built and then manœuvred; when the work of preparation was complete he cut a channel into the Mediterranean, and sailed out to attack and defeat his enemy. In preparation for the subsequent operations against Antonius at Actium, he was not misled by the example of the naval experts of the day; he saw that rapidity of manœuvring was more important in a man-of-war than size and weight, and instead of competing with the ship builders of Alexandria, constructed a large number of light galleys, and manned them with skilled crews.

The one great building for which Agrippa was responsible survives to our time, and still testifies to the originality of his genius; the dome of the

Pantheon is remarkable even now; in its own day it was unexampled.

Agrippa was even greater in his moral qualities, in the self-restraint, or perhaps absence of a morbid ambition, which forbade him to become a rival to the man whose superiority he had elected to recognize. In the later days of the Republic a man could hardly become a great general without threatening the balance of the constitution; the death of Cæsar brought into prominence ambitious soldiers; it seemed that it was enough to be a successful leader of troops in order to enter upon the enjoyment of all things that ambitious men most covet; but to this kind of ambition Agrippa was superior; if he had a conscious ambition over and above the satisfaction of doing his work well, it was to make Octavian.

His example was most valuable to the fortunes of the Empire; his character impressed itself upon the young men at a later time, upon the youthful Tiberius his son-in-law among others. Henceforth the old loyalty to the Republic which restored victorious consuls to their proper place in civil life, when their wars were finished, was replaced by the loyalty of the army to a possibly civilian Emperor, whose military work was delegated to subordinate commanders; it was possible for a man to command an army without feeling that he lost dignity by submitting to the control of the head of the State.

If Octavian is to be admired for learning in a few years the trade of a statesman, Agrippa is no less to be admired for the celerity with which he acquired the detailed knowledge of a naval and military commander; both young men started with a rare power of submitting themselves to the guidance of men of experience; the eventual result was a combination of administrative ability, which was able to use other men without impairing its own supremacy.

After Sextus Pompeius had disappeared, and Lepidus had found himself in the unenviable position of a general without an army, and a provincial governor without a province, the delimitation of authority which followed may well have seemed to the sharers in power to be final.

Octavian took what was practically in later days the Western Empire, Antonius the Eastern. The marriage of Octavian's sister with Antonius was held to render hostilities between them impossible; and there are few modern potentates who would not be content with the share which fell to

Octavian; to be supreme ruler of France, Spain, Italy, the large islands of the Mediterranean, and the Western portion of the North Coast of Africa, would have satisfied Francis I. or Charles V. Nor were the Spain and Gaul of those days relatively in such a state of barbarism that the ruler of Italy could think of them as semi-savage frontier colonies. Parts of Spain were still imperfectly civilized, but the relation which they bore to the more settled regions was little different from that held by the Celtic fringes of our own islands till comparatively late in our history. Gaul was more united than the France of Louis XI., and no more subject to internal disturbances. Gaul, in fact, began almost from the time of Cæsar's conquests to advance to a dominant position in the Empire; she supplied soldiers, statesmen, and rhetoricians to Italy; the balance of power gradually inclined to the country, which had not been exhausted by successive wars, and whose population was relatively homogeneous; the time was to come when the Emperors would be Gallic rather than Italian. The Gauls quickly assimilated Roman culture and Roman discipline; two of the greatest writers of the Augustan age, Virgil and Livy, one of an earlier date, Catullus, were natives of Cis-Alpine Gaul, if not Celtic in their nationality; Cornelius Gallus, a Transalpine Gaul, was not only estimated at a high value among the poets of his day, but was the first Viceroy appointed to Egypt by Octavian. In fact, though it may have appeared to the men of the day that Antonius had taken to himself the best share of the Empire, and left Octavian a valueless appanage, the sequel proved that the latter had the best of the bargain; the central part of his dominions was the longest organized and the best organized, while the outlying territories had no time-honoured reputation to set against the extension of Roman civilization; they had everything to gain by closer incorporation with the Empire; they even accepted its language, whereas the Eastern Empire never ceased to be Greek.

The personal qualities of Antonius brought about the union of the Empire; so long as he served under the direction of the great Cæsar he passed for a politician and administrator, no less than for a dashing general; deprived of his great model, he quickly showed himself to be nothing but a greedy soldier. The East learned by successive bitter experiences what it lost in Cæsar; first came little Dolabella to harry Syria, then Cassius and even Brutus extorted all that they could lay their hands on in the rich cities of the Levant and Asia Minor; then came Antonius with further fines and

confiscations; there was a general sense of relief when Cleopatra carried him off to Alexandria, only however to prompt him to fresh extortions.

The alliance of Antony and Cleopatra was the salvation of the Roman Empire; it frightened the West into union, and its failure brought about the final submission of the East. This was no mere question of rivalry between two eminent Roman statesmen; it was a turning point in civilization; the issue was once again whether the Mediterranean was to be governed on Oriental or Western lines. The halo of not particularly edifying romance which shines round the figure of Cleopatra averts the attention from the statesman-like qualities which she really possessed; her residence in Rome in the capacity of Cæsar's mistress was not a glorious episode in the career of the Egyptian Queen, but it taught her, as a similar experience had taught Juba, the weakness of Rome from an Oriental point of view. Cleopatra saw that Rome wanted a despot; on the death of her admirer she went back to Egypt to wait on events; when Antonius appeared in the East, she proposed to annex Italy through Antonius, as Cæsar had through herself annexed Egypt; but, like many others, she had misjudged the man; Antonius was no Cæsar; and though Cleopatra could form magnificent schemes of ambition, she lacked the self-control necessary to carry them out; unfortunately for herself, in the attempt to annex Antonius she fell violently in love with him, and statesmanship became a secondary consideration; she could not deny herself the companionship of her lover; he, too, more than once forgot all the duties of a soldier in his impatience to return to her arms. Their plans for extended conquests in the East were foiled by their maladministration; and even a temporary success proved in its results worse than a series of defeats; for Antonius celebrated his victory over the Parthians by parodying at Alexandria the solemn ritual of a triumph at Rome. This event, more even than a fleeting descent of Antonius at a previous date upon the coast of Iapygia in conjunction with Sextus Pompeius, consolidated the power of Octavian; he became no longer the leader of a party, but the representative of Latin civilization. Nor is it contrary to probability that the luxurious excesses of the Court at Alexandria, at Smyrna, at Samos, frightened the Greek cities, and that frequent emissaries gave Octavian good reason for supposing that the Greek cities were ready to throw themselves into his hands; Cæsar had never acted in the spirit of a Greek tyrant, but the type was abundantly manifested in Antonius. Octavian waited till he was ready; he then produced a document, the will of Antonius, which clearly informed

the Roman people of the destiny prepared for them, and when the right moment came, allowed a dispute about his claims over certain cities to end in a declaration of war.

The battle of Actium was the result, and the victory was followed by what was practically a triumphant progress of Octavian round the Mediterranean; the Roman Empire was one again, the unity of civilization was complete. Henceforth the wars of the Empire were conducted on its frontiers, and though they occasionally resulted in an extension of territory, their primary object was self-defence, the maintenance of the ring fence of the "civilized world." The short war of the Succession, which followed on the death of Nero, hardly disturbed the peace of Gaul and Italy.

The extraordinary success of the man, who at the age of two and thirty was recognized as the supreme arbiter of the civilized world, tempts us, as it tempted his contemporaries, to look for qualities in him beyond the reach of an ordinary man; some who have looked for these qualities and failed to discover them have gone in the opposite direction, and speak of him with scant respect.

Whether Octavian or any other man who has occupied a similar position was a person whose example could be safely recommended to our children, is a less interesting question than that relation between his personal qualities and the needs of the time, which placed him at the head of affairs. The Senate of Rome had failed to produce a great civilian, and a great civilian was precisely what was needed by Greater Rome. The men who, from the time that the problem of the administration of the Empire had begun to make itself felt, had held the chief power successively, were soldiers in the first place, and only in the second, if at all, civil administrators: Marius, Sulla, Pompeius, Cæsar himself imposed their will upon Rome, because they had the legions behind them; relying upon the force of organized armies, they were tempted to overlook all the other forces by which society is held together. An army is so convincing, so obvious, that men who can organize an army may well be excused in their blindness to the existence of any other power. Cæsar was the most enlightened of generals, and had a clearer appreciation of civilian problems than his predecessors, but even Cæsar relied ultimately upon the appeal to force; holding, as he believed, the strongest weapon in his hands, he prepared to change and reconstruct society as appeared most reasonable to

his clear scientific intelligence; confident in the integrity of his purposes, he believed that he had only to demonstrate his common sense and benevolence in order to secure adhesion to all his reforms; he did not weigh public opinion; he did not study the currents of prepossession and conviction; wishing well to all men, he never waited to consider whether his actions might wound the self-esteem of any man; he chose his subordinates without inquiry into their private opinions; it was enough for him to have ascertained that they possessed the qualities essential in his opinion to good administration. In one sense the clemency of Cæsar was never tested; had he lived another ten years, and been forced to realize the nature of the opposition which was excited by his reforms, he, like Cromwell, might have been forced to supersede the civil organization by a purely military organization; like Napoleon, he might have been compelled to protect his person and his Government by an army of spies, and meet plots by counterplots; but the opposition declared itself only to be final; the first intimation of its existence to Cæsar was his own death. Had Octavian needed so striking a lesson, he would have learned from this event that civil power resting on military predominance is no more secure than civil power conferred by a popular vote; but he did not need the lesson; his whole temperament was civilian, and the successive humiliations through which the army led him strengthened his dislike to the army; for the army forced him to the alliance with Antonius, in whom he rightly saw his private enemy; the army forced him to marry the daughter of Fulvia the tigress; the army forced the proscription upon him; the army compelled him to deeds of savage cruelty at Perusia; the army forced him to hand over his sister to the embraces of Antonius; he felt that he could not be a free agent so long as the army was the dominant factor in politics. His ideal was not the magnificent stride of the conqueror from continent to continent. Other young men, finding several thousand veterans ready to follow them, might have been tempted to a career of conquest; not so Octavian; circumstances compelled him to temporize with the army, and to use the army, but he naturally preferred the city to the camp, and the Forum to the field. Year by year, and even month by month, he advanced in the favour of the capitalists and constitutionalists, who dreaded nothing so much as a perpetual cock fight of generals. All over the Empire a new ideal had been steadily growing, the conception of war as a permanent condition of society had been replaced by the conception of peace. In the East for two centuries the

internecine wars between city States had disappeared; the Macedonian Empire, though broken up and divided, had established permanent umpires; society was united over larger areas; in the West, after the elimination of the discordant Phœnician factor, Rome had held the same position of supreme umpire; great cities had grown up: Smyrna, Ephesus, Antioch, Alexandria in the East, Rome in the West, for whose populations the orderly progress of commerce was a necessity of life; war had ceased to be the only or the most profitable investment; other than military careers were attractive to the ambitious. Octavian presented the combination of qualities which the world wanted; he could command the allegiance of armies without being intoxicated by the possession of that form of power; he respected the civilian, and had the power to protect him. But Octavian did not carry his dislike of military domination to the point of extravagance; he was no intemperate advocate of peace principles; he did not make the mistake of allowing his army to become inefficient; he knew that a well ordered army was a necessary instrument of sound civil Government; he knew that unless the chief of the State demonstrably enjoyed the support of an efficient army his reign would be short; but he took care that no successful officer should be tempted to play the part of an Antonius, or dream that it was in his power to become a second Cæsar. He had the good fortune to find first in his friend Agrippa, and subsequently in his two stepsons Tiberius and Drusus, able generals, who abstained from interfering with the civil administration. Not the least of the remarkable powers of Octavian was his power of commanding willing service from equals and even from superiors, and his recognition of the men who would be useful to him. As the heir of his father and great-uncle, he inherited not only money but connexions; his father had been an Equestrian, who was cut off in the first stages of a more enterprising political career; he had been Governor of Macedonia; the extent of the connexions of Cæsar needs no demonstration. The head of a great Roman House was in a sense the head of a permanent corporation; he could alienate or retain those individuals, families or cities, both within and outside of the technical limits of the Empire, who had been used to conduct their private or public business through the agency of his House. The use to which he turned an hereditary advantage of this kind depended on his personal qualities; Octavian had the qualities which breed confidence; self-controlled, industrious, courteous, faithful to obligations even where they were not self-imposed, he quickly showed the adherents of

the House that there was no breach in the continuity of the Cæsarian succession. Antonius had similar advantages, but he dissipated or squandered them; men learned that his favour was to be won, or its continuance to be secured by gross flattery, and subservience to his caprices; he demanded derogatory services; the Consular Plancus thought to secure his favour at Alexandria by flopping about at a masquerade in the unwieldy and farcical dress of a marine deity; such an act would have disgusted Octavian; it would have shocked him to see a man of rank doing anything inconsistent with his dignity. A natural instinct for what is dignified is a valuable attribute in a ruler, and a punctilious insistence on ceremonial observances is better than an absence of etiquette; but mere ceremony is apt to degenerate into observances which injure the self esteem of those concerned, and to substitute exaggerated forms of respect for the reality. Octavian grasped the true meaning of dignified behaviour; it was not the person of the ruler but the business in hand which was respected; frivolity was not an insult to his person, but to the work in which he was engaged.

Men who were in earnest about anything found that they were in sympathy with Octavian; he could relax, and be charming in his relaxation, but with him, as with all great rulers, the line was rigidly drawn between business and amusement. He could even pardon a refusal to comply with his request for a personal favour; he invited Horace to leave the service of Mæcenās and become his private secretary; the poet refused, but did not in consequence lose the esteem of the Emperor.

Naturally attracted by what was dignified, Octavian was keenly alive to the prestige of the Senate; Cæsar had found in that body an active impediment to necessary reforms; he broke down the barriers of sanctity by which it was surrounded; he treated it with no more respect than Claudius Pulcher had shown to the sacred chickens; he destroyed its organization and overrode its decrees; he admitted aliens to its honours. Antonius was equally reckless in his contempt of Senatorial prerogatives; but the men of rank and position who successively made terms with Octavian found that they were treated with respect, that there was nothing derogatory in working with him; and while a bitter experience had taught them that there was no other alternative, the pain of submission was alleviated by the personal consideration shown to men who had suffered shipwreck. Octavian

was the mediator between the new and the old; his practical sagacity inclined him to make the best of the new; his personal sympathies equally inclined him to deal tenderly with the old. Good counsellors, hereditary connexions, the affection of the veterans, would not have put Octavian permanently at the head of affairs, had he not possessed those qualities which enabled him to make the best of these advantages. He had not the dash, the brilliance, the consummate intellectual ability of his uncle; he could not have done his uncle's work; but when that work had once been done, he was supremely fitted to rebuild on the new foundations; because he was in many respects inferior to his uncle, he was more truly representative of his time; he was no prodigy; he did not thunder and lighten and turn the universe upside down; he made the best of the world as he found it, and that best was so very good that his work lasted.

IV

Augustus

IN the year 27 B.C., four years after the battle of Actium, the power of Octavian was so firmly established, his services to the civilized world were so obviously unique, that there was a general desire to express by some honourable addition to his title a recognition of those services. After much discussion the Senate fixed upon the adjective “Augustus” as the only epithet which would adequately define the position in which Octavian stood in relation to Rome and the Empire. This epithet is deeply significant; the modern habit of using it as a name has destroyed its significance; even in antiquity the necessity of distinguishing between the different members of the Cæsarian dynasty led to its occasional use by historians in place of the name of Cæsar, but the ancients never lost sight of its meaning, as the modern is apt to do; they were as conscious of using a title for a name when they spoke of Augustus, as we are when we use the phrases “His Majesty” or “His Highness,” in speaking of royal personages.

Various alternatives had been suggested, and been rejected either as deficient in dignity, as having been used before, or as being applicable to Rome alone and not to the whole Empire; the man who hit upon the word which satisfied public opinion, both in Rome and the provinces, was, strangely enough, no other than that Plancus, whose undignified floppings had amused Cleopatra and the Eunuchs of her Court. The etymology of the word may be held to be still uncertain, but the associations which it suggested to the ancients are indisputable; it was used of things or places, and especially the latter, marked out by the gods as the abodes of divinity or particularly connected with their service; the association of ideas was somewhat similar to that implied in our own use of the word “consecrated”; but a place which was “augustus” was rather more than “consecrated”; it was not merely devoted to the service of the deities, but the gods

themselves had signified their will that it should be so; its transference to a man was a declaration that the gods had selected him as their instrument; it did not ascribe divinity to the man, but it asserted that the man was entitled to the respect due to one who was specially under the protection of the gods; he was not a god, but the divine will was manifested in him. The distinction, though clear, is too subtle for the ordinary human intelligence, and the use of the epithet and its Greek equivalent rapidly led to an actual worship of the man, which, though discountenanced in Italy, was permitted, and eventually encouraged in the provinces. Such a thing appears to us impossible; we are even shocked at its impiety; for us there has been one Incarnation, and one only; we can more readily transfer ourselves to the mental condition of those who made their gods in the likeness of men than of those who in men saw gods. While some of us do not shrink from the irreverence of attributing to tables and chairs and hats and bits of deal supernatural powers, and from believing them to be channels of communication between ourselves and the spiritual world, we shrink from declaring, what surely should be simpler and more reverent, that certain human beings have been elected by the Deity to declare His will to men, that to treat them with insufficient respect is to rebel against the divine will, and that to worship them is to worship the Deity who is pleased to permit a portion of His Divine essence to reside in them. So far have we travelled from the conception of godship prevalent among the ancients, and even among our subjects in India at the present day, that it is hardly possible to present the views of the contemporaries of Augustus without using language suspected of irreverence. That danger, however, must be faced, if we would understand one of the forces which helped to bind the Roman Empire together, for though the idea of assigning Divine honours to a man is repugnant to us, to the ancients it was natural.

At all times and in all countries it is difficult to define the current convictions of human beings as to non-human or supra-human agencies; we always find a minority who reflect and study and discuss, a majority who tremble; if we pay attention only to the enlightened men of any particular period, we find a certain resemblance in their speculations, a similar tendency to distinguish between superstition and religion, a disinclination to ascribe to the divine agencies vulgar and petty interference with human concerns; on the other hand, if we fix our attention upon the voiceless multitude, we find no distinction between religion and superstition, and a

strong inclination to see even in trivial occurrences an intervention of the divinity. We cannot gather from Plato or Cicero the religious faith of the majority of the active men of their day; still less can we infer it from the mythologies of the poets. Polytheism had no dogmatic faith; it did not ask a man to state what he believed; it took note of what he did. Deference to accepted forms of worship was expected; men paid a mutual respect to one another's observances; all methods of conciliating the favour of the gods were good; the dangerous man was the man of no observances; there was no knowing what wrath he might bring down upon the community. Many of the ancients developed eclectic tendencies in the matter of religion; the temper of Herodotus was a common one among the enlightened, and the inclination to see points of resemblance in various cults rather than to emphasize differences. Germanicus was travelling from shrine to shrine in the East when he caught the fever which killed him; Apuleius at a later date travelled widely with a view to being initiated into the different mysteries. The conception that there was One God and One God only who ought to be worshipped, and that acts of adoration to other divinities, or powers in which divinity was recognized, constituted an act of treason to Him, was an impossible conception to the ancients; in spite of the unitarian tendencies, which we may detect even in Hesiod, and which became increasingly prevalent among the speculative philosophers, a deity was local rather than universal; it would have been dangerous to attempt to substitute the worship of Pallas Athene at Ephesus for that of Artemis, to remove Jupiter Capitolinus at Rome and put Melkarth in his place; but no Ephesian thought the Athenian wrong in worshipping Pallas, no Roman saw a dangerous heresy in the cult of Melkarth at Tyre or Carthage.

The association between religion and morality was only slowly established; the god was not better than the man; he was stronger than the man; thus mere power unaccompanied by moral excellence had a divine character even in a man. To us the Incarnate God is necessarily the perfection of moral excellence; to the ancients the manifestation of power was in itself an indication of the divine favour; and similarly in the case of his worshippers, provided the priest did not infringe the regulations of the prescribed ritual in preparing for or conducting an act of worship; his moral character was a matter of indifference; he might bring down the divine wrath upon the community by paring his nails at the wrong time, just as

much as by the infringement of social obligations, or by personal debauchery; ritual and not morality was the province of religion.

In the didactic work of Hesiod, the *Farm* and the *Calendar*, which was used by the Greeks much as we use a catechism, minute and trivial points of cleanliness and decency rank with perjury and violence; to neglect the former, to commit the latter, alike involved the displeasure of the immortals. The Italians were enslaved by minute ritual even more than the Greeks; they were more superstitious; the worship of the *Lares* and of the ancestors, the faith in fortune, the dread of the unlucky, survived among cultivated Italians to a late period. Italy is still profoundly superstitious; men who have shaken off the authority of the Church still dread the evil eye, and witchcraft of a peculiar kind is still firmly believed in by the peasants of central Italy; the *strega* is still a power in the villages of the Bolognese.

The ancients had nothing to set against the ascription of Divine powers to a man, though for the enlightened it was possible to distinguish between ceremonial acts whose purpose was to propitiate the Divinity behind the man, and the worship of the man himself as a divine being; nor did death terminate the power of the favoured individual; the spirit was even more powerful when released from the accidents of humanity. Among the Italians faith in the power of the dead, and a considerable dread of their continued interference in the concerns of the living, was a lively faith, and exemplified in many curious ways; and thus the worship of Augustus, which was officially recognized only in the provinces during his lifetime, was extended to Italy after his death. This worship was not an exclusive worship; it did not destroy or even impair the cults of other divinities; it was only another god added to the celestial hierarchy, another saint canonized; but this particular worship was alone in being universal throughout the Empire and officially sanctioned; in Gaul it was imposed.

It is particularly worthy of attention that the care of the worship of Augustus was assigned to freedmen; the *Augustales*, whose duty it was in each town to maintain the cult, were to be “*libertini*”; in Rome the *Prætor Peregrinus*, the foreigner’s judge, presided over its feasts, and it was associated with the worship of the *Lares* of the *Compitalia*, that is to say, with the oratories in the streets at which the slaves paid their devotions. Men of all nationalities driven together as slaves in the great cities, far from their native gods, found a common cult and a common protector in

Augustus. It was not long before the worship of Augustus became indistinguishable from the worship of the Empire, and each successive Emperor received divine honours, as manifesting that abstraction; to deny the divinity of the Emperor, to refuse to spill a little wine, or cast a few grains of incense in his honour, was to rebel against the civil organization accepted by mankind; it was as difficult to evade the obligation as for an English soldier to refuse to drink to the health of his sovereign. The Jews alone protested, and for a long while their protest was accepted; they did not pray to the Emperor, but they prayed for him.

Augustus met his worshippers halfway; his own temperament was profoundly religious, as religion was understood by his contemporaries; he substituted the divine right of the Emperor for the divine right of the Senate; he was not a madman like Caligula, jealous of other divinities; on the contrary, he made every effort to restore cults which were being abandoned, and to revive both public and private observances. If he did not believe in his own divinity in the sense which the words would convey to us, he was equally removed from the robust scepticism of Vespasian, who remarked in his last moments: "Bah! I feel I am turning into a god!" His attitude towards his own divinity was a reverential one; it did not encourage him to set human laws at defiance, and flagrantly override the rights of other men; on the contrary he practised a studied humility, and seemed to feel that if he was himself a god, it was incumbent upon him to see that due respect was paid to other members of the same fraternity; in dealing with men he anticipated the Popes in assuming the attitude of the "Servus Servorum Dei." There was no deliberate imposture, no conscious pose. When Cromwell enumerated to an unruly assembly the successive events in his career which had placed him at the head of affairs, and claimed that they bore witness to a special Providence, he expressed in the language of his time and country the same association of ideas which convinced Octavian that there was something supernatural in the chain of events, in the unbroken success, which had given him power far greater than Cromwell's. There was no arrogance in the claim; there was humility; he ascribed to powers not his own a series of successes in which a less reverently minded man would have seen nothing but the evidence of his own surpassing ability. It was not merely political astuteness which led him to act in everything as an ordinary citizen, to vote, to ask for votes, to live without magnificence or ostentatious expenditure; such conduct was the result

partly of personal inclination, partly of a sense of the infinite smallness of such things as marble columns and silken raiment, costly banquets and trains of servants in comparison with the greatness of the destiny imposed upon him. If at the great shows in the circus he sat on the platform on which were placed the statues of the gods, he did not thereby assert equality with them, but claimed their protection and bore witness to the favour which they bestowed not only on him, but on the people whose destinies he guided with their approbation and in virtue of the powers which they had granted. In the pages of Tacitus and Suetonius we may detect a certain flavour of approbation when these historians tell us that Tiberius or other Emperors refused divine honours or limited them, and we might be tempted to infer from this that the assumption of divinity by the Emperors was contrary to the feeling of the times; but both Tacitus and Suetonius wrote more than a century after Octavian had been declared “Augustus,” and in their days the unitarian faith of the Jews had begun generally to influence the educated classes at Rome; Horace could jest lightly at the Jewish Sabbath; in the time of Suetonius, if it was not observed as a day of rest all over the Empire, as Josephus boasts, it was certainly a well known institution.

It might be urged that whatever the religious attitude of Augustus in other respects, he cannot have believed in his descent from the goddess Venus, and that Virgil’s great poem in all that concerns Æneas and Anchises is conscious imposture. To argue in this way is again to misinterpret polytheism. The faith in Fauns and Satyrs is not absolutely extinct in Italy even today; the survival of such a faith suggested the plot of Hawthorne’s exquisite romance, *Transformation*. Charles Leland discovered traces of it in Tuscany and Umbria.

The ancients had not arrived at our modern accuracy of definition with regard to the divine and the human, the natural and the supernatural; even the most enlightened contemporary of Augustus might hold a faith as to mixed marriages between gods and men not dissimilar to that held by many orthodox Protestants as to miracles—they might believe that such things did not happen in their own day, but that they had happened. In the curious classification of events affecting the lives of the Emperors adopted by Suetonius a place is always assigned for portents. Xiphilinus, the Christian who epitomized Dio Cassius, apologises for the long lists of portents in his author, and for having cut out the more trivial of these occurrences, but he

leaves a large number. Faith in portents is in fact always at hand, and even in these critical days readily springs to life at a favourable opportunity. With the ancients it was universal; in those days, as in our own, men preferred sensation to evidence, and the critical faculty, even when developed, had no very satisfactory apparatus which could be applied. As a rule, the significance of portents was seen after the event which they portended. Then, as now, nurses and mothers recalled remarkable circumstances which had attended the birth and education of children who afterwards became distinguished; and there are few men distinguished or obscure who have not at some period of their lives encountered strange coincidences, or suffered unusual experiences, which, interpreted by the light of subsequent events, may be held to have been fraught with mystery. There is no reasonable doubt that the entrance of Octavian into Rome when he returned to claim his uncle's inheritance was attended by some unusual disposition of the sun's rays, possibly a solar halo in which only one of the mock suns was clearly visible, that the event attracted notice at the time, and that it inclined men to believe that the fortunate youth was reserved for a remarkable destiny—an anticipation which led to its own fulfilment. Virgil may well have been in earnest when he hailed the procession of the star of Cæsar and worked up convenient fragments of legends into the *Æneid*; even if he had occasional misgivings, his inclination was to believe, and to hope that his glorious web was woven in threads of fact.

Faith in his divine ancestry, faith in his divine mission did not enervate Augustus, nor render him impractical; he treated his power as a sacred trust, and used all the resources of a cool intellect and industrious temperament to further the interests which he believed to have been committed to his charge. We are told that in his later years he liked to believe that there was something superhuman in his glance, and was pleased when men were unable to look him in the face—a weakness which was encouraged by studious flatterers. If this is true, we may well believe that, like many other men and women, he was insensibly influenced by the attitude of those around him, and dropped into the place assigned for him by the universal opinion.

In any case, Augustus, whether in public or private, did nothing to jar upon the prejudices of those who were prepared to believe in his divine mission. He led such a life as has since been led by many of the better

Popes, and at least one English statesman. Gossip, always busy with the supposed amatory proclivities of great men, has not spared him in this respect, but even if there were any foundation for the idle stories which have been handed down, the ancients would not have been scandalized; the somewhat coarse pleasantries which have also been attributed to him would have scarcely attracted attention in his own day.

By his peculiar personality Augustus was able to stamp upon the Roman Empire a character which has never left it—he made it a religion as well as a state; and it was due to his work, and to his sense of the sacredness of his work, that there are still men living even in England who cannot feel happy in the regulation of what they believe to be their most important concerns, unless they are assured that their actions are in accordance with the dictates of the authority from across the mountains, which is resident in Rome.

It is a curious fact that many of those men and women whose personal appearance was felt by their own contemporaries to be in the highest degree awe-inspiring were small: Napoleon was small, Louis XIV was small, among Queens Elizabeth was small, and Her late Majesty Victoria unusually small. Augustus was no exception—he was short, slight, and halted perceptibly in his gait; but these personal disadvantages did not detract from his dignity. If we compare the portrait of Julius Cæsar in the British Museum with the bust of the young Augustus, or the head of the magnificent statue of the Emperor found in Livia's villa near the Prima Porta, we are struck by a remarkable difference. It is possible to bring the face of Cæsar to life again; we can recall the dark and liquid eyes, and set the strongly marked muscles of the face in motion; we would hardly be astonished were the lips to open, and we can anticipate the clear even enunciation of the words to which they would give utterance. But with the portraits of Augustus it is otherwise; they are strangely inscrutable. The bust known as the young Augustus is the portrait of a boy, or at the oldest of a lad of sixteen. It must have been modelled at a time when the future even of Julius Cæsar was not assured. The artist may have flattered, but that particular form of flattery can hardly have been designed; the habit of thoughtfulness is seldom expressed to the same degree in the features of boys and young men. Similarly in the older portrait there is an aloofness; it is the face of a man who would always tempt a careful observer to wish to

know more about him, and who would always elude curiosity. The next Emperor who was canonized was Claudius. Of him, too, we have many authentic portraits; even in the most idealized we can see something of the man whose apotheosis gave Seneca the materials for a merry jest. It is the face of a man who was perpetually puzzled, whereas the face of Augustus is the countenance of one who perpetually puzzled other men.

The great work of establishing the Roman Empire was not the work of a charlatan or a criminal, in both of which characters Augustus has been represented. It was the work of a man who shared many of the crude beliefs of his own time and unconsciously used them for his own purposes, and those purposes were not self regarding. An Antonius could squander great gifts in the pursuit of what earthly happiness is afforded by dissolute excesses—he could allow his soldiers to perish of hunger and disease while he hastened to the embraces of an accomplished courtesan; he could shamelessly desert loyal veterans at the bidding of a licentious woman, and seek salvation in the wake of her purple sails; such was the hero whom Augustus annihilated, such the conception of responsibility which he replaced by a devotion to duty which has rarely been equalled and never surpassed.

The reign of Augustus was monotonous, his policy unadventurous. If these are defects, we are at least at liberty to prefer them to the excellences of those more brilliant reigns and more adventurous rulers who succeeded in dazzling the world, but failed to lay the foundations for a long era of prosperity. The career of Napoleon is more startling than that of Augustus, his military record incomparable with the simple successes of the earlier Emperor, but Napoleon left France with a diminished frontier, and Augustus left Italy the undoubted mistress of the civilized world.

V

Education of Tiberius

THOUGH the apparent results of a careful education are often disappointing, the impressions received in early childhood are permanent in their effects. The man who has been brought up in a particular atmosphere retains the influence through life, even though his acts may seem to be in strong contrast with his training; the son of a Quaker family may break with all the traditions of the Society of Friends in his maturity, but he is never quite the same as a man who has not been under the rigid family discipline of that estimable sect. A man may throw off all the bonds imposed by the severe domestic arrangements of a Scotch Elder, he may elect to bring up his own children on liberal lines, and banish the shorter Catechism from his household, but he cannot shake off the consciousness of another kind of life which was forced upon him by his early experiences. In the case of Tiberius we can trace to the very end of his life the influences to which his youth and early manhood were subjected. There was no break with early traditions; the aspect of details changed, the estimate of their relative mutual importance was modified, but the spirit with which they were approached was always the same.

The antiquaries have much to tell us of the material arrangements of a Roman house, but we are not so well informed by them as to its occupants. There is a disposition to ascribe all that was good in Roman family life to an indeterminate period anterior to that progressive decay of good manners and good morals which, according to our authorities, was the distinguishing feature of the Empire. Exceptional instances of extravagance are quoted as texts for the supposed rule, the humorous or declamatory exaggerations of satirists are treated as if they were the evidence of sober witnesses, and the spirit which works behind the whole of Roman history is dealt with as of no account in comparison with the letter of promiscuous citations.

If we wish to revive the ideas which were associated by the Romans with their princely houses, we must think rather of such Roman palaces as are described by Mr. Marion Crawford in his *Italian Romances*; we must add to this conception something of a mediæval court, something too of the great mercantile house of the Renaissance. So far as the family was concerned which inhabited such a house as Pompeius built for himself in the Carinæ, it was often composed of many generations, and of persons connected by various degrees of affinity; it was a patriarchal establishment, at whose head stood the eldest man of full age descended in the line of primogeniture from the founder—it was not merely the home of a man and his wife and their children. Nor again was the house only a place of residence: it was a place of business, and the business was of many kinds—some of it was political, some financial, some legal, some industrial. In private as in public life at Rome there was not that strict differentiation of functions, and fine division of labour and responsibility, which comparatively recent experiences have caused our contemporaries to regard as a law of existence.

The Roman Empire was not built upon the foundations afforded by the assembly of the Tribes, or the assembly of the Centuries, or even by the Senate itself, but upon the surpassing ability of the great families and the suitability of their organization for the work which fell into their hands. Collectively as the Senate they exhibited similar ability during a period which was long enough to fix the reputation of Rome, but this period was both preceded and followed by times in which the work of individual houses was supremely effective. The Imperial household differed in nothing but the greater extent of its responsibilities from other households. Augustus was not the only Roman noble who lived upon the Palatine Hill, and his establishment was ostentatiously modest; many of his contemporaries lived in finer palaces, and exhibited greater magnificence in private, but the moderation of Augustus was only relative, and his house was able to find room at different times for two successive commanders-in-chief, Agrippa and Tiberius, with their families and dependents. If Roman history was presented to young Romans in a form which drew their attention largely to such purely constitutional questions as the quarrels between the Patricians and Plebeians, it did not omit the legends of the great houses. The Senatorial dynasty had its heroic mythology; Horatius who kept the bridge, Cincinnatus who left his plough to command the army, the Fabians who all

died in one day for their country, Curtius who leapt into the gulf, occupied in the imagination of Roman boys much the same place as King Alfred and his cakes occupy in the mind of the English boy. Every funeral of a member of one of the great families paraded before the eyes of Rome the effigies of men associated with stirring events in the history of the city, and filled their ears with the stories of great deeds. So far as the Romans knew their own history, they knew it in connexion with the names of the great houses, with whom indeed it was so closely associated that it was considered somewhat scandalous in the reign of Tiberius that a man who did not belong to one of these houses should take upon himself to write and publish a history.

For many years a comparatively small group of families at Rome managed the affairs of an area which has since found work for the statesmen and administrators of several kingdoms. Collectively they worked through the Senate and constitutional officials, individually through the system of clientele which was expanded from a domestic institution to a world-embracing system. Communities, as well as private persons, put themselves in connexion with great families at Rome, who were pledged to watch their interests; over and above the public official connexion with the Senate there was the private non-official connexion with individual senatorial families. Slaves and freedmen gathered from all parts of the civilized world strengthened and extended the family connexions. The sons of minor potentates were sent to reside with Roman noblemen, and receive a Roman education; capable adventurers such as the Herod family scented out the strong men of Rome and allied themselves to their fortunes. The minute subdivision of ancient society even after the creation of the Roman Provinces continued the patronage system beyond the time at which it might seem to have been naturally extinguished. Sicily might be a Roman Province, but individual Sicilian cities might still feel the need of a permanent advocate at Rome. The Roman Governor changed from year to year, but the dynasty of an Æmilian or a Claudian was perpetual.

Thus in one of its aspects, and not its least important aspect, a Roman family was a community in itself, with many and far-reaching interests; the capacity of its chief personage was a matter of importance to a very large number of men and women; his failure involved the ruin of a hierarchy of relatives and dependents. Even in the earlier and simpler days of Rome the sons of the family were carefully trained to represent the family in the

Forum and the Senate, to manage its estates, to conduct its financial relations and the extension of the family connexions, to hold office, to command armies. Greek culture added to the conception of obligation to the family, obligation to the state; Greek and Roman ideals alike forbade the young Roman noble to neglect himself. Even his deportment, his manners, his gestures were serious matters; he could not afford to be ungainly, or to express himself awkwardly. If a son proved to be physically or morally incapable of receiving the required training, Roman sentiment was not shocked by his supersession or removal. We have a curious illustration of this in the story of the Emperor Claudius. He was the younger brother of Germanicus, the son of Drusus, the grandson of Livia. In the ordinary course of events he would have been introduced to public life like his brother, but he was awkward, he rolled in his gait, his tongue was too large for his mouth, he stammered and sputtered, his family, and even his mother, were ashamed of him, he was kept in the background, and practically pensioned off. He was, however, a serious student, a linguist, or at any rate a philologist; as Emperor he planned and carried out works of great public utility; he was an extensive writer, an industrious worker. He may have been of feeble character, easily led by favourites and women, but his reign was by no means a disastrous one. No ancient writer, however, protests against the prejudice, which deprived Claudius of all opportunities of advancement, till a supposed freak of the soldiers made him Emperor; they unanimously accept with approval the verdict of Augustus, that he was unfitted by his personal defects for public life. Similarly the youngest son of Agrippa and Julia, the youngest grandson of Augustus himself, was removed from Rome, and sequestered in an island "on account of his intractability"; but though his subsequent fate is one of the many counts in the process against the reputation of Tiberius, no fault is found with Augustus for thus eliminating a member of his family who did not prove amenable to discipline.

Duty to the family, duty to the State, or it might be first duty to the State, then duty to the family, were impressed upon the young Roman noble as the conditions of his existence; he lived, like the heir-apparent to a throne, in a court which forced upon him the traditions and observances which the maintenance of the court demanded. If the father neglected his children, and evaded the responsibility of training them, there were numerous other persons ready and willing to undertake his work. The

presiding genius of a Roman family was not infrequently an aged lady, or a trusted freedman, deeply imbued with the importance of the house and the sanctity of its traditions.

For the first nine years of his life Tiberius lived with his father—a man serious, fond of learning, full of the republican tradition. It is not impossible that, in spite of the association with Octavian through Livia, the house was to some extent a meeting place of the remnant of the Republican party. We at least know that one of these men made the young Tiberius his heir, and adopted him by his will; he seems to have been allowed to take the succession, but had to refuse the adoption, because his benefactor was anti-Cæsarian. The elder Tiberius, not being engaged in public business, would have plenty of time to give to his children, and Roman children in a Roman family of the old-fashioned type were much with their parents. We are told that Tiberius was very carefully educated; at his father's death he was already sufficiently well advanced in recitation to pronounce the customary eulogy at his funeral. Up to this time everything in his surroundings would tend to encourage a naturally severe temperament; it can hardly have been a cheerful home, this house of the lost cause. The affections of the boy expanded themselves upon his brother Drusus, his junior by more than two years, to whom his attachment was deep and lasting.

On the death of their father the two boys were transferred to the care of their mother and stepfather, who was now their guardian. Tiberius was old enough to resent such an arrangement, but there is no evidence that he did so; he accepted his stepfather loyally, and Octavian himself was scrupulously careful of the interests of his stepsons. Diplomatic divorces and re-marriages were of such common occurrence in the Roman houses at this period that no slight was felt or intended, and as a rule the divorced parties maintained friendly relations. Octavia, the sister of Octavian, was neglected and eventually repudiated by Antonius, but she nevertheless took good care of his children by a former marriage, the children of the tigress Fulvia.

Scribonia, the divorced wife of Octavian, continued to be on sufficiently friendly terms with his family to watch over her daughter Julia, not altogether to the latter's advantage, and eventually accompanied her into exile. Where marriage was treated entirely as a business arrangement, there was no room for wounded feelings, and children were not tempted to

feel themselves aggrieved by a change of parents, or to cherish resentment. When a wife was repudiated on account of infidelity, and therefore disgraced, there was room for ill-feeling, but not otherwise.

As Octavian at a later date set up a school in his own house for the benefit of his grandchildren and the children of friends, it is not improbable that a somewhat similar arrangement was adopted for the young Neros; the course of grammar, the course of rhetoric, the course of philosophy would be duly followed out. Except in the far greater attention paid to elocution, the formal education will have differed little from that of an Eton boy in the middle of the nineteenth century. Both Roman and English boy learned Greek, and the Roman boy had the advantage of learning it as a spoken language; neither had a systematic instruction in mathematics, though the Roman had the advantage of being drilled in keeping accounts. But far more valuable than the formal instruction was the informal education given by the circumstances of the family. The Romans kept early hours, and it was customary for the children to dine in the same room with their parents, though at different tables. Octavian, partly from choice, partly from necessity imposed upon him by weak health, was not given to large entertainments. His table was a simple one, old-fashioned observances were rigorously maintained, but the company was choice. The children could sit and listen while the conversation was being conducted by Horace and Virgil; all the latest inventions, all the newest literature, everything that did not pertain to secret diplomacy, was discussed at that table. There was Mæcenas with his charming manners and casual dress; Agrippa, somewhat silent as a rule, but animated enough when the roof of the Pantheon or the model of a light galley had to be described to an appreciative audience; there too was Cornelius Gallus, the brilliant gentleman and poet, betraying by his passionate vivacity his Gallic origin; Varius too would be there ready to recite his last heroic poem. After dinner there would be amusements, sometimes games of chance for small stakes, sometimes recitations; or the last fashionable preacher, some Greek or Greek-speaking Jew, would discourse of virtue to the admiration of Livia and the ladies. Chieftains from Gaul and Spain, Princes from the East or Africa, wealthy citizens from Antioch or Alexandria or the cities of Asia Minor, were all to be met at that simple table, wondering at the exiguity of the repast, but none the less impressed by the personality of their host. The opportunity was a rare one

for a youth who was bent on self-improvement, and it was not neglected by Tiberius or his brother.

Along with them was brought up Julia, the spoiled child of the family, and cousin Marcellus with his two sisters, the children of Octavia, whose other daughter, Antonia, was to be the wife of Drusus, and the lifelong friend of Tiberius, perhaps the most beautiful of Roman women.

There could be no better preparation for a life devoted to the public service than this household, in which power only served to increase the sense of responsibility, in which the routine of every day was a routine of duty, and the command of the resources of the civilized world did not add a dish to the table, a garment to the wardrobe, or a superfluous slave to the servants' hall.

The atmosphere of the household of Augustus is not to be found in the scandalous gossip occasionally repeated by Suetonius or Tacitus, but in the works of Horace and Virgil; both poets repeatedly insist on the merits of simplicity, not because they were commissioned to do so, but because their own personal tastes and habits fell into line with those of the master of the civilized world.

The education of a young Roman was not confined to his home; he accompanied his father to war when he was old enough, and on peaceful expeditions at all times, where a great train did not involve inconvenience. Tiberius was probably still too young to attend Octavian on his Eastern tour after the battle of Actium, but when he was only seventeen he accompanied him to Spain, and there took his first lessons in the field, just as Octavian himself had previously been trained under Cæsar. A Roman was considered to be of age when he was sixteen, and he was quickly tested by being called upon to undertake minor responsibilities. In all departments of public life Tiberius had the advantage of the example and precept of the best authorities. The staff of Agrippa, and perhaps Agrippa himself, were ready to instruct him in the latest developments of the art of war; for finance and diplomacy he could go to Mæcenæ. Octavian was a practised and careful orator; no one of these men could afford to slumber on his laurels; they were all hard at work modifying the old, organizing the new. The secrets of the Empire so frequently alluded to by Tacitus were not so very mysterious; hard work, discretion, tact, public spirit, formed the bulk of them. The time

for intriguing came after the apprenticeship of Tiberius was finished, and the intriguers were not the men who had taught him his business.

Of the personal influences to which Tiberius was submitted in his youth the one best known to us is that of Horace, who incidentally throws a light upon his character as a young man. In the year 21 B.C. Augustus made a progress to the East, visiting notable cities on the way, and regulating their affairs. The chief object of the tour was, however, to settle the Eastern frontier of the Empire. Syria was to Rome what the North-West Provinces of India are to England; Herod and Aretas of Arabia with the princes of Armenia played the part of the Ameer of Afghanistan; they were the buffer states between Roman civilization and the aggressive powers of Central Asia. Their fidelity was by no means beyond suspicion, and from the mountains of Armenia, all along the west of the Euphrates down to the borders of Egypt, continuous intriguing prevailed, every ambitious kinglet making use of one or the other of the great powers to strengthen his position against his rivals. The strongest of these chieftains were the rulers of Armenia and Herod the Idumæan; the former were unquestionably treacherous, and their proximity to the Parthians rendered them peculiarly liable to wavering; the latter played skilfully for his own hand. So long as Rome was strong, Herod was her obedient servant, but if Rome showed signs of weakness, Herod had no scruples against making friends with a stronger power in order to further his own ends.

Since Cæsar had conquered Pharnaces, the son of Mithridates, by his mere apparition, the prestige of Rome in the East had been considerably damaged. The expeditions of Antonius against the Parthians had been unsuccessful, and a serious catastrophe had only been averted by the valour of his lieutenant, Ventidius Bassus, a former mule-driver; by submitting Herod to the demands of Cleopatra's cupidity, he had to some extent alienated the Idumæan, and encouraged him to distrust Roman politicians. Now that the Spanish war was over and the Western half of the Empire in good order, Augustus wisely determined to study his Eastern questions on the spot, and make such a demonstration of power as would determine the judgment of waverers in favour of Rome. The plan of operations was to send an army through Asia Minor into Armenia, and thence if necessary along the Tigris into Parthia, while the possible allies of the Parthians in Syria were to be overawed simultaneously by the presence of the Emperor.

The command of the army destined for Armenia was given to Tiberius, now twenty-one years of age. Both operations were successful; there was not much fighting, but the Parthians saw that Rome was in earnest, and made terms, sending back the standards which had been taken from Crassus some thirty years before; the Roman party in Armenia was strengthened by a change of rulers, and Tiberius returned in triumph. His first essay in war and diplomacy was successful.

Tiberius had taken with him a staff of secretaries, or literary companions, with whom Horace was in correspondence, the chief of whom seems to have been Julius Florus, a Romanized Gaul. From the tone of Horace's letters to these young men we learn much of the future Emperor. It would seem that Tiberius had formed the idea of surrounding himself with what Horace on one occasion humorously calls "a gang" of earnestly minded young men. Their characteristics may be inferred from the following letter:—

"I am very anxious to know, Julius Florus, the quarter of the world in which Claudius the stepson of Augustus is campaigning. Are you in Thrace, or on the Bosphorus, or the rich plains and hills of Asia? What works is the studious company a-building? I should like to know this too. Who is undertaking to write the history of Augustus? Who is going to give immortality to his wars and peaceful exploits? What is Titius writing, Titius whom all Romans will sing, who has not been afraid to tap the Pindaric sources, and has ventured to turn away from commonplace pools and streams? Is he well? Does he think of me? Does he labour with the aid of the Muse to fit the Theban metres to Latin strings, or does he rage and bluster in tragedy? Tell me what Celsus is doing? Warn him against plagiarism, tell him to beware of the fate of the daw in borrowed plumes. And what are your own ventures? What are the thyme beds about which you lightly hover? You have no mean ability, you are polished, refined, and will win the first prize as an advocate in private or public suits, or as a poet of the lighter kind. But if you could give up the chilling pursuit of business, you would go where inspired wisdom would lead you. This is the work and interest which should be sped by us all, whether small or great, if we wish to live in peace with our country and ourselves. You must also tell me this when you write, mind you do, how are you getting on with Munatius? Does the badly patched fellowship join and split again to no purpose? And are

your independent spirits galled either by hot-headedness or misunderstanding? Wherever you both may happen to be, you who should not break the bond of brotherhood, I shall be very glad indeed to see you back again.”

Here is another letter to Celsus, the young gentleman who made somewhat too free use of the poems in the Palatine Library:—

“I beg you, Muse, to convey my compliments to Celsus Albinovanus, the companion and secretary of Nero. If he asks what I am doing, tell him that though I threaten all kinds of fine things, I am neither living properly nor pleasantly; not because my vines have been smashed by the hail, or my olives parched with the heat, or my cattle sick on the outlying lands, but because, more ill at ease in mind than body, I refuse to hear or learn anything that is good for an invalid, am annoyed with my faithful physicians, furious with my friends, because they try to deliver me from my deadly laziness; I am bent on what is bad for me, I avoid what I know to be good for me; I am fickle enough to be in love with Tibur at Rome, with Rome at Tibur. After this ask him how he is, how he manages his business and himself, how he gets on with his young chief and the company. If he says ‘well,’ first congratulate him, and then don’t forget to whisper just this little bit of advice into his ear, ‘Our treatment of you, Celsus, will depend upon the way you treat your own good fortune.’”

Other letters to Bullatius, to Albius, to Municius, to Secius, to Lollius are much in the same strain. Though these young men were not demonstrably included in the inner circle of the friends of Tiberius, they belonged to the same social rank; in all there is the same playfulness, in all good advice is conveyed in tactful form. In Lollius Horace seems to have felt a special interest; he too was a companion to some notable person, probably Drusus. Horace gives Lollius many practical directions, somewhat in the style of Polonius, as to his behaviour to his patron, Lollius being of an independent spirit, and irascible. Horace is particularly fond of impressing upon his young friends the duty of “living for themselves,” of considering wealth, fame, and even public usefulness, as of less importance than a good conscience. The moral earnestness of Horace is often underrated, as the moral earnestness of R. L. Stevenson is underrated, and of many other writers whose teaching has not run in the grooves prescribed by the professional preachers of their day. Horace had no love for the

worthy gentlemen who improved the occasion after dining with Augustus; the red eyes of Crispinus affected him as the red nose of Stiggins affected Dickens; he had equally little patience with those men who labelled themselves Stoic or Epicurean or Cyrenaic, and professed to live according to the authorized manuals of the sects; the pretentiousness of the professors of virtue and the proselytising Jews disgusted him, as similar manifestations are wont to disgust humorous men at all ages and in all places, but these men have had their revenge in the solemnity with which for nearly two thousand years they have deplored his levity. Few men, however, have lived more consistently with their professions than Horace, and the world would be none the worse if his example were less unfrequently followed. The friendship of Mæcenas, a genuine personal affection, and not a mere literary or convivial sympathy, gave Horace many opportunities of enriching himself, or at least of parading his power; it was something to be the friend of the second or third man in the Roman Empire. But Horace studiously resisted every temptation to make use of this friendship; he would not even allow himself to be made the recognised channel of introduction for his literary friends. The time came when Augustus wished to transfer him to his own household—the letter is still extant in which the offer was made, and the greater opportunities hinted at—but Horace would not hear of such an advancement. It speaks well for Augustus that he was not offended by the refusal. From Mæcenas Horace accepted a moderate independence, sufficient for his needs, but a small gift to come from one of the richest men of his day. He was grateful, but he refused to sell his soul, and we still have the letter in which he bids Mæcenas take back his bounty, if it is to involve obligations which the poet cannot meet without injury to his health, or undue disturbance of his comfort. He adds with characteristic humour and strict justice, “but if you take back the Sabine Farm, you must restore to me the youth and vigour I enjoyed when I first entered your service.”

Men who cannot distinguish an official ode written to order and the forms imposed by such conditions from the genuine effusions of a literary artist are fond of accusing Horace of excessive adulation, but there is no adulation in offering unpalatable advice, or in pointing out to a patron that he is exceeding his prerogative. Instances may be found in the Odes, as well as in the Epistles, of not altogether complimentary exhortation. The truth was that Augustus was surprisingly the right man in the right place, and the compliments paid to him by Horace and Virgil and other literary

contemporaries, though expressed in a liberal style, were not in spirit other than the occasion demanded. Epitaphs and dedications have a language of their own—Italy is more given to hyperbolical compliment than England—but the men who declared their admiration of Augustus, however extravagantly to our ears, had sound reason for admiring and wishing others to admire a very capable man surrounded by capable advisers and seconded by able lieutenants.

It is not probable that the first book of the letters of Horace was published in the lifetime of the poet, for they are often too intimate for publication. Lollius would not be likely to give the world the benefit of his castigation, or Mæcenās to allow contemporaries to enjoy the protest against his thoughtless insistence on the poet's company. The collection was most probably made after the death of the writer, and the dedicatory letter placed at the beginning may equally well have referred to some other publication. Horace is not the only facile writer of verse who has occasionally amused himself with writing to his friends in metre, and the sting of some things which he wished to say was to some extent dulled by the adoption of a metrical form. We may take it that in the first book of the Epistles, if nowhere else, we have the genuine Horace writing without respect of persons, and without regard to the public. A peculiar interest therefore attaches to the one short letter in the collection which is written to Tiberius himself; it is a letter of introduction.

“Septimius I presume has some special information as to the esteem in which you hold me, Claudius; for in begging and prayerfully compelling me to try to say a good word for him, and introduce him as worthy of the intellect and family of that sound reader Nero, in asserting that I enjoy the privileges of an intimate friend, he sees and knows my power better than I do myself. I certainly gave a good many reasons for being let off with an excuse, but I was afraid of being thought to have falsely pretended incompetence, and to be given to disguising my real influence, and reserving it for my own sole use. So, in dread of the disgrace of a greater obloquy, I have entered for the prize awarded to impudence. If, however, you do not disapprove of my breach of good manners, committed at the request of a friend, enroll him in your ‘gang,’ and believe him to be staunch and good.”

Knowing as we do from other sources how strongly Horace objected to turning a private friendship to account, and how specially careful he was in the matter of introductions, we can see through this letter a real intimacy with Tiberius; the apology of Horace is addressed rather to his own conscience than to the recipient of the letter. We need not infer that Tiberius was particularly difficult of approach.

The qualities which were to render Septimius acceptable to Tiberius are worth notice; he would be in sympathy with a man whose standard of reading, or—for the phrase is ambiguous—choice of pursuit was dignified, he would be staunch, he would be good. Good is the epithet which Horace applies to Tiberius himself in writing to Julius Florus—“Florus faithful friend to the brilliant and good Nero”; he uses the same epithet in the Odes in speaking of a former mistress—“I am not what I was under the reign of good Cinara.” Without pressing the sense of the word too closely, it can hardly have been applied to an ungenial man, such as Tiberius is represented to have been, and may have afterwards become. The future Emperor had a weary road to travel before he became, if he ever did become, what the elder Pliny says that he was, “a most dismal man.”

Thus at the outset of his administrative career we find Tiberius in excellent company; it is pleasant to think that he may on some occasion have made an expedition to Tibur or the Sabine Farm, like Torquatus or Mæcenas, and spent an evening with the genial poet, drinking old wine laid down in the consulship of Manlius, watching the wood fire crackling on the hearth, enjoying the jokes of the pert slaves, or perhaps listening while his host sang to his own accompaniment words which the world has not yet forgotten. We may be sure that there were rejoicings when the “company” returned from Asia Minor, that the kid was duly sacrificed, and that if Tiberius himself was not present, Florus and Celsus, and let us hope Munatius told the story of their adventures to the kindly ears of their middle-aged friend.

VI

The Family of Augustus

THE principle of the transmission of the chief power by heredity was never recognized as a fundamental part of the constitution of the Roman Empire, though the natural tendency is to allow a son to take his father's place, and the necessities of ancestor worship made the succession of a real son or an adopted son agreeable to Roman feeling. Neither Cæsar nor Augustus ever had legitimate sons; Tiberius had a son, but he died before his father; Caligula was childless; the ambition of an unscrupulous woman deprived the son of Claudius of the succession and his life; Nero was childless, and in him the Cæsarean strain ended. Circumstances were adverse to the hereditary principle. Short dynasties, such as those of the Flavians, the Antonines, and the Constantines, appear from time to time, but the ordinary method of peaceful succession was the nomination and adoption of a successor or successors by the reigning Emperor.

For many years Augustus himself avoided the definite establishment of his own position as even a life tenancy. His office of Imperator was renewed every ten years; the Tribunician power was granted to him afresh every year in form, though not in fact; the Censorian office was taken up every five years; he did not become Pontifex Maximus till eighteen years after the battle of Actium; the only office which he held without a break—that of Princeps Senatus—was not considered to be an office at all, the dignity of the first man in the Senate being constitutionally purely of respect. Under these circumstances it would be strange if the historians were correct in assuming that the chief preoccupation of his life was in providing for a successor of his own blood. Tacitus, who is full of the dynastic question, informs us, with his customary inconsistency, that Augustus himself at the end of his life mentioned three men not connected

with the Cæsarean race as possible candidates for the succession, which he could hardly have done had he accepted the hereditary principle, seeing that the Cæsarean stock was by no means extinct.

For a short time the vision of hereditary succession probably attracted the imagination of Augustus, and certainly always occupied the attention of members of his family; but the early deaths of two of his grandsons and the insubordination of a third quickly dispelled the attractive vision.

The acquiescence of other Roman families in the Cæsarean rule was bought partly by admission to a share in the administration, partly by the very fact that the dynastic ideal was not forced in such a manner as to preclude all possibility of a change in the form of government, and a reversion to the happy days of the Senatorial oligarchy. Opposition was further disarmed by intermarriages with the houses least likely to submit contentedly to the domination of one family; both stocks of the Claudians, the Antonians, the Domitians, the Æmilians, the Junians, and others were thus united with the Julians in the lifetime of Augustus or his successor. The consular lists for the reign of Augustus recall the names of the noblest Roman families, and though the old city offices had now become titular rather than effective, men still liked sitting in Curule chairs, and taking the lead in the pageantry which survived the reality of power; the process by which administrative functions gradually passed from the old offices to the new hierarchy was a slow one, and an ambitious young man might still think he had embarked on a career when he had been dignified with the lowest of the old magistracies. The new men were employed less in Italy than in the imperial provinces, where indeed it was important that the officials should be attached to the person of the Emperor rather than to the abstraction called the Senate and the people of Rome. Neither Augustus nor Tiberius were afraid to entrust the really effective powers of Prefect of the City of Rome to members of the old aristocracy.

But if Augustus himself was less interested in the dynastic question than the historians represent, the ladies of his family were by no means equally indifferent; their feuds were shared in by their ladies and freedmen, and the apparently peaceful home of the suave and unconscious Augustus was a raging battlefield, in which the weapons of calumny and innuendo were freely hurled, and the external forms of politeness concealed a state of civil war. Wily Greeks and Jews or other Orientals used to palace intrigues

found a field for their special talents in the households of Livia or Julia; holding the confidential positions of physicians, preachers, tutors, and astrologers, they transferred to the Palatine the atmosphere of the Courts of the Ptolemies or Herod. Under this subtle influence mere drawing-room conspiracies sometimes took a serious complexion; young men were impelled by their female relatives to dangerous courses, secret information sped from Roman boudoirs to the palaces of Syria and Armenia.

Livia herself was a skilled intriguer, and though Dio puts into her mouth a ponderous curtain lecture on the subject of clemency, addressed to Augustus, her inclinations were more monarchical than those of her husband. The very substantial compliments which passed between her and Herod of Judæa are not likely to have been exceptional in their character, nor is that wily potentate likely to have been the only man of his class who discovered that her fingers touched the springs of government. Though by the letters of the law Roman women were in an almost servile position, though they were liable to be divorced and remarried to suit the convenience of their families, methods were found of evading the law, and divorces which tended to further aggrandisement were not unpopular with their apparent victims. By a variety of legal fictions women could hold separate estates, and were often immensely rich independently of their husbands. The wives of provincial governors were notorious for their rapacity, and took full advantage of the weakness of uxorious husbands.

Livia spinning the toga of Augustus with her maids or weighing out the allowances of the slaves, was a pleasing picture for the contemplation of her husband and the Romans, but the head of the thrifty housekeeper had room for other than domestic details, and her name was whispered with awe by many who could not have appreciated her homely virtues, and had good reason for suspecting her of very different occupations.

Owing to the early marriages of the Romans a family quickly became patriarchal; some of these marriages, it is true, were mere contracts, children being sometimes married to secure dowries or successions, or ratify family alliances, almost before they were out of the nursery. Owing again to divorces and remarriages the various degrees of affinity between the members of a group of families are very difficult to trace; adoption adds complications, which are further increased by the paucity of Roman names,

especially as women generally retained the feminine form of their father's names after marriage, and sisters were often indistinguishable.

Five chief families were united in the household of Augustus: the Julian—of this the heads were the Emperor himself and his sister Octavia; the Claudian, represented by Livia and her two sons, Tiberius and Drusus; the Vipsanian, represented by Agrippa; the Claudian Marcellan by Octavia's three elder children; the Antonian by her two younger children. The heads between whom all matrimonial transactions were arranged were Augustus, Livia, Octavia, and Agrippa. Of these four Agrippa was to the two ladies the unwelcome but inevitable intruder; Livia was disposed to push the Claudians, Octavia the Julians, whom she represented equally with her brother the Emperor. These four high contracting parties were about the same age, Octavia being somewhat the older of the four. If there was to be a dynasty, and if the succession was to follow the strict line of heredity, Julia, the one child of Augustus, was obviously the great matrimonial prize. Matters in her case were somewhat complicated by the existence of her mother, Scribonia, an affectionate but easy-going lady, who seems to have abstained from active interference in her daughter's affairs till she accompanied her into exile many years later. There was another heiress in the family of the same age as Julia, namely Vipsania, the daughter of the despised but necessary Agrippa. She was the granddaughter of Pomponius Atticus, the very wealthy banker and friend of Cicero. Agrippa had married her mother when his fortunes were still at a low ebb, and when it was desirable to conciliate the Equestrian Order to the advancement of Octavian and his friends. Agrippa owed his position entirely to his great ability, and his single-hearted unselfish devotion to the fortunes of Augustus. Nobody had ever heard of the Vipsanian family till he rose to eminence, and the Claudian and Julian ladies were contemptuous of its degrading associations. We do not know whether Pomponia died or was put away, but in the year B.C. 25 Julia, being of the age of fourteen, was declared marriageable, and a pleasing atmosphere of matrimonial intrigue filled the house on the Palatine. To consolidate the fortunes of Agrippa—a really formidable rival, if he chose to declare himself—with those of Augustus, the right thing to do was to marry Julia to Agrippa, but Livia wanted her for Tiberius. A compromise was hit upon; Tiberius was left out in the cold, Julia was married to young Marcellus, Octavia's son, her first cousin, now a lad of

eighteen, and in order to associate Agrippa with the Julian blood he was given the lad's sister Marcella.

That Augustus can have seriously intended Marcellus at this time to be heir to anything but his private fortune is impossible; so long as Agrippa lived there was no other possible successor to the Imperial power, and the story that Agrippa went off to the East to keep out of the way of the favours shown to the young Marcellus is absurd. Agrippa was wanted in the East, and the information that he acquired there led to the subsequent Eastern progress of Augustus and Tiberius four years later. When Augustus was so seriously ill in B.C. 23 as to contemplate the possibility of his death, he sent for Agrippa and gave him his ring, thus making him his successor so far as it was possible to do so; on this we are told that Marcellus showed such bitter disappointment that Agrippa again went to the East, and for the same reason. A few months later Marcellus died, and Virgil's touching allusion to the event in the sixth *Æneid* is probably the only authority for the assumption that the wise Augustus proposed to set aside the tried and faithful Agrippa, the actual second person in the Empire, in favour of an untried youth. Such an assumption involves a contradiction of the whole policy of Augustus. Whatever his weaknesses, whatever his failures in prevision, the one thing he dreaded was the recrudescence of the wars of adventurers. Steadily through his reign he worked in the direction of giving permanence to order, and of quietly eliminating all elements likely to endanger order. He can hardly have been so blind as not to see that the reign of Marcellus was only possible by the sufferance of Agrippa, or to ignore the fact that Livia would work for the elevation of her sons after his own death.

The premature death of Marcellus threw all the matrimonial schemes again into the melting-pot. His marriage had been a marriage only in name, and had left no offspring. For two years nothing was done, but when the whole Imperial party moved to the East in B.C. 21 marriage was again in the air. There was a sojourn, accompanied with much festivity, at Samos, where Agrippa met the rest of the family. His marriage with Marcella had proved childless, his union with the Julian stock had failed; Julia herself seems to have shown signs of an inclination for Tiberius, but such a union would have strengthened the Claudians too much, and Tiberius himself was attracted, if by anybody, by the daughter of Agrippa. Augustus took matters

into his own hands; he persuaded his sister to allow her daughter to be divorced, and married his own daughter to his faithful friend Agrippa, a man at least twenty years older than herself. The line of succession was to be through the children of Agrippa and grandchildren of Augustus; Livia, and Octavia were left out in the cold. The former consoled herself by interchanging amenities with the husband of Mariamne on the Phœnician coast, and both ladies pleased themselves later on with a double marriage project, which to some extent restored the balance; Tiberius married Vipsania, and his brother Drusus the very beautiful younger Antonia. The dates of these two marriages are not determinable, but as Tiberius was the father of only one child, in B.C. 12, when Agrippa died, his marriage at any rate was probably a late one, when he was about thirty years of age. There is reason for believing that this at least was a love match.

Julia proved to be a fertile mother, she brought five grandchildren to the founders of the Empire and if the succession was to depend on the principle of heredity, it was secured, for both the ruling powers were interested in transmitting the succession in the Julian line, and three of the children were sons.

Augustus was delighted; the philoprogenitive passion broke out in him; he insisted that Julia and her husband should live in his house; he provided instructors for the children; he seldom went out unless accompanied by them, and they rode round his litter when he went into the country. The boys he adopted, buying them of their father by the ancient rude ceremony, and the two elder ones were henceforth known as Caius and Lucius Cæsar. Livia was more than ever in need of such consolations as could be won by intriguing with Oriental potentates. It seemed that the Claudians were definitely relegated to a subordinate position, and the young Cæsars began to pay increased attention to the mythology of the Æneid and the story of their mystic descent from the goddess Venus. A marriage between the son of Drusus Nero, afterwards known as Germanicus, and Agrippina, the daughter of Julia and Agrippa, was the sole bright spot in the dynastic fortune of the Claudians.

Destiny, however, had not exhausted her possibilities. In 12 B.C. Agrippa died. In the following year Octavia died, and Livia was free to carry out her favourite matrimonial project; the widowed Julia was married to Tiberius, who divorced his wife, Vipsania, to make room for her. This

was the first tragedy in the life of Tiberius, destined to bring upon him not only terrible immediate sorrows, but a whole train of calamity, which pursued him to the end of his days. We are told of many Roman nobles that they divorced their wives. Tiberius is the only Roman of whom we are told that he bitterly regretted the wife from whom he had been separated.

We do not know by whom this tragedy was brought about, but we do know that, so far as dynastic pretensions were concerned, Tiberius was the last person to be influenced by such a consideration. Whatever ambitions his mother may have formed for her sons, both of them, now men in the prime of life, enjoyed the confidence of Augustus because they had hitherto shown themselves superior to vulgar ambition. Both were by this time experienced generals, for though the command of Tiberius in Armenia may have been nominal rather than real, both he and his brother had conducted a series of campaigns in the difficult regions to the north of the Balkan Peninsula, in the Alpine valleys, and on the frontier of the Rhine. Tiberius had further shown himself a skilled civilian; he had been entrusted not only with the different Republican magistracies, but he had been made chairman of several of those commissions by which the real administrative work was done; he had presided over a very important commission for regulating the corn supply of Rome, and over another for inquiring into the condition of the agricultural slave barracks, whose owners were accused of kidnapping travellers, and offering shelter to freemen who preferred such a life to military service. After the death of Agrippa he was unquestionably the second person in the Empire, for Mæcenas had no hold on the armies, and Tiberius held this position, not as the stepson of Augustus, but as a representative of the oldest and most highly honoured family in Rome, and as the reward of distinguished public services at home and in the field.

Caius, the eldest son of Julia, cannot at this time have been more than nine years old; it would be some years before he could take any effective part in public business. Augustus, always in weak health, had to provide for the contingency of his own death, and it must be borne in mind that, quite apart from the comparatively ignoble ambition of founding a dynasty, a sense of duty would impel Augustus to obviate as far as he could the disturbance of a disputed succession. Augustus prided himself upon his position as a pacificator; his reign was a reign of peace, its wars were

frontier wars; to allow the apple of discord to drop into the centre of this realm of peace was to destroy his own work.

But was it necessary that Tiberius should marry the widowed Julia? Was the match capable of being represented to him as a necessity of state, as a duty so imperative as to override all questions of private inclination?

Certainly it was so, though the public grounds were essentially of a private and personal nature.

The two hostile forces in the Imperial House were Livia and Julia, the former the embodiment of the stern virtues of the Roman matron, personified rectitude and humility in her outward demeanour, inwardly unscrupulous and domineering, free from the more amiable but less dignified weaknesses of a woman, incapable of being led away by the love of admiration, icily regular, intemperate only in her pursuit of the greater ambitions, unmoral rather than immoral, she shunned attracting public notice, preferred the enjoyment of power to the demonstration of power, but was none the less keenly jealous of any encroachment on her domain. It is curious how little we hear of her; the poets do not mention her, gossip did not concern itself with her name; it is only from one or two casual references in Josephus, and a few incidents recorded by Tacitus, that we divine the activity of this force behind the throne. Portraits of Livia survive; her high nose is to be seen behind that of Augustus on the coinage; there are busts, and at least one statue. The countenance is that of a very handsome woman and a very dignified woman, but not of a woman who could laugh readily, the mouth looks as if it could smile to order, but not spontaneously. We may surmise that her virtues were of such an obvious type as to constitute a standing provocation to the wicked, that she was one of those women who are more dangerous to sound morality than a bad example, and against whose standards it is impossible not to rebel secretly if not openly; this is especially the case when it is suspected that behind the genuine inclination to correctness in smaller matters lurk the real deadly sins of the soul, hardness, avarice, lust of power. The story that she was blind to the infidelities of Augustus, and even provided the opportunities, may not be true; the infidelities may be, and probably are, as chimerical as the connivance; but even such a myth may be allowed to indicate the type of character.

Pitted against this calm, correct, implacable woman we have the spoiled child Julia, bent upon enjoying herself to the full, adventurous, audacious, both in deed and word. When her father reproved her for riotous living she is said to have replied that, though he might choose to forget that he was Cæsar, she did not propose to forget that she was Cæsar's daughter, and doubtless the pert sally, accompanied by some laughing gesture, smoothed away the gravity of the outraged Emperor. For a Roman princess at this resplendent time of Rome's fortunes three lives were open: she might live as Julia's aunt Octavia lived, or her first cousin the younger Antonia, in comparative retirement, abstaining from intermeddling with affairs of state, the centre of a refined and possibly literary circle, caring for the domestic interests of those whom she loved, or to whom she was bound by duty; or she might live as Livia lived, darkly intriguing behind the scenes, corresponding with "native" princes, plotting and counter-plotting among the Roman families, or again she might fling herself into the riotous amusements of the gilded youth of Rome, the young gentlemen for whom Ovid wrote his treatises on gallantry.

Gambling and betting were as well known diversions in Roman society as in our own; great ladies made their books upon the circus. Cards were not yet invented, but dice were common. Wealthy young provincials, the sons of great but not ennobled capitalists, were as ready then as now to pay for admission to the highest social circles by dealing leniently with fair ladies whose affairs were involved by debts of honour, and some of them lost their heads and hearts over the business. Masquerading in the unlighted Roman streets after respectable people had gone to their early beds was not an infrequent amusement, and even ladies anticipated at Rome the licence of the Mohawk and Tityre Tu of Queen Anne's reign in London. Antony and Cleopatra amused themselves thus at Alexandria, to the terror and annoyance of respectable middle class men; the joke of thus playing pranks upon inoffensive persons of humble rank under the protection of a slight disguise is not obvious, but it has at all times presented attractions for a certain order of mind. As for Julia, we are told that her revels were conducted even on the sacred Rostra, the public platform of the government of the world. Her cynical defence of her immoralities is said to have been even more outrageous than her conduct. But for all this Julia did not forget that she was Cæsar's daughter, and was determined not to submit more than

was inevitable to the domination of the woman who was not her mother, but was Cæsar's wife.

At the death of Agrippa, Julia, though already the mother of four children, and shortly to become the mother of a fifth, was only twenty-seven years of age. During the time of her married life she and Tiberius had been much absent from Rome; they had probably met very little since they were brought up together as children in the house of Augustus. Agrippa may have been an indulgent husband, willing to condone the more innocent levities of his young wife; or Tiberius, remembering his agreeable playfellow, now titularly his mother-in-law, may have chosen to disregard the scandalous whispers which reached his ears from time to time.

On her husband's death Julia found herself in an awkward position; it is true that her father was her friend, but her father's wife was her enemy, an enemy whose mysterious influence she had good reason to dread, and whose ambition was menaced by the existence of Julia's own children, already the darlings of their grandfather. Again it is not improbable that she cherished a purely feminine grudge against Vipsania, who had carried off her handsome playfellow, and was additionally piqued by the happiness which Tiberius had found in his marriage. The personal beauty of Tiberius was remarkable; his accomplishments no less so. He was unusually tall, broad shouldered, well shaped, and well proportioned from head to foot, of great physical strength; he belonged to the fair ruddy type of Italian, and carried a profusion of golden hair, which grew low down on the back of his neck, a family peculiarity, his eyes were exceptionally large, and he was credited with the power of seeing in the dark when first awakened; as he habitually carried his head in a bent position, it is possible that he suffered from some visual defect; he was naturally silent, and a slow talker; he had the reputation of being deeply learned, and indeed versed in occult mysteries, such a man as would attract the curiosity of a woman, and challenge her love of conquest by his intellectual, no less than by his physical, qualities. The few existing portraits of Tiberius fully bear out the descriptions given by Paterculus and Suetonius. The so-called bust of Tiberius in the British Museum is not a portrait of him, and was simply so named because it happened to have been found at Capri.

Personal inclination, no less than policy, would have suggested to Julia that here was the natural protector of herself and children, and there was the

additional inducement of delivering a checkmate to Livia by falling in with what had been her favourite scheme. With Tiberius as the stepfather and guardian of the children of Agrippa, there was nothing to be feared from the death of Augustus; Livia's own son would be in a position to defeat any machinations against the heirs of the Julian race, and it was well known that whatever obligations Tiberius took upon himself, Tiberius would honourably fulfil.

The arguments for the divorce and remarriage were, from the Roman point of view, strong; it was not a question of personal convenience or of advancing personal interests, the object was to maintain the peace of the Roman world. Had Tiberius taken the advice of Mæcenās, it would probably have been to the following effect:—"It is true that you are to be trusted, that no pledge is needed from you to ensure the security of the daughter and grandchildren of Augustus, your whole life shows that you have made your stepfather's interests your own; but you are not the only person concerned. The two boys will be exposed to every temptation as they grow up; their mother is a fascinating lady, but her best friends can hardly claim for her that she is equal to the task of bringing up a family whose responsibilities will be great. If you do not marry her, somebody else will; it would be a serious risk to expose any possible candidate to the temptations of such a position, to introduce a new claimant to the family honours into the family circle. Julia needs a protector, a husband of her own age; she is said to have a strong personal attachment to yourself, and under your guidance it is not likely that she will repeat pardonable indiscretions, to which perhaps she was driven by want of real sympathy with her previous elderly husband. You say that you and your present wife are devoted to one another. Granted; but you are both called upon by a destiny, which you cannot evade, to sacrifice yourselves to the good of the State." And Horace too would have argued much in the same strain; he would have sympathized more delicately with the feelings of a united couple rudely torn asunder, but with his shrewd common sense he would have shown that there was no alternative but a retirement into private life, a course which would have amounted to abandoning the post of duty.

The person, however, who most strongly influenced Tiberius in his fatal decision was possibly Vipsania herself. From both parents she inherited businesslike qualities, cool common sense. Neither of them is

credited with having been sentimental at any period of his or her career, and though Tiberius was devoted to her, it is quite possible that she herself regarded her marriage dispassionately as an excellent business arrangement, and that, while she fulfilled all the duties of a wife with scrupulous observance, she was prepared to be equally careful of the interests and honour of any husband with whom she was provided by the higher powers of the family council. She had abundant precedent for taking such a line, and Asinius Gallus, the aspirant proposed to her, was in every way a desirable match. She may have been really indifferent, and have wounded Tiberius by her cool acquiescence in the new arrangement; or again, on this side too there may have been a great renunciation, and the unhappy woman, partly terrified by obscure menaces from Livia, partly persuaded by the kindly urgency of Augustus, may have affected an indifference which she did not feel, and deliberately wounded the man whom she loved for his own good, as she was led to believe. If Vipsania thus hurt the sensitive Tiberius, and shook his faith in his previous happiness, there was Julia ready to heal the wound; was he not the man whom she had always really loved? Her first and second marriages had been no real marriages: she and Marcellus had been mere children, and as for Agrippa, worthy man though he was, he could not feel with a wife so much younger than himself; he had always preferred the society of men who talked of bridges and aqueducts, or planned campaigns against the Sarmatians, to his wife and children; he had been good according to his lights, but it had been a dull life, and she had been driven to find relief in foolish though innocent dissipations by which her good name had suffered, and which she now sincerely regretted. If Tiberius would but take pity on her forlorn condition, and do his best to love his old playfellow, she for her part could conceive no greater happiness than to be the partner of his joys and sorrows; she loved him, she had always loved him, and the careless indifference of years had not weakened her attachment.

Whatever the arguments and allurements by which Tiberius was induced to take the fatal step, he unquestionably did so. At first he lived happily with Julia; they had one son, who died in infancy; and then his official duties took the husband from his home; he was placed in charge of a harassing campaign against a mobile enemy in difficult country along the south of the Danube and in Dalmatia, while his brother Drusus was similarly engaged in frontier wars along the Rhine.

At this time a serious misfortune fell upon Tiberius; he lost his brother.

Drusus had conducted a foray into the Black Forest region, which had not been altogether successful. On his return he either fell from his horse or caught some serious fever—both stories are given—and was seen to be in such danger that Augustus, who was then at Lyons, at once sent for Tiberius from Dalmatia. Tiberius hastened to his brother's bedside. The elder Pliny tells us that on this occasion he achieved a record speed, travelling 200 Roman miles within twenty-four hours. He was in time to close his brother's eyes, but that was all. Augustus decided that Drusus should be buried at Rome, and Tiberius marched the whole way on foot at the head of the funeral procession from Lyons to the capital. As soon as the ceremonies were over, he returned to continue his brother's work on the eastern bank of the Rhine, and after two years' absence was recalled. Mæcenas had died in B.C. 8, and Augustus felt the need of a confidential adviser. Tiberius on his return was invested with the tribunician power, an elevation which, in the opinion of his contemporaries, finally marked him out as the successor of Augustus.

The history of the tribunate, in spite of the many references to the office, is not particularly clear. It seems that the first tribunes were originally the official mouthpieces of that part of the population of Rome whom we should now call "Outlanders." After the "Outlanders," or plebeians, had become for all practical purposes fused into the general body of Roman citizens, the tribunes ranked practically among the other magistrates; they enjoyed the special prerogative of being sacrosanct, their persons were inviolable, and thus during their term of office they were nominally above the laws, a privilege which, however, did not prevent their assassination. They had the power of introducing legislation, and of vetoing legislation, and it is perhaps this power which was constitutionally most important to the early Emperors. Further, they had powers of summary jurisdiction, and constituted a supreme court of appeal in cases in which the life of a Roman citizen was in danger; when St. Paul "appealed unto Cæsar," it was to the tribune that he appealed. The office was hallowed by sentiment, and though as Consul and Censor and Commander-in-chief the Emperor might seem to hold in his hands all the reasonable means of making his power effective, unless he were also Tribune, his actions could be vetoed; thus Augustus was more than usually wise in absorbing the

sanctity and the functions of the Tribune into his own person, and he could show no greater proof of his confidence in Tiberius than by thus giving him the power of constitutional opposition and investing his person with inviolability; but, to the astonishment of the Roman world, Tiberius had hardly received this mark of confidence before he summarily left Rome and retired to Rhodes.

VII

The First Retirement of Tiberius

THE flight of Tiberius to Rhodes, and his determination to abandon his public career just at the moment when his position as second man in the State was established on a sure foundation, have naturally excited the wonder of modern no less than of contemporary writers. An English historian, equally learned and delightful, speaks of the event as the freak of a moody and irritable man, and declares that such conduct summarily disposes of the claim which has been advanced for Tiberius of having been an astute statesman. His contemporaries, who are followed by the grave Tacitus and the garrulous Suetonius, found an easier explanation; to them the motive for retirement was simply the wish to indulge in licentious excesses too hideous for the starched morality and glaring daylight of Rome; but the same unfriendly or careless writers allow that he was probably disgusted by the wanton conduct of Julia, adding that he was also jealous of the advancement of his stepsons, the young Cæsars, now respectively fourteen and nine years of age.

That Julia had forfeited all claims not only to affection, but even to respect, is an undisputed fact. Soon after his marriage Tiberius had been obliged to take the field, and his wars had been waged in localities not likely to be attractive to a lady who lived in the gallant circles of the poet Ovid. War upon the Illyrian or German frontier did not involve complete absence from home, and the Roman generals were in the habit of returning from their campaigns to the capital when the winter weather made it impossible to take the field. We do not know whether Tiberius followed this custom, or whether he took a more rigorous view of his duties and spent the winter season in winter quarters, but he was certainly much away from home. Some disillusionment as to the depth of Julia's affection for him, annoying domestic difficulties caused by the ill-advised indulgence of her

children by their grandfather, may well have contributed already to make him feel more at home in the camp than in the splendid house in the Carinæ. Julia too may have had her own disappointments; the playfellow of her youth turned out to be another "Colonel Grave Airs," no less absorbed in military matters than Agrippa, inclined to spend his leisure in the society of a learned and serious circle, and averse to dissipating his time by passing long hours at the great public pageants in which the Romans delighted. So far there had been nothing worse than an amicable estrangement between husband and wife. Julia went her own way, chose her own friends, and lived the life which pleased her best. Tiberius in the same way pursued the studies which were agreeable to him, and made the best of a maimed life. Doubtless he recognized that his private happiness had been wrecked, but there was still duty, and if he could not meet Vipsania in the street without emotion, he at least gave the scandalmongers of the city no opportunity.

But when Tiberius returned from Gaul in B.C. 7 to become practically the colleague of Augustus, he found the state of affairs in his home such as no self-respecting man could tolerate, and there was this additional sting in the wound to his honour, that the very office which had just been bestowed upon him was capable of being represented as the price paid for unworthy toleration and wilful blindness. Rome was ringing with the exploits of Julia, with stories of her drunkenness in the public streets, with the names and number of her gallants. The two men who were most concerned in her misconduct, as being the two men upon whom it brought the deepest disgrace, her father and her husband, were the two men who alone seemed to be ignorant of the state of affairs. The ignorance of the father might be excused, he had no motive, except a not unworthy paternal weakness, for closing his eyes to what was going on, but the husband, so the gossips said, had been prompted by his ambition to accept an already damaged article, for Julia's irregularities were not of recent date, and actuated by the same unworthy motive he had allowed his house to become a mere brothel: the proofs were only too obvious. That such a chain of reasoning was inconsistent with itself in ascribing both ignorance and full knowledge to Augustus did not concern the gossips. Tiberius had been bribed to be blind, and all the world could see what a magnificent bribe he had extorted.

The best men, the kindest men, the justest men, and the most earnest men make the worst mistakes in dealing with a certain type of woman.

Many a woman who has brought disgrace upon her family and ruin upon herself has urged with some justice that if her husband or her father or her brother had been less kind, less blind, less just, but more understanding, she would not have been betrayed into disastrous misconduct. Often and often the question has been asked, "You must have seen what was going on; why did you not stop me?" and as often the answer has been, "I admit I ought to have seen, perhaps I did see, but I could not believe you capable of doing what appearances should have told me that you were doing."

The higher a man's ideal of women, the less willing he is to ascribe to any particular woman the wantonness of lust; the more charitable his estimate of the strength of some temptation, the less stern his condemnation, and the greater his readiness to accept excuses for levity; the higher the range of his own ambitions, and the wider the area of his own interests, the less capable he is of imagining how large small slights and imperfect sympathy may appear to a being cast in a narrower mould. Many a man by acquiescing in a discovered want of sympathy between himself and his wife has wounded her pride and provoked her to acts of self-assertion. What was part of his life was perhaps the whole of hers, and in the end he has been astounded at the disproportion of the punishment which she has inflicted. Without any conscious refusal to see things as they really were, any conscious deference to the susceptibilities of Augustus, Tiberius may well have been slow to believe in the case against Julia, whose good nature and frankness might weigh against her want of seriousness.

When, however, Tiberius came to live permanently at Rome, the facts could no longer be concealed from him, though they were possibly still concealed from Augustus. He could repudiate Julia, but that would have caused a public scandal, and have wounded a man in his most sensitive spot whom he had always known as his truest friend; he could not, however, continue to live with her, that would justify the charge of guilty connivance, and expose him to countless humiliations; further, there was always the sting of the price at which his forbearance up to the present moment seemed to have been bought.

The course which Tiberius actually took was an heroic one. True he might have ignored the susceptibilities of Augustus, have repudiated his daughter, and in the case of resistance have used his now established power to force the Emperor into private life; he might have held that he was

justified in so doing, that he had been wilfully deceived, and that his pretended friend had deliberately used him for his own purposes. But if ever he was tempted to conduct so violent, and yet under the supposed circumstances so justifiable, he put away the temptation; he decided that if there was to be a retirement, he was himself the right man to retire. This course had the further attraction that it put a summary end to that ugly suspicion of corrupt connivance.

Tiberius matured his plan secretly. Nobody outside his family knew that he had definitely left Rome till he was already sailing down the coast of Italy. A fast galley was sent after him, with letters imploring him to return, and not to desert the Emperor in his old age; it overtook him before he had passed the Straits of Messina, but the messengers were abruptly dismissed. No further attempt was made to recall him till after he had arrived at Rhodes, his ultimate destination, though he seems to have lingered on his way, and to have spent some time at Athens, long enough to enable him to be the first Roman who sent a chariot to compete at the Olympic games.

It was not long before the real cause of his departure became known to Augustus. Julia's extravagant conduct was so notorious that it could no longer be concealed from her father. Livia is credited with having engineered the ultimate discovery, and even aided and abetted the grievous misconduct with ulterior motives. Augustus, in the name of Tiberius, wrote a bill of divorcement, and banished his daughter to the island of Pandateria off the coast of Campania. The list of correspondents was a long one. Julius Antonius, the son of Marcus Antonius, and stepson of Octavia, was among them; he committed suicide on the discovery of the scandal. After him Paterculus mentions Quintius Crispinus, Appius Claudius, Sempronius Gracchus, Scipio, a relative of Julia through her mother, "and other men of less reputation of both orders." It was a comprehensive list, and inclines us to suspect that Tacitus is right in saying that something more alarming than mere adultery had taken place, and that Julia had allowed herself to be involved in a plot against her husband and father. It is curious that Paterculus should confine the list of nameless admirers to members of the Senatorial and Equestrian Orders. If Julia had been merely a licentious woman, we should expect to find slaves and gladiators among the company of her lovers. Amorous intrigues in the atmosphere of Rome were apt to end in more dangerous conspiracies, and though the self-esteem of the pious

and patriarchal Augustus must have been deeply wounded by his daughter's guilt, the punishment of exile awarded to her, and of death to her gallants, strikes us as disproportionate. It is most probable that there really was a conspiracy in which Julia allowed herself to be used, prompted by a desire to settle up accounts with that veteran intriguer Livia, and that this was the concluding scene of the first act in the long drama of the feud between the Julians and Claudians in the Imperial household.

Tiberius behaved on this occasion with dignity and generosity. He wrote to Augustus deprecating extreme severity to Julia, and begging that she might be allowed to retain for her own use any gifts that he had made to her. Such gifts will not have been inconsiderable, for Tiberius must have been a very rich man; it required a large fortune to inhabit the famous palace of Pompeius, and on his return to Rome Tiberius lived in the no less splendid villa of Mæcenas on the Esquiline.

On withdrawing from public affairs Tiberius decided to live as a private citizen; this he had every right to do. His motive in selecting Rhodes for his place of residence has to do with features in his intellectual inclinations upon which we have not as yet touched. The silly story that Tiberius elected to reside in Rhodes because he could there enjoy unlimited debauchery may be at once dismissed on the ground of inherent absurdity. A man who wishes to conceal his vices does not select a university town, a great commercial town, the house of call for the mercantile service of the world, the spot visited by all officials on their way back to and from the capital, an island where everybody knows everybody else's business, as the scene of his loathsome excesses; and Rhodes was all these things. Possibly an advantage enjoyed by Rhodes in being free from the direct control of a Roman Proconsul rendered it desirable as a place of residence for a man in the position of Tiberius, who wished to avoid friction with the Roman authorities. Most of the famous cities on the Greek mainland were now in a decayed condition; Corinth alone retained something of its mercantile importance, Athens had become an agreeable place of residence as well as a university town; but the cities on the coast of Asia Minor, Smyrna and Ephesus, and the islands off the coast, Samos and Rhodes, flourished as they had never flourished before. The corn ships from Alexandria frequently touched at Rhodes; she lay in the path between Antioch and Rome, and had become the meeting place between East and West. This

gave a special character to her university. Athens was purely Greek, but Rhodes was both Oriental and Greek.

Rhodes, though largely despoiled of its trees, is still among the most agreeable of the Greek islands, and in the days of its luxuriance was particularly beautiful. Tiberius shared that taste for islands which inspires the day dreams of many of our own contemporaries. Men only learn by experience that the secluded charms of a sea-girt residence are balanced by its inconvenience; but the inconvenience of restricted and precarious supplies would not be felt at Rhodes, the island being large enough to be self-dependent, besides being the calling place of shipping: thus Tiberius could look forward to a life spent in the pursuit of congenial and serious studies, in delightful scenery, and in the full stream of the world's traffic.

The studies which especially attracted Tiberius were then called mathematical—we should now call them scientific—but neither was the science of the ancients our science, nor their mathematics our mathematics. The special branch of science which interested Tiberius was astronomy; but astronomy in his time was merged in astrology, and with astrology were associated other supposed means of predicting the future, that vain preoccupation of mankind. Great skill in judicial astrology was attributed by the ancients to Tiberius, and it is not likely that he escaped the intellectual contagions of his age; but we must be cautious in refusing to concede the possession of a truly scientific temperament to men of his age, or of much later ages, solely because they were credited by their contemporaries with sharing in what we now believe to be frivolous superstitions.

Nearly a century after the death of Tiberius, Apuleius, the compiler and in part author of the famous *Golden Ass*, was accused before a Roman Proconsul of magic, and of having bewitched the somewhat elderly lady who had become his wife; his defence is still extant. There are many interesting points in it, not the least interesting being the inclusion of Moses in a list of eminent magicians; but the most striking features of the apology are the contemptuous way in which Apuleius deals with the current superstitions as to magic, and the indications that he was pursuing research on lines which would now be recognized as scientific—"You say I use mirrors; certainly I do; so did Archimedes. I am studying their influence on light and heat. You say that I have collected strange fishes; yes, I am

interested in comparing the structure of their skeletons.” It is strange how old are modern superstitions. Among the charges against Apuleius was one of hypnotism, based upon the fact that a boy had been seen to fall senseless in his presence. Apuleius had no difficulty in proving that the boy was an epileptic. Hypnotism is still uncanny to the non-scientific world.

Tiberius could not study astronomy or any other branch of science in his own day without being suspected of magic and divination; the things were almost mutually convertible terms, but the ancients had made considerable advances in the direction of the applied sciences, and had found out many working hypotheses, which were strictly scientific so far as the then sources of information allowed, even though further researches have proved them to be untenable. We should do injustice to Tiberius if we believed, as his contemporaries were ready to believe, that he spent his time at Rhodes in casting the horoscopes of himself and all other persons in whose destiny he had reason to be interested; but at the same time we must admit that the dividing line between science and pure charlatanry scarcely existed in those days, and that men such as Simon Magus and Elymas the Sorcerer frequently mistook the nature of their own proficiencies. Along with much sound astronomical knowledge, and with many equally sound results of experimental research, the East sent through various channels to the West a strange farrago of religion and so-called magical arts in which the esoteric learning of the Magicians, the Chaldeans, the Jews, the Greeks, the Egyptians, and even the Brahmins, was monstrosly mixed up with popular superstitions and wilful imposture. The strong common sense which Tiberius exhibited in his public actions at a later time forbids us to believe that he lost his head at this period in hazardous and illusory speculations. We know that he took his place as an ordinary citizen of a free Greek town, and joined in the debates of its assembly, that he attended the lectures of the professors, and that his chosen associate was Thrasyllus, “a mathematician.” There is a pleasant story to the effect that Tiberius once went to a schoolmaster at Rhodes who called himself Diogenes, and was used to lecture on Sabbath days, asking for the honour of a special audience. Diogenes did not even admit him, but sent a verbal message by a dirty little slave boy, bidding him come back on the seventh day. Tiberius took no notice of the rudeness at the time, but when, after he had become Emperor, he was told that Diogenes was waiting outside his door at Rome

in order to convey his congratulations, he sent out to tell him to come back in seven years.

For some time Tiberius lived contentedly in his retreat; he was visited by all men of any distinction, who were passing on their way between Rome and the East; he maintained a friendly correspondence with Augustus, and doubtless concluded that he was at liberty to do what Horace had so repeatedly urged upon his friends, “to live to himself.” But this life of moral introspection and scientific investigation was not allowed to last; Tiberius was rudely waked out of his dream, and learned that men who have once held a great position in the world cannot abdicate. Sinister influences were at work; not only did his own life seem to be in danger, but there were signs that the government of Augustus was itself in peril.

VIII

The Return of Tiberius

DURING the first five years of his residence at Rhodes, Tiberius, though he abstained from public business, was still the second person in the Empire, and still protected by the awe-inspiring atmosphere which hung round a Roman Tribune. He was, indeed, obliged to reside in the interior of the island in order to avoid the interruption caused by throngs of unwelcome visitors, who were anxious to pay their court to the great personage. Suetonius has two stories of his residence at Rhodes, which show him in no unamiable light. Tiberius once, in drawing up his programme for the day, had happened to say that he proposed to visit all the sick persons in the city. Zealous attendants immediately went out, and ordered all the invalids of the town to be taken into a public portico, and arranged according to the nature of their maladies. Tiberius was taken by surprise and considerably embarrassed, but recovered himself, spoke to each one, and apologized for the mistake individually, even to the humblest. On one occasion only he used his official position; when he was attending a disputation at the University the wrangling one day became so fierce that a heated professor made a violent personal attack upon Tiberius, as unfairly supporting his opponent. Tiberius quietly withdrew, and returned in official splendour with his train, summoned the intemperate professor in due legal form, and sent him to prison to meditate upon the enormity of provoking a breach of the Roman peace.

At the end of the five years Tiberius might well think that he could return to Rome without being suspected of a wish to exercise political influence, so plainly had he shown his indifference to public life. He had left his son at Rome, and there were others to whom he was attached; there were the three children of his brother Drusus, with their charming mother Antonia; and in spite of their awkward mutual relations, he had a genuine

affection for Augustus. The family entanglements had been straightened out; Julia was in exile; the young Cæsars were beginning to take their part in public affairs. Surely their stepfather could live in dignified retirement at Rome, ready to advise and help, when counsel and assistance were demanded of him, but otherwise unmolested and unobserved.

This, however, was not to be. Augustus himself had acquiesced in the departure of Tiberius, if not before, certainly after the revelation of the intemperance of Julia, and was not improbably touched by the consideration which Tiberius had shown for his personal difficulties in the matter. But Livia had been bitterly disappointed; all her schemes had come to nothing just at the moment when the victory seemed to have been won, and her son had been declared heir-apparent, as far as the constitutional forms of Rome permitted. Consequently when Tiberius wrote, expressing an intention of returning to Rome and his wish to see his relatives, further declaring his determination to acquiesce in whatever arrangements Augustus might be disposed to make for the advancement of the young Cæsars, and pointing to his voluntary retirement as irrefutable evidence of the fact that he wished to stand out of their way, he received an exceedingly unamiable answer, and was told that he need not concern himself about the affairs of relatives, whom he had been so very ready to abandon. We are not told whether this letter was written by Livia or by Augustus; but it was surely written at the instance of Livia. No man was more willing to forgive and to forget than the Emperor; his whole life had been a record of successful conciliation of declared enemies; both by policy and inclination he was averse to the maintenance of personal feuds. Livia, too, may have seen in the stiffness of Tiberius a reason for advancing the young Cæsars, over whom, as more pliable, she hoped to secure influence.

This letter changed the position of Tiberius. His retirement was no longer voluntary; he had become an exile, and the difficulties of his situation were only slightly modified by the concession of “a free legation,” a nominal office frequently bestowed upon men of wealth and distinction, who wished to travel with the advantages attached to an official position. Tiberius, in fact, had to learn that there are responsibilities and positions which render abdication impossible; that having once been acting Commander-in-Chief and Prime Minister, he must always be a political personage, a force to be reckoned with; and if this fact was not apparent to

him, it was very apparent to the advisers of the young Cæsars, and the worshippers of the rising sun.

During the absence of Tiberius these young men had been carefully put through the training, which had been successful in the case of the stepsons of Augustus. Caius, the elder, was now nineteen years of age, Lucius two or three years younger; there was a third brother, Agrippa, born after his father's death, and still a child, showing signs of intractability. Like Tiberius and Drusus, they were sent to learn the organization of the Empire and the administration of the Roman Legions. Lucius went to Gaul, on his way to Spain; Caius was sent to the East, and like Tiberius was entrusted with the management of the difficult concerns of the Parthian frontier; he was provided with an adviser in the person of Marcus Lollius.

The habit of scientific veracity is unknown to the Roman historians; any fact is good enough for them, provided it makes good copy, and can be dealt with in a picturesque sentence or neat epigram. They pay little attention to the consecutive order of events, are not always careful to distinguish between persons of the same name, and are rather attracted than otherwise by an opportunity of attributing contradictory qualities to the same person; the time at which a thing was done is of little importance to them, the person by whom it was done of equally little; a good story is to them a good story, and nothing more; if its effect is increased by hanging it on the name of a well known man, they seldom stop to inquire whether he can be justly implicated in the events narrated; consequently it is always agreeable to find their statements corroborated by undesigned coincidences. Paterculus and Suetonius agree in telling us that the last two years of the life of Tiberius at Rhodes were made a burden to him by the sinister influence of Marcus Lollius, but they leave us in some doubt as to who this Marcus Lollius really was, whether he was the same man who was Consul in B.C. 21, and Commander-in-chief in Northern Gaul in B.C. 16, whether the Consul and the General were two different persons, and whether the adviser of Caius Cæsar was not the Consul but his son.

The poet Horace addressed one of his odes and two of his epistles to a Lollius. It has been generally assumed, on the ground of a misunderstood allusion, that the ode was written for the father, and the two letters for the son; comparison of the three shows that they must have been written to the same person, and that that person could not have been Consul in B.C. 21.

Letters and ode alike contain advice which Horace could not have addressed even to a man his equal in rank and of his own age without a risk of putting a summary end to any friendship that might have existed between them, still less to a Consular, and possibly a senior. Horace tells us definitely that he was forty-four years of age in the year when Lollius and Lepidus were consuls; the family of Lollius had been hitherto undistinguished; the name appears on no previous occasion in the consular lists, nor had the man himself done anything to suggest him as a fit recipient of premature honours. The legal age for admission to the Consulship was forty-three, and though the law was frequently broken in times of revolution, or in favour of candidates of the Imperial House, Augustus, whose policy was to restore the old as far as it was not incompatible with the new, was not likely to break the law in favour of a man who was not inevitable. It is not likely that Lollius the Consul was one of those young men who were rapidly pushed through the routine of office, because they had claims which could not be disregarded, or because it was necessary to conciliate their families. Horace could not have written, as he did write, to the man who was Consul in B.C. 21.

The second of the two letters included in the collection was certainly written in B.C. 21; the date is fixed by an allusion to the fact that Augustus was at the time away demanding the restoration of the Eagles from the Parthians. The person to whom it was addressed was about to become the companion of some young man of distinction, probably Drusus, for Tiberius was at this time absent with Augustus, and on his return passed under the tutelage of Agrippa, so far as he was not in the hands of Augustus himself. The advice which Horace gives could not be applicable to a man old enough to be Consul, and therefore not in a subordinate position to his charge; but it is strictly applicable to a young man who was to be the companion of another young man, his superior in rank or position. Everything in the letter indicates the youth of Lollius; he was to share in the athletic amusements of his friend; the temptations, which he is to resist, are the temptations of a young man. The advice given is excellent, and might be profitably studied by any young man of the present day, who happens to find himself in a similar situation; some of it is distinctly personal, and tells us what kind of a young man this Lollius was. Horace begins by addressing him as "liberrime Lolli," "most independent Lollius," and indicates that one of his dangers is undue sensitiveness to the imputation of servility. He

concludes with some general advice not specially applicable to the particular occasion: "In the midst of all you will read the works of learned men, and strictly enquire of them how you may be able to live your life in comfort, whether you are always to be harassed and excited by a sense of poverty, excessive anxiety, and the expectation of but moderate affluence, whether virtue is acquired by learning or given by nature, what dispels care, what puts you on good terms with yourself, what calms and purifies, honour or the pleasures of gain, or the side road, and the path of the unobserved." We should be at liberty to infer from this that the good qualities of Lollius were balanced by an irritable ambition and a love of money.

The other epistle to Lollius, though he is addressed with mock solemnity in the first line as "most mighty Lollius," is clearly written to a boy: "while you are spouting Homer at Rome I have read him over again at Præneste." The recitation of the Homeric poems was an early step in the educational course of the Romans, and preceded the technical course in rhetoric. At the end of the letter Horace says: "Now is the time, boy, to drink in the words of wisdom with a clean heart; present yourself now to the higher influences." Horace begins with drawing moral lessons from the Homer which he has been reading, and then passes on to general advice: "Don't wait to enter on the path of virtue, don't put off your moral discipline, or the time will go by," "The man who is a slave to cupidity or anxiety cannot enjoy anything," "Despise sensual pleasures; sensual pleasure is bought with pain and carries a curse," "The greedy man is always a poor man; fix a limit to your desires," "The Sicilian tyrants never discovered a worse torture than envy," "Anger is a short fit of madness; control your temper, it must be slave or despot; bridle it, bind it with chains."

These might seem to be mere general moralizings, applicable to anybody, but we have already had some of them in the previous letter, and they occur again in the ode addressed to Lollius.

"Lest you should happen to think that the words which I fit to music will perish, I would have you to remember that though Homer stands first, other poets are not unknown. Many heroes have lived and died besides those commemorated by Homer, but their names are lost and their deeds forgotten, because they never found their inspired bard; therefore I will not permit your many virtues, Lollius, to pass unmentioned in my pages. You

have an acute intellect, which preserves its balance whether things go well or ill. The man who punishes dishonest avarice, abstaining from money the universal tempter, and is Consul not for one year only, but whenever the good and honest prefer honour to bribes, flings away the gifts of corruption with lofty countenance, and victoriously carries his arms through opposing squadrons. It is not the man with large possessions that you will rightly call happy; he more correctly claims the name who knows how to use the gifts of the gods wisely, and can bear the hardships of poverty and dreads wickedness worse than death; such an one has no fear of dying for the friends he loves or his fatherland.” Even if we admit that the rendering of the tenth and eleventh stanzas of this ode is beset with difficulties, there is no question about the last two with their praise of poverty.

The allusion to the Consulship has tempted commentators to infer that the ode was addressed to Lollius, the father, but it is just as likely, and on other accounts more likely, that the complimentary allusion was made to the son. “Your father is Consul this year; you will be Consul for many years if you abstain from certain temptations.”

In fact, all three poems seem to have been written at about the same time, viz., in the Consulship of the elder Lollius, B.C. 21, whose son was still a boy when he served under Augustus in Spain, his service simply amounting to being present in his father’s company during the campaign.

The situation, in short, seems to have been that Horace was attracted, as other middle-aged men have been attracted, by a spirited, clever, and athletic lad, who seemed to have a great future before him, but whose character was spoiled by three serious defects—a violent temper, restless ambition, cupidity. The attraction was sufficiently mutual to allow Horace to give good advice, which he was careful to present in a complimentary form, but without success, for Paterculus, speaking of the Lollius who was general in Northern Gaul in B.C. 16, and suffered a severe defeat, losing the Eagle of the Fifth Legion, describes him as having been “on all occasions more greedy of money than of acting properly, steeped in vice though a consummate dissembler.” A page or two later he speaks of the misdeeds and death of Marcus Lollius, when acting as adviser of Caius Cæsar in the East.

Lollius may have had an old grudge against Tiberius; he was still a boy when Tiberius, then at the age of seventeen, accompanied Augustus to the

Cantabrian War, at which Lollius was also present, and he may already have shown indications of the ungovernable temper which drew forth the monitions of Horace. Then in B.C. 21 he was appointed companion to Drusus, the brother of Tiberius. His abilities rapidly attracted attention; he won the favour of Augustus, and was given a command on the German frontier. He was unsuccessful and was superseded; the war was entrusted to Drusus and Tiberius. After this we do not hear of Lollius in any public capacity till he was made the adviser of Caius Cæsar. It is again not improbable that he attributed his disgrace to the representations of the two Neros, of whom Tiberius was now the sole survivor. The retirement of Tiberius again gave him an opportunity; he again won the favour of Augustus, and went out to the East with Caius, prepared to indulge his grudge against Tiberius. Suetonius definitely tells us that when Caius arrived in the East Tiberius went to visit him at Samos, and found him ill disposed to himself, owing to the representations of his companion and adviser, Marcus Lollius; that this situation lasted for two years; that representations were even made to Augustus to the effect that Tiberius was tampering with the fidelity of the centurions in the army of Caius; that Tiberius, on being informed of this, wrote and begged that a guard might be sent to observe his actions; that he gave up his customary military exercises, and adopted the dress of a Greek civilian; that he became day by day increasingly an object of contempt and hatred, so that the people of Nîmes threw down his statues, and a man ventured to say at a banquet, in the presence of Caius, that he would undertake to start for Rhodes at once and bring back the exile's head. Tiberius found his position one of actual peril, and again wrote begging to be allowed to return to Rome. He did not obtain this permission till Caius had been consulted on the subject, as Augustus had undertaken to take no step without his consent. Happily Lollius had by this time lost his influence, and Caius raised no objection. Paterculus supplies a link in the chain of events. Lollius, either seeing an opportunity for getting rid of both Caius and Tiberius, and making himself master in the East, or simply in the endeavour to raise suspicions against the latter, had opened a correspondence with the young King of the Parthians, who betrayed it to Caius, with whom he had celebrated a series of entertainments on the river Euphrates, closely resembling those held by Napoleon and the Czar Alexander on the Vistula many centuries later. Lollius died a few days after the disclosure. Paterculus, who was at that time a tribune of soldiers in

the army of Caius, did not know whether his death was accidental or self inflicted; he only knew that everybody was delighted, as they were no less grieved by the death of another of the friends of Horace, Censorinus, “a man,” says Paterculus, “born to win the favour of mankind.”

It is characteristic of Suetonius to inform us not that Lollius was dead, but that he had lost favour with Caius, when the latter permitted the return of Tiberius to Rome.

It would seem curious that the contempt and dislike in which Tiberius was held for a short time at Rhodes should have been felt so far away as Nîmes, in the South of France. Suetonius, in mentioning the fact, evidently wishes to imply that this contempt of Tiberius was co-extensive with the Empire; but the strangeness of the fact disappears when we remember that Lucius Cæsar was at this time in the South of France on his way to Spain, and supplies a further link in the chain of evidence which goes to prove the animus of the children of Julia against their stepfather; they were only too ready to listen to the suggestions of a Marcus Lollius and others who proposed to build their fortunes upon the insecure foundation of the favour of these spoiled grandchildren of the great Augustus.

Tiberius returned to Rome in A.D. 2, the year in which Lucius Cæsar died suddenly at Marseilles. He did not propose to return to public life; he gave up his palace in the heart of Rome in the Carinæ, and transferred his establishment to the villa and gardens which Mæcenas had laid out on the Esquiline hill outside the walls. He formally introduced his son Drusus to public life by presenting him in the Forum, but himself abstained from any but private business. Meanwhile Caius Cæsar had gone again to Armenia, where he was severely wounded by a native at a conference to which he had entrusted himself with insufficient precaution. The wound was not immediately fatal, but proved disabling both to mind and body. The young man had been captivated by Oriental luxury, and found flatterers to support him in a design of remaining permanently “in the most distant corner of the world.” He was, however, persuaded to return to Rome, and died on his way back in a Lycian town.

Fate had decided that Tiberius should not evade his responsibilities. He had firmly resisted every attempt made by Augustus to seduce him from his retirement after his return to Rome, but the death of Caius left him no

option. Both privately and in the Senate publicly Tiberius protested without avail; it was not a case of “*nolo episcopari*”; he genuinely preferred a private position, and was, in fact, more in sympathy with the old Republican ideals than with the new dynasty. But the public safety demanded the presence of a man of experience at the head of affairs, ready to take over the succession; and it is in language suitable to this demand that Paterculus describes the joy of the population of Rome when it was known that Tiberius had been adopted by Augustus, and again made a colleague in the tribunician power. “Then again there shone for parents confidence in the future of their children; husbands could feel secure in their marriages, masters in their property; all men could look for safety, rest, peace, calm.”

The style of Paterculus, that of a military man, who has done his best to repair deficiencies in his early education by taking lessons in the art of writing in later life, is so artificial as to impair his credit, but on this occasion his choice of language is strictly correct. The young Cæsars had not been a success; of all the possible heirs to Augustus who died young, they alone are not credited with superior virtues. We are not told of them that if they had lived they would have restored the Republic and checked the flood of adulation. They inherited the petulance of Julia, her impatience of restraint, and while the youth of Tiberius and Drusus had been spent in an atmosphere of insecurity at a time when the power of Augustus himself was not firmly established, the children of Julia had come into a world which had forgotten the civil wars, into a court without the traditions of an ancient dynasty, which saw its models in the seraglio of a Herod or Phraates, and laughed at the republican simplicity of the home of Augustus.

The intemperance of Julia was repeated in the next generation; her eldest daughter, married to a L. Æmilius Paulus, followed in her footsteps, and was likewise banished to an island in A.D. 2. The remaining daughter, Agrippina, was married to Germanicus, the son of Drusus and nephew to Tiberius; she was the mother of Caligula and a grandmother of Nero.

The years between the restitution of Tiberius and the death of Augustus were chiefly spent by the former in campaigns in Germany and Dalmatia, the history of which will be treated separately with greater convenience. It is worth while at this juncture, when Augustus and Tiberius were to settle down to work together for ten years, to investigate the relations between

them. Was there on either side jealousy or mistrust? Did Augustus foresee the tyranny of Tiberius, as those who believe in the tyranny would have us believe?

One of the many great literary losses which the world has suffered is the loss of the letters of Augustus. Not only have we lost these letters, but we have also lost the private notes of Tiberius kept by him for the benefit of his successor, and burned by Caligula; the only fragments that we possess of the correspondence of Augustus certainly do not favour the view that there was any mistrust or want of sympathy between the two men.

The fragments as they stand in Suetonius are as follows.

The first was written in reply to a letter of Tiberius, complaining of the violence of language used by one Æmilius Ælianus, a native of Cordova, against the Emperor, and probably belongs to the period of the Cantabrian campaign, when Tiberius was still young. "Do not give way, my dear Tiberius, in this matter to the feelings natural to your time of life; do not be too ready to be indignant that there should be any one to speak evil of me; it is enough if we secure this, that nobody shall be able to do us any harm."

Then we have two purely domestic letters: "I dined, dear Tiberius, with the same party; Vinicius and the elder Silius were added to the company. During dinner we played a family game both yesterday and to-day, for we threw dice, and whoever threw 'the dog,' or six, paid a shilling into the pool for every dice thrown, which was taken by the player who threw 'Venus.'"

"We spent the holidays pleasantly enough, my dear Tiberius, for we played all day and every day, and made the dice market pretty hot. Your brother carried on with plenty of shouting; on the whole, however, he did not lose much, but recovered his losses contrary to all expectation. I lost about £170 on my own account, but because I had been prodigally liberal in my play, as I usually am; for if I had exacted all the winnings that I passed over, or had kept in my own pocket all that I gave anybody, I should have won nearly £420. However, I like it best as it is, for my charity will exalt me to eternal glory."

Again a familiar scrap: "Not even a Jew, my dear Tiberius, preserves his sabbath fast so carefully as I did to-day, for it was not till after the first

hour of the night that I at last chewed a couple of mouthfuls in the bath, before I began to be perfumed.”

The following letter probably belongs to the period after the return of Tiberius, and was written on some occasion when he was starting on a second campaign. It is written with occasional quite unnecessary slips into Greek, which have been mangled in places by the transcribers, so as to be unintelligible: “Goodbye, most amiable Tiberius, and farewell to me and mine ... best of generals. Yes, most amiable, and as I hope for happiness, most brave man, and most illustrious general, farewell. The scheme of your summer operations! Well, I, my dear Tiberius, in the midst of many difficulties and considering the slackness of our military friends, do not think I could have managed matters with greater foresight than you have done. The men who were with you, in fact, all admit that the well known line could be applied to you: ‘One man saved the state for us by his wakefulness.’ Whenever anything happens which requires my closer thought, if ever I am very much put out, I swear to you I miss my dear Tiberius, and that verse of Homer’s occurs to me ‘when he follows....’ When I hear and read that you are getting thin under the continuance of your labours, may I be confounded if my body is not all one shudder, and I implore you to spare yourself, lest, if we hear that you are in bad health, your mother and I may expire, and the Roman people be in jeopardy of losing its imperial position. It does not matter a bit whether I myself am ill or well, if you are not well. I implore the gods to preserve you to us, and to give you your health now and always, if they do not utterly hate the Roman people.”

There is nothing insincere in the tone of this letter; it is as natural as a letter can be, incoherent in places, but always tender.

In fact, whatever misunderstandings arose between Tiberius and Augustus were due to the misconduct of Julia, or the silly plots and counterplots of Livia and the other ladies of the family, who by their domestic jealousies opened the way to the machinations of men of the type of Marcus Lollius. The friendship of the two men passed through the severest possible test, and it survived the test. Augustus may have thought Tiberius too scrupulous in the matter of Julia, and that the second place in the Empire was worth a little conjugal blindness, and even if he did not take that line, there were plenty of men and women ready to suggest it to him.

But the sequel proved that Tiberius had been right, and he contrived in the end to assert his independence without being involved in a bitter personal quarrel with Augustus. Nor must too much stress be laid upon such chance utterances as the often quoted “O my Roman people, in what slow jaws you will be chewed!” We do not know the context, and this may very well have been no more than a piece of good-humoured personal banter, suggested by the well-known slowness of speech which was characteristic of Tiberius.

Though Augustus was on good terms with Tiberius, the children of Julia were not; they were more Julian than the head of the Julian race; they noted everything that could be interpreted to his discredit; they recorded every hasty word, every ill-advised speech, and as the years went on their malignity increased, till in the person of Agrippina it amounted to a monomania. But we must pause to study Tiberius as a general.

IX

The Campaigns of Tiberius

WITH the battle of Actium the wars of Rome against nations equally civilized with herself came to an end; henceforth the rulers of the world were only called upon to round off the ring fence of their domains, and establish scientific frontiers. The Empire which is so often spoken of as the establishment of a military despotism was, in fact, absolutely the reverse; the power wielded by Marius, by Sulla, by Pompeius, by Cæsar, by Antonius, had this character, for it depended upon the military capacity of these generals; they were soldiers in the first place, and owed their predominance in the civil government to their own sharp swords and the fidelity of the men who had followed their standards. Till the Roman was sole umpire in the circle of the Mediterranean, war was in every respect a profitable investment, and a military career was the readiest path to political supremacy; not only did a Roman general return laden with spoil, rich beyond the dreams of avarice, but his conquests appealed to the imagination of his countrymen; everybody might be proud of generals and armies who had beaten the successors of Alexander; but when military operations were transferred to the frontiers, when the enemies to be subdued were poor and half civilized, when there were no longer gorgeous robes, graceful statues, piles of treasure to be exhibited in the triumphal procession of the victorious general, war lost its prestige; and the steady progress of the civilian administration is, in fact, the special feature of the reigns of the Cæsars. Augustus was no soldier; Tiberius never commanded an army after his succession; the expedition of Caligula to the shore of the English Channel was a madman's freak; Claudius had but little share in the conquest of Britain; Nero's morbid vanity preferred the triumphs of the stage to those of the camp. A state in which the military element is predominant does not put up with rulers such as these.

The Romans in the reign of Augustus were, so far as military matters are concerned, and indeed, in most other respects, very much in our own position at the present day. Just as we thoughtlessly and unjustly estimate the exploits of our soldiers in the Soudan, on the North-West frontier of India, on the West Coast of Africa, and even in South Africa, rather cheaply, and disparage their achievements in comparison with those of Marlborough and Wellington, so the contemporaries of Augustus looked back with regret to the heroes of the Punic Wars and the conquerors of Greece; they did not realize that the work which was to be done in their own time was far more difficult than the work which had been done. We too forget that to win the Battle of Waterloo was a trifle compared with the operations which led up to the victory of Omdurman, and the double march into the Transvaal. The exploits of Wellington in the Peninsula were splendid, impeded as they were by opposition from England; but in the conquest of South Africa England has grappled with far more serious difficulties, and her generals have shown themselves at least as resourceful as Wellington.

The generals of the Augustan age are hardly known to us. Few class Agrippa with the leading generals of the world, but the man who for the first time organized the navy of the Roman Empire, who maintained the organization of the army on such a footing that the enormous frontier was never without its defenders, who was himself never beaten in the field, and who trained a succession of capable officers to follow in his footsteps, was no mean general. Similarly Tiberius and his brother, along with many capable subordinates, waged successful campaigns under conditions of peculiar difficulty for many years; but we never think of them as great soldiers, because their exploits did not stir the imagination of their contemporaries.

Vast though the Roman Empire was, its vulnerable frontiers were of relatively small extent in the reign of Augustus; there was a weak place at the sources of the Tigris and Euphrates; the Upper Nile had its Soudanese difficulty then as now, but the whole of the North Coast of Africa was protected by the desert, and the Mauretanian tribes were not numerous enough really to imperil the strip of civilization along the Mediterranean. Spain was all Roman and nearly all civilized, so was Gaul; but between the mouths of the Rhine and the Bosphorus there was a vast unsettled region, reaching down in one place to a point within ten days' journey of Rome

itself, and along an unbroken line of many hundred miles, threatening the cities of Macedonia and Greece. The problem before Augustus and his generals was to form a frontier which should permanently secure Gaul, Italy, and the Balkan Peninsula from the adventurous races of central and East Central Europe.

The weakest point in the chain of defence was the Northern corner of the Adriatic, and the increasing prosperity of the great plains of the Po after they had become a Roman province naturally attracted the attention of the semi-civilized tribes who lived in the hills along the Dalmatian coast. Not only was there danger from the East, but the valley of the Adige formed a gateway through which Central Europe could pour its restless multitudes upon the Cis-Alpine Province. The geographical configuration of the regions south of the plains of the Eastern Danube has always impeded their progress, and to this very day a patch of backward nationalities remains there in close proximity to the most elaborately civilized states of Europe.

The other weak spot was the course of the Rhine, and especially the country below the Drakensberg; that noble river for many miles from the Lake of Constance formed a natural defence against the Germanic hordes, but on reaching the flat land below Cologne it spread into marshes and split into smaller channels, in which flotillas of boats could be prepared without attracting notice, as was necessarily the case where the river ran in a single stream. In fact it was practically found that in places the Rhine was no barrier, and that the tribes on its Eastern bank must be rolled back from the river, if Gaul was to enjoy her new prosperity in peace.

It was in the defence of these two weak spots that Tiberius was to fight his chief campaigns. In both regions security demanded that the operations should be conducted far beyond the frontier, in country difficult at the present day, and tenfold more difficult then, when extensive forests and marshes were added to the impediments offered by ravines and mountains.

It is not easy to estimate the degree of civilization reached by the Pannonians and Dalmatians or the Germanic tribes, when they made war upon the Roman legions. To the ancients all men living under tribal or national institutions were barbarians; they restricted the honour of civilization to those whose political constitution was based upon the city, and though the Græco-Roman city organization practically covered the two

peninsulas, which we call Greece and Italy, it did not elsewhere extend far inland; the outer fringe of cities was in close contact with populations living under a clan system, whose chiefs or kings adopted many of the luxuries and some of the institutions of their neighbours; behind these again were less advanced nations and less civilized rulers, gradually merging into real barbarism. The Gallic chieftains had already been in frequent communication with Rome for a century before Cæsar conquered Gaul, and the influence of the Roman traders upon the general standard of civilization was perceptible in his time even among the German tribes nearest to the Rhine. Arminius had had a Roman education, Maroboduus was brought up by Augustus, adopted the Roman military system and welcomed refugees who could train his troops; Latin was already spoken by the Dalmatian tribes when they were eventually conquered by Tiberius. Though the greater part of Central Europe was under forest the valleys were cultivated, as they were in Britain at the time of Cæsar's invasions, but the forest was always near enough to receive fugitives, and to give cover to an attacking party. There were no large aggregations of human beings in towns, but there were areas sufficiently thickly populated, and their population was sufficiently well organized to bring formidable armies into the field, whose operations were skilfully conducted. The men were no more savages than the Boers are savages; their civilization was a different civilization from the Græco-Roman, but it was a civilization. The occurrences of the Highland Line were anticipated in the foothills of the Alps; sometimes there was a mere cattle-lifting raid, when a predecessor of Rob Roy swooped down upon the farms round Mantua or Cremona, sometimes a combination of clans under a capable chieftain waged a formidable war, whose object was less plunder than the preservation of their independence; sometimes the pressure of real savagery from behind urged the more civilized races forward till the ultimate wave fell upon the Roman frontier.

Far in the East round the mouths of the Danube the predecessors of the Cossacks on their little horses kept the Roman outposts in a state of terror. Ovid tells us how they swooped down upon the labourers in the fields round the camp at Tomi, how their arrows fell into its very centre, how they galloped round its walls, picked up some unfortunate straggler, and were off with him before pursuit could be organized. Reading such a description as this we realize the true significance of the two Roman walls in England, and the wall from the Main to the Danube in Germany. They were not defences

against systematic war; they were too long to be defended against an organized invasion, but they effectually prevented raiding. Cattle cannot be lifted over a wall twelve feet high. The difference between our frontier wars and the Roman frontier wars lies in the proximity of the Roman frontiers to the heart of the Empire; but in spite of the perpetual imminence of the danger, the Romans did not pay a sufficient tribute of gratitude to the generals who secured their safety, and were inclined to underestimate their services.

Even such a clear-sighted historian as Merivale, in speaking of the military operations of Tiberius and Drusus in Germany, adopts the attitude of Tacitus, and disparages the cautious policy of Augustus, which discouraged schemes of boundless conquest in Central Europe. Tacitus wrote, when Trajan was engaged in rectifying the frontier of the Lower Danube, new dangers threatened the Empire and new measures seemed advisable. The men of his day might be pardoned for thinking that they were called upon to do what Augustus had unwisely left undone. Possibly they were right, but they omitted from their calculations a fact which was of the first importance, and of itself imposed prudence. The fighting strength of the Empire was not adequate for a policy of indefinite expansion at the end of the reign of Augustus, nor even in its middle period. It was difficult to steer between the two extremes. Augustus had seen the evils of a rampant military policy in the careers of his uncle and Antonius; he had known what it was to be the puppet of his own soldiers; he had fought in the Civil Wars, and he rightly inferred that there could be no settled government so long as the sword outbalanced the gown. Quite apart from any personal ambition or mean motive, he shrank from creating fresh military heroes, who might be tempted to overthrow the carefully balanced fabric of the State, and renew the Marian and Sullan episodes, or the hateful reign of the Triumvirate in which he had himself taken an unwilling part. On the other hand, a certain strength was necessary to police the Empire and guard its frontiers. In the encouragement which he gave to civilians in the public service, in the revival of commerce, and the abundance of employment secured by the internal peace of the Empire, Augustus cut off his supply of recruits; the army no longer competed favourably with other employments, and year by year the number of homeless and ruined men, to whom military service had opened an opportunity, was reduced. Men were too precious to be lightly

ventured on interminable expeditions in the Hercynian forest, where the elk, and possibly even the mammoth, still tested the ingenuity of the hunter.

At the age of seventeen Tiberius accompanied Augustus and Agrippa to Spain, where a campaign was conducted in the mountainous regions occupied by the Cantabrians. Augustus soon fell ill and returned home, but Tiberius remained to take his first lessons in war under the able and ingenious Agrippa. The Romans wisely flung their young men into active life at a very early age, and those who had it in them to learn, had every opportunity of learning. Four years later Tiberius, barely of age to manage his own affairs according to our ideas, was put in command of the expedition which penetrated Armenia, and awed the Parthians into a surrender of the captured standards. We are not told that there was any serious fighting on this occasion; the triumph was one of diplomacy rather than of arms, and the expedition itself took the form of an armed demonstration strong enough to determine the course of the negotiations rather than of a campaign. Doubtless Tiberius was attended by capable advisers in addition to those splendid centurions, the link between the commissioned and non-commissioned officers, who formed the backbone of the Roman armies; but in any case the experience was a valuable one. It was necessary that the army should be conducted through a difficult and mountainous country, far from its base; any negligence, any want of foresight, might have brought on a disaster which, even if only temporary, would have spoiled the effect contemplated, and weakened the Roman Plenipotentiaries. The expedition was a better training than even a long course of autumn manœuvres, and Tiberius returned from it with a full knowledge of military problems.

The extraordinary indifference of the historians Paterculus and Suetonius to chronology, and their absolutely casual use of such connectives as “hereupon,” “soon afterwards,” and the like, makes it difficult to be certain of the real sequence of events. It is, however, certain that Tiberius was Governor of Transalpine Gaul for a year at some period between B.C. 20 and B.C. 16, that he was harassed during the term of his Governorship by sporadic invasions of German tribes, and was able to measure their importance as affecting the peace of his Province, and form plans for permanently checking them. He came to the conclusion that the whole middle and eastern Alpine region was a centre of disturbance, and

that it could not be dealt with alone, seeing that the tribes who lived on the Dalmatian coast and at the sources of the Save were always ready to create a diversion when the Roman armies were occupied in the valleys to the south or north-west of the Alps. Cæsar had more than once been called back from the conquest of Gaul to deal with the Pirustæ in the same quarter.

In B.C. 16 the ill-omened Marcus Lollius sustained a serious defeat at the hands of the German tribes, while Gaul itself had been rendered unquiet by the exactions of Licinus, himself a Gaul employed by Augustus as Governor in the Southern Province. Augustus himself went to Gaul to set straight the civilian administration, Agrippa was sent to the Illyrian regions, Drusus to the passes leading from Lombardy to the Upper Rhine, while Tiberius took charge of an expedition directed upon the same region from Basle by the Lake of Constance. This was the first of the great combined movements originated by Tiberius; their conception, but even more their success, mark him out as a general of genius. Given a mobile enemy able to live on the country, and provided with an interminable area at his rear into which he can retreat, the only hope of dealing with him successfully is to cut off his retreat. This was the strategy of Tiberius.

The army of Agrippa in Illyria protected the rear of Drusus, who was able to drive the Alpine tribes back through the passes to the Northern face of the Alps, where they found the army of Tiberius ready for them. The victory was so complete that the very names of these tribes disappear from history; squeezed between two Roman armies they were doubtless exterminated. Horace wrote an official ode on the occasion, comparing Drusus to a young eagle or lion; and in a complimentary ode to Augustus on another occasion, compared the charge of Tiberius to the impetuous floods of the Aufidus, his native river. The northern slopes of the Western Alps were now secured to Rome; there was no longer any danger of Gallic intrigues stimulated by the restless Helvetii, but the work was by no means done. Augustus seems to have remained for some time in Gaul studying its social conditions, Agrippa remained in the Illyrian district, Drusus was sent to the lower Rhine, and Tiberius, as far as we can gather, remained at Rome.

Profiting by the experience gained in the recent war, Drusus determined to repeat the strategy of Tiberius, and again to hem in an elusive enemy between two Roman armies; he himself marched up the Lippe, making a point on the Weser, somewhere near Paderborn, his objective, and at the

same time he sent a flotilla down the Rhine, with instructions to ascend the mouth of the Weser, and thus cut off the flight of the Germans. The first attempt failed, the fleet being dispersed by storms; it was reserved for Tiberius himself to succeed at a later date in this combined movement. In the following year Drusus advanced to the Weser, and on his return established a permanent outpost at Aliso, fifty miles up the Lippe; this was the period of the death of Agrippa, whose command in Pannonia was taken over by Tiberius. We know but little of the operations of Tiberius in Pannonia at this time, except that they were successful, and that the ring of Roman provinces was now completed along the East coast of the Adriatic, uniting Greece and Macedonia with Italy.

In B.C. 10 Augustus returned to Gaul; Drusus consecrated a temple in his honour at Lyons, and the worship of the Roman Empire personified in Augustus was officially substituted for the Druidical religion, in whose priesthood Augustus saw the irreconcilable enemy of Rome. After this ceremony Drusus again crossed the Rhine and penetrated as far as the Elbe; on his return he met with the accident which caused his death, and elicited that touching illustration of affection on the part of Tiberius, to which reference has already been made.

Tiberius took up his brother's work on the Rhine and remained there for two years; he has disappointed the historians by doing nothing sensational, but when at the end of the two years Augustus called him back to Rome to take the place of Imperial Colleague, he left the Roman frontier extended, and the German terror pushed back from the immediate vicinity of the river. He had created a Roman party among the German chiefs, as Cæsar had created a Roman party among the Gallic chiefs; partly as hostages, partly as friends, the young German nobles were tempted to Rome to learn her civilization and form estimates of her weakness; the Eastern bank of the river was sufficiently Romanized to tempt Varus to treat it fifteen years later as a Roman province. Tiberius did more than this: he began that policy which was eventually to substitute for the magnificent conception of the all-embracing Roman Empire the map of Europe; he transferred 40,000 Germans to the left bank of the Rhine; they accepted the lands assigned to them, coupled with the obligation to service in the armies of their conquerors. It was a perilous policy, but no one could have foreseen its results in the distant future, and even if its tendencies had been suspected

at the time, the pressing needs of the Empire would have silenced the voice of a too clear-sighted critic. The Empire was short of soldiers; men evaded military service by all possible means. Even the dreaded slavery of the *ergastula* seemed to them less terrible than the army; pay could not be found to make the soldier's career sufficiently attractive, now that the chances of loot and liberal donatives were of the smallest. The finances of the Empire were straitened; Augustus had had difficulty in adding a death duty of five per cent. to his resources. The suggestion of Tiberius must have seemed a stroke of genius: to protect the frontiers by civilizing the enemies of the Empire, to find a cheap supply of soldiers by imposing military service on the hardy Germans, gradually to relieve the manufacturer and the merchant of the burden of finding men and taxes; no words could praise too highly the man who had suggested a means by which these desirable objects could be secured. We ourselves are treading in the same path; we congratulate ourselves on the wisdom which made English soldiers of Highland clansmen and Irish rapparees, which has arrayed against Russia the tribes of the North-West frontier, which fights the barbarians of Central Africa with the trained barbarians of its coasts; but we too shall have to pay the price which the Roman paid, if we neglect the military training of the centre of the Empire, and allow its population to expand unexercised in arms, incapable of fighting. If ever the day comes when the Sikhs and Goorkhas or even our own children beyond the seas learn by experience that preponderant force is in their own hands, and that the breed of fighting men is not ready for action in Great Britain, the Empire of England will be broken up, as the Empire of Rome was broken up; not by any sudden cataclysm, but by the gradual intrusion of the less civilized and less trained components of the Empire upon the central administration.

The end of the government of Tiberius upon the Rhine was also the beginning of his retirement; his resumption of public work was almost immediately followed by a fresh outbreak in the Pannonian region, and then came a terrible disaster to the Roman arms in the district of the Rhine. Of the campaigns which followed we fortunately have a fairly clear account given us by an eyewitness, Paterculus.

Unfortunately the only work from the pen of Paterculus that has come down to our times, perhaps the only work that he completed, is a short epitome of Roman history from the beginning to A.D. 30, which seems to

have been written as an introduction to a work of considerable detail dealing with the campaigns in which the author and the relatives of his friend Marcus Vinicius, to whom the work is dedicated, took part. Paterculus belonged to the class of professional soldiers and administrators whom the Empire called into being, or to whom at least it gave a position which they had not hitherto enjoyed. In his eyes the Empire was good, and its rulers were good; and while he is profuse in his admiration of the heroes of the old Republic, and can pay as high a tribute to Cicero as to any supporter of the Empire, he is no less commendatory of the men who were brought to the front by the new order of things. He does not single out Tiberius as alone worthy of praise; such men as Marcus Lepidus, the son of the triumvir, and others who were in a position to excite the jealousy of a suspicious tyrant, enjoy a full share of his somewhat exuberant laudation. We may admit that Paterculus was uncritical without accusing him of deliberate dishonesty; he was a successful man; he was in the swim; he had no reason for nicely adjusting praise and censure to meet the merits of the men with whom he worked; he was not a frequenter of the Legitimist drawing rooms, but an active capable official, bluff, hearty, with an unfortunate propensity to consider himself a stylist. His grandfather was, as we have seen, an intimate friend and fellow soldier of the father of Tiberius; his father was also a soldier; he himself followed the family profession; he served under Caius Cæsar in Armenia, under Agrippa in Pannonia, under Tiberius both in Germany and Pannonia; he was honoured with civil magistracies at Rome, and eventually became a Senator; his brother was similarly successful. His value to us lies in the fact that he was an eyewitness of the events which he describes, and we may be sure that the few details which he thought worthy of mention in his rapid summary are actual facts. M. Vinicius was Consul in A.D. 30, and the honour enjoyed by his friend prompted Paterculus to write and dedicate this little work. In the following year the events took place which brought about the fall of Sejanus, whom Paterculus praises highly; possibly he was one of those upon whom the wrath of the Senate fell; in any case we hear nothing more of him, and his proposed work was never written, or never published; he died, or at any rate ceased to speak, before the reign of terror which accompanied the fall of Sejanus had cast its shadow upon Tiberius, before the reigns of Caligula and Nero had made it possible to believe every evil of

a Roman Emperor, before the novelty of the Empire had worn off; there was no reason for adopting any but an optimistic tone.

Tiberius left Rome for Germany in A.D. 4; war had been going on there for three years, the Roman general being then a Marcus Vinicius, grandfather of the Consul to whom Paterculus dedicated his book. Paterculus accompanied Tiberius, and was generally with him during the nine years of his campaigns; he seems to have been a member of the headquarters staff, succeeding his father as commander of the cavalry. He says: "For nine years in succession, either as cavalry commander or staff officer, I was a spectator of his most heavenly operations, and assisted him in the measure permitted by my own mediocrity." The epithet strikes us as exuberant, but it is frequently used by Paterculus, and not reserved for Tiberius; he employs it in speaking of the eloquence of Cicero. The historian tells us of the incidents of the journey through the most populous regions of Italy and the provinces of Gaul; he describes the joy with which the inhabitants welcomed their former governor, while the soldiers pressed to seize his hand, and shouted, "Do we really see you, General? Have we got you safe again? I served with you in Armenia, I in Rhætia, I was rewarded by you in Vindelicia, I in Pannonia, I in Germany."

The first year's campaign extended to the Weser, and was continued to the month of December; Tiberius then returned to Rome, leaving his soldiers in winter quarters near the sources of the Lippe. He was back again early in the following spring, and in this year successfully completed the operation in which Drusus had failed, on a more extended scale; he made the Elbe, not the Weser, his objective, and sent round a fleet to meet his troops with fresh supplies. Paterculus attributes the success of this enterprise not only to the good fortune and diligence of the Commander-in-Chief, but to his careful study of the seasons. On this occasion the Romans first came across the Lombards, "a race whose courage surpassed even German ferocity"; they seem to have been settled on the East of the Elbe in the region of Magdeburg. Paterculus has a doubtless true story of an elderly German who asked to be allowed to see Tiberius, and on receiving permission paddled across the Elbe; after having stared at him for some time he touched his hand, and declaring that he had now beheld the gods, bewailed the folly of his young men who insisted on fighting with their superiors; he then returned to his boat, and departed across the Elbe, still

keeping his eyes on the group of Roman officers. There is nothing improbable in this story; savages are particularly impressed by size, and the stately form of Tiberius, glorious in such a uniform as we see on the Augustus of the Prima Porta, may well have appeared superhuman to the uncultured Lombard.

The practical results of the campaign were to convince Tiberius that an eastward extension of the Roman frontier was alike impracticable and undesirable; the problem was to find a defensible line of outposts near the Rhine and overawe the tribes who lived beyond it; but before Tiberius had time to rectify the frontier he was called off to deal with a far more serious war nearer Italy.

Maroboduus, the King of the Marcomanni, settled his followers in the neighbourhood of Vienna, having formed the idea of creating a great military power in Germany; it was the first conception of a German Empire, for many tribes were to be united in the confederacy by which the aggressions of Rome were to be stopped, and the tide of invasion possibly turned in the opposite direction. This man, a Suevian by birth, had been a hostage, and was brought up under the care of Augustus at Rome; in this case, as in several others, the policy of educating a native prince, so that he might bring his people under Roman civilization, proved to be of doubtful advantage. Maroboduus applied the lessons which he learned at Rome to resisting the extension of the Empire. He got together a force of 70,000 foot and 4,000 cavalry, drilled them carefully in the Roman fashion, and fixed upon Bohemia as the suitable centre of his Empire. He did not attack the Romans, that was not his first object; he wished to civilize Germany and create a counterpoise to Rome. Tiberius saw that this could not be permitted; the proposed German Empire was too near the turbulent Pannonian region for safety; it was necessary to nip the nascent civilization of Central Europe in the bud. In order finally to break the power of Maroboduus, Tiberius decided to carry out another of those vast combined operations in which he had already twice succeeded. He sent Sentius Saturninus with one army to march from the Rhine through the Hercynian forest to the Danube, while he himself brought up another army from Cis-Alpine Gaul through the Julian Alps. The operation was so admirably planned and its details so well considered, that the two armies found themselves each within five days of their meeting point, when a fresh

outbreak of Pannonia and Dalmatia threatened Tiberius in the rear, and compelled him to take his army back to another scene of war. Though this great operation failed in one way, it seems to have succeeded in another; it effectually cowed Maroboduus, who did not intervene, as might have been anticipated, in the Pannonian troubles, while it shook the confidence of the Germans in their self-appointed Emperor; we find him at a later time a fugitive living under the protection of Rome.

The precision with which Tiberius was able to time the arrival of the army of Saturninus indicates a greater knowledge of the geography of the districts north of the Alps, and a less savage condition of those regions, than the statements of Cæsar would lead us to imagine possible. We can hardly take literally the statement of Paterculus that Sentius was told to cut through the Hercynian forest; such work may have been necessary on the watershed of the Neckar and the Danube, or, if, as is most probable, the advance was made by a more northerly route, between the Main and the Danube, but when once in the basin of the Danube, the Roman soldiers must have found their way fairly open, and they must further have found sufficient supplies of food. The central uplands of Germany were then as now covered with forests and more thickly covered, but there must have been known tracks along which an army could be led. In the southern basin of the Upper Danube, after the conquest of the Vindelici, a Roman military colony had been founded at Augsburg, indicating that measures were rapidly taken to sweep the rich country north of the Alps into the net of the Empire. Everywhere the traders, whose chief business was slave hunting, pushed in advance of the Roman armies, and Tiberius was thus able to get sufficiently accurate information to launch an army upon the country north of Vienna from the north-west, timed to meet his own advance from the south-east. The conception was a daring one, and the accuracy with which it was carried out would be admirable even today. To render such elaborate strategy successful a commander must not only be able to plan accurately, but he must be able to depend on the obedience of his subordinates and possess their absolute confidence.

The rising in Pannonia was of a very serious nature. During the interval of seventeen years since Tiberius had last waged war in that direction the country had become so far Romanized as to have adopted to a large extent the language of its conquerors; garrisons of veterans had been established,

and the war began with a general slaughter of these, of resident Roman citizens and of travelling merchants. The province of Macedonia was invaded and devastated. At Rome panic prevailed; Augustus publicly declared that the enemy was within ten days' march of the city; levies were held, veterans were called back to the colours, and men and women alike were compelled to enfranchise a certain proportion of their slaves according to the amount of their assessed property, that they might be enrolled in the armies. Paterculus was put in command of the reinforcements that were sent to Tiberius from Rome.

The war lasted for three years, and was eventually ended partly by diplomacy, partly by the patient strategy of Tiberius. Great pitched battles were impossible in that difficult country, and the strategy of the enemy did not permit them. Tiberius kept dividing the forces of his opponents, cutting off the supplies of the isolated detachments, and conquered them in detail. Paterculus particularly admires his prudence in breaking up his own forces after finding that the numbers, on which others were disposed to rely, were too unwieldy to be effective; he spread his winter quarters over the country, and himself spent the cold season at Siscia, high up in the hills near the sources of the Save.

Paterculus does not give us a consecutive account of the campaigns, but he mentions a few personal details with reference to Tiberius, both on this campaign and on the subsequent one in Germany after the Varian disaster, which are worth quoting.

“During the whole of the war in Germany and Pannonia, no one of us or of those above or below our rank was ever ill without finding that his health and safety were attended to by the care of Cæsar, in such a way that his mind seemed to be so free from the weight of all its other burdens as to be concentrated on this task alone. For those who desired it there was a composite vehicle ready, his litter assigned to the general benefit, whose advantages I experienced along with others; physicians, food, all the apparatus of a bath, carried for this purpose alone, were ready for every invalid; home and servants alone were wanting, but nothing was missing which they could supply or need. I will add a fact which everybody who was present at that time will recognize at once along with other things which I have related; he alone always rode, always dined sitting along with his guests during the greater part of the summer campaigns; he was

indulgent to breaches of discipline, provided there was no bad example; he frequently advised, sometimes reproved, very rarely punished, and took a middle course, being blind to most faults, checking others.”

This is the first mention of a field hospital, reserved, apparently, for the use of the staff and their attendants. Other Roman generals took an elaborate bath establishment with them on their campaigns for their own use: Tiberius utilized it only for the sickness of others. Other generals travelled in carts or on a litter: Tiberius always rode. He took his meals like an active man in a sitting posture, not lying at full length after the customary Roman fashion.

Suetonius declares that in the German wars Tiberius proved to be a martinet, and mentions the case of an officer who was severely punished for sending his freedmen to hunt on the opposite side of the Rhine contrary to orders. Tiberius would indeed have been a bad general if he had neglected to punish a gross violation of discipline, which by revealing the presence of his force might spoil a carefully devised operation. Similarly Suetonius sees excessive severity in the strictness with which Tiberius cut down the transport of officers. Those better versed in the difficulties of warfare will be inclined to take a different view. There were fashionable and luxurious officers then as now, whom it was essential to keep in order. Doubtless some one of these cherished his grievance and left it recorded in his memoirs to be added to the evidence compiled by the historians of a later age.

A mysterious transaction with the Pannonian chief Bato, who was spared after the surrender because he had allowed Tiberius and his troops to slip through an encircling force on one occasion, suggests that diplomacy was employed, as well as arms, in bringing about the surrender of the Pannonians, though it is possible that Tiberius accompanied an act of kindness with an ironical reference to an occasion on which he had outwitted Bato.

The Pannonian war was barely concluded before Tiberius was called off to the Rhine; he left his nephew Germanicus to finish his work east of the Adriatic, and hurried to the scene of his former victories in Germany. Quintilius Varus, the Governor of the Southern German Marches, had been enticed into a trap by the German patriot Arminius, and slain along with

two legions, the greater part of a third, and their complement of cavalry and light-armed troops. Arminius, like Maroboduus, had been educated at Rome; he was even a Roman citizen and a member of the Equestrian Order; he too had measured the weakness of Rome, and was only waiting for a favourable opportunity to strike. The rising was organized on a great scale; the Gauls who lived in the country round Vienne were tampered with, the object being to check the advance of a Roman army across the Alps. Fortunately they were only half-hearted in the cause, and were easily suppressed by Tiberius on his way northwards. More serious were the movements on the lower Rhine. The great camp which had been fortified originally by Drusus at Aliso on the Lippe was invested, and a general rising of the tribes who had been settled on the west bank of the Rhine was only prevented by the decision of Lucius Asprenas, who without waiting for the arrival of Tiberius marched two legions down the river. The garrison of Aliso succeeded in cutting its way through the enemy.

In assigning to Varus the command of the Rhine Augustus had been premature. Varus was a civilian rather than a soldier, and his mission was to consolidate the Rhine frontier by the arts of peace, and by bringing the comparatively uncivilized Germans to recognize the blessings of Roman law. It is more than probable that even as a civil administrator he was not particularly upright; he had previously been Governor of Syria, and, according to Paterculus, enjoyed the reputation of having found that province rich and left it poor. He had repressed the military ardour of his subordinates, adopting a policy of conciliation, and deliberately closing his eyes to the necessity of armed interference when events showed that it was advisable. His ruling passion was love of money; in other respects he was inactive both in mind and body, a man of preconceived ideas, such a man as has on other occasions and in other places invited disaster. Arminius fooled him to the top of his bent, the Germans invited him to settle their quarrels according to the honoured forms of Roman law; he was gradually enticed with his force further and further away from the frontier; the summer operations took the form of a judge's circuit. Meanwhile the German forces gradually closed in behind his rear. Varus was deaf to the remonstrances of his officers and to the information given him by a German rival of Arminius. At last when the pedantic Governor had been successfully lured into a hopeless position Arminius struck. The Roman soldiers, having no confidence in their leader, were completely demoralized; they were

slaughtered literally like sheep, sacrificed to the gods of the Germans. The commander of the Roman cavalry basely deserted the infantry and tried to secure his own safety, but was cut down with all his force before he could reach the Rhine. Varus himself committed suicide; his example is said to have been followed by some Roman youths, who, having been taken prisoners, dashed out their brains with their own fetters.

The situation, however, was not so grave as it might have been. Arminius sent the head of Varus to Maroboduus, but that chieftain, either from want of confidence or from jealousy of a rival, took the Roman side, and transmitted the relic with a friendly message to Augustus.

It is not incumbent upon us to believe that after this disaster the aged Emperor acquired a habit of dashing his head against the wall, and crying, "Varus, Varus, give me back my legions!" but that the calamity was a sufficient one to disturb his equanimity seriously is self-evident. Soldiers had been found only with great difficulty for the Pannonian war, as we have seen; the recall of veterans to the standards was always considered a desperate measure, and still more desperate was the employment of slaves as soldiers; the absolute destruction of two whole legions and six cohorts along with their cavalry meant a loss of 17,300 men, as large a force as the permanent garrison of Italy. It imposed upon Tiberius the necessity of husbanding his men, even if he had not been naturally disposed to circumspection, for nearly a tenth part of the whole Roman army had been wiped out.

Tiberius quickly avenged the army of Varus; he swept through the country, leaving devastation behind him, but he failed to capture the ringleaders of the revolt. During this campaign, in which he was soon joined by Germanicus, he abandoned his ordinary policy of acting entirely on his own initiative and without consultation with his staff; he carefully explained to them the reason of all his movements. In fact, he now set to work to educate his successors, for he saw that other duties would shortly prevent his personal activity in the field.

Both Augustus and Tiberius have been reproached with an unadventurous policy on the German frontier. Augustus discouraged the distant expeditions of Drusus into the heart of Germany, and Tiberius was to be accused of jealousy in the near future in similarly restraining the ardour

of Germanicus, but those who lightly make these charges overlook the difficulties of the problem. The conquest of the basin of the Mediterranean had been a conquest of civilized peoples, who knew when they were beaten, and who once having accepted the arbitrament of the Roman arms found acquiescence in the Roman domination the best security for civilization. But the conquest of Central Europe was another matter; in one sense there was nothing to be gained by it. When Tiberius met his fleet upon the Elbe, he had traversed many miles of that desolate flat of Northern Europe which has only been gradually reclaimed from the wilderness and rendered fertile by the patient labour of many centuries. There was no trade. There were, so far as he knew, no minerals, there was nothing to invite settlers in the endless marshes, and to an Italian the climate was detestable. If, on the other hand, he turned his attention to the hill country, there was the same absence of attractions; even if the valleys were cultivated they were too far off, and the climate was too severe to enable them to compete with the more accessible territory of Gaul; the mineral treasures of the hills were as yet undiscovered, and even if they had been discovered, they were practically inaccessible. It seemed wiser, and more immediately practicable, to limit the expansion of the Empire to the lines suggested by the Danube and the Rhine, and to spread such a terror of the Roman name beyond those limits as would secure the settlers on the outlying lands from attack. This policy was partly realized; it was not fully realized, and the German frontier remained the running sore of the Roman Empire till the Empire itself became German, and even then fresh hordes were to push on from Central Asia. Nor was the Empire absolutely at peace within itself; there were still sporadic outbreaks to be dealt with even in Gaul and Spain, still African tribes threatening Mauretania and Egypt, still the ever-watchful Parthian in the East. Augustus rightly considered that the expansion of the Empire was ended, and that the time for purposeless conquests had gone by.

With the German campaign Tiberius ended his career as a general. Twenty years of his life had been spent in the field, and though his name is associated with no dazzling victories, it is equally free from any suspicion of failure. Had he suffered even minor reverses, his critics would not have failed to make the most of them; but there is not a suggestion of anything of the kind, and the silence of less friendly historians supports the opinion which Paterculus held of his leader's merits. Of the two brothers Drusus was the more dashing soldier, as he was the more generally attractive man,

but Tiberius was the greater general; and his services to the Empire were none the less solid because in comparison with the brilliant feats of Cæsar they were inconspicuous. Perhaps we should have formed a higher opinion of the value of Tiberius in the field had he too been able to leave his commentaries; but, alas! his exploits are concealed in an almost impenetrable night along with those of the brave men who lived before Agamemnon. His three great combined movements, that by which the Vindelici were conquered behind the Alps, the ferocious Longobardi frightened on the Elbe, and Maroboduus cowed in Bohemia, anticipated similar great operations of Napoleon.

X

The Last Years of Augustus

TWENTY-NINE years after the battle of Actium the Senate, by the voice of one of the noblest of their order, Marcus Valerius Messala, hailed Augustus as the “Father of his Country.” The now aged Emperor burst into tears, and declaring that he had reached the summit of his ambition, prayed to the gods that they would allow him, so long as life lasted, to continue to be worthy of the confidence thus expressed by his countrymen. The title had perhaps been somewhat soiled by use; Cicero had arrogated it to himself after that exhibition of consummate statesmanship which quelled the conspiracy of Catiline, but it was none the less a tribute to the singleness of purpose with which Augustus had devoted himself to the welfare of the vast Empire committed to his care. In the press of daily business and vexatious details Augustus may often have failed to perceive how general was the recognition of his services to the State, and we can pardon the display of uncontrolled emotion which interrupted his customary calm on receiving this solemn assurance that his labours had not been in vain.

As a matter of fact at this time, and for the rest of his life, Augustus had no enemies save those of his own household. There was no political opposition to the Emperor; small conspiracies such as those of Murena and Cæpio there had been, the work of hot-headed youths who wished to emulate the example of Brutus, and there were, as we have seen, intrigues in the Emperor’s own family. As Suetonius mentions among the plots directed against Augustus one in which Lucius Æmilius Paullus, the husband of the younger Julia was concerned, we are at liberty to suspect that in her case, as in her mother’s, it was thought better to punish a graver offence as a case of domestic misconduct. It was on this occasion that the poet Ovid learned that there is a limit to the liberties which a man of fashion

can allow himself, and was forced to withdraw from his butterfly existence at Rome to the mosquito-haunted swamps at the mouth of the Danube, where he wrote poems more worthy of his dignity than any he had previously composed.

The power of the Emperor was based largely on his patronage. The Empire had been divided between the Emperor and the Senate; those provinces in which it was necessary to maintain a standing and mobilized army, in which swift action, continuous authority, and unity of purpose were imperatively necessary, were governed by Augustus as a private estate; their highest official was a "Procurator," "a manager"; they comprised two districts in the west and north of Spain, the whole of Gaul, the Germanic frontier, the Balkan, Cilicia, Coëlesyria Phenicia, Cyprus and Egypt; the Senate retained the old settled provinces, Eastern Spain, Sardinia, Sicily, Northern Africa, the district round Cyrene, the west of Asia Minor, and Achaia. Thus the Emperor's direct patronage was large, but even in the Senatorial Provinces he could intervene with superior powers, and the liberty which the Senate enjoyed of appointing their Governors, was nominal rather than real, for the Senate itself was increasingly composed of men who had owed their advancement to the Emperor, or expected further promotion from his hands.

Senatorial Governorships tended to become merely honorary, and the wealthy or noble men, who held courts for limited periods in Sicily or Asia had little more actual responsibility or power than an English Viceroy in Ireland. Further, those parts of the Empire in which active work was to be done, or in which the administration really tested capacity, and was rewarded with further promotions, were precisely those parts in which the Emperor was exclusive patron.

We naturally wonder at the business capacity of a man who carried on the Government of dominions so extensive and so various; and the work would indeed have been beyond the grasp of any single individual had not Augustus continued the old Roman policy of letting well alone. The Roman Empire at this period was largely decentralized; cities, tribes, nationalities governed themselves according to their previous laws and customs; no ancient polity was destroyed or remodelled unless it proved to be out of sympathy with the general order; the details of local administration were attended to on the spot in accordance with local usage, by the local officials

and magistrates. If the ancient constitution of a town broke down, the Roman was ready with his sacred model, the double chief magistrate and the Senate, a model which was faithfully copied in all the Roman military colonies, but so long as men could govern themselves, the Romans were content to allow them to do so; they were not at this time afflicted with a pedantic passion for uniformity. Thus the Emperor was relieved of the mass of detail under which he would otherwise have sunk. In his choice of men Augustus preferred officials who either as non-Romans, such as Licinus and Cornelius Gallus, or by reason of comparatively mean extraction felt their dependence upon his favour. When he found a representative of the ancient nobility who could be trusted, such as Marcus Lepidus, the son of the former triumvir, he placed power in his hands; such men served to balance the pretensions of the new officials, but he was careful not to revive the organization of the oligarchy. One danger, however, escaped the prevision of the acute Augustus: he did not see until it was too late the effect of his pretensions to a divine ancestry upon his own family. As years went on, and the representatives of the Julian stock were to be found chiefly in the men and women of the third generation, as the great poem of Virgil was more and more widely known, the faith in the sanctity of the posterity of Anchises assumed inconvenient dimensions, and the tendency to press this faith was largely helped by the presence in the Imperial Household of representatives of ancient dynasties. East and West alike sent young men to Rome, in whom the traditions of exalted lineage were lively and unbroken, who did not need the evidence of portents and the testimony of poets to assure them that they were set apart from the rest of mankind. These youths were the playmates of the grandchildren and great-grandchildren of Augustus; their influence stimulated the dynastic ambition of such men as Caius Cæsar, and his nephew and namesake the future Emperor Caligula; the young princes, as they considered themselves, were impatient of the constitutional forms of Rome, and the restraints upon the monarchy; they despised families whose progenitors had not come over with Æneas. Fate had not been kind to the Julian dynasty, and when Tiberius returned to Rome from the Rhine in A.D. 12, his adoption and investiture with the Proconsular Power seemed to extinguish the hopes of its representatives. The direct descendants of Augustus now living were his daughter Julia, disgraced and in exile, her daughter Julia similarly disgraced and in exile, Agrippa Postumus, the intractable, a young man about twenty-four years of

age, who either now, or a little later, enjoyed, like his mother and sister, the amenities of life on an island; the only descendant in the third generation who had not been thus disgraced and banished was Agrippina, the younger daughter of Julia.

Nobody took the Julian legend more seriously than this lady, and her children enjoyed a double stream of the sacred blood, for she had married Germanicus, the son of Drusus and Antonia the beautiful, who was own niece to Augustus. Germanicus was now twenty-seven years of age; he had been through the Pannonian campaign, and was left by Tiberius in command of the army on the Lower Rhine. Tiberius seems to have had more confidence in him than in his own son Drusus, and Germanicus had so far shown himself worthy of that confidence; he was blessed with a numerous family, of whom Agrippina was inordinately proud; she was the mother of the great-grandchildren of Augustus, a Nero, a Drusus, a Caius, another Agrippina, a Drusilla, and a Julia Livilla, who eventually married the friend of Paterculus, Marcus Vinicius. Julia her sister had only borne two daughters before retiring to her island.

Agrippina was not a mere lady of fashion; she accompanied her husband on his campaigns, and exhibited all the traditional virtues of a Roman matron before the enraptured eyes of the legionaries; she dressed up her youngest boy, Caius, in the full uniform of a Roman soldier, and got him the nickname of Caligula—Little Gaiters—in the camp.

The Claudian stock was represented by Drusus, the son of Tiberius, a man slightly younger than Germanicus, whose sister he married, thus further interweaving the two lines; also by Germanicus himself and his brother Claudius, the unfortunate sputterer, of whom his own mother was ashamed, and whose family were united in a desire to keep him out of sight.

In order further to knit up the dynastic web, Augustus adopted Tiberius, who in his turn adopted both his own nephew Germanicus and his stepson Agrippa Postumus. It is not improbable that the dynastic pretensions of this young man, stimulated by the example of his sister Agrippina, were the real cause of his enforced retreat, that he did not acquiesce willingly in his grandfather's arrangements, and that the watchful Livia knew how to turn his insubordination to advantage. Augustus showed disturbing signs of a weakness in his direction in spite of his intractability.

Tiberius at the time of his adoption was fifty-four years of age; he was a father and a grandfather; he was the active ruler of the Empire, but with what appears to us a strange scrupulosity he at once abandoned his own house, and went to live in his adoptive father's. He treated all his property, according to the strict letter of the Roman law, as his father's property; he neither manumitted slaves nor performed any act which could not properly be performed by a man who was still "in his father's hand."

During the last two years of the life of Augustus Tiberius seldom left him; the old man was in feeble health, but he continued to travel in Italy, and had just presided at some games held in his honour at Naples, when his customary weakness assumed an alarming aspect. Tiberius had been summoned to Illyricum, whence news had arrived of serious discontent among the troops. He returned in haste to receive the last words of the dying Emperor, and to give him a final evidence of that affection which, in spite of the severe strains to which it had been subjected, had never failed. Augustus died as he had lived, with dignity and calm; he even retained to the last a dash of humour, and bade his friends applaud him, as he left the stage of life, if they were satisfied with his performance. His last words were a request to Livia never to forget their married life.

The performance had been a good one, and we should be churlish to withhold our applause.

XI

The Accession of Tiberius

ALL the accounts of the accession of Tiberius agree in one statement; the evidence is unanimous that he was exceedingly unwilling to occupy the position which Augustus had occupied, and to continue the Empire in the form which it had assumed under his predecessor.

Tiberius was now fifty-six years of age; for ten years he had to all intents and purposes shared the first place in the Empire with Augustus; he had enjoyed his full confidence, none of the things which attract ambitious men had been refused to him. His character was without stain or reproach; the amours which are attributed to Julius Cæsar, and even to the saintly Augustus, are not attributed to him. The idle story that he went to Rhodes to indulge in odious vices was the fabrication of a later age, and was, as we have seen, absurd in itself. He had been a faithful and loving husband to his first wife, Vipsania; the licence of Julia had disgusted him; after his divorce from her he never thought of a fresh marriage, though still a young man. On his campaigns he had shown himself to be simple, and indeed severe, in his personal habits. A story was indeed prevalent that he was given to strong drink, but there is no evidence in its favour except a couple of wildly improbable stories preserved by Suetonius, and a punning nickname given him by the soldiers, who called him Biberius Caldius Mero. The nicknames given by private soldiers and schoolboys to officers and schoolmasters are not evidence, though they sometimes promote, as in this case, the circulation of fictitious stories. The exceptional health which Tiberius is said to have enjoyed to an advanced age does not favour the idea that he was intemperate, and indeed we are told that from the age of thirty onwards he prescribed a regimen for himself without consulting his medical advisers, which was remarkably successful. He was free from the tyranny of

the lusts of the flesh, he was equally free from avarice, a point repeatedly insisted on by hostile historians; power in itself and by itself had no attraction for him; he had already on one occasion brusquely rejected it. Thus he was able to consider the question of the succession dispassionately. His personal inclination was rather in the direction of retirement and a private life, and if his judgment was biassed, the disturbing element was a contempt for rather than a love of power.

At the death of Augustus, Tiberius was actually in possession of two forms of authority legally conveyed to him by the Senate in constitutional form, which enabled him to carry on the government: he had the tribunician power, which made him superior to all the civil magistrates; he had the proconsular power, which put him at the head of the executive in all the provinces, and especially at the head of the army. In the first character he was the protector of Roman citizens throughout the world; in the second he was master of the provincials. Thus there was no occasion for any plotting on the part of Livia, no premature assumption of responsibility on the part of Tiberius in setting the guard and giving the password when Augustus had breathed his last; these duties necessarily devolved upon him, and he was in fact at the time on active service.

He was not Princeps, nor Pontifex Maximus, nor had he the censorial power. Of these three the last two were executive offices belonging to the old Republic; the former was an honorary dignity recognised by the forms of the Republic, which had acquired a new meaning during the long tenure of Augustus. It was this dignity, along with all which it now involved, that Tiberius only reluctantly and after resisting considerable pressure eventually accepted. It had become associated with the monarchical principle, and the permanent continuance of the monarchy Tiberius wished to avoid.

The position which he adopted was a reasonable one. Augustus was an exceptional man; he had been called to power under exceptional circumstances; the reign of one man had been inevitable at the end of the civil wars; the right man had been found, a social regeneration had followed; the monarchy, an exceptional expedient, had done its work; there was now the material for creating a stable government on the old lines. The vices of the old Senatorial administration had been purged away; the Senate itself had assumed a different character—it was no longer a narrow

oligarchy, it was a council of the Empire; no single man could hope to repeat the success of Augustus. In a multitude of counsellors there is wisdom; the restored Senate working through the new officials would be more likely to carry on the continuity of government than an hereditary or quasi-hereditary monarchy, in which so much depended on the character of an individual, and which was perpetually disturbed by palace plots and conspiracies for the succession.

The life of Tiberius himself had been embittered, his domestic happiness destroyed, by the intrigues of a family which had adopted the habits of an Oriental Court. It might well appear to him, arguing from his own experience, that misgovernment by the Senate was a less probable eventuality than misgovernment by the irresponsible members of a monarchical dynasty listening to the unwholesome suggestions of favourites and parasites, and intriguers of all nations.

The funeral of Augustus was hardly over when an event occurred calculated to disgust Tiberius with the dynastic principle, if he had not already strongly disliked it.

The youngest son of Julia, Agrippa Postumus, had, as we have already recorded, been banished to the Island of Planasia off the coast of Campania, and detained in captivity. He was the last of the grandsons of Augustus. At this time he was about twenty-six years of age, and would in the ordinary course of events have held appointments and been pushed forward like his brothers. This had not been done. The historians agree in ascribing to him a stubborn disinclination to study, and an evil temper; he was put out of the way as Claudius was put out of the way; but he continued to be to some extent the centre of Julian plots, and it was believed that, in spite of his bad manners, Augustus was personally attached to him. It is possible that his name had been used in the plots with which his sister, the younger Julia, and her husband, L. Æmilius Paulus, had been concerned; or that he had taken up his mother's quarrel with Tiberius, and had disturbed the serenity of the Imperial household. Although he had been thus set aside, Augustus had been sufficiently anxious about his welfare to request Tiberius to adopt him, when he himself adopted Tiberius. Whatever may have been the real temper and the real pretensions of the young man, one thing is certain: immediately after the death of Augustus he was put to death upon his

island, and the centurion on guard reported to Tiberius that his orders had been obeyed.

Tiberius at once denied that he had given any orders, and added that he would report the matter to the Senate. No report was ever made, and Tacitus tells us that Tiberius was over-persuaded by C. Sallustius Crispus, who had succeeded Mæcenus as confidential and unofficial adviser to the Cæsarian family. Crispus is said to have urged that any public inquiry into the matter would have created too much scandal. Tiberius was not the man to be deterred from doing what he considered a public duty by any consideration of what he might himself suffer, but there was another person whose good name was likely to be damaged, and whose responsibility for what had occurred it would be awkward to demonstrate; that person was his mother, Livia. Tiberius himself had no motive for committing such a crime; only the perverse inconsistency of a Roman historian could be capable of attributing to the same man reluctance to accept power, and complicity in a crime whose object was to secure the undisturbed enjoyment of that power. Whoever was responsible for the death of Agrippa Postumus, Tiberius certainly was not; but Livia, the friend of Herod, whose life had been spent in pushing the fortunes of the Claudians, was not a woman to be frightened by the murder of an inconvenient aspirant.

If anything had been wanting to convince Tiberius of the evils likely to attend the perpetuation of the dynasty, this event was in itself enough to determine him in his dislike to an institution capable of producing such horrors, and under circumstances so wounding to his personal pride. A crime had been foisted on him in such a way that he could not prove his innocence without making himself the accuser of his mother.

The Senate, however, insisted that Tiberius should take the whole burden of the government upon himself. His suggestion that the responsibility should be divided was met with derision; there was no way out of the difficulty but to accept the trust, and to work it in the spirit most likely to lead to the development of his own views. The Senate was, in fact, wiser than Tiberius; those of its members who took an active share in the government knew that whatever might be the views of the few remaining Legitimist families, the monarchy was essential to the Empire, and that the Imperial House could not break with the traditions of half a century. Cæsar's heir did not merely inherit property, he inherited the conduct of an

organization whose branches extended all over the world, and this even as a private person; nor again was it easy to define his relation to those provinces, and especially Egypt, which had been administered by the late Emperor as private estates. Countless officials had learned to look to the Emperor as the source of patronage. A slow change was possible, but an abrupt change would have been a revolution, and would have disturbed the sense of security in all quarters of the Empire. The succession of Tiberius had been tacitly accepted as an accomplished fact in every part of the world for the last ten years. The intrigues in the Imperial family were distressing, and doubtless painful to those immediately concerned, but they had not affected the general prosperity, nor stirred the imagination of such men as hope to fish in troubled waters. Germanicus, the only practical candidate for the chief place, was notoriously loyal to the existing state of affairs, and had never shown any disposition to disturb arrangements made by Augustus. In the end Tiberius gave way, and accepted what the Senate offered him "until," as he said, "I come to the time of life at which it may seem just to you to grant some rest to my old age."

These words are in themselves a protest against dynastic assumptions; the power which Tiberius was to receive he would hold as associated with an office separable from his person; he was not to be once a king, always a king, ruling in virtue of mythology and portents.

Tiberius was equally careful to distinguish between complimentary tributes which had been paid to Augustus and official designations. He would not be called "Father of his country," he would not even use the title "Augustus" as a name, though he was legally entitled to do so; he only used it in corresponding with foreign kings and potentates. Still less would he allow himself to be worshipped, and strictly forbade his statue to be erected in a temple except as an ornament. Nor again would he place the title of Emperor before his name, as Augustus had done, thereby making it personal and inseparable; he used it simply as a statement that he held a particular office. From the first he objected to the exaggerated language of obsequious persons, and demanded to be addressed as Dominus by his slaves, Emperor by soldiers, Princeps by the rest of the world. A Senator who flung himself at his feet and endeavoured to grasp his knees with an oriental exuberance of subservience suffered a rude fall, as Tiberius instinctively jumped back out of his reach. In a like spirit he checked the

adulation which the Senate were prepared to heap upon Livia, and discouraged every attempt to invest her with the dangerous attributes of an Empress Dowager.

Similarly he distinguished between occasions on which he acted in a public or private capacity. Unless officially presiding, he attended the law courts like any other Senator, listening to the evidence, and offering his opinion like the rest; he, in fact, lost no opportunity of showing that he held his position to be a purely official one, and while he encouraged the worship of Augustus, he refused to be included in the cult.

At a later period Tiberius, in speaking to the Senators, declared that he regarded himself as their servant; his constitutional theory was that the Senate was the fountain of authority, the Emperor its first executive officer and adviser, but certainly not its master. This theory of the mutual relations of Emperor and Senate broke down, because one man, if he is capable at all, is always more capable than a number of equally capable men working together as a council: he can act more quickly, and his relations with suitors and suppliants are simpler. If a capable man is assisted by a council, the general lines of policy are his, and not those of the council, whose advice practically amounts to little more than valuable suggestions on points of detail. The dream of professors and political pedants that a country is best governed by a debating society of selected wiseacres has a never-ending fascination, but it is a mere dream, and as soon as the ostensible government degenerates into a debating society the real work of governing is done by other agencies; the alternative is anarchy.

The Senate for its part was studiously averse at first to accepting any greater measure of responsibility than had fallen to its share under Augustus; its leading members were used to a certain routine of business. Augustus had introduced a kind of Cabinet system, the ordinary business of the Senate being conducted by a small committee on which the Senators served in some kind of rotation; full meetings of the whole body were rare; the committee were in constant attendance upon the Emperor. Nobody had any wish to abandon this system, and to impose the necessity of frequent attendance upon all members of the Senate; at the same time, it was well to be sufficiently in evidence to secure a share in promotions and appointments. Hostility to the existing arrangements existed, but it was confined to some old families who were nearly powerless, and who found a

safety valve for their discontent in pasquinades, and the compilation of bitter memoirs, in which every rumour, every scandal unfavourable to the existing government was carefully recorded.

Tiberius had so little of the dynast about him, so little of the jealousy of the usurper, that he employed in positions of trust the men who were generally believed to have been designated as possible aspirants to the Imperial power by Augustus. Marcus Lepidus held one office after another under Tiberius, not merely ornamental offices, but those which involved active work; C. Asinius Gallus, the second husband of Vipsania, similarly took a leading part in the counsels of the Senate, and was entrusted with various dignities; his mysterious fate three years before the death of Tiberius will occupy us later on; L. Arruntius similarly lived in dignity and affluence till he committed suicide shortly before Tiberius died, having become involved in highly discreditable, but not political, transactions; another, Gnæus Piso, was the centre of a strange conspiracy six years later than this. Of him too we shall speak in greater detail; it is enough for our present purpose to record that he was holding an important Governorship six years after the accession of Tiberius.

The same historian who tells us nearly all that is known of the lives of these men, and who fixes the dates of their deaths, also informs us that they were the objects of the suspicion of Tiberius, that their lives were rendered miserable by him, and that they all, with the exception of Lepidus, “soon” came to a bad end. Allowing that six years is a term to which the word “soon” can be applied, we may admit that Gnæus Piso soon came to a bad end; we shall see later on who was responsible for his afflictions. Lepidus lived to a good old age, and died a natural death not long before Tiberius himself; and though the ends both of Asinius Gallus and Arruntius were miserable, they did not occur “soon,” periods of twenty years and upwards not being usually so described.

The facts relating to these men are an excellent illustration of the reckless inconsistency of statement which is indulged in by Tacitus. Fortunately, the historian prided himself upon his impartiality, and does not suppress facts which happen to be in contradiction with his main contention. Stripped of its comments and insinuations, as also of its rhetoric, his narrative gives a favourable picture of Tiberius and his reign,

but Tacitus possessed such a mastery of innuendo that his statements of facts are forgotten, while his comments are remembered.

It is, unfortunately, not the custom of modern scholars to read the Latin stylists for the purpose of acquiring information, or in large masses; and while they are minutely perpending the significance of isolated phrases, or enumerating instances of unusual grammatical constructions, they forget that any other interest attaches to the works upon which their industry is expended. The stylist and grammarian alike find so much material for their own special industries in Tacitus that his claims as a historian are forgotten, and in fact he is not a historian; he is a bitter pamphleteer of consummate ability; his affectation of impartiality is a well-considered pose, whose insincerity becomes manifest as soon as we study the effect produced by his writing upon the minds of his readers. When we have read the first six books of the *Annals*, we are left with a very strong impression of horror; we seem to have waded through seas of misery, and to have assisted at the ruin of the Roman Empire. In the midst of the gloomy scene stalks the gaunt figure of Tiberius, equally terrifying in anger or in silence; his very virtues are more horrible than the vices of other people, for there is no knowing what hideous wickedness they were assumed to conceal.

The question may reasonably be asked, why should Tacitus have directed his bitterness especially against Tiberius? Surely Nero or even Claudius would have been a better target for his venomous sentences. But to begin with, there was no object in further damaging the reputation of an Emperor universally acknowledged to be a villain or a fool. So far as Caligula, Claudius, and Nero were concerned, judgment had been passed in the sense in which Tacitus wished it to be passed, but there were numerous documents in evidence of the fact that Tiberius had been a good Emperor, and that Greater Rome, if not the City of Rome, had prospered under his rule.

Tacitus was interested in proving that till the reigns of Nerva and Trajan there never had been a good Emperor. Augustus was beyond the reach of attack; that reputation could not be damaged by malignant epigrams, but the end of the reign of Tiberius had been involved in a strange catastrophe, whose unquestioned horrors would lend credibility to misrepresentations of the events by which it had been preceded, and when Tacitus wrote, the Senate had just emerged from a similar, or apparently similar, persecution at

the hands of Domitian; in fact, the Tiberius of Tacitus was not Tiberius at all, but Domitian. The curse of the reign of Domitian had been attacks upon the lives and property of eminent men, conducted by paid informers. There was some evidence that the system of rewarding informers had first been extensively used in the reign of Tiberius, and Tacitus believed that he could find abundant material for drawing up a strong indictment against the practice of employing informers in the records of the reign of Tiberius. We shall see how far he was justified in his confidence.

But it was not enough to damage a system, it was also necessary to annihilate the man; and here too Tacitus had found the instrument which he required; he had access to certain memoirs written by the younger Agrippina, the daughter of Agrippina, the wife of Germanicus. He tells us of a fact which he mentions:—"This is not recorded by any of the historians, but I found it in the memoirs of the daughter of Agrippina, who was the mother of the Emperor Nero, and handed down to posterity her own life and the misfortunes of her family." There is not much in the life of the mother of Nero and sister of Caligula which would incline us to suspect her memoirs of being a liquid fount of veracity, but there is a great deal which would tempt us to suspect her of a bitter animosity against the memory of Tiberius and all members of the Claudian stock not closely related to herself.

It is not proposed to examine in detail every innuendo made by Tacitus in the course of his indictment against Tiberius, though from time to time it will be entertaining to expose glaring instances of misrepresentation or deliberately malicious inference; but one example of the methods employed by Tacitus may be profitably given as an illustration of the way in which he wrote what has passed for sober history.

In A.D. 25, eleven years after the accession of Tiberius, a deputation arrived from further Spain with the request that leave might be given to build a shrine in honour of Tiberius and his mother, as had been done in Asia. "On this occasion Cæsar, who was at other times also firm in rejecting honours of this kind, and thought some answer should be given to those who accused him by public rumour of ambitious inclinations, made a speech to the following effect:—"I know, Conscript Fathers, that many have noted a want of consistency in my conduct, because on a recent occasion I failed to oppose the cities of Asia when preferring an identical petition.

Therefore I will at once declare my defence of my former silence, and of the line which I propose to adopt in the future. Whereas the sainted Augustus did not forbid a temple to be built to himself and the city of Rome at Pergamus, I, for whom all his acts and words are like a law, followed a precedent, already sanctioned, the more readily because veneration of the Senate was united with the devotion to be paid to myself. However, although there may be an excuse for a solitary acceptance of such honours, it would be presumptuous and arrogant in me to consent to being worshipped in divine form all over the provinces; and indeed the honour paid to Augustus will disappear if it is made cheap by promiscuous flattery of this kind. I both protest to you, Conscript Fathers, and I wish posterity to be mindful, that I am a man, and hold purely human responsibilities, and that I have enough, if I worthily hold the first position in the State; posterity will give enough, and more than enough, to my memory if men believe me to have been worthy of my ancestors, careful of your concerns, firm in danger, and not fearful of contracting unpopularity in defence of the public welfare. So shall I have temples in your minds, so the finest and most lasting statues. For those memorials which are built of stone are despised as mere tombs if the judgment of posterity proves adverse. Therefore I implore the allies, the citizens, and the gods themselves, the latter to grant me to the end of my life a calm intelligence and understanding of human and divine law; the former, that whenever I may leave the stage, they may pursue my deeds and the fame of my name with praise and kindly memories.’ And he persisted afterwards, even in private conversation, in his contempt of such adoration of himself. This some interpreted as moderation, many as a sign of mistrust of himself, some as an indication of a degenerate spirit; for, said they, the best of men aim at the highest honours; thus among the Greeks Hercules and Liber, among ourselves Quirinus, had been added to the number of the gods. Augustus had done better in setting his hopes higher. Princes have everything else in this life; the one thing they should compass with avidity is a lasting memory of themselves. For the contempt of fame means the contempt of virtue.”

It is impossible not to admire the consummate art with which the effect of a really noble statement of Tiberius is wiped away, and the picture of a man devoid of sound ambition substituted. The ingenuity with which Tacitus puts in the mouths of presumed contemporaries his own perversion of the facts, and concludes his chapter with a concise damnation, is equally

admirable. To us there is, however, something tragic in the fact that subsequent events and the arts of a supreme master of style were to rob Tiberius even of the modest fame for which he prayed.

Tiberius had hardly settled down to business when the threatened mutiny of the legions in the Illyrian quarter broke out, accompanied by an even more serious disturbance among the armies of the Rhine. These events throw much light on the condition of the Roman army at the time, and upon the characters of Agrippina and Germanicus. The latter, though a far more formidable rival than Agrippa Postumus, had been invested with Proconsular power at the request of Tiberius on his accession. Previously he had only been a legate, a lieutenant-general in command of the troops on the German frontier; he was now Governor of Gaul as well. It is not customary, for usurpers who have recently mounted rickety thrones to add to the powers of those whose rivalry they have good reason to anticipate. The Proconsulate of Gaul had on a well-known occasion been the stepping-stone to the Empire. Tiberius clearly had no mistrust of the loyalty of Germanicus, and at this period could afford to smile at the restless impetuosity of Agrippina, pattern of matrons.

XII

The Mutinies in Pannonia and on the Rhine

WE have seen that when Augustus died Tiberius was on his way to Illyria, because the temper of the three legions who garrisoned the recently conquered districts towards the Danube had given cause for anxiety. The death of one Emperor and the accession of another occasioned a relaxation of discipline, both events, in accordance with Roman custom, being observed by a suspension of ordinary business.

The Pannonian army had been reinforced largely from Rome itself; it had been necessary to revive in a stringent form the obligation to military service, and even to impress slaves. Among the men thus unwillingly driven into the ranks were several used to the clubs and street factions of the capital, quick-witted, ready-tongued, of the class that are known to our own soldiers and sailors as “lawyers.”

Service in these regions had no mitigations, there was little or no loot, and since serious operations had ceased, little excitement; the long holiday and cessation of the ordinary routine gave the camp agitators their opportunity. Three legions were concerned, the eighth, the ninth, and the fifteenth. The first open act of mutiny was an attempt to combine all three in one. This failed, owing to the mutual jealousies of the legions, neither of the three being willing to be enrolled under the name of one of the others, and a compromise was effected by uniting the legions locally, but retaining their separate organization. The rapid and dramatic account of Tacitus, in which only the most picturesque incidents are recorded and grouped together for effect, conceals the fact that this was a very serious step, for the legions were not quartered together, and must have marched some distance in order to unite. This event, which Tacitus places at the beginning of his summary, can only have taken place after the officers had lost the control of

their men, unless we are to credit these officers, who knew that there was much disaffection, and had already reported it to Rome, with such blind folly as to have united troops ready to mutiny.

The speech which Tacitus puts into the mouth of one Percennius, the arch agitator, a private who had been accustomed to lead a clique in the Roman theatres, and was well versed in the arts by which factions are organized, gives a clear summary of the grievances of the Roman soldier of the period, but will not be intelligible without a little previous explanation.

First comes the question of discharge. A Roman citizen was constitutionally liable to be called out for service between the ages of eighteen and forty-six, but it was held that sixteen years of service, whether continuous or intermittent, exempted a man from further duty. The difficulty of finding recruits had caused the claim to exemption to be ignored, and as the army had become increasingly professional, losing its character of a militia, the men themselves, for lack of other occupation, had helped the authorities to expand the period of service. In order further to swell the numbers of the army, the Romans had anticipated the "garrison" service recently introduced into the English army. Time-expired men were enrolled in companies outside the organization of the legion; they were called *flagmen* (*vexillarii*); they could not be called upon to march in a campaign, but they formed a kind of permanent garrison in the countries in which they were employed; they were not a "reserve," for they could not be called back to the colours, but they relieved the regular soldiers of duties, for which there was a dearth of men; they were also employed as engineers, for we find some of them in the course of this mutiny detached to build roads and bridges near *Nauportus*.

There was also a grievance of pay. *Cæsar* had increased the pay of the legionary, and fixed it at nine *aurei* a year; that is to say, ten asses a day. When this arrangement was made one silver denarius was the equivalent of ten copper asses, and the pay of the Roman soldier was assumed to be one denarius, practically a shilling a day; but since *Cæsar's* time the silver denarius had appreciated, and was now worth sixteen asses: the soldiers, however, were still paid ten asses, and not sixteen. Another grievance lay in the fact that the household troops, *prætorian* guards, who formed the garrison of Italy, received double pay.

The exactions and cruelty of the centurions formed another grievance. The position of the centurion in the Roman army is not quite analogous to anything in our own army, for though there was a distinction between the commissioned and the non-commissioned officer, and the centurion belonged in many respects to the latter class, he had many responsibilities which we, rightly or wrongly, reserve for commissioned officers. The centurion was selected from the ranks, but he commanded a company; he was a sergeant with the duties of a captain, and when he was promoted to the rank of “primipilaris” was so much of a commissioned officer as to be admitted to councils of war. Cæsar had paid especial attention to the centurions, he never misses an opportunity of praising individual centurions in his commentaries, and distinguished service as a centurion opened the way to the highest military and even civil positions. Ventidius Bassus, who had commanded the armies of Antonius in Syria, and had been granted a triumph, began life as a mule-driver, and passed through the rank of centurion to that of General. Before the end of the century a former centurion was to be Emperor. Pontius Pilate, Governor of Judæa, is said to have been a centurion. One of the arts by which the early Emperors kept their hold on the army was the recognition of capable centurions. But though the centurion was in a better position than the English non-commissioned officer, he still had duties which we should consider beneath the dignity of a captain.

With the aid of this short introduction the speech of Percennius should be intelligible without further explanation; it is not probable that we have the genuine speech, but a summary of the soldiers’ grievances put into the mouth of their spokesman.

“Why do we obey like slaves a handful of centurions, and still fewer tribunes? When are we to venture to demand our rights if we do not now approach the new and still tottering Emperor with either entreaties or force? It is through our own fault, through our own want of spirit, that we have gone on for so many years putting up with thirty or forty years’ service, old men as we are, and most of us crippled with wounds. Even after our discharge there is no end to our service; we camp under the flags and suffer the same burdens under another name. And if any man does happen to get out of all these dangers and difficulties with his life, he is dragged off to distant lands, where he is given under the name of a farm a morass or a

precipice. The service itself is severe, and poorly paid; body and soul are valued at ten asses a day! Out of this we have to find clothes, arms, tents, buy off the centurions, yes, and pay for our own discharge.¹ The stick, the wounds, the bitter winter, the summer marches, the cruelties of war, or the barrenness of peace are everlasting. We shall never get any comfort till the service is entered on fixed conditions, a denarius a day for pay, sixteen years for a discharge; and we are not to be kept on under the flags, but stay in our camps and get our pension in cash. Do the prætorians face greater dangers than we do? But they get two denarii a day, and return to their homes after sixteen years. We don't have to patrol the city at night, but we do have to live among savages and look at the enemy out of our very quarters."

¹ "Vacationes munerum." The translation in the text is the accepted one, but the phrase may simply mean "leave." The custom of feeing the sergeant for this purpose has not been unknown in the English army.

This statement of the grievances of the private soldier may not represent the actual words of Percennius, but it is strangely familiar. Protracted service is not at present included among the grievances of the English soldier, but we have already taken one step in a direction which may lead to its inclusion. The Roman Empire shirked the recruiting difficulty, and in the end brought down upon itself countless disasters. If the English Empire follows the same path, it will find itself some day at the same destination. The conditions are strangely similar. By the institution of slavery the whole body of operatives throughout the Roman Empire was exempted from military service, the recruiting ground was artificially restricted. We have no artificial restriction in the English Empire, but the operatives have been allowed gradually to withdraw themselves from even the limited obligation to military service imposed by the ancient regulations of the militia, and they have further been allowed to assume that whatever may happen to other people they are not to be conscious of the burden of

taxation; they are practically as free from military service and taxation as the slaves of antiquity.

When these mutinies were eventually suppressed Tiberius found himself unable to confirm the grant of a discharge after sixteen years' service, and was obliged to fix it at twenty years; he said that the Empire could not stand the change, and deplored, in strangely modern language, the breakdown of the "voluntary system." The statesmen of his time could not touch the institution of slavery; the demand for a conscription of slaves would have been resisted on every ground of public expediency; there would have been an outcry against interference with private property. We have no institution which forbids us to make soldiers of our intelligent working-men; they can be invited and encouraged to take their share in bearing the burden of defence. The statesman who discovers the best means of bringing them into the recruiting field will have solved the most pressing difficulty of the English Empire.

The result of the orations of Percennius was a general insubordination. Junius Blæsus, who was commander-in-chief, persuaded the excited men with some difficulty to send an orderly deputation to Tiberius to present their grievances, and the soldiers cleverly included his son in the deputation. For a time there was quiet, but the news of the mutiny reached Nauportus, where the "flagmen" were employed in engineering, and they immediately threw off all discipline, plundered the neighbouring villages, and even Nauportus itself. Laden with their booty, they marched to the headquarters of the mutinied legions, but they had not forgotten previously to pay off old scores, they had derided and beaten their centurions, they had seized the commander of their camp, a rigorous martinet who had himself risen from the ranks, piled burdens upon him, and driven him at the head of their column, asking him how he liked it. Blæsus met them with firmness, and arrested the ringleaders, but their appeals to their former fellow soldiers renewed the revolt, the prison was opened, all the prisoners were released, and a man named Vibulenus mounted the shoulders of his comrades, and, standing in front of the tribunal of Blæsus, made an impassioned oration. Addressing the mutineers, he cried: "You have certainly restored these innocent and miserable men to life and light, but who will give my brother back his life? Who will give me back my brother? He was sent to you from the German army on our common concerns, but last night this man, by the

hands of those prize-fighters whom he keeps and arms to the ruin of the soldiers, cut his throat. Tell me, Blæsus, where you threw the body. Our enemies even do not grudge us burial. When I have sated my grief with tears and kisses, bid me then to be butchered too, so long as my friends here are allowed to bury those who have been slain for no crime, but because they thought of the good of the legions.”

This pathetic speech naturally redoubled the excitement, and the prize-fighters of Blæsus were seized and bound along with the rest of his slaves, and were likely to have suffered rough treatment, when it was discovered that Vibulenus never had a brother. The wrath of the soldiers was then turned upon the centurions; most of them got off and hid themselves, but one was killed whom the soldiers used to call “Give us another,” because it had been his habit to break his vinestick over the shoulders of his men, and then ask for another, and yet another. The centurions, however, were not all unpopular, and a division of opinion between the eighth and fifteenth legions about a centurion whom the former wished to kill, but the latter to protect, would have ended in a fight, had not the ninth legion intervened.

Though Vibulenus never had a brother, his speech shows that the mutiny was concerted with the legions on the Rhine.

In due time Drusus, the son of Tiberius, arrived from Rome with picked guards, including a detachment of the Germans, who then formed the bodyguard of the Emperor. Ælius Sejanus accompanied him as adviser, though Drusus, being of the age of seven and twenty, could hardly have been considered a youth. He read a letter from Tiberius empowering him to remedy such grievances as could be remedied on the spot, but referring the solution of permanent difficulties to the Senate. Tiberius as Imperator had practically unlimited powers over the army, but either he had not by this time formally accepted the office of Imperator, or he held that such questions as increase of pay and reduction of the years of service were not purely military questions, and must be referred to the civil authority.

The soldiers had listened quietly to Drusus till the reference to the Senate was mentioned; they then again burst into uproar, protesting, with a semblance of reason, that the Senate was only dragged in when it was a question of favours or rewards, the generals imposed punishments and ordered severe labours on their own responsibility. The aged Gnæus

Lentulus, an experienced public servant, who had accompanied Drusus, and who was held to influence him in the direction of severity, was nearly killed; stones were thrown at Drusus himself, who with his escort and attendants escaped with difficulty into the permanent camp.

Fortunately that night there was an eclipse, and at the same time stormy weather set in. The excitable superstitious soldiers were frightened by the portent; Drusus skilfully took advantage of their wavering resolution, and by means of clever agents set the individual soldiers against one another, and inspired mutual distrust between the three legions. There was a sudden and violent revulsion of feeling, the ringleaders Percennius and Vibulenus were killed, order was restored, and Drusus returned to Rome. It was left to Tiberius and the Senate to redress the grievances.

The mutiny was a serious one, not so well organized as the simultaneous mutiny on the Rhine, and not so ambitious in its aims; but the facts as given us ascribe a strange childishness to the Roman legionary. The story of the eclipse is hard to swallow, but there is other evidence to the superstitious character of the legionary; his commanders owed their authority largely to a certain religious awe with which they were surrounded; the standards were worshipped, and the Roman soldier, afraid of little else, was supremely afraid of breaking his military oath.

The mutiny on the Rhine was of a more serious character; not only was the number of legions implicated far larger, more than double that of the Pannonian legions, but the ambition of the mutineers was not confined to obtaining a redress of grievances; they proposed to annex the Empire. "The State is in our hands," they said; "it is increased by our victories; the Emperor takes his title from his armies." A vision of plundering Gaul, marching upon Rome, and setting up an Emperor of their own, floated before the eyes of the ringleaders. On the Rhine, as in Pannonia, the agitation was engineered by the recruits, chiefly enfranchized slaves recently drawn from the capital. The men who had fought under Drusus and Tiberius were hardly conscious of their own grievances; military discipline had numbed their intelligence; they knew of nothing else, and they were well content to exchange the peaceful but laborious routine of the camp for the hardships of campaigns among the forests and morasses of Germany, where the enemy was less terrible than the gloom of primeval trees and the treachery of bogs and estuaries. They were, however, only too willing to

listen when cleverer men than themselves told them they had grievances. The fidelity of the most loyal troops and of the most trusted servants can seldom long resist the voice of the tempter, who deplores the injustice with which they are treated. The idlers of Rome, swept into the ranks from the street corners and the open air amusements of the great city, awoke from dreams of plunder and licence to the stern realities of the centurion's stick and the heavy fatigue of a Roman camp. They had no fighting, but they had drill, and digging and building in plenty; few of them had ever before done an honest stroke of work. To the veterans, life on the frontier had become somewhat dull, and though they would quickly have discovered the worthlessness of their new associates on active service, they could not resist the fascinations of jokes and stories and songs picked up from the professional buffoons of the Roman theatres.

There were two armies on the Rhine frontier: the Lower Army, under Aulus Cæcina, quartered between the region of the Lippe and the neighbourhood of Cologne, the Upper Army, under Silius, about the gorge of the Rhine. The mutiny broke out in the Lower Army; the Upper Army waited to see the result before moving on its own account. Germanicus, as proconsul, was at the time conducting the census of Gaul in the regions of the Meuse and Moselle. Fortunately, the lower army was divided; it was composed of four legions, the twenty-first, the fifth, the first, and the twentieth; the two former began the mutiny. Cæcina was with them when it broke out.

The scenes of the Pannonian mutiny were repeated. Centurions were beaten and killed, Cæcina was powerless to interpose, and in fact seems at first to have lost his head. He surrendered to the soldiers a centurion who had taken refuge at his tribunal. Another centurion at the same time fought his way through the mob; he was Cassius Chærea, destined some twenty years later to rid Rome of Caligula. Rejecting the authority of their officers, the mutineers took the whole organization of the camp into their own hands; there was no suspension of discipline, but perfect order, a fact which increased the gravity of the situation as indicating a settled purpose and skilled ringleaders.

Germanicus left his civil duties to repress the mutineers if possible. He was received sullenly in the camp. Some of the men, seizing his hand under the pretext of kissing it, pressed his fingers into their mouths that he might

feel the absence of their teeth; others pointed at their limbs bent with old age.

Germanicus on this occasion, as at the few other times when we get a fair view of him, showed himself a man of courage, resource, and strict uprightness. Before addressing the mutineers, he insisted that they should group themselves in the customary divisions, company by company, battalion by battalion, hoping thus to restore the habit of obedience, but he was disappointed. His first question as to the causes of the mutiny raised a storm. Men stripped to show the scars of wounds, the weals raised by the centurions' sticks; eager protests were shouted against the prices paid for discharges, the smallness of the pay; the different labours of the camp were mentioned in detail, the digging of fortifications, the collection of fodder, timber, firewood. The most serious outcry was that of the veterans demanding immediate discharge; the immediate payment of the legacy of Augustus was also demanded, and then voices were heard offering to follow Germanicus if he would claim the Empire.

Germanicus at once jumped from his seat and left the tribunal. The soldiers endeavoured to force him back, whereupon he drew his sword and threatened to drive it into his own heart; a wag of the camp offered him his own sword with the observation that it was sharper. Germanicus was hurried off by his friends into his tent, and a consultation was held. Seeing that the fidelity of the Upper Army was insecure, the danger was such that Germanicus decided to yield; a letter was drawn up in the name of the Emperor granting a full discharge to men who had served for twenty years; men who had served for sixteen years were to be put on the reserve of "flagmen" for another four years; the legacy of Augustus was to be paid and doubled.

The soldiers demanded an immediate fulfilment of the terms of the letter, and the tribunes at once set to work to draw up the discharges in authorized form; the payment of the legacies was to be deferred till the winter. This, however, did not satisfy the soldiers of the fifth and twenty-first legions, who insisted on immediate payment, which was met by the private resources of Germanicus and his friends. The first and twentieth then asserted their own claims, and were marched back to their quarters near Cologne, under Cæcina, carrying the treasure chests of their commander-in-chief between the standards. Germanicus then went to the

upper army and renewed the military oath of the second, thirteenth, and seventeenth legions without any opposition; the fourteenth legion showed signs of wavering, and was at once offered the discharges and the money.

The beginnings of a mutiny among the “flagmen” who were settled on the Lippe were summarily repressed by the prefect of the camp, who illegally but wisely executed two of the ringleaders.

Germanicus returned from the Upper Army to Cologne, where the recently mutinous legions were quartered, and there received the deputation who had arrived from Rome with the answer to his report. The soldiers, without waiting to hear the message of the deputation, assumed that it was unfavourable, and again broke out into mutiny; they attacked and insulted Plancus, who had come from Rome at the head of the deputation, and he was with difficulty rescued by Germanicus, and sent away under an escort of Gallic cavalry.

The advisers of Germanicus, possibly members of the deputation, then accused him of too great leniency and of imprudence. It would have been much better for him to have secured his personal safety and that of his wife and child by remaining with the Upper Army, which was faithful; and they urged him to send Agrippina and the boy to the Gauls at Trêves.

Agrippina protested that she would not retire, the granddaughter of Augustus was not going to run away from legionaries, she said. The affectionate remonstrances of her husband, however, prevailed, and she started; but when she was seen leaving the camp with an insignificant escort, taking with her “Little Gaiters,” the pet of the soldiers, and when it was understood that she was seeking shelter with foreigners, the temper of the men suddenly changed; they stopped her flight, they implored Germanicus to let her stay. He skilfully seized the opportunity, and addressed them in words which were so successful in reanimating their lost loyalty that he ventured in conclusion to bid them, as a pledge of their renewed fidelity, to set apart the innocent from the guilty, and vindicate their military honour. The revulsion of feeling was so complete that a rough form of trial was at once instituted. The commander of the first legion presided; each soldier was placed before him on a platform in turn, and acquitted or condemned to instant death by the shouts of his companions.

Germanicus then wrote to Cæcina, who was further down the Rhine with the other two mutinous legions, and said that he was coming to punish them, unless they previously punished themselves. Cæcina communicated the tenour of the letter privately to soldiers whom he trusted, and the camp was purged of its delinquents before the arrival of Germanicus. The method was rough, a somewhat indiscriminate massacre, but it was effective.

The troops, now anxious to clear themselves and to appease the spirits of their slaughtered brethren by sending the enemy to join them in the world of ghosts, were led across the Rhine, and a series of campaigns kept them too fully occupied to mutiny for several years.

Tiberius confirmed the concessions made by Germanicus, and granted them to all the mutinous armies alike, both in Pannonia and on the Rhine, but he adopted twenty years as the fixed period for service in the future. Excessive length of service had probably been confined to or felt as a grievance only in the armies in these comparatively wild regions. There was no lack of recruits for service in Syria or parts of the world where life was agreeable, and there was not the same wastage in the settled parts of the Empire; but central Europe possessed no attractions for the Roman soldier, and desperate expedients had been necessary to keep up the strength of the legions. A mutiny was also threatened in Spain, but it was nipped in the bud by the firmness and tact of Marcus Lepidus, whom we know as one of the possible aspirants to the Empire.

The campaigns which followed extended over five years; they were in every respect a repetition of previous campaigns in the same regions. The Roman soldiers occasionally got into difficulties through ignorance of the country, and especially of the tides; but, in spite of some severe reverses, they more than held their own against the Germans; these latter indeed began to quarrel among themselves. The differences between Arminius and members of his family were taken advantage of by Germanicus; further differences seemed likely to declare themselves between Arminius and Maroboduus. Tiberius returned to his previous policy. Germany had been sufficiently exhausted; the Rhine with a line of outposts must be the frontier. Germanicus was recalled and given the more coveted position of proconsul of the Eastern frontier. Drusus, the son of Tiberius, took his place in Germany.

The authorities consulted by Tacitus, among which are included the memoirs of the younger Agrippina, who was born soon after the mutiny somewhere near Cologne, ascribed the recall of Germanicus to the jealousy of Tiberius. The inconsistency which is involved in giving larger powers and greater responsibility to a dangerous rival does not strike them. There was every precedent for dreading the influence of high official position in the East upon the mind of an ambitious proconsul. Sulla had marched upon Rome from the East; the power of Pompeius was founded upon his victories over Mithridates and the pirates; Antonius had been tempted by his power in the East to grasp at universal dominion; even the young Caius Cæsar had succumbed to Oriental fascinations. Had Tiberius really been in dread of Germanicus, he would have kept him in comparative insignificance at Rome; he certainly would not have put the wealth, the resources, and the armies of the East at his disposal.

It was, however, exceedingly desirable to get Agrippina away from the armies on the Rhine, and Germanicus himself at the time of the mutiny seems already to have had misgivings as to her influence, for when the soldiers demanded that she and Caligula should return to the camp, he granted their demand so far as the boy was concerned, but found an excuse of an interesting and domestic nature for removing his wife to a distance. She did not return to the army till the mutiny was finally suppressed, but before the expected event had happened. Even Tacitus admits on more than one occasion that Agrippina was a lady of somewhat excitable temperament, and the virtues to which she laid ostentatious claim, and which were universally ascribed to her, are not incompatible with a restless ambition. She was a devoted wife, and even as a widow maintained a reputation for “impenetrable” chastity. She was the very pink and pattern of Roman matrons, but there was nothing in this to prevent her from attempting to push the fortunes of her husband and children in ways of which the former disapproved. In the last year of the Rhine campaigns of Germanicus she temporarily took command during her husband’s absence. Owing to a reverse which had just been sustained the authorities at headquarters proposed to destroy the bridge across the Rhine, a measure which would have cut off the retreat of the Roman legions as effectively as it would have prevented an invasion of Germans. Agrippina resisted this pusillanimous counsel; she did more, she took up her position at the end of the bridge and praised and thanked the legions as they returned. Nobody

can fail to admire the womanly kindness which impelled her to clothe the ragged soldiers and poultice the wounded, but we may pardon Tiberius for complaining that she had forgotten her position when she inspected the companies and stood by the standards, and for seeing something more than an exaggerated maternal pride in the dress of Caligula and the wish that he should be called Cæsar, a something more than mere kindness in her freehanded gifts to the private soldiers.

Agrippina was not an intriguer, she was too boisterous, too self-confident for intrigue; but she was none the less dangerous: a woman of rights, conjugal rights, maternal rights, ancestral rights; an injured woman, the daughter of an injured mother, a woman whose virtues it is pleasantest to contemplate when exhibited in the bosom of another man's family. Tiberius did not take her sufficiently seriously; on the whole he seems to have been amused by her, only taking action when action was imperatively necessary. He did not take sufficiently into account the power for mischief which a good-hearted wrong-headed woman of this description may become when her grievances have been taken up by others, and when more subtle intriguers have seen in her a useful tool.

It was soon after this exhibition of amazonian propensities that Germanicus was recalled, and doubtless with his own consent. The sequel indicates that his health had suffered in the arduous campaigns on the frontier, and he probably welcomed the exchange to a warmer climate. Tiberius, in recalling him, said that some opportunity of conquest must be left for Drusus, a remark which has been interpreted as an indication of jealousy on Drusus' behalf; but it can also be interpreted as a humorous compliment to Germanicus himself. There was no occasion to remind him of the claims of Drusus, for the two cousins were united by a strong friendship, as we are informed by the same authorities who envelop us in an atmosphere of hatred, jealousy, envy, and malice.

The political importance of the mutiny on the Rhine was very great; it showed that fifty years of settled government had not done away with the military danger, and that the civil government was still at the mercy of the armies. Tiberius was less than ever inclined to reverse the policy of Augustus, and extend the State at the expense of exaggerating the importance of the soldiers, more than ever disposed to employ diplomacy rather than force. We shall find him as time goes on almost as averse to war

as the great Elizabeth, and equally in danger of pursuing peaceful methods too long. He also found it necessary to revise his conception of the possible Imperial constitution, and to accept the hereditary principle as inevitable. The Emperor was not to be above and outside the State; he was to be hereditary stadtholder; but to this extent the dynastic tendency must be accepted, and not the least of the responsibilities of the reigning Emperor was to be the provision for an orderly succession and a capable successor. Hence we shall find Tiberius following the example of Augustus in training members of his family for the burden of public duty, and in ensuring the order of precedence by successive adoptions. It was solely owing to the loyalty and fine ambition of Germanicus that the mutiny had not resulted in a civil war.

In theory hereditary succession to official responsibilities is demonstrably absurd, but in practice there is nothing so satisfactory as a dynasty. The mutual jealousies and intrigues of aspirants are far more dangerous to a State than the incompetence of the temporary ruler, and the qualification of birth, though theoretically ridiculous, has the merit of being a qualification that everybody can understand. In the states imagined by philosophers and radical politicians the eminent virtues of eminent men are always so conspicuous that meritorious "Amurath to Amurath succeeds" by the will of the people without break or intermission and in obedience to a law of nature, for, given fair play, the capable and trustworthy men must always find themselves at the top of the society which is blessed with their presence; but in the states which unlearned men know of there is no agreement of opinion as to what constitutes capacity or trustworthiness or political virtue, and in a general scramble for power the least scrupulous has at least an equal chance with the most virtuous. The dynast is in fact a social necessity, and the larger the area of the State which is governed in his name, the more necessary his existence. Society is most secure when the highest position is reserved for those who possess an indisputable qualification. Men may argue about the particular compound of meritorious characteristics which they wish to see exemplified in their ruler, and in the search for the perfect man find anarchy, but the qualification of birth is not a thing exposed to many varieties of opinion. Better on the whole the incapable or the overcapable dynast than an uncertain successor.

Tiberius, by modifying his prejudices on the dynastic question, averted a catastrophe, which fell upon the Roman Empire as soon as the line of the Cæsars was extinguished in the person of Nero. Then the armies of Spain set up one Emperor, and the armies of Gaul another, and the armies of Syria a third; for two years a reversion to anarchy seemed inevitable. The perpetual intrigues of jealous ladies ambitious for their sons or husbands did not contribute to the pleasures of existence in the Imperial households, but they were less evil than the disruption of the Empire or the emergence of military adventurers. Tiberius sacrificed his domestic comfort to the interests of the State; he did not know that he was at the same time sacrificing his posthumous reputation; he did not divine the existence of the memoirs of Agrippina.

XIII

Tacitus and Tiberius

TO tell the story of the reign of Tiberius by minutely tracking Tacitus through his manifold inconsistencies and clever insinuations, though entertaining to the investigator, would prove wearisome to the reader; but a somewhat careful examination of the Emperor's methods of Government during the first year of his administration will spare us lengthy explanations in dealing with subsequent events.

Tacitus and Suetonius alike seem to have collected their information from three chief sources, private memoirs, popular rumours, in which are to be included pasquinades and the topical songs of actors, and the official record of the transactions of the Senate. The first two sources of information are obviously not of a trustworthy character; memoirs are not to be relied on even in these days of rapid transmission of news and wide publicity. An historian who should essay to compile the biography of a public man of today, even from the daily and weekly journals which are filled with personal gossip about those upon whom the attention of the public is fixed, would find such a mass of contradictions to deal with that he would abandon his task in despair; and yet the matter thus afforded to his inspection is day by day subject to correction. Memoirs written by an irresponsible person in his private study are even more likely to contain perversions of fact, to omit, to exaggerate, to represent exclusively the personal bias of the writer.

It is hardly necessary to add that loose anecdotes and the buffooneries of actors do not constitute evidence; it is, indeed, difficult to understand how Suetonius, a presumably grave schoolmaster, could quote snatches of popular songs as serious history, and repeat the filthy gossip of the Roman streets.

But the evidence of public documents such as the record of the transactions of the Senate is unimpeachable; and this evidence, whenever Tacitus gives it us, is invariably such as to compel us to believe that Tiberius was a wise and moderate ruler.

So overwhelming is this evidence, that the very creators of the monstrous figure, which passes for that of Tiberius, had serious misgivings; whenever they examined the public records, they found the lustful, rapacious, bloodthirsty tyrant of their imaginations acting on the strictest lines of constitutional government. How were they to reconcile their creation with acknowledged and indeed indisputable facts? It seemed to them that there was a simple way out of the difficulty, namely, to ascribe to the monster the yet further monstrosity of deep dissimulation. The fascination of the style of Tacitus is such that this astounding solution of the difficulty has been all but universally accepted; but even if we accept it, we have to ask ourselves whether profound dissimulation of this kind is not a quality to be desired in a ruler rather than the reverse; whether in fact the general sum of wickedness in the world would not be diminished almost to vanishing point, were we to accept as a rule of life the duty of acting virtuously from motives of profound dissimulation up to the age of seventy, in order that we may enjoy unbridled licentiousness and cruelty for the remainder of our lives. This is the practical result of believing that Tiberius never did a good action except from motives of profound dissimulation. We shall find ourselves, when we come to the events of the year A.D. 30, faced with an insoluble problem, which even the discovery of the missing book of Tacitus might fail to clear for us; but the only solution of that problem which has as yet been offered to us is contrary to the known laws of human nature. Men do not of forethought and design practise virtue for seventy years in order that they may indulge in vice at a time of life when they are oftenest incapable of taking exercise except in a bath-chair.

The fable of the dissimulation of Tiberius grew out of two facts, his naturally reserved nature, and the mysterious tragedy which clouded the last seven years of his life. Of the nature of that tragedy, and of the question whether he was not more sinned against than sinning, it will be more convenient to speak when we reach it in the order of events; but of the personal characteristics which tempted men to ascribe to him numerous

unamiable qualities, and which gave credence to the cruel insinuations of his private enemies, it is not inconvenient to speak at the present moment.

The silent man is always terrible, and Tiberius was a silent man; even when he spoke, he spoke slowly; his prepared speeches were uttered with deliberation, and it was not always easy to follow their meaning; he was in fact apt to speak above the heads of his audience, and to ascribe to them knowledge and trains of thought which they did not share with himself. His obscurity was the more alarming because it seemed to be premeditated, for when he was unexpectedly stirred by some strong emotion, his words were rapid enough and clear enough and incisive enough to make such of his hearers as had reason to dread his displeasure feel very uncomfortable. Given time for preparation, he studied the statesman's art of non-committal oratory; he felt his responsibilities, and was so anxious to avoid injudicious expressions as to be sometimes unintelligible. The contrast between this studied reticence and his occasional vigorous invective, or biting sarcasm, was so marked as to suggest perpetually smouldering fires. Sometimes his sense of humour tempted him to an unseemly display, as when the citizens of Troy sent a belated deputation to condole with him on the death of his son, and he returned the compliment by expressing his sympathy with their grief at the loss of an eminent fellow-citizen—Hector. He was contemptuous of the arts by which popularity is gained; conscious of rectitude of purpose, and of a generally benevolent temper towards his immediate attendants and the people of Rome, he never pretended to take pleasure in things for which he had no taste in order to win favour. Simple in his tastes, inexpensive in his pleasures, he reserved his money for great emergencies, and forbore to squander it upon those sumptuous shows in which the Roman crowds delighted. It was this severity of temperament in Tiberius which Augustus endeavoured unsuccessfully to modify, himself a man naturally disposed to bask in the popular favour and genuinely enjoying the lighter side of life. We shall have to record pleasing instances of the benevolent and wise liberality of Tiberius on occasions of great distress, but the common herd is more ready to bestow its affections upon those who share its everyday amusements than upon those who provide relief for its exceptional tribulations; indeed, the man who abstains from the pleasures of others, inevitably, though unwillingly and unconsciously, assumes the position of a censor of morals, for the man who cannot enjoy with others is often unjustly credited, even in private life, with a veiled

contempt for the lovers of innocent diversions. Again, seeing events from a point of view which commanded a large horizon, Tiberius did not feel the sting of words or actions which appeared to less large natures necessarily unendurable, and when he forbore to express resentment his silence was construed as an indication not of indifference, but of politic self-restraint. Men do not readily inflict humiliation on themselves by imputing to an enemy unconsciousness of their malice or contempt for its smallness; it is more satisfactory to believe that the wound has been felt, and that the victim is brooding over his revenge. The reserve of Tiberius was the more imposing because his personal appearance was in itself awe-inspiring; the tall, gaunt old man, with his large eyes, his thin lips, his bush of hair, his stooping shoulders, and, as his age increased, his fiery complexion, was a figure calculated to inspire terror, when the revelation of some unexpected meanness, some more than ordinarily unjust interpretation of his actions called forth one of those rare bursts of passion and scorching vituperation. But a man may thus terrify without possessing any propensity to cruelty; mere native superiority is terrifying, and the more so when its possessor is one whose powers are vague and believed to be unlimited.

Tiberius is not the only statesman who has underestimated the damaging effects of unpopularity; within certain limits a statesman cannot afford to be unpopular, and impairs his own usefulness if he raises an irrational prejudice against himself. There are times and occasions when it is the duty of a statesman to face public opinion, and to persist in an unpopular policy, but it is never the duty of a statesman to excite personal animosity; in so far as a public man stirs unnecessary animosities he is a failure, for it is only a rare combination of circumstances that reveals to a community the real worth of a man who has the unfortunate knack of making himself disliked. On the other hand, the worthlessness of many a man who has achieved great popularity by the unconscious flattery of the weaknesses of his fellow citizens, has often escaped notice, because the events by which alone he could be tested never happened to occur in his lifetime, or during his tenure of power.

Conscious of the strictest rectitude of purpose, contemptuous of the judgment of the crowd, equally contemptuous of the small aims and narrow outlook of even the more cultivated Roman Senators, shrewd, practical and intellectual, but not emotional or sentimental, impatient of weakness,

intolerant of smallness, Tiberius was not a man to attract sympathy, or to be appreciated beyond the narrow circle of a few intimates, who understood his real aspirations. Augustus was a less noble man and a less intellectual man, but he was able to do work that Tiberius could never have done, because he was more in touch with the men through whom he had to work; where Augustus was guided by a subtle and unconscious sympathy, Tiberius practised the lessons drawn from observation and reason. The result was in most cases the same, but with this difference, that Tiberius ignored those things which are incapable of rational analysis and mathematical expression, Augustus understood them; while Tiberius refused to allow altars to be built in his honour, his sturdy common sense not permitting him to see anything supernatural in his position, Augustus, with a truer instinct, allowed himself to be canonized in his lifetime. Tiberius offended a popular sentiment by his rejection of divine honours; Augustus by his acceptance added not only to his own security, but to the strength of the Empire.

An examination of the political transactions of Tiberius for the year 15 A.D., and of the account which Tacitus gives of them, forms at once a good introduction to the study of subsequent events, and sets in a clear light the policy of the Emperor, the tendencies of the Senate, and the character of the impartiality claimed for himself by the historian.

Augustus had been dead for four months when the Senate met on the first of January to exchange compliments with the Emperor, and to inaugurate the policy of the coming year; the formal business of installing the officials in their chairs was gone through on this occasion, and all the ceremonies handed down from the Republican times were scrupulously observed.

In addition to the routine business, the Senate offered a compliment to Tiberius; they wished him to accept and adopt permanently the title of "Father of his Country," which they had given to Augustus. Tiberius refused it. Suetonius has preserved a few lines of the speech in which he intimated his refusal: "If, however, you shall at any time find reason to mistrust my character, or my devotion to yourselves—and I pray heaven that death may save me from such a change in your opinion of me before it comes to pass—this title will add nothing to my fame, while it will convict you either of precipitation in conferring it upon me now, or of levity in forming a contrary opinion hereafter." The concluding sentence suggests a possible

touch of irony, but it does not give any ground for the assumption that Tiberius foresaw his own unpopularity, or was conscious of being unworthy of the honour, as is suggested by Suetonius. Tiberius despised the empty compliment; possibly he was irritated by the offer, but the tyrant who would think it worth his while to deprecate a compliment of this kind, because he was conscious of his unworthiness, or deliberately proposed to make himself unworthy, is rare in the annals of tyranny.

The Senate then wished to proceed to a ceremony which was not merely ceremonial, but of deep political significance. Cæsar during his short reign had prevailed on the Senate to take an oath individually that they would ratify all his transactions. It was by virtue of this proceeding that Antonius made his snatch at supreme power. After the murder of the Dictator the Senate was still pledged to the ratification of his acts, and Antonius being in possession of the papers of Cæsar was able to produce Cæsar's authority for whatever measures he wished to carry and whatever appointments he wished to make. Augustus had reintroduced the same system, and it had been the custom during his reign to renew the oath on the first day of each official year. The Senate's position was thus reduced from that of a legislative and executive body to that of a purely consultative body; the forms of voting, the forms of the appointment of magistrates might be maintained, senators might be free to express their opinions on questions of policy, or to raise questions and direct the attention of the Emperor to matters requiring his attention, but they were pledged in advance to accept his decision. It is a work of supererogation to enumerate the different magistracies which were combined in the one person of the Emperor, for so long as the Senators took this oath, he was above all magistracies; no power was left to the Senate except that of formally ratifying his decrees. Much the same effect has been secured in English politics by the stringent rules of party Government: members of Parliament do not take an oath to register the decrees of the leaders or leader of their party, but the practical result is the same; whatever may be said in the House of Commons, however violent the debates, the conclusion is foregone, so soon as the Government of the day has declared its intentions; practically no Bill can be introduced without its consent, no discussion held except with its connivance; the majority is pledged to vote as its leaders direct, and the march into the division lobbies is a tedious and superfluous ceremony, an antiquated and exasperating formality. Political purists may

deplore such a state of things, but as a practical expedient it is supremely useful. No country was ever yet governed by an undisciplined debating society; the form of discipline may vary, but the discipline must be there.

Tiberius, however, wished to be a constitutional ruler, and to restore to the Senate its independence; he refused to allow it to swear in advance to ratify his transactions. Here again we have a few lines of his speech: "I shall always be like myself, and I shall never change my character so long as I am of sound mind; but for the sake of the precedent the Senate must be cautious not to bind itself to the transactions of any being who might be changed by some misadventure."

The comment of Tacitus is simply: "He did not, however, gain credit for a constitutional policy in this way. For he had revived the 'Lex Majestatis,' etc., etc."

Deferring for a moment the consideration of the "Lex Majestatis," which was the special bugbear of Tacitus, we may remark that either he did not realize the significance of the act by which Tiberius formally emancipated the Senate from his own control, in which case we attach little value to his opinions as a constitutional historian, or that he did see, but preferred to ignore, in which case we may dismiss his claim for impartiality. It is quite possible that he states correctly the opinion of some contemporaries of Tiberius, who frequently misunderstood a moderation for which they were not prepared, and who had so long acquiesced in the policy of Augustus that any other was beyond their comprehension; but Tacitus was not bound to a similar dullness, and still less are we bound to share his blindness. The act was one of the first political importance, and no modern historian would dismiss a similar action of a prominent statesman with a comment of seven words. We shall see that in this as in other similar measures, Tiberius was unsuccessful in his attempt to restore the Senatorial Government, but we cannot without gross injustice refuse him credit for making the attempt.

The next statement, "For he had revived the 'Lex Majestatis,' etc.," is simply a lie, for the words would naturally be held to imply that the law in question had fallen into abeyance, and was now recalled to activity. Tacitus himself tells us in the very next sentence, that Augustus had extended the application of this law from deeds to libellous writings; nor was the

“revival” of this application anything that we should understand as a revival. The Prætors, on entering office each year, made an official announcement of the sense in which they proposed to interpret the laws during their term of office, and of any modifications which were to be introduced in their procedure. Pompeius Macro, who was one of the Prætors for the year A.D. 15, asked Tiberius whether cases under the “Lex Majestatis” were to be heard. Tiberius replied that the laws must be enforced; he neither made a new law nor revived an old one, nor announced a fresh interpretation of a previous law; he simply announced that the previous practice should be continued, and this in the customary routine of business; it was the duty of Macro the Prætor, not of Tiberius the Princeps, to announce any proposed change in procedure. Tacitus may be right in assuming that it was in the power of Tiberius at this moment to take the sting out of the actions under the “Lex Majestatis,” and that he would have been wise in doing so, but he has totally misrepresented the facts in stating that Tiberius revived the operation of this law.

The history of the “Lex Majestatis” is not absolutely clear, but it is certain that comparatively early in the Republican period the laws provided for the punishment of a Roman citizen who by his acts diminished the majesty of the Republic: cowardice in the field, premature surrender, dishonourable breaches of faith by which the dignity of the State was impaired, were deeds punishable under this law. Its operation was extended under Augustus to words and actions tending to lower the dignity of private citizens and of the head of the State in whom the majesty of the Republic was centred and personified; to publish disrespectful or libellous statements about the Emperor, to plot against his life, to acquiesce in depreciatory criticism of his actions, were all things which could be brought under the “Lex Majestatis”; it dealt with treason, constructive treason, and ordinary libel. The penalties were severe, but the peculiar aggravation lay in the fact that the informer was rewarded. Similar laws are not unknown to modern States, and are not held to be necessarily detrimental to the body politic; at the same time, they are capable of being abused, and under the rule of Caligula, Nero and Domitian, the “Lex Majestatis” proved to be an engine of tyranny; informers drove a profitable trade, and the confiscations made under the law proved a source of revenue to these spendthrift princes. There is, however, no evidence that the grievance had been felt in the reign of Augustus, and Tiberius is hardly to be blamed for not annulling ancient

legislation within six months of his accession, which had as yet caused little inconvenience. If there had been abuses, the remedy lay in the administration rather than in the repeal of the law.

Tacitus had at his disposal the whole body of the transactions of the Senate; if a good case was to be made out against the manner in which the “Lex Majestatis” was worked under Tiberius, all the material was before him; had there been serious abuses, the evidence was accessible. He, however, produces only three cases in the year 15 A.D., which he introduces with the following flourish: “It will be worth while to relate the charges which it was endeavoured to bring against Falanius and Rubrius, equestrians of no particular distinction, so that it may be seen from what beginnings this deadly bane started, with what artful management on the part of Tiberius it crept on, was then repressed, lastly blazed up, and carried everything before it.” Falanius was accused on two charges: he had enrolled a notoriously disreputable actor among the worshippers of Augustus; he had sold a statue of Augustus along with the garden in which it stood. Rubrius was accused of perjury after swearing by the name of Augustus. The charges were dismissed. Tiberius said that Cassius the actor had been included by Livia herself among the actors appointed to give a performance in honour of Augustus; that there was no reason for distinguishing between a statue of Augustus and statues of other gods, which were habitually included in the sale of houses and gardens; that Augustus had not been deified in order that his worship should lead to the ruin of the citizens; and as to oaths taken in his name, they must be treated like oaths taken in the name of Jupiter. He added with characteristic irony: “The gods can protect their own dignity.” These remarks contained in a letter addressed to the Consuls, as soon as the facts came to the Emperor’s ears, stopped the prosecution. The accusers were foolish enough, but it is not easy to see where Tiberius is guilty of encouraging informers in these cases.

The third case was more complicated. Granius Marcellus, the Governor of Bithynia, was accused by two different men at once of two different crimes: his subordinate, Cæpio Crispinus, charged him with extortion in the government of his province; Hispo, a professional informer, according to Tacitus, accused him of defamation of the character of Tiberius, of placing his own statue higher than that of the Cæsars, of cutting the head off a statue of Augustus and replacing it by one of Tiberius. Marcellus was

acquitted of the charges brought by Hispo, which came under the “Lex Majestatis”; the charge of extortion was referred to the court appointed to hear such causes. Here again there is absolutely no evidence that Tiberius was inclined to press charges under the “Lex Majestatis”; the evidence is all in the contrary direction, but Tacitus, with an absolutely diabolical ingenuity, contrives to give his story the necessary twist. “Hispo pretended that Marcellus had made libellous speeches about Tiberius, a charge which it was impossible to escape, since the accuser picked out all the most abominable things in the character of the Emperor, and imputed the statement of them to the defendant. For because they were true charges they were believed to have been uttered.” And yet it was precisely on these charges that the man was acquitted. Tacitus, however, succeeded in stating that Tiberius was a man of abominable moral character, that everybody knew it, and in further suggesting that the statements were made in a court of justice with the acquiescence of the audience. It is not likely that the speech of Hispo was preserved, even if the case went so far as to allow him to make one, but the influence of the senatorial record in favour of Tiberius had to be dispelled, and is cleverly dispelled by the suggestion that the calumnies against Tiberius received a quasi-official sanction in the law court; if they were listened to, their truth was so obvious that nobody protested. After recounting the points in Hispo’s indictment, Tacitus continues: “Thereupon he (Tiberius) lost his temper to such an extent, that breaking his usual silence he declared that he would give his opinion on that case openly and on his oath, in order that the other senators might be obliged to do the same.” Tacitus would like us to think that the display of indignation was caused by the charge of defamation, but there were two other and better reasons for wrath. In the first place, extortionate proceedings in the provinces always stirred the wrath of Tiberius; Bithynia was a Senatorial Province; the Senate were still apt to deal leniently with one of their own order, and Tiberius may have detected indications that they were likely to take this line; in the second place, to couple a charge of extortion with a charge of defamation of the Emperor was a bit of sharp practice; the informer hoped to get his reward under the “Lex Majestatis,” because he believed that the man would be condemned on the charge of extortion, and that the prejudice thus created against him would secure his condemnation on both charges. It was an abominable trick, and Tiberius saw through it.

The conclusion of the narrative of Tacitus is no less ingenious; he says: "There even then remained some traces of expiring liberty. Therefore Gnæus Piso said, 'In what place will you give your opinion, Cæsar? If first, I shall have something to follow; if last, I am afraid I may inadvertently differ from you.' Thoroughly alarmed by these words, and penitent because of the imprudence of his outburst, he allowed the accused to be acquitted of the charges of 'Majestas.' The case of extortion was referred to the assessors."

As these are the only three cases tried under the law of "Majestas" in the first twelve months of the reign of Tiberius, we must admit that he marched very slowly to that tragic wickedness to which Tacitus refers, and by means of an art which is so artful, as to be to our eyes absolutely invisible.

It is further to be remembered that there was formal documentary evidence of the charges, and of their subsequent dismissal, but no evidence can have been forthcoming as to the Emperor's burst of temper, or the acquiescence of the audience in the supposed revelation of his wickedness except tradition and private memoirs. The remark of Gnæus Piso was to the point, but it is evidence of the weakness of the Senate, not of the tyranny of Tiberius.

Tiberius having thus summarily quashed three cases under the "Lex Majestatis," and sent a senatorial oppressor of a province to be dealt with by the constitutional court, may have offended those surviving heirs of the old senatorial tradition to whom the restoration of the Senate implied the restoration of the abuses of the senatorial administration, but he had done nothing tyrannical. The narrative of Tacitus proceeds, however, as if Tiberius had waded knee deep in blood, and triumphed in the perversion of justice: "Not satiated with the processes in the Senate he used to attend the courts, sitting at the end of the tribunal, in order not to remove the Prætor from his official seat." There is no question about the fact; Augustus used in the same unofficial fashion to attend the courts and watch the administration of justice, acting in this respect like any other Senator, but the skilful use of the words "not satiated" gives a sinister significance to an innocent statement.

The administration of justice was not above suspicion in the Roman Law Courts, and the presence of Tiberius among the jury secured a fair hearing. As Tacitus himself says, "Many decisions were given in his presence contrary to the bribes and solicitations of influential men," and then follows the customary Tacitean comment, "But while the interests of truth were being looked after liberty was corrupted." If liberty means the sacred right of senatorial juries and powerful men to secure maladministration of justice by means of bribes and private influence, we can hardly blame Tiberius for "corrupting" such liberty, and may be excused for not seeing any excessive adulation in the remarks which Paterculus makes in reference to the same procedure, "Confidence in the Courts of Law was restored." "With what dignity does he (Tiberius) attentively listen to cases as a senator and juryman, not as Princeps and Cæsar!"

By insisting on an impartial administration of justice, Tiberius made enemies among those who were interested in the contrary practice, and there is no doubt that many a senator relieved his feelings by recording instances of such tyranny in his private diary. It is all a question of point of view; our point of view does not allow us to stigmatize a man as a tyrant who steadily worked for the purity of the law courts.

The next recorded transaction in the Senate was of a different nature; the excessive weight of a road and aqueduct had caused a subsidence of the foundations of a Senator's house, and he had applied to the Senate for compensation; the officials of the Treasury resisted the claim, but Tiberius ordered the value of the house to be paid to the owner. Then follows the inevitable comment: "For he was fond of distributing money in honourable ways, a virtue which he long retained, when he was abandoning all others." Even this remark is, however, not sufficiently damaging for Tacitus, and he carefully provides that his next statement should be calculated to appeal to a well-known weakness. Propertius Celer asked to be allowed to retire from the Senatorial Order on account of insufficiency of means. Tiberius, on ascertaining that his poverty was inherited, bestowed on him a million sestertii (about £8,500). So far so good; no senator could object to this, but something follows: "When others attempted to get the same relief he ordered them to prove their case to the Senate, harsh even in those things which he did in due form, through his excessive love of strict procedure.

For this reason the rest preferred silence and poverty to confession and gratuities.” We shall have to record later on a particularly impudent attempt on the part of an indigent Senator to extort money for the relief of his necessities, and shall find that Tiberius had good reason for insisting that men who claimed the assistance of the Senate should give a full account of their means and of the causes of their poverty; but it is easy to see that the severity of Tiberius would not be popular with the Senate, and that a prejudice could be created against him by giving an example of his strictness in this matter early in his reign. Paterculus, more just than Tacitus, praises Tiberius for the discrimination with which he assisted impoverished Senators.

In the same year there were heavy floods in the Tiber; the lower regions of the city were inundated, many buildings fell, many lives were lost. Asinius Gallus, the second husband of Vipsania, moved that the Sibylline books should be consulted. We are not surprised to hear that Tiberius rejected the motion “on religious no less than practical grounds.” It is an interesting illustration of the curious development of the Italian intellect that these same men who could seriously propose in their solemn assembly to consult the Roman Mother Shipton in a case of this kind should form a bold engineering scheme for dealing with the difficulty. It was suggested, after a committee had reported, that the tributaries which brought the floods into the Tiber should be diverted. The scheme was abandoned, as deputations from the inhabitants of the valleys through which these rivers flowed pointed out that they would suffer serious loss if it were carried out. There were also religious obstacles; these rivers were worshipped, and Tiber himself might object to the proposed diminution of his glorious stream.

We then have a fragment of administration dismissed by Tacitus in a couple of lines without comment. The provinces of Achaia and Macedonia begged to be relieved of the expense of the Senatorial Government and transferred to the Imperial provinces; both of these provinces had suffered in consequence of the Pannonian war. The Imperial administration was less expensive than that of the Senate, not necessarily because the Senatorial Government was corrupt, but because the honours paid to the Senatorial viceroys and their trains were expensive; there was the difference between maintaining a court and paying an official. Adverse comment was in this

case impossible, because when Tacitus was writing, the process of removing the distinction between Senatorial and Imperial provinces was in progress. Trajan would hardly have approved of a reactionary comment, such as Tacitus might have been tempted to make. These provinces were restored to the Senate by Claudius.

This notice is followed by a statement and comment in the best Tacitean style: "Drusus (the son of Tiberius) presided at the gladiatorial shows which he had offered in the names of himself and his brother Germanicus, although too easily pleased with cheap bloodshed, a thing which was full of danger to the commonalty, and which his father is said to have reproved. Different reasons were assigned for the Emperor's own absence from the shows; some said that he disliked a crowd, others alleged his dismal nature and his fear of comparisons, for Augustus had taken part in these events with affability. I should be unwilling to believe that an opportunity was deliberately given to his son of demonstrating his cruelty and exciting unpopularity, though that was also said."

The connection of thought is not quite obvious, for if the gladiatorial shows were popular, and they certainly were popular, how could Drusus incur unpopularity by presiding? There is unhappily no evidence that the populace of Rome ever objected to bloodshed in the arena, and the president at these shows would be more likely to make himself disliked by checking than by permitting or encouraging the slaughter. Nor again is it easy to see the force of the phrase, "although too easily pleased with cheap bloodshed," unless there is a reference implied to the pleasure which Drusus was said to have taken in the executions of the mutineers in Pannonia, an inexpensive pleasure compared with that afforded by the fights of trained gladiators; the word "although" suggests that Drusus could get his bloodshed more cheaply than by giving gladiatorial shows.

Again, if Drusus was wrong in patronizing these shows, how could Tiberius also be wrong in refusing to be present? As a matter of fact, one of the many points in the character of Tiberius which commands our respect is his aversion to the disgusting spectacles of all kinds in which the Roman people delighted. But considerations of this kind did not weigh with Tacitus; he was not interested in being consistent; he found in the memoirs adverse interpretations of the conduct of Tiberius, and he impartially

repeated them, though they were in contradiction with his previous condemnation of Drusus.

A riot in the theatre was the next event of importance. We shall have on a later occasion to discuss the position of the theatres at some length. It is enough to record that on the present occasion opinions were given in the Senate to the effect that the Prætors should be allowed to flog actors. A tribune interposed his veto according to an old constitutional practice, and was roundly abused by Asinius Gallus for doing so. "Tiberius preserved silence, for he conceded to the Senate such phantoms of liberty." However, the veto of the tribune was allowed, "because the sainted Augustus had once declared that actors were exempt from the rods, and it was a matter of conscience with Tiberius not to infringe his utterances." The further proceedings in the Senate on this occasion throw a curious light on the manners of the time. It was decreed that Senators should not enter the houses of the pantomimists, that the Equestrians should not attend them when they went out, that they should not give performances except in the theatre, and that the Prætors should have power to punish the extravagance of the spectators with banishment.

Then the Spaniards were allowed to build a temple to Augustus at Tarragona, thus setting an example to all the provinces. The people of Tarragona had not hitherto been fortunate in their worship of Augustus; they had set up an altar to him in his lifetime, and soon afterwards announced to him radiantly that a palm had grown from it. "It is easy to see that you do not often sacrifice," the old man had remarked.

Petitions were presented against the tax of one per cent. on auctions. Tiberius declared in an edict that the military chest depended on that source of income, and added that the burden of the army was too great for the State unless the soldiers served for twenty years; thus the reduction to sixteen years demanded by the mutineers was set aside.

The two concluding chapters of the first book of the *Annals* are also remarkable in their unfairness or want of perspicacity; and yet the grievances suggested by them have been alluded to again and again by historians of repute without criticism and as real grievances, for it is the melancholy fate of most students of Tacitus to lose all sense of consistency.

“Poppæus Sabinus was continued in the governorship of Moesia, Achaia and Macedonia being added to the province. This too was one of the ways of Tiberius, to prolong the periods of office and to keep most of the officials in command of the same armies or at the head of the same jurisdictions to the ends of their lives. Various reasons are given. Some said that through mere distaste for fresh exertion he treated appointments once made as eternal, others that he was envious and wanted few to enjoy power; some think that selections were a matter of serious anxiety to him because he was cunning; he had little regard for eminent virtues, and again he disliked vices; he feared danger to himself from worthy men, public disgrace from bad men. At length he went so far in this kind of dilatoriness that he assigned provinces to some men, whom he did not intend to leave the city.”

The frequent change of Governors, Generals, and other officials had been the curse of the Republican Government. Again and again it had been necessary, when serious work was to be done, to lengthen the limited terms of office allowed by the old senatorial constitution; the old arrangements had not been made in the interests of the provincials or the administration of public business, but so that the members of the oligarchy at Rome might share and share alike in the plunder of the conquered countries, and that no single one of them should acquire sufficient money or power to set himself above the laws. When the old arrangements were rigorously carried out, no Roman Governor had more than a transitory glance of the province which he occupied; he himself and the train by which he was attended devoted their energies to making as much as they could in the short time at their disposal; the evil had been pointed out again and again; and as Tacitus has himself told us, the burden even of the reformed senatorial government was such that two impoverished provinces begged to be relieved of it. The policy of Tiberius was the only sound one for the provinces, and the sole objection to it was an objection which he, if he had been a suspicious ruler, might have felt to be a strong one. There was a danger that the men who stayed in their provinces long enough to feel their strength might be tempted to set up an independent government. This danger Tiberius preferred to risk, and that he did so acquits him of the charge conveyed in the insinuation that he was jealous of the enjoyment of power by a number of persons. Eventually, as we shall see later on, he made the Governors of provinces Secretaries of State for the countries which they governed; they

did not leave Rome, but were the channels through which the business of the provinces was conducted at Rome. The language which Tacitus here uses is not the language of an experienced official working under Trajan with the records of a century of the Empire behind him, but the language of a reactionary of the reign of Tiberius. The breed of Romans who could see nothing in greater Rome but a field for plundering in the name of governing never quite died out; even in Trajan's reign there were probably more aspirants than offices, and many discontented men, who thought that there were not sufficient opportunities of promotion. Tiberius certainly was careful in his selection of the great officials, but his caution was in the interests of the unhappy provincials. There were doubtless many noble Romans in his day who believed themselves to be possessed of the eminent virtues necessary to a provincial governor, but who somehow failed to secure promotion.

Tacitus on this occasion, as on many others, skilfully substitutes contemporary comment for contemporary evidence. All that he really tells us is that some of the contemporaries of Tiberius disliked his policy; what he wishes to tell us is that the government of Tiberius was radically bad, and that his contemporaries were right in saying so.

The last chapter deals with the elections of the Consuls, a subject which Tacitus professes to find obscure. The reality of election by the *Comitia Centuriata* had already been abolished; it had become a mere form, and nobody noticed its abolition; Augustus practically appointed the Consuls; Tiberius seems to have wished the Senate to elect them, but found that there were practical difficulties. After mentioning various ways in which Tiberius secured the election of his own candidates, Tacitus says: "Generally he discoursed to the effect that those men only were candidates whose names he had given to the Consuls, but that others were at liberty to stand if they had confidence in their own influence or deserts. This was plausible enough in words, but meaningless or insidious in fact, and the more it was involved in the appearance of liberty, likely to break out into the more deadly slavery."

This imposing malediction ends the book. As a matter of fact the Consular Office was by this time purely ornamental.

XIV

The Case of Scribonius Libo

ENOUGH has been said in the previous chapter to show the bias under which Tacitus wrote, and the dexterity with which he substituted inferences and insinuations for evidence. It must, however, be conceded to Tacitus that the operation of the “Lex Majestatis” was attended by many and serious evils; for those evils Tiberius and the men of his time were not responsible. The period was one of transition in most departments of social organization, and especially in all matters connected with the administration of justice. Under the Republic every head of a great family was in theory, and even in practice, a skilled lawyer; there was no legal profession. The Prætors who presided in the law courts were not specially trained judges; any Senator might become a Prætor, and preside in one of the law courts for his year of office; similarly any Senator might be called upon to take his place as a juryman, and give his verdict after listening to the evidence and the speeches of counsel. In course of time the Equestrian Order shared this duty with Senators.

Similarly there was no such thing as a professional advocate; every Senator was bound to plead on behalf of his own clients, and no Senator could recover fees as an advocate; indeed, advocates were strictly forbidden to ask for fees. The relation between the advocate and his client was held to be a personal one, not professional. The word client still in use reminds us of this relation; we have lost the corresponding word “patron,” which Tacitus and Suetonius employ precisely in the technical sense of advocate. Such a system could not be maintained under the increased complexity of life caused by the expansion of Rome, and the professional advocate was inevitably evolved; “patrons” who were noticeably successful in winning their cases naturally attracted “clients”; and hence we have even in the Republican period men occupying positions not easily distinguishable from

those of our own barristers, and in virtue of various legal fictions actually making large fortunes by the exercise of their profession. Cicero and Hortensius were eminent examples of the non-professional and yet professional advocate.

The fact that there was no organized and officially recognized body of men to plead in the law courts caused little inconvenience in private cases. A man who defended the interests of a friend, or brought an action in his name, was not in an invidious position, even though by well known evasions of the law he received a consideration for his friendly services. Again so long as the senatorial constitution existed, the prosecution of offenders against the State was an honourable public duty, and young men took their first step in a political career by conducting a State prosecution or defending the delinquent. Such prosecutions were political rather than legal; they were episodes in a never-ending party struggle; they resembled the impeachments and attainders of our own parliamentary history. The introduction of the monarch into the Roman Constitution created a state of affairs for which the Constitution had not provided; the position of the head of the Government was not defined; it was only gradually and by a slow process of development that his person and his good name were protected from attack. We do not possess the text of the Julian laws passed in the reign of Augustus, whose object was in part to protect the first person in the State, and to make offences against his person and reputation offences against the majesty of the State; but we know enough of their nature to be certain that Augustus with all his wisdom found an unhappy solution of a real difficulty. The Roman Republic was not provided with a Public Prosecutor, nor with law officers of the Crown, nor could Augustus be provided with such protectors; he could neither through his agents nor in person bring actions against offenders under the "Lex Majestatis," for in such a case the verdict was a foregone conclusion. In order, therefore, that such cases should be spontaneously brought before the courts, it was enacted that the prosecutor, if successful, should receive all or part of the fine. Men were thus tempted not only to get up cases, but to provide that the evidence should lead to a confiscation of the goods of the defendant; the greater the penalty, the greater the reward of the prosecutor. Speculations in promoting conspiracy and then informing were the natural result. It is easy at this distance of time to condemn the system, and easier still to forget the long growth of habits and prescriptions which have rendered trials for

treason and constructive treason and for libelling the Sovereign almost obsolete in our own country. In our happy ignorance of the conditions which made such processes possible and necessary we may be tempted to ask with surprise why Tiberius, if he were really a wise and moderate man, did not abolish or amend the "Lex Majestatis." The hostile writers Tacitus and Suetonius tell us repeatedly that Tiberius never made use of this law, or of any law, as a means of filling his treasury. The examples of prosecutions under this law given by Tacitus almost without exception, and invariably up to A.D. 30, show Tiberius moderating the zeal of the prosecutors, and lightening the sentences pronounced by the Senate; in fact, the abuses of the law are perpetrated by the prosecutors and the Senate, not by Tiberius; and the Emperor may reasonably have held that as it was always in his power to check the abuses of the law, its amendment, a matter of great difficulty, might be left to time, and that in accordance with Roman custom the desired result would be achieved better by an accumulation of precedents than by a formal enactment.

The case of Scribonius Libo is interesting, less as affecting the character of Tiberius than as throwing a light upon the manners of the time. Tacitus does not provide us with the formal indictment, nor with the evidence; he is pleased to think that the case affords a remarkable illustration of the horrors of the "Lex Majestatis," and omits or insinuates at discretion. The case as represented by him seems to have been rather trivial, and more trivial to us than to the Romans of that time, because we no longer believe, or believe that we no longer believe in magic.

Drusus Scribonius Libo was a relative, though not a very near relative, to members of the Julian house. Scribonia, his great-great-aunt, was the first real wife of Augustus and the mother of Julia; he was therefore a distant cousin to Agrippina and her brothers. His grandmother, the niece of this Scribonia, was wife to Sextus Pompeius, and thus the young man was a descendant of the great Pompeius. Tacitus speaks of him as a young man at the time of the prosecution, but this epithet is used by the Roman writers technically of men between the ages of seventeen and forty-six, and is therefore applied to men past their callow youth, such as Germanicus and Drusus; and as Libo had been Prætor, he was certainly old enough to manage his own affairs. Libo, according to Tacitus, fell into the hands of a Senator named Firmius Catus, who encouraged him in vicious courses and

lent him money, in order to become fully possessed of his secrets. This same treacherous adviser stimulated his ambition, and reminded him of the splendour of his ancestry; he urged him to listen to the promises of Chaldæans, to consult the mysterious rites of magians and interpreters of dreams. When Firmius had sufficiently implicated his victim in doubtful proceedings, he asked for an interview with Tiberius, using an Equestrian, Flaccus Vescularius, a very intimate friend of the Emperor's, as intermediary. Tiberius refused the interview, saying, according to Tacitus, that he could get any further information through Flaccus. "Meanwhile" he made Libo prætor, frequently invited him to dinner, discovered no irritation either by look or word, and "preferred to know all his deeds and words, although he could have stopped them."

In other words, the folly of Libo having been brought to the notice of Tiberius, he paid no very serious attention, and endeavoured to demonstrate the error of his ways by admitting him to familiar intercourse, for vague though the historian's "meanwhile" may be taken to be, there is no improbability in assuming that the first experiment of Catus was foiled by the Emperor's common sense.

The next stage in the proceedings was more exciting. Libo endeavoured to bribe one Junius to call up the spirits of the dead by means of incantations. This person, probably a professional necromancer, gave information to Fulcinus Trio, a professional prosecutor so far as such a thing existed at the time. "The ability of Trio was well known among the accusers of those days, and his eager love of notoriety." Trio did not allow the grass to grow under his feet; he held a "plump juicy offender" in his hands, and was determined to make the best of him; he went to the consuls and demanded a hearing before the Senate. Libo, for his part, was not idle; on hearing of his peril he put on mourning and, accompanied by ladies of rank, visited the palaces of the great, implored his family connexions, demanded the aid of their voices to encounter his danger; but all refused; their excuses were different, but fear was the real reason for all. Fear of what? Tacitus leaves us to infer that Tiberius was the object of dread, but even if we allow that the historian was correct in assigning fear as the motive of abstention from assisting Libo, there was another possible cause of fear. The black art was no laughing matter to the men and women of those days, and a fashionable gentleman, who was suddenly discovered to

have been engaged in an attempt to raise the dead, was an awe-inspiring object in spite of his train of aristocratic ladies.

On the day of the meeting of the Senate Libo was carried in a litter to the doors, either pretending illness or worn out with anxiety and vexation; he leaned on his brother, and appealed to Tiberius by word and gesture, who for his part preserved the immobility proper to his position. In due time the Emperor read the declarations aloud and the names of their authors, in such a way as not to indicate his own opinion. By this time Trio was not the only accuser; Catus was there, Fonteius Agrippa and Vibius Serenus, Senators of repute, all anxiously offering information, and wrangling between themselves as to which of them was to have the honour of making the speech for the prosecution. Libo had no defender. At last Vibius was allowed to state the charges; there seemed to be little reason for alarm in them. Among other things Libo had asked his diviners whether he should have enough money to cover the Appian Way with coin from Rome to Brindisi.

But in spite of such abundant evidence of folly, the audience were horror stricken when a book was produced, written in Libo's own hand, in which the names of the Emperor and leading Senators were found with strange and occult marks appended. This gentleman, who wanted to converse with the dead, was, if a fool, a dangerous fool. It was decided to question his slaves; but as they could not legally bear evidence against their master, it was necessary to transfer them to another owner, and a remand was granted in order that this might be done. This skilful evasion of the law of evidence is attributed by Tacitus to the cunning inventiveness of Tiberius; but it is not probable that the Romans had waited so long to discover a solution of a frequently recurring difficulty. Libo went home, entrusting his last entreaties to the Emperor to the care of a relative. A guard was set round his house; the soldiers were even heard and seen in the outer hall. Libo ordered himself a magnificent dinner, but even in the midst of the sumptuous repast his craven spirit gave way; he handed a sword to his slaves and implored them to kill him. In the confusion that ensued the lights were overturned, and the miserable man succeeded in taking his own life in the funereal darkness. As soon as his death was made known the soldiers departed.

In spite of the suicide of the delinquent the case was continued on the following day; but Tiberius took an oath that he would have asked for the culprit's life, even though proved guilty, had he not anticipated the sentence. Libo's goods were divided between his accusers, and extraordinary prætorships were given to such of them as were of senatorial rank. Various Senators then proposed measures indicating their opinion that the case had been a very grave one. Libo's image was no longer to be included among the family busts; no Scribonius was ever again to be called Drusus; a public thanksgiving was to be held; gifts were to be offered to Jupiter, Mars and Concord; the day on which Libo killed himself was to be a holiday for ever. Decrees of the Senate were also passed, expelling "mathematicians" and magians from Italy; two of their number were summarily executed.

Tacitus stigmatizes all these proposals, so strangely disproportionate to the event as it appears to us, as acts of adulation to Tiberius; but after all Tiberius was not the only person concerned, nor indeed chiefly concerned. There is no evidence of a plot against Tiberius more than against the other Senators, whose names were included in the mysterious notebook.

As a matter of fact, on this occasion as on many subsequent occasions, the Senators lost their heads; they, and not Tiberius, were responsible for the excesses of the sentence and the subsequent transactions. The fear of magic was strong upon them, as their subsequent action in driving the practisers of magic arts from Italy demonstrates. They did not succeed in doing so, and similar equally futile senatorial decrees recur again and again. These solemn rulers of the world behaved like little children in their terror of the black art; they believed in incantations, divinations, signs and wonders, spells and imprecations far more strongly than they did in the precepts of the Stoic and the Epicurean. Here and there we find one of the ancients superior to the prevailing superstitions, but only here and there; and in the Roman palaces, no less than at the court of Louis XIV., the plotter and the poisoner were hand in hand with the crafty charlatans, or self-deceived miracle workers, who haunted the private apartments of men and women of rank.

Tiberius could not have resisted the panic of the Senate on this occasion, even if he had had the opportunity; we shall find magic a couple of years later playing an important part in a more notable prosecution.

Libo was evidently a profligate fool, and not likely to have been implicated in a serious plot; but it is not impertinent to ask where Tacitus got his detailed information; the case is hardly mentioned by other authors. The scene of the suicide is graphic, the authority whom Tacitus uses is clearly in sympathy with Libo. Now Libo was, as we have seen, related to the Julians, and it is at least probable that a version of the story was supplied by a correspondent to Agrippina, who was at the time in Germany, and so became incorporated in the memoirs which she handed down to her daughter, who again used it in the memoirs which Tacitus tells us that he saw.

The two “mathematicians” who were summarily punished suffered different penalties: Pituarius was thrown from the Tarpeian rock, Marcius was proceeded against “in the manner of our forefathers”; the trumpet was sounded, calling the centuries to the Campus Martius, the unhappy man was then bound to a stake, and beaten with rods till he was dead, after which his head was cut off; these privileges he enjoyed as being a Roman citizen infected with a foreign superstition. It is to be hoped that he really was a charlatan, and not a genuine man of science, who paid the common penalty for being in advance of his age.

XV

Germanicus and Piso

THE death of Germanicus occupies a larger space in the annals of Tacitus than the actual importance of the event would seem to require. The space given to the transactions in the East by which it was preceded, and the trial of Piso by which it was followed, amounts to nearly a sixth part of the books dealing with the reign of Tiberius; or perhaps it would be more correct to say that the aspects of the premature death of Germanicus, which were really important, receive small attention in comparison with those which were less important.

The death of Germanicus opened the way to the long series of plots which rendered the life of Tiberius intolerable, and eventually overwhelmed him in the disastrous events of the year 30 A.D. When Germanicus started for the East in the year 18 A.D., he was the destined successor of Tiberius, with a possible coadjutor in the person of his first cousin Drusus, the two men being legally brothers by the process of adoption. If Tiberius had any personal preference, he unquestionably inclined to Germanicus, to whom he showed every mark of favour, and whose political training he was now completing by sending him to study the Oriental difficulties of the Empire. Drusus at the same time was promoted to his brother's former position in the West, the still disturbed provinces on the frontiers of the Rhine and Danube being entrusted to his care. Had both these men lived, there would have been no Sejanus, and probably no Caligula. Tiberius himself would have permanently enjoyed for ever the excellent reputation which he won during the first sixteen years of his reign, but an unkind destiny willed it otherwise.

There was no reason why Tiberius should dislike Germanicus, to whose father, as we have seen, he was attached by an affection remarkable even

between brothers, and Germanicus himself had on an occasion, which strongly tested his loyalty, shown that it could stand the test. All the authorities, Paterculus included, speak highly of Germanicus; he was an able general and a lovable man. Drusus was a less attractive character, somewhat rough, severe and passionate, but whatever his weaknesses, he had the merit of being attached to his cousin and nominal elder brother; there is no trace of any jealousy between the two men, and their unity was further cemented by the fact that the sister of Germanicus was the wife of Drusus.

While the three representative men of the Imperial family were thus in harmony, and lived on terms of mutual trust and helpfulness, the case was different with the women. Livia, the widow of Augustus, and Agrippina, the daughter of Julia, were separated by ancient hatreds and fresh causes of offence. If the whole private diary and correspondence of Agrippina had been preserved to us, we should probably be in a position to compare Livia with Madame de Maintenon, as she is exhibited to us in the lively letters of that sturdy little hater, Charlotte Elizabeth, Duchess of Orleans, for the memoirs of Agrippina, filtered through her daughter's editing, and the mind of a man of letters indicate no want of a proper animosity, no desire to bury old grudges.

Livia did not acquiesce willingly in her diminished glories as dowager; if she had proposed to herself—and there is every reason to suppose that she did so propose—to continue to be the power behind the throne in her son's reign, as in her husband's, she was disappointed. While studiously paying every sign of respect to his mother as his mother, and even stretching points in her favour, Tiberius refused to acknowledge her as a politician; such honours as might decorously be paid to the widow of Augustus, such consolations of her affliction as expressions of public sympathy could afford, he readily sanctioned, but he no less resolutely drew the line at the point at which complimentary and consolatory decrees seemed to involve the recognition of a governing Empress Dowager. Few things can have been more distasteful to Livia than the reversion to the Senatorial Constitution attempted by Tiberius. She could no longer inspire "transactions of Cæsar," to which the Senate was pledged in anticipation, nor was Tiberius inclined to let the foreign policy of Rome slip out of his own hands into that of the Jews and Greeks who enjoyed the confidence of

the august lady. A king of Cappadocia, of whom Tiberius disapproved, accepted an invitation from Livia to come to Rome and depend on her influence to win the favour of her son. The result was so disappointing that the aged monarch died of distress of mind; his kingdom was turned into a province. Tiberius would stand no tampering with “native” princes. Nor was Livia allowed to put herself above the laws at Rome. A lady named Urgulania, who was a friend of hers, incurred debts, and was proceeded against in the court of the Prætor Urbanus. She took refuge with Livia, who urged her son to defend the lady’s cause. Tiberius undertook to do so, but by very deliberate walking, and exceptional graciousness to the friends whom he encountered on the way, contrived to arrive too late. Urgulania lost her case, and Livia had to pay her friend’s debt. The Prætor in this case was Lucius Piso. Shortly afterwards this same Urgulania refused to give her evidence in a court of law, and required the officials to take it in her own house, a privilege which belonged to the Vestal virgins. Urgulania was not a Vestal virgin “emerita,” determined to retain the advantages of her previous position with the help of Livia, for we find her later on sending a dagger as a significant hint to a scandalous grandson.

Tiberius was certainly in a very difficult position with regard to his mother. His natural sense of decorum, and possibly his natural affection, made him shrink from the very appearance of treating her with disrespect; but her domineering tendency, encouraged by years of unquestioned sway during her husband’s lifetime, tempted her to exaggerate the real claims which she had upon his dutiful affection; nor were the ladies of her household backward in regretting the change of circumstances, and in pointing out how different things had been in the lifetime of the sainted Augustus. Delicate as they were in any case, the relations between mother and son were rendered still more susceptible to disagreeable incidents by the presence of the aggrieved Agrippina, to whom mother and son alike were detestable usurpers, enjoying as the result of their nefarious intrigues the inalienable rights of the true Julians. Thus both the belligerent parties were opposed to Tiberius; his mother because he prevented her from continuing to enjoy a power which she had long exercised, his daughter-in-law, stepdaughter and niece, because in her opinion he usurped a power which she ought to have enjoyed, and because she had learned to regard her mother as a saint martyred by the agency of her stepfather in the cause of the Julian dynasty. There was no reason why Livia should like Drusus better

than Germanicus; both her grandsons were alike leagued with her undutiful son to keep the shadow of petticoats off the Senate House.

Tiberius made his arrangements without taking the ladies into consideration. There was one member of the family whom he may have been glad to please, the beautiful Antonia, the widow of his brother Drusus and the mother of Germanicus. It is to the credit of this lady that her name is never mentioned in the list of intriguers; she escapes both praise and censure, though her persistent determination to live in retirement as a widow might have attracted the attention of those who found so much to admire in the “impenetrable chastity” of Agrippina. Perhaps the fortress of her virtue was less frequently assailed by those storms, assaults, blockades, and circumvallations which, we may presume, rendered the epithet no hyperbole in the case of her daughter-in-law.

The affairs of the East needed a comprehensive survey. Achaia and Macedonia had recently passed into the Emperor’s hands; the Senatorial Government had been defective in Bithynia; several of the Greek cities on the Ægæan had suffered severely in a disastrous earthquake; Cappadocia was being organized as a province; there were dynastic troubles in Armenia; the Parthians were showing signs of restlessness; the native princes on the Syrian frontier were also unsettled by questions of succession; Judæa was more than usually unquiet. Germanicus was therefore despatched to the East with proconsular powers, which gave him an authority higher than that of all proconsuls or governors in their own provinces, and with a commission to settle all differences on the spot according to his own judgment. So large a share of power had never been entrusted to any one except Augustus and Pompeius. On a previous occasion when the same services were required, Augustus had himself visited the East and conducted the business in person, but he was then a younger man than Tiberius was now, and he was able to leave behind him in the person of Mæcenæ a more experienced, or at least more trustworthy, statesman than any who were within reach of Tiberius. Drusus, though a good soldier, had not shown statesmanlike qualities.

At the same time a new Governor was required for Syria, the richest of the Imperial Provinces, for its capital, Antioch, was the second city of the Empire, the emporium where East met West. To this post Tiberius appointed Gnæus Piso. Gnæus Piso belonged to a family which had long maintained

its opposition to the Cæsars, although the last wife of Julius Cæsar, Calpurnia, had been a daughter of the house. Republican ideals were still cherished in this, one of the most ancient and noble of Roman families. The efforts of Tiberius to restore the Senate had not had a happy influence upon the two leading members of this house; one brother, Lucius, threatened to retire from public business altogether, disgusted with the obsequiousness of the Senate; the other, Gnæus, had distinguished himself by an aggressive outspokenness which threatened to breed unnecessary difficulties. Lucius was the Prætor who had refused to allow Urgulania to avoid paying her just debts, and for this reason it is improbable that Gnæus was in the confidence of Livia. He had rendered himself undesirable at Rome, but Tiberius had no doubt of his integrity, and thought that if he were honourably withdrawn for a time from the centre of affairs, public business would march more smoothly. Tiberius in fact was beginning to learn that it was not altogether wise to revive the pretensions of the old families.

Unfortunately Tiberius did not foresee the possibility of friction between Germanicus and Piso; still less did he take into account the results of the juxtaposition of two such explosive fireships as Agrippina and Plancina the wife of Piso; and he forgot that Plancina was among the devoted friends of Livia, who had a long-standing personal interest in the affairs of Syria and its adjacent principalities. It was the scene of her first diplomatic triumphs, the place where she had cemented by the interchange of presents a friendship with that worthy pater-familias Herod the Great, whose posterity shared with Jerusalem the honour of being a meeting point of the intrigues of the Jews of all nations.

The story of the events which followed is so obviously coloured by the partisanship of the chief actors that much of it must be far from the truth. It is not, for instance, easy to believe that Piso, having no authority outside his own province, would follow Germanicus to Athens, where Germanicus had authority, and take a pleasure in reversing his compliments to the Athenians. There is no inherent improbability in the action ascribed to Piso inside his own province, where he practically refused to recognize the proconsular power of Germanicus, but he could hardly with safety have followed the footsteps of Germanicus eastwards, loudly proclaiming his insubordination in places where he had no more right to express an opinion than a private citizen; had he done so, a swift Liburnian galley would have brought his

letters of recall. Idle stories of this kind probably took their origin at a later period, and were communicated with mistaken zeal to Agrippina by her sympathizing friends.

At first all went well with Germanicus, and his commission bore the appearance of a holiday progress. He met his brother Drusus at Nicopolis, the city which had been built to commemorate the victory off the promontory of Actium, and they celebrated the glorious event in company; he then went to Athens, and up the Ægæan into the Euxine, redressing grievances and visiting holy places. In the course of the tour Agrippina's youngest daughter Julia was born at Lesbos, destined afterwards to marry M. Vinicius, the friend of Paterculus. On the return journey southwards Germanicus met the convoy of Piso at Rhodes on its way to Syria, where, the historian tells us, that Germanicus, though well aware of the persecution of Piso, saved his ship from destruction in a storm. Germanicus made his way from thence to Armenia and the frontiers of the Empire, where he conducted his negotiations with success. Meanwhile Piso hurried on his way to Syria, and at once began to make favour with the army and the residents. His indulgences to the troops were such that the soldiers called him "father of the legions"; while Plancina, to the horror of Agrippina, forgetting the limitations of her sex, took part in drills and parades.

The first overt act of insubordination on the part of Piso was a neglect to forward some cohorts to Germanicus in Armenia. On the return of Germanicus he met Piso, and an attempt to adjust their mutual differences was rendered ineffective by the mischievous offices of friends. Germanicus himself was inclined to take a lenient view, but he was influenced by the suggestions of those who told him exaggerated stories about Piso and his sons and Plancina. A private conference was held, but the two men left it open enemies. After this Piso publicly resented all honours paid to Germanicus, and Plancina was particularly annoyed because her somewhat lucrative protégé Vonones, a former aspirant to the Parthian crown, was removed by Germanicus at the request of the Parthians to a safer distance from the frontier.

Germanicus finding that the best part of his work was accomplished, and that life in Syria was not pleasant, made a tour in Egypt, going up the Nile as far as Elephantine and Syene, then the limit of Roman rule. It is pleasing to find him visiting the same sights that attract the modern

traveller, over whom he had an advantage in that the priests were able to read the inscriptions for him.

In visiting Egypt, Germanicus inadvertently broke a decree of Augustus, which forbade any Roman Senator or Equestrian to enter that private domain of the Emperor without special permission. Tiberius had written to bring this to his notice, but the letter arrived too late.

On returning from his holiday tour in Egypt, Germanicus found that all his arrangements in Syria had been reversed by Piso, his disposition of the legions had been changed, and his formal alliances with the cities modified. Stormy scenes followed, and Piso decided to leave Syria, so says our narrative; but the more probable order of events is that Piso was ordered by Germanicus to withdraw, and was at Seleucia on his way home when news reached him of the illness of Germanicus. We are not told the nature of this illness. Agrippina and possibly Germanicus himself jumped to the conclusion that poison and spells were the cause of the sickness. Horrible things were found in the house; fragments of human remains embedded in the floors and walls; bits of parchment covered with spells; leaden tablets inscribed with the name of Germanicus, and other mystic apparatus with which it was customary to consign the spirit of an enemy to the shades. The illness seems to have been a lingering one. Piso hovered off the coast, approaching or withdrawing as the symptoms were declared to be better or worse. In the end Germanicus died. Agrippina and her friends were so fully persuaded that he had been the victim of poison or witchcraft, that they exposed his body naked in the market place at Antioch, confident that the flames of the funeral pyre would fail to devour his heart, for it was well known that the heart of a man who had been poisoned was incombustible. When the ceremony was over, Agrippina gathered up the ashes and started with her youngest children for Rome.

Meanwhile the Senators and other officials who had been in the train of Germanicus treated the Province of Syria as though it were vacant, and appointed Gnæus Sentius, one of their number, Governor in the place of Piso. There was no time to send to Rome for orders. Germanicus had cashiered Piso, but had died before appointing his successor, and it was necessary that there should be some one in authority, in case Piso returned and attempted to resume the government of Syria.

Piso had travelled on his homeward journey as far as Cos, when the news of the death of Germanicus reached him. He made thanksgiving offerings to the gods, and Plancina, who had recently lost a sister, threw off her mourning. Consultations were held as to the best course to pursue. Marcus Piso, the younger of his two sons, urged his father to return to Rome. So far he had done nothing unpardonable, but an attempt to resume the government of the province meant nothing less than civil war. Other and less prudent friends advised Piso not to recognize the appointment of Sentius, and to rely on his popularity with the legions. Tacitus puts into the mouth of these advisers the following astounding statement, which he probably found in those memoirs of Agrippina which are not evidence: "You have the complicity of Livia, the favour of Cæsar though hidden, and none mourn more loudly for Germanicus than those who are best pleased at his death."

Piso and Plancina proved to have miscalculated the affection of the legions, and an attempt to recover Syria by force was defeated by Sentius, who gave the unhappy candidate for power ships and a safe conduct to Rome.

Agrippina meanwhile had traversed the seas and arrived at Brundisium with the vase containing her husband's ashes early in the year 20 A.D. The illness and death of Germanicus had excited much feeling in the city and Italy, though we are not bound to believe in the dark suggestions of the historian that the populace had assumed the complicity of Tiberius in his nephew's death. The widow made the best of her affliction, and contrived to give the procession to the Mausoleum of Augustus, in which her husband's ashes were deposited, the aspect of a public demonstration in favour of the Julian race. Neither Tiberius himself, nor Livia, nor even the mother of Germanicus, were present at this ceremony. Doubtless they had sufficient reasons, but their absence unfortunately favoured the credulity of those who at a later time listened to the lamentations of Agrippina, and her passionate assertions that her husband had been done to death with the connivance of his own kith and kin.

Piso returned slowly to Rome. He sent his son ahead with letters to Tiberius, in which he represented himself as the aggrieved party, and accused Germanicus of debauchery and arrogance; he sought on his way an interview with Drusus, who had returned to Illyria after his brother's

funeral. Drusus received him coldly, and dismissed him with words so politic that they were thought to have been suggested by a cooler head. The day after he arrived in Rome, Fulcinius Trio, the prosecutor of Scribonius Libo, took the first formal steps in a process against him.

The story of this famous trial is so narrated by Tacitus as to convey the impression that there was a serious miscarriage of justice, and that the oppressors of Germanicus were protected by the influence of Livia and Tiberius; but, as usual, the narrative, wherever it depends upon accessible documentary evidence, does not support such a view of the case.

Accusers and accused alike pressed Tiberius to hear the case himself, knowing “that he was impervious to the influence of rumour,” and fearing the excitability of a large court. Tiberius, after hearing the evidence, referred the whole case to the Senate. Five of the most respected men in Rome refused to act as counsel for the defence. Among the three who did eventually defend Piso was Marcus Lepidus, whom we have already seen in possession of the full confidence of the Emperor. On the day of the trial Tiberius opened the proceedings in the Senate; he said that Piso had been a trusted officer and friend of Augustus, that he had himself assigned him as an assistant to Germanicus in the administration of the East with the authority of the Senate. It was the duty of the court to decide without prejudice whether he had exasperated the young man by insubordination and opposition and rejoiced over his death, or had killed him with malice and aforethought, “for if the subordinate officer exceeded the limits of his office, if he refused to pay proper respect to his superior, and rejoiced over his death, and my sorrow, I shall hate him, and shall exclude him from my house, and punish his enmity as a private matter, not with the power I hold as Princeps. But if it is discovered that a crime in bringing about the death of any man requires punishment, then do you confer upon the children of Germanicus and us his relatives our proper consolation. And at the same time you must carefully consider this point, whether Piso handled the armies in an insubordinate and seditious fashion, whether he tampered disloyally with the affections of the soldiers, whether he attempted to recover the province by force of arms, or have the accusers exaggerated these charges? I may say that I have good reason to be annoyed with their exercise of partisanship. For was it proper to strip the body, to expose it to the eager scrutiny of the eyes of the vulgar, and even to allow statements to

spread among foreigners that he had been poisoned, if this was still uncertain and a subject of inquiry? I mourn for the loss of my son, and always shall mourn, but I do not prevent the accused from advancing every fact by which his innocence may be supported, or his guilt extenuated if there was any provocation on the part of Germanicus; and I implore you not to take accusations for proved facts, because the case touches me nearly personally. I beg those who have been led by the ties of kindred or faithful friendship to act as counsel for the defendant, to help him in his danger as far as their eloquence and diligence allows; and I invite the prosecution to similar efforts and similar firmness. In one point only we raise Germanicus above the law, viz., in trying the case in the Senate House rather than in the forum, before the Senate and not before a jury. Let everything else be handled with a like moderation. I would have no one pay regard to the tears of Drusus and my own sorrow, nor to any fictitious charges made against us.”

Such a speech was doubtless disappointing to Agrippina, who had already in her own mind condemned Piso and the amazonian Plancina without benefit of clergy; she knew Germanicus had been poisoned, and bewitched; she knew how it had all been done by means of a celebrated poisoner named Martina, who had been fetched from the East to give evidence, and had died mysteriously at Brundisium on the way. Had not the poison been found after her death tied up in her hair? What further evidence was wanting? And why did the woman die so conveniently for the purposes of those who wished to shield the enemies of Germanicus? The poor lady had troubles enough, left a widow with a family of six young children, marked out for the enmity of a malignant and all powerful grandmother-in-law, but her inclination to regard herself as the victim of persistent ill-usage is not evidence; and though her contemporaries would have had no difficulty in believing in the effects of witchcraft, the case against Piso is rendered weak to us by the introduction of this element; and the more so that the prosecution was not able to prove the use of poison, or even to suggest a favourable opportunity for its administration.

As the case proceeded it became quite clear that the charge of poisoning could not be sustained, but that Piso had been guilty of serious political offences. Meanwhile there was considerable agitation among the people, to whom the sensational side of the trial alone appealed, and who

threatened violence if the murderer of Germanicus escaped by the votes of the Senate. This at least we are told by Tacitus, though here again it is more than probable that the public excitement existed chiefly in the imagination of Agrippina, who always saw herself playing the part of injured heroine to a sympathetic audience of the Roman people. Riots were not dreaded at Rome since the police of the city had been organized and the Prætorian guards placed in barracks.

As the case became exclusively political, Plancina naturally dropped out of it; “machinations of Livia,” shrieked Agrippina, and Tacitus has repeated the shriek.

The case had an abrupt and tragic termination. Piso, seeing that the hostile evidence steadily accumulated, and that Tiberius preserved an absolutely impartial and judicial attitude, killed himself, leaving a letter to Tiberius, from which the following extract has been preserved: “Crushed by a conspiracy of my private enemies, and the hatefulness of a false accusation, inasmuch as no opportunity is left for the truth and the establishment of my innocence, I call heaven to witness, Cæsar, that I have lived loyally to you, and dutifully to your mother; and I implore you to take charge of my children, of whom Gnæus Piso was certainly not concerned in my fortunes whatever may have been their character, for he spent the whole time at Rome, and Marcus Piso dissuaded me from returning to Syria. And I wish that I had rather given way to the counsels of my young son than he to those of his aged father. I beg the more earnestly that his innocence may not pay the penalty of my perversity. I beg for the safety of my unhappy son in the name of forty-five years of loyal duty, of a consulship shared with yourself, of the confidence placed in me by Augustus, of the friendship with yourself, and as a last request.” He made no mention of his wife in this dying petition. Tiberius exempted Marcus Piso from any complicity in the charges brought against his father, and also spoke on behalf of Plancina. A two days’ inquiry was held into her conduct, but to the disgust of Agrippina she was acquitted. Her escape was attributed to the influence of Livia.

The Senate passed severe sentences upon the sons of Piso, which Tiberius, as usual, considerably modified. Honours and rewards were bestowed on the accusers, but Tiberius, in promising Fulcinus Trio office later on, significantly hinted that he was in danger of spoiling his eloquence by excessive violence. It had been in the power of Tiberius to confiscate the

property of Piso, but he bestowed it upon his son Marcus. Tacitus comments in characteristic fashion—"Superior to the temptation of money, as I have often recorded, and the more readily appeased at that time through an uneasy conscience about the acquittal of Plancina."

There certainly does not seem to have been any miscarriage of justice, for even if Piso was sincere in his protestations of innocence, and really was innocent of the technical offence of waging civil war, his case was never concluded, and he was never condemned. It pleased Agrippina and her friends, and it pleased the sensation mongers of the capital, to see in the case not a political trial, but a demand for vengeance on the murderers of Germanicus. In this demand they were disappointed, for Plancina, the supposed culprit, escaped altogether, Piso died uncondemned by his own hand, and whatsoever punishment fell upon his two sons was inflicted on them as the sons of a man who had been disloyal to the State, not as the sons of the murderer of Germanicus. It was therefore superfluous on the part of two Senators to propose that altars should be erected to Vengeance, and of another that thanks should be returned to certain members of the Imperial family because Germanicus had been avenged.

There is, in fact, absolutely no evidence that Germanicus was murdered, while there is abundant evidence that the relations between him and Piso, both personal and political, were exceedingly unsatisfactory, and that Piso was so injudicious as to endeavour to set aside his authority. Piso was by many years the older man of the two, he had had long experience of public affairs, had enjoyed the confidence of Augustus, and acquiesced very unwillingly in the arrangements which put Germanicus, a much younger man, over his head. It is quite possible that he had private instructions from Tiberius to give Germanicus the benefit of his experience in friendly fashion, and that he interpreted these instructions wrongly, believing them to amount to a declaration of his own independence of Germanicus, and he would be the more ready to believe this because he was touchy on the subject of his own dignity; but that he actually carried authority to thwart and annoy Germanicus is as improbable as that he had instructions to poison him. Tiberius was guilty of a mistake in not anticipating the friction that would necessarily arise between an older man and a younger man when the former was placed in subordination to somewhat indefinite powers wielded by the latter. If the two men had been left to settle their differences

alone, there would probably have been little trouble, for Germanicus began with courtesy and forbearance, but the ladies insisted on taking an active part in the quarrel. Agrippina saw Livia written large all over Plancina, with whom she had doubtless enjoyed several preliminary skirmishes at Rome; and Plancina met her on her own field and fought her with her own weapons, for, reprehensible though Plancina's military performances appeared in the eyes of a pattern Roman matron, Agrippina had herself set the fashion in Germany. The atmosphere of the East was a particularly unwholesome one for two ladies thus mutually breathing out threatenings and slaughters, and listening to tales depreciatory of one another. The East swarmed with sorcerers and necromancers, and supple intriguers of all kinds used to the internecine feuds of the ladies who lived in the palaces of their princes.

The most unfortunate result of the death of Germanicus was that it left Agrippina an embittered and vindictive woman. Even her husband had occasionally deprecated the violence of her temper. Time did nothing to cure her grievances, indeed the legend of her many sorrows seemed to grow steadily as the events receded into the distance, and she handed her quarrel on to her children with its vitality undiminished.

One possible solution of the part played by Piso, and of the difficulty of reconciling it with his last protestation of innocence, is that Plancina was actually in the confidence of Livia, from whom she held such a commission as Livia could give her to make arrangements desired by her patroness. The Oriental princes had learned to rely on secret influence rather than on open negotiations with Tiberius and the Senate; the stern impartiality of the Emperor drove them to subterranean manœuvres, and Livia was by no means disinclined to let it be understood that her influence was paramount. Thus while Piso as Governor of Syria was the properly constituted representative of Tiberius, his wife was the accredited plenipotentiary of the power behind the throne. The charges against Plancina were really charges against Livia, and the case which was hushed up was the case which would have exposed the unauthorized political intrigues of the Empress Dowager. Tiberius could either allow his mother's interference with State affairs to be a subject of public inquiry, or he could allow Plancina to be tried on the frivolous charge of poisoning with the certainty that she would escape conviction. He preferred the less heroic course, with the result that both he

and his mother were credited with having been concerned in a criminal conspiracy against a near relative.

The tradition repeated by Tacitus, that Piso was in possession of documents which would have established his innocence by demonstrating the complicity of Tiberius and Livia, and that he refrained from producing them on being assured of his safety by Sejanus, is not incompatible with this view of the case. Tiberius would certainly not have been involved, but instructions given by Livia to Plancina may very well have existed, and have led to those reversals of the policy of Germanicus which produced the ultimate quarrel. On this assumption the suicide of Piso becomes intelligible, he could not defend his grave political misconduct without exposing the still graver misconduct of the Empress Dowager, and when he saw that no other means of escape was open to him, he took a course which, to the Romans, did not seem to be devoid of heroism. Tiberius may have been weak in not dismissing his mother to an island, but he was certainly not responsible for the death of Piso, or concerned in a plot to poison Germanicus.

XVI

Tiberius and the Senate

DRUSUS, THE son of Tiberius, died in A.D. 23, under circumstances which it will be more convenient to consider at a later period. From this event Tacitus dates the perversion of Tiberius, forgetting that he has already ascribed to him every unamiable quality except avarice. After enumerating the various legions, and recording their distribution, Tacitus says: "I hope I am not wrong in believing that it is relevant to review the other departments of State as well, to say how they were managed up to that time, since this year marked the beginning of a change for the worse in the Emperor's administration. Now first, public business and the most important concerns of private men were dealt with before the Senate, and the chief men were allowed to make speeches, and he checked them himself, where they slipped into flattery; and he used to confer office by taking into consideration nobility of descent, brilliance in the field, distinguished service at home, so that it was agreed that there were no men with higher claims. Consuls and Prætors enjoyed their proper dignity, the lesser magistrates also were in the full exercise of their powers, and the laws, with the exception of the "Lex Majestatis," were well administered. Moreover, the corn supply and tribute, and the rest of the public revenues, were managed by associations of Roman knights. Cæsar entrusted the management of his own affairs to the most distinguished men, to some who were unknown, on hearing of their reputation; and when once he had adopted a man he retained him indefinitely, for most of his officers grew old in the same departments. The commonalty certainly suffered from a dear market, but the Prince was not responsible for that; indeed, he met the failure of crops, or the difficulties of navigation, as far as expense and care could help him. And he took measures that the Provinces should not be disturbed by fresh burdens, and that they should be able to endure the old ones exempt from the avarice or cruelty of officials. There was no such

thing as personal outrages or confiscations of property. The estates of Cæsar were few in Italy, his establishments of slaves were modest, his household confined to a few freedmen; and if ever he was at variance with a private person, he resorted to the ordinary processes of law, the ordinary courts. All this he kept up until things were changed by the death of Drusus, not indeed graciously, but with a repellent manner, so that he was generally an object of terror.”

These words, except for the last sentence, differ but little from those employed by Paterculus in enumerating the blessings enjoyed by the Roman people under the sway of Tiberius, though Paterculus does not limit the good administration of the Emperor to the period which ended with the death of Drusus.

It is indeed difficult, when we read the record of the actual transactions of the Senate, to form any other opinion than that advanced by Tacitus in the foregoing summary; even in the case of the “Lex Majestatis” it is the Senate, not Tiberius, who show a tendency to abuse the powers which it conferred, and the rare occasions on which the Emperor himself allows an accusation under this law to be pressed are those on which the strictest republican virtue would have demanded its application, viz., when the misconduct of a provincial governor had impaired the dignity of the State. It is true that this extension of the operation of the “Lex Majestatis” had not been familiar to the Republic, and that the provincials had been held to be protected sufficiently by the laws against extortion, but it might reasonably be held that a Roman magistrate disgraced his country no less by maladministration in the Provinces than by cowardice in the field, or a disgraceful treaty. In fact, this probably was the real grievance which caused the Senatorial Annalists, whose diaries were read by Tacitus, to fill their memoirs with bitter animadversions on the abuse of the “Lex Majestatis,” and the professional advocates who were a terror to delinquent Senators. Incapable or corrupt governors, who might have escaped punishment on some technical plea, if they had been accused formally of extortion, were now confronted with a fuller examination into their conduct under the vaguer charge of having impaired the dignity of the State. Tiberius constituted himself the guardian of the dignity of the State; it was his duty to do so. In upholding the purity of the administration, he was upholding the Empire, but he was also declaring an emphatic negative to

the theory that the Roman Senate was at liberty to deal as it pleased with its Provinces. The restoration of the Senate, begun in some degree by Augustus and continued by Tiberius, was attended by this inconvenience, that it revived the pretensions of the survivors of the Oligarchy, and though the majority of the Senate were distinguished rather by an inclination to hand over all their responsibilities to the Emperor than by an uncompromising attitude towards his government, there were a minority who were disgusted because fuller advantage was not taken of the opportunities afforded, and because the liberal policy of the Emperor brought them little nearer to the cherished abuses of the old oligarchical government.

When we reflect that the first six books of the *Annals of Tacitus* cover a period of twenty-three years, and that he had access to the Senatorial archives no less than to private memoirs, we are astonished at the meagreness of his information. If we remove from these books all that refers to the campaigns in Germany, Thrace, and Africa, all that is concerned with the death of Germanicus, all that has to do with the personal history of the Imperial family, singularly little remains to tell us how the Senate administered the Provinces which had been left to its care, and the two great questions in which statesmen are profoundly interested, the questions of Revenue and Defence, are hardly touched upon.

For this there are two reasons, apart from the fact that Tacitus was an incompetent historian; one is that Tacitus avowedly interested himself only in recording events which seemed to him striking illustrations of good or bad behaviour, history to him being merely a primer of morals and a collection of examples; the other is that very little business actually was transacted before the Senate.

We may take as an example the case of Cappadocia. This country was annexed by Germanicus, its native rulers were deposed, and it passed from the status of an allied kingdom to that of a province. It might be anticipated that we should have a record of discussions in the Senate as to the terms upon which this new Province was to be added to the Empire, as to whether it was to be Imperial or Senatorial, as to its probable cost and revenue; but we have nothing of the kind, we have not even the innuendo of a grievance based on the fact that Tiberius fixed its tribute at half the usual amount, and treated it as an Imperial Province from the outset. Similarly the Government of Achaia passed into the hands of the Emperor at the request of the

Province itself, without any debate in the Senate, so far as we are informed by Tacitus. Africa was a Senatorial Province; the moment that trouble between the Roman inhabitants and a native prince declared itself, the Senate practically threw the whole responsibility on Tiberius by asking him to nominate a Governor. With all its pretensions, and in spite of all the encouragement given to it by Tiberius to assume the position of an advisory council to the Emperor, if not of a representative assembly of the Empire, the Senate reverted more and more to its old position of a domestic council representing the best families at Rome and attending to little beyond their interests.

It was fortunate for the Empire that Tiberius failed in his attempt to restore the Senate, for no tyranny can be worse than that of the direct government of dependencies by an irresponsible debating society, divided into parties more or less organized, which intrigue abroad to further their interests at home, and the Senate itself showed a sounder political insight than the Emperor in refusing to assume responsibilities for which it was eminently unfit.

If, however, the greater political questions are passed over by Tacitus, some of the minor subjects with which the Senate dealt are not uninteresting; it retained the position of guardian of the public morals, or at the least of the morals of those families of whom it was composed or whose members were employed in the government of the city and Empire. Adultery under the Julian laws passed by Augustus was not a sin but a crime, and we accordingly have some cases in which Roman ladies of high rank are arraigned before the Senate along with their paramours.

The number of these cases is not great, and in comparison with similar cases in our own divorce courts remarkably small, from which we may conclude either that the Senate was a lenient censor of morals, or that the standard of morality was high; it is further possible that the Senate was only called upon to intervene when the family of the culprit had failed in its duty.

Actors seem to have been a source of trouble to the fathers of the city, but it is not altogether certain in what the "licence" of actors consisted. At first sight it might appear that they were guilty merely of a laxity of morals which is not uncommonly attributed, with or without justice, to the theatrical profession, and that the decrees prohibiting Senators and

Equestrians from public and private intercourse with actors were directed against purely private scandals; but there is also evidence that the stage occupied to some extent the position of the modern press, and that the licence of the actors consisted in public and private derision of eminent men, and in the exhibition of caricatures, which if not dangerous to public order, were at least offensive. The fragments of references made on the stage to Tiberius, preserved by Suetonius, are sufficient to indicate a freedom of criticism which in our own day would be considered intolerable. Our own habits allow our public men to be caricatured weekly in the comic papers in a manner which is not found equally acceptable in Germany, but lenient though we are in such matters, even Englishmen have failed to tolerate the caricatures of eminent statesmen on the stage, and “the Happy Land,” in which three Cabinet Ministers appeared under their own names, and in a very successful counterfeit presentment of their persons, was modified by the then Lord Chamberlain.

The laughter which greets a successful cartoon in *Punch*, and the prompt recognition which greets a happy allusion to current events, do little to shake a government or to disturb public order, but when the representatives of law and order are held up to ridicule by the unmistakeable gestures of a skilled actor in a large theatre, not only is the effectiveness of ridicule enormously increased, but the conflicting sympathies of the spectators provoke an immediate riot. We have seen that among the business transacted by Tiberius and the Senate in the first year of his reign was the discussion of a proposal to restore to the Prætors the right of beating actors, which had been withdrawn from them by Augustus. The reason for this proposal was an increase of turbulence in the theatres, which had resulted in the deaths of several of the spectators, the murder of some soldiers and a centurion, and even of the commander of a prætorian cohort, who had endeavoured to check the abuse of magistrates from the stage, and the consequent disturbance in the audience. An Italian audience was quick to catch even an undesigned allusion to current events, and allusion by gesture never failed to meet with its response; thus the actors became in a way the mouthpieces of public opinion, and the despotism of the ruling powers was tempered by epigrams in flesh and blood, if not in actual words; parties were formed, distinguished actors were supported by men of rank, not merely from admiration of their professional skill, but because they were in some sense a political power. In the year 23 A.D. Tiberius found

himself obliged to draw the attention of the Senate to the continued insolence of the actors, and a decree was passed by which they were banished from Italy. The particular form of dramatic exhibition which called down this severity was that known as the Atellan farce, which had long been used for the purposes of political satire by educated men. It had been originally a performance in the Oscan dialect; then what we should call "topical songs" had been introduced in Latin. There had been a period during which the Atellan plays had been considered eminently respectable, and men of rank had taken part in them without losing dignity; but either the character of the performance had degenerated, or the sentence of expulsion was less general than the words of Tacitus would imply, and was restricted to men whom we should not consider professional actors, and who had adopted this way of expressing their criticisms of the government.

These performances were given both in public and in private houses. The former might well be restrained as leading to riots; the objection to the latter was undoubtedly the open ridicule of the government; for the Atellan farce, which was originally chiefly spoken, had adopted the procedure of the mimics who acted entirely in dumb show, and it is not difficult to imagine the roars of laughter which would greet the appearance of Tiberius himself and other eminent personages upon the private stages of the Roman nobility.

In penalizing actors Tiberius in fact checked the liberty of the press, and destroyed whatever popularity he had hitherto enjoyed. The Romans were passionately devoted to acting, and never forgave the man who discountenanced their favourite amusement. There was no readier road to popularity at Rome than an exhibition of actors or gladiators. Cæsar and Augustus had both encouraged the taste, and in the later Republican days profusion in giving treats of this kind had been a necessary step in the ladder by which political eminence was reached.

The wisdom of Tiberius in thus checking the expression of popular feeling may be open to question, for we are not in a position to judge how far the passions excited by the actors constituted a real danger to public order, but the line which he took with reference to another kind of legislation is indisputably wise.

Sumptuary laws are a well-known weakness of governments. We are by no means rid of them yet, as is testified by the importance of the temperance party in England. The Pagans of Greece and Italy were no less eager than the Christians of the Middle Ages, or the Puritans of the Reformation, to prescribe for men how they should dress, or how they should eat, and the history of the Roman Senate offers many instances of attempts to enforce moderation of living by stringent laws. The Senate of Tiberius had not forgotten its old traditions; in the year 16 A.D. the subject of increasing luxury had been discussed in the Senate, and the Emperor had evaded action by stating that the matter would be attended to when the period of the Censorship came round. Apparently nothing was done, for in the year 22 A.D. the *Ædiles* drew the attention of the Senate to the continued and indeed increasing expenditure upon silken robes, household plate, and the pleasures of the table; new laws were demanded, and vigour in administering the old laws. Even on the evidence of Tacitus Tiberius himself was moderate in his household expenditure; Suetonius indeed reproaches him with niggardliness in this matter, saying that he would serve up the remainder of a feast at a second day's entertainment with the observation "that the part had the same qualities as the whole." His personal example was entirely in the direction of temperate living, and it was from no want of sympathy with the worthy aspirations of the Senate that he refused to legislate in the matter. Tacitus has preserved for us the letter which he addressed to the Senate on the subject; it is a document sufficiently remarkable to be given in full.

"Although, Conscript Fathers, it is perhaps more expedient that on all other occasions I should be asked in your presence my opinion of what is good for the State, and reply in the same way, still on the present occasion it was better that my eyes should be withdrawn, for if you should openly note the faces of anxiety of those who were involved in the charge of infamous luxury, I should myself see them, and as it were catch them in the act. If indeed our energetic *Ædiles* had taken counsel with me beforehand, I am inclined to think that I should have advised them to abstain from interfering with vices so firmly rooted, so vigorous, rather than make it publicly manifest that we are too weak to contend with these abuses. Well—they have done their duty as I should wish other magistrates also to do theirs; I could neither be silent with honour, nor was it expedient that I should be the first to speak, seeing that I am neither *Ædile*, nor *Prætor*, nor *Consul*.

Something more, something higher is demanded of the Prince, and whereas each individual earns the reward of his own good actions, upon the Prince alone is visited the odium incurred by the bad actions of all.

“Now what shall I first try to check and to cut down to the ancient measures? The boundless extent of country estates? The numbers of native and alien slaves? The weight of gold and silver plate? The marvellous bronzes and pictures? The rich materials common to male and female dress? Or again those peculiarly feminine forms of luxury owing to which our money is transferred to foreign and even hostile races for the sake of mere stones? I am perfectly well aware that these are things with which fault is found at dinner parties and social entertainments, and that there is a cry for interference; but when a law is passed, penalties are assigned, and those same guardians of the public virtue will not then fail to clamour that the State is being turned upside down, that any magnificent man is threatened with ruin, that every one is liable to prosecution. And yet it is only by severe remedies that long-standing diseases of the body can be checked, and the fever of the mind at once corrupt and corrupting can only be quenched by remedies no less violent than the lusts with which it burns. All the laws which were discovered by our ancestors, all those that were passed by the sainted Augustus, have added confidence to luxury, the former because they have been forgotten, the latter, which is much worse, because they have been abrogated by contempt. For should a man wish to do a thing which has not yet been forbidden, he would be in fear of a prohibition, but if he transgresses a known prohibition, there is no longer any fear, or any sense of shame. Now why did frugal living at one time prevail? Because every man imposed restraint on himself, because we were then the citizens of a single city; there was not even temptation for us when our dominion was confined to Italy. It was through our foreign victories that we learned to waste the property of others, by our civil wars to waste our own. And what a small thing it is to which our attention is called by the *Ædiles*! What a trifle if it is compared with our other responsibilities! Yes, nobody bethinks himself that Italy is dependent upon external resources, that the sustenance of the Roman people is exposed every day to the uncertainties of the winds and waves!

“And should the resources of the Provinces fail to come to the rescue of our landowners, and slaves, and farms, our own forests, forsooth, our own

estates will protect us! This is the anxiety, Conscript Fathers, which falls upon the shoulders of the Prince, and if he refuses to attend to this, the State will be dragged down to perdition. For those other difficulties a remedy can be found in our own conduct; may a sense of honour improve ourselves, necessity restrain the poor, satiety the rich. Or if any one of the magistrates holds out a prospect of so much industry, such rigour as to be able to contend with these abuses, I both commend him, and admit that I am thereby relieved of part of my burden. But if they are willing enough to demonstrate abuses, and then, when they have obtained the credit of this action, stir animosities, and hand them over to me, believe me, Conscript Fathers, that I too have no taste for unpopularity; tasks involving serious, and generally unjust, unpopularity I will undertake for the good of the State. I rightly protest against being required to incur trivial and useless causes of offence likely to be profitable neither to myself nor to you.”

The language of Tacitus leaves it uncertain as to whether these words are the actual letter of Tiberius, or only an epitome of the real letter; but the sense, if not the form, is clearly the Emperor’s own. In his view of the inefficiency of sumptuary legislation Tiberius was far in advance of his time; no law can in these matters do for the individual what he refuses to do for himself. Indirectly Tiberius reproaches the Senate for their individual complicity in the offences against which legislation was demanded; he also reproaches those zealous magistrates, the *Ædiles*, whose business it was to look after the markets and repress extravagant expenditure, for their previous neglect of duty; he also points out that there was an abundance of laws to meet the offence, and an equally abundant neglect of those laws. The constitutional position which Tiberius takes up is also noteworthy; it was not for him to anticipate the action of the ordinary magistrates; on the other hand, the greater cares of the Empire are his, and these domestic concerns can be left to those officials whom the constitution provided for the purpose.

Throughout the letter we detect a profound contempt for the Senate, as being a body ever ready to talk, but never ready to act, and we are therefore prepared to believe that there is some truth in the story which tells us that Tiberius seldom left the Senate House without exclaiming, “Men made for slavery!” We also see that Tiberius was sensitive to public opinion, and was not prepared to face unpopularity except with good reason. The implied

warning against the folly of passing laws which it is impossible to enforce shows sound statesmanship; the vice of clamouring for fresh laws in order to check offences which have been already provided for by old ones, and of invoking the aid of legislation in matters where good example and sound conduct on the part of individuals are more effective, is a vice which has survived the Roman Senate.

The result of the debate was fresh energy on the part of the *Ædiles*, but Tacitus says that it was not until the reign of Vespasian that there was any marked improvement, that Emperor being himself averse to luxury. As, however, Tiberius was no less distinguished by plainness of living, it is more probable that the effect was produced by a general equalizing of fortunes among the well-to-do.

While Tiberius thus refused to take upon himself the responsibilities of the Senate in domestic matters, he was equally little inclined to allow them to throw upon him the burden of administering their own Provinces, and carefully referred deputations from the Senatorial Provinces to the Consuls; he punished a private servant of his own who had the management of his estates in Asia, a Senatorial Province, for attempting to exercise powers other than those of the business agent of a private person.

We may remark that the care of feeding the city, which we should have expected to be in the department of the Senate, was really in the hands of the Emperor, who held Egypt in his own exclusive management for that special purpose; nor was Tiberius a sufficiently enlightened economist not to attempt to control the price of corn.

Another subject which from time to time still taxed the energies of the Senate was the prevalence of alien rites, and especially of all forms of magic and divination.

It has been held that the Senate and people of Rome were particularly free from religious intolerance; their behaviour in this matter has been favourably contrasted with that of Christian governments, and there are many who believe that the Romans never interfered with religious observances till they adopted an attitude of exceptional malignity towards the professors of Christianity. Such a view does not, however, correctly represent the facts of the case. Comparatively early in its history the Roman Senate had proceeded with considerable severity against those who were

infected with that strange hysterical epidemic which spread over Europe under the guise of the worship of Bacchus, and in the year 19 A.D. we find the Senate passing decrees to repress Egyptian and Jewish religious rites. According to Suetonius the devotees were ordered to burn their vestments and other religious furniture, while he and Tacitus agree in telling us that four thousand freedmen “infected with that superstition” who were of fitting age for military service were sent off to Sardinia to check brigandage there, “and if they should perish in the unwholesome climate, it was not a serious loss.” “The rest,” according to Tacitus, “were to withdraw from Italy unless they abandoned their profane observances before a fixed date.” The language of Tacitus does not distinguish between Jew and Egyptian so far as religion was concerned, for though he mentions both races, he only alludes to one superstition.

The persecution of Jews on religious grounds is thus anterior to Christianity, and the persecutions were not confined to Jews and Egyptians; Chaldæans were included, and as we have already seen, after the case of feather-headed Scribonius Libo Magians and “mathematicians” were also expelled from Italy.

In these persecutions Tiberius is not directly responsible, he left the matter in the hands of the Senate. Sardinia was a Senatorial Province, and he apparently saw no reason for interference. Italy was not, however, swept clear of “mathematicians” and other persons under the ban of the Senate, with whom in fact the head of the executive was probably in private sympathy, for Thrasyllus the “mathematician” had been his constant attendant since the days of the retirement at Rhodes. Decrees for the expulsion of these undesirables recur under subsequent Emperors.

The subject is a complicated one, and the more complicated to us because men so diverse according to our conceptions are included in the same ban. We do not know much of the Chaldæans and Magians, but we know something of the Jews, and we are surprised to find them classed with Egyptians and subjected to the same penalties as Chaldæans, Magians and “mathematicians,” and we further ask ourselves why the Senate, which countenanced the worship of the Great Mother and other alien deities, assumed an attitude of intolerance towards the Jews.

The attitude of the Jews towards other religions was essentially different from that of the priests of Cybele or any other Pagan divinity. Jupiter or Mars or Vesta could tolerate the temples of other Gods, and the respect paid to other Gods—it was of the essence of polytheism to multiply divinities—but the Jew declared that there was only one God; his God was not one of many Gods, but the only God, and the worship of other Gods was wrong and monstrous. Thus to the Roman Senate the observances of the Jews were actually “profane”; they involved hostility to existing religions, and toleration of the Jews was therefore impossible for the orthodox Pagan. Again, it is important to remember that the Jews at this period were not shut up in ghettos, and visibly separated from the rest of the community; whatever differences in dress and customs distinguished them from other inhabitants of the cities in which they dwelt were not peculiar to them; the Syrian, the Egyptian, the Gaul, men of many other nationalities wore their distinctive dress and practised their national religions in every populous city of the Empire. The Jews might for convenience live in the neighbourhood of a synagogue, and thus give portions of the cities which they inhabited the aspect of a Jewish quarter; but such separate residence was not enforced upon them; they moved freely among the people; many of them were in positions of trust, their princes, the Herods, were on intimate terms with the Imperial family, and their young men took part in the diversions of the Roman youth; among them were ardent proselytisers, their peculiar doctrines were well known to the educated, and though Horace might laugh at their credulity, his sneer indicates how well they were known. The unhappy four thousand young men who were sent to Sardinia were either freedmen or the sons of freedmen, a fact which shows that they, or their fathers, had been the trusted servants of Romans. But the Jews were no more homogeneous then than now; if they had their Rothschilds, they had also their Jews of mean streets, their “vagabond Jews, exorcists”; and if the great financier was the trusted friend of an Emperor, the small moneylender of the slums was as much detested in ancient Rome as he is in modern London. There were Jews who were deservedly respected for their great intellectual ability, for the purity of their lives, for the dignity of their religion; but there were also Jews whose disreputable callings and mean habits involved at least a section of their race in such contempt as to lead Tacitus to contemplate with satisfaction their extinction in the fever-haunted swamps of Sardinia. We should, however, be on our guard against

attributing to the contemporaries of Tiberius the same degree of animosity against the Jews which was felt by the contemporaries of Trajan; for, in spite of the sweeping decrees of the Senate, the Jews steadily advanced in importance, and the anti-Semitic sentiment of Tacitus was evoked not only by the disreputable section of the chosen people, but also by the men who, as members of the Imperial household, had a large share in the administration of the State.

Again, we should be mistaken if we attributed to the whole Jewish race distributed throughout the civilized world the same sentiments which prevailed among the bigoted Jews of Jerusalem. Even at Jerusalem, where the introduction of the Roman standards invariably produced a riot, the priests of the Temple accepted the offerings made by the different Roman generals who passed by or occupied the Sacred City; and the omission of a Gentile commander to show this form of respect to the one God was somewhat inconsistently resented. At Alexandria especially free intercourse with men who represented the wisdom of the Egyptians and the Greeks modified the conceptions of orthodox but not bigoted Jews, and the spirituality of Judaism steadily tended to prevail over its ceremonial exclusiveness. Learned Jews enjoyed as wide reputations as other learned men, and were in communication with learned Greeks; Tiberius himself is said to have nicknamed Apion the Greek, to whose anti-judaic treatise Josephus replied, "the rattle of the universe."

But while on the one hand a reformed and spiritualized Judaism was tending to become the effective religion of the Empire, the debased Judaism was joining hands with the other demoralizing superstitions of the East. No one who has read the Acts of the Apostles and the Epistles of St. Paul attentively can deny that if there were spiritually-minded Jews like the great Apostle, there were also Jews who practised exorcisms and divination, and who studied "curious books." We know little of the peculiar tenets of the Chaldæans and the Magians, equally little of the Egyptians, except as worshippers of Isis, but we know that fortune-telling and witchcraft were practised by them, no less than dignified inquiries into the laws of nature, so far as their imperfect means of observation permitted. The dividing line between Thrasyllus the "mathematician," the friend of Tiberius, and those men whom foolish Libo consulted, would have been difficult to draw, science was not to be clear of superstition for many ages, but there were

respectable astrologers, genuine, though perhaps mistaken, searchers after truth, alongside of the disreputable charlatans who interpreted dreams and told fortunes and held sway over the dissolute imaginations of needy profligates by means of conjuring tricks and skilfully organized conspiracies with numerous confederates. Even the purest of Jewish sects—if indeed they can be called a sect—the Essenians, laid stress upon their powers of predicting events by means of the stars.

Polytheism was in fact tolerant so long as an enemy had not declared himself; it was no sooner conscious of an enemy than it persecuted, and the persecution was no less a persecution because it was prompted by mixed motives. There may have been good reason for mistrusting the influence of the diviners upon persons of weak mind, for suspecting them of helping to bring about the accomplishment of their predictions by the use of poisons, and of prompting plots in whose success they had a personal interest; but it was also inevitable that the emergence of a new religious attitude should alarm, and that its professors should be subject to attack. In times of popular excitement the monotheists were persecuted by the enlightened rationalists no less than by the orthodox polytheists, and many motives over and above religious intolerance contributed to sharpen the laws against the Jew and the diviner. Not the least of these was the dread of poison, a very lively terror even in modern times, till the accumulations of chemical and medical knowledge restricted the sphere of operations of mysterious drugs; and there may well have been some foundation for the superstitious dread of secret poisoning by which many of the ancients were affected. Not only was the charlatan ready to magnify his own powers, and to ascribe to his spells and incantations deaths from purely natural causes, but the older civilizations of the East had doubtless preserved many secrets of pharmacy which were skilfully used by adepts to impress the imagination of the vulgar.

At this very day the medicine men and women, the Papaloi and Mamaloi of the Black Republic of Hayti, exert a power above the laws by their knowledge and use of poisons, from which even the educated white man cannot escape. Before we condemn the Roman Senate for its intolerance of magicians and its superstitious dread of their powers, we must place ourselves in their position, limit ourselves to their knowledge; and again we must be modest enough to remember that we still consider it

necessary to protect the ignorant dupe from the fortune-teller, that the law is not unfrequently called into action in such cases, and that the clients of the spiritualist and diviner of to-day are to be found in all classes, and not exclusively among the poor and ignorant.

While the Senate thus endeavoured to repress alien worships, it continued to protect the sanctity of its own ritual; vestal virgins were appointed in due form, though with increasing difficulty, as the solemn form of marriage necessary for the proper parentage of a vestal had fallen into disfavour. Considerable interest attached to the case of a Senator named Servius Maluginensis, who had a claim to the Proconsulship of Asia, and wished to evade the restrictions which were imposed on him by the fact that he was Flamen Dialis, sublimest priest of Jupiter. The ancient ritual forbade the Flamen Dialis to leave the city for more than a day and a night in succession, and Servius therefore attempted to prove that the ritual was obsolete, and that exceptions had been allowed. The Senate discussed the case with due solemnity, and then referred it to Tiberius, who in his turn remitted it to the College of Pontiffs. Their decision was against Servius, and the Province of Asia fell to the Senator next on the roll.

A question of even greater importance, partly religious in its character, required the decision of the Senate. Numerous Greek towns, chiefly situated in the islands of the Ægean and along the coasts of Asia Minor, had abused the rights of Sanctuary attached to some of their temples. Not only were the rights of property imperilled by the ready shelter given to runaway slaves, but the concourse of unruly ruffians assembled in these insular Alsatias threatened to disturb the public peace. A sanctuary, if conveniently situated, might easily assume the character of a nest of pirates; the Greek genius for brigandage has always been as remarkable as the Greek gift for preaching morality. An attempt to suppress the sanctuaries led to protests, and deputations from the towns concerned pleaded their cause before the Senate. The arguments used in defence of the sanctuaries are interesting, because they show a sense of continuity of government from the times of Alexander to those of Tiberius. The claims were partly based on mythological grounds, but more effectively on recognitions granted by Alexander, and afterwards by Roman Proconsuls. The maintenance of the sanctuaries was regarded as an honourable distinction, and this aspect of the claims was pressed rather than the material advantages.

The abuse, however, was too alarming to be tolerated. One temple alone, that of Æsculapius at Pergamus, which from other evidence seems to have assumed the character of a school of medicine, retained its privileges; the others were dismissed with honourable compliments, and it was ordered that a copy of the Senatorial decree should be inscribed on brass, and placed in a conspicuous position in the temples concerned. Subsequently other sanctuaries were similarly dealt with. The credit of thus dealing with a serious abuse is ascribed by Suetonius to Tiberius, and it is possible that, though the actual decision was made in the Senate, because the towns involved were in a Senatorial Province, the initiative came from the Emperor himself. If Tiberius was thus severe in correcting a time-honoured abuse, he had been no less liberal in remitting taxation and furnishing relief to numerous cities in the same part of the world, which had suffered severely from an earthquake. In fact, though he was careful to observe the constitutional forms, he kept a watchful eye upon the Senatorial administration, and supplied the necessary stimulation for its corporate conscience.

Reference has already been made to the practice of supplementing the resources of impoverished Senators, and to the severity with which Tiberius treated such cases. The Senate was only too willing to vote public money to provide pensions for its members. Tiberius recognized the obligation, but he insisted that the beneficiary should make out a good case, and be able to demonstrate that his distress was due to misfortune, not to thriftlessness. The case of Hortalus, grandson of Cicero's rival, Hortensius, affords an illustration both of the severity of Tiberius and of the curiously domestic character of the Senate.

In the year 16 A.D. Hortalus rose in his place in the Senate, having posted his four sons at the door, where they could be seen by all; he then spoke as follows, fixing his eyes alternately on the statue of Hortensius standing among the orators, and that of Augustus:—"It was not by my own will, but at the suggestion of the Prince, that I begot and acknowledged these children, whose number and tender years you behold; and indeed my ancestors had deserved that I should have successors. For I, who owing to the revolutionary times could neither inherit the ancestral property of my house, nor earn money, nor win the affections of the people, nor train myself in eloquence, should have had enough if my poverty had neither

shamed nor burdened others. At the command of the Emperor I married a wife. Behold the stock and progeny of all those consuls and dictators. I do not say this to disparage anybody else, but to win your compassion. The offices that you confer, Cæsar, will be at your service while you reign; meanwhile defend the great-grandchildren of Quintus Hortensius, the children fostered by the sainted Augustus, from want.” In spite of the mendacity of this statement—for on the father’s side, at any rate, the family of Hortensius could only claim the credit of two consulships and no dictatorships—the appeal was heard with favour by the Senate, till Tiberius intervened with these words:—“If all the poverty-stricken begin to come here and demand money for their children, the applicants will never be satiated, and the public purse will run dry. And indeed it was certainly never contemplated by our ancestors when they allowed Senators to leave the matter in hand, and move amendments for the public benefit, that we should endeavour to increase our private fortunes in this place in such a manner as to render the Senate and the Princes unpopular, whether they granted or refused the largess. This is not a humble request; it is an impudent demand, unseasonable, and unprecedented, to rise when the Senate are assembled for the discussion of other matters, and do violence to the kindness of the Senate by urging the number and age of one’s children, and to pass on the same violence to me, and as it were break open the treasury, which we shall have to supplement by injustice, if we exhaust it in courting popularity. Money was given to you, Hortalus, by the sainted Augustus, but without previous application, and certainly not on the terms that once given it should be always given. Industry will slacken, indolence will gain strength, if men’s hopes and fears are not to depend on themselves, if all are confidently to look for resources from outside, useless to themselves and a burden to us.” Tiberius was clearly in the right, but the authorities whom Tacitus consulted evidently thought that Hortalus had been hardly used, for the narrative is continued:—“Although these and similar words were listened to with favour by those whose custom it is to praise all that falls from the lips of Princes, honourable and dishonourable alike, the majority received them in silence or with subdued murmurs. And Tiberius perceived this, and after a short silence said that he had given Hortalus his answer. However, if the Senate thought well, he would give each of his children of the male sex two hundred thousand sesterces (about £3,000). The rest expressed their thanks. Hortalus was silent, either from consternation or

because he retained something of his ancestral nobility even in his indigence. Nor did Tiberius show him any further compassion, although the family of Hortensius fell into disgraceful poverty.”

The gift made by Tiberius was private and personal; he did not make use of the public money for a purpose of which he had expressed strong disapproval. The incident is chiefly interesting as indicating that, in spite of the rude shocks given to the Senatorial system by Julius Cæsar, the body had recovered its evil tradition of assuming that it was at liberty to use the public purse to meet the private necessities of its members. Hortalus was clearly a well-known spendthrift.

The Senate, in fact, tended to become more and more a high court of justice, in which its members and high officials were tried by their peers, the cases being either political or such private cases as had by long tradition fallen to the Senate as the guardian of the morality of the privileged orders. It was tenacious of its privileges, careless of its wider responsibilities. Tiberius treated it with formal respect, and did his best to make it worthy of its opportunities; if he could have avoided interfering with its administration of its own provinces, he would have done so, but he was not prepared to submit the provincials to misgovernment in order to maintain the prestige of the Senate, and the misgovernment of Proconsuls was by no means a thing of the past. Tiberius, like Augustus, supplied himself with an inner Council of the Senate, and it is possible that on most occasions this inner Council represented the whole body; but he did not restrict himself to Senatorial Counsellors, and we are told that, in dealing with provincial questions, he was always careful to provide himself with the expert evidence of men who knew the localities concerned.

Though the Senate could not shake itself free from the traditions of its existence, and always represented the great families of the City of Rome rather than Italy or the Empire, except in so far as it provided the personnel of the Supreme Court of Appeal, it was curiously indifferent to municipal matters. The city was policed by the Prefect of the city, an official appointed by the Emperor, who held office for long periods, and it was guarded by troops commanded by the Emperor. The rank of Senator eventually became little more than an honourable distinction, though from time to time the body possessed sufficient coherence to bid for the power which it had lost, and even for short periods to wield it. The distinction between Senatorial

and Imperial Provinces did not last long, the Imperial administration proving better suited to the needs of the Empire.

Many writers infected with the spirit of the nineteenth century have advanced the opinion that the Roman Empire collapsed because the Romans never hit upon representative government. It is curious that Augustus very nearly effected this supreme achievement. He at one time proposed to hold simultaneous elections of the Roman magistrates in all the cities of Italy; the names of the candidates were to be posted up, the votes were to be collected in ballot boxes, which were to be sent to Rome sealed up, and afterwards counted in the city itself. This scheme happily came to nothing, for the strength of the Roman Empire lay in its respect for local government. The Provincial Governors were the supreme umpires in their Provinces, but they did not concern themselves with the details of local administration; the constitutions of Athens, and even Sparta, continued to work even after these towns were included in the Province of Achaia, and similarly throughout the Empire original institutions were left to do their previous work. As we have seen, the Governors of Provinces did not even control the organization by which the Imperial taxes were collected. The local life of the Empire was strong; Antioch and Alexandria, even the new cities of Gaul, bowed reluctantly to Rome, and in course of time the position of the Patriarch of Rome was not to be that of Primate of Christianity till many a battle had been fought, and in fact the Popes never succeeded to the full heritage of the Emperors. The Empire was the bond of union and the peacemaker between an infinite number of self-governing units, it provided a supreme arbitrator, a Supreme Court of Appeal. The Empire, in fact, was peace; it was not a system of local as well as universal administration. The introduction of representative government, the substitution of an Elective Parliament at Rome for the Senate, would have killed the vigorous local governments, and would not have improved the administration of the Empire. Under such rulers as Augustus and Tiberius, the Flavians and the Antonines, the organization of the Roman Empire probably reached the limits of perfectibility; it would not have been improved by collecting deputies from all parts of the world, and expecting them to be responsible for the executive. Representative institutions have not prevented official corruption or no less deadly incompetence, nor has the absence of really free parliaments impeded the advance of some modern nations; those diseases of the body politic from which the Roman Empire is

held to have suffered in a special degree, corruption and official formalism, have not been unknown in communities blessed with Houses of Representatives duly elected and accredited. A multitude of counsellors neither protects an Empire from corruption nor ensures wisdom in the conduct of its affairs, while the conscience of any corporate body is notoriously duller than that of each individual of which it is composed. The Roman Emperors were wise in respecting local institutions, and in not imposing a strict system of centralization, for it is unfortunately impossible to retrace our steps, and when once the local life has been killed, it cannot be revived. Decentralization as a matter of mechanical convenience is possible after the central authority has drawn to itself all the prestige of political life, but this is purely administrative decentralization; when once the central government has absorbed the vitality of local political life, it cannot give back that which it has taken away. It was good for the Empire that the Senate should not exclusively attract the ambition of capable men from the Provinces, and on the other hand that the energies of the Emperors should be distributed over a wide area. The Emperors had no time for universal tyranny, and the extravagancies of Caligula, Nero, and Domitian were scarcely felt outside Rome itself; they certainly did nothing to shake the foundations of that fabric which had been so wisely laid by the first two Emperors.

XVII

Sejanus

ONE of the most trusted public servants of Augustus was a Roman Equestrian named Seius Strabo; he hailed from an Italian, or rather a Tuscan, city, his family having been long settled at Vulsinii, and was thus exposed at Rome to the reproach of being a “new man.” Seius Strabo was content with administrative work, and did not aspire to high senatorial rank. Augustus made him commander of the Prætorian cohorts which formed the garrison of Italy, and afterwards entrusted him with the most important office in his gift, for he made him Governor of Egypt, that valuable appanage of the Roman Emperors upon which the corn supply of the capital depended. Seius married into the Junian gens, the gens of Brutus the Liberator, and his son could in consequence claim affinity through his mother with the most honourable Roman houses. This son was adopted by a member of the Ælian gens, and thus became known as Ælius Sejanus. He married a daughter of Apicius the Epicure, a very wealthy man, but notorious rather than distinguished.

The young Sejanus enjoyed the confidence of Augustus as his father had done. He succeeded him in command of the Prætorians, and was made adviser to Caius Cæsar when he went to the East. In this capacity he did his best to counteract the mischievous counsels of Marcus Lollius, and won the gratitude of Tiberius, which he soon improved into a personal friendship. As Sejanus was made his father’s colleague in B.C. 14, soon afterwards succeeding him in the sole command of the Prætorian guards, he cannot have been much younger than Tiberius, for he would hardly have been associated with his father before he was twenty years of age, and in that case Tiberius would have been his senior by only eight years. Even if we assume that Sejanus became his father’s colleague at the age of sixteen, an age at which young Romans commonly first entered on active service, he

would still be only twelve years younger than Tiberius; but it is very improbable that so young a man would have been entrusted with the command of the Prætorians. The question is of some importance, for the language of the historians, perhaps unintentionally, conveys the impression that Sejanus was a comparatively youthful favourite of the Emperor's, who owed his advancement to a blind partiality, whereas his acquaintance with Tiberius had been almost lifelong, even if we assume that he was little more than a boy when he first commanded the Prætorian guards. It is far more probable that there were only three or four years between the two men, and that the relations between Sejanus and Tiberius were comparable to those between Augustus and Agrippa.

Paterculus, who admired Sejanus, is curiously apologetic about the obscurity of his family. He suggests that it was not so obscure as was generally supposed, and again that obscurity of descent is no bar to admission to the public service; he quotes very ancient examples, and the more modern ones of Marius, Cicero, and Asinius Pollio.

In fact the Revolution, which had broken the political power of the old Roman aristocracy, had been succeeded by a reaction in favour of great names and exalted lineages, which would have given the Senate a new lease of power had that body been capable of effective work. The History of Livy, the Fasti of Ovid, the later books of the *Æneid*, had all combined to throw a glamour over the great Roman families, and the new world of capable officials recruited from Italy and other parts of the Empire found itself despised at Rome by the futile descendants of legendary ancestors. We are told that the Emperor Caligula was ashamed of his grandfather, Marcus Agrippa, and was offended if reminded of his descent from the ignoble Vipsanian stock. Tiberius himself was evidently inclined to be a formalist in matters affecting the aristocracy, and though he drew his trusted servants from all classes and races, the deference which he paid to the Senate and the old constitutional magistrates, along with his careful observance of the old legal ritual, tended to foster aristocratic pretensions.

To the memoir-writing Senators Sejanus was an upstart, and in spite of the recent precedents of Agrippa and Mæcenæ and other capable colleagues of Augustus, the strict aristocracy could see nothing but evil in the "new man." On the other hand, a large party in the Senate, representatives of the new hierarchy of officials, accepted Sejanus, as Agrippa had been accepted;

they followed the lead of Tiberius, and after the death of Drusus in A.D. 23 were prepared to treat Sejanus as the second person in the Empire.

If Senators of ancient descent were disgusted at the position held by Sejanus, the family of the Emperor were even more so. Drusus, a hot-tempered man, is said on one occasion to have struck him, an incident which may well have occurred when Drusus was a little boy or petulant youth, and been turned to good account by sensation-loving writers of memoirs. Agrippina could not contain herself in the presence of this new oppressor of the children of Germanicus, the great-grandchildren of the sainted Augustus, and so forth. These poor innocents were, in her excited imagination, the victims of the ambitions of Sejanus; that they were not from the moment of their birth of an age to be entrusted with the conduct of affairs did not enter into her considerations.

Drusus died after an illness of some duration. Dio tells us that his constitution had been impaired by intemperance and other excesses, and there is other evidence that he had been a man of pleasure as well as a man of business. A speech of his is recorded to the effect that as long as he paid proper attention to his public duties he was at liberty to enjoy his leisure as he pleased. He did not share his father's taste for literary pursuits or scientific research; but Dio informs us that Tiberius was really attached to his son, and insinuations to the contrary are probably derived from tainted sources, from the private diaries of those to whom it was an axiom that Tiberius hated those whom he was in duty bound to love, and loved those only whom he ought to have hated. Even Tacitus, however unintentionally, supplies evidence that Tiberius was much shaken by his son's death, for though he tells us that Tiberius did not allow the illness or death of Drusus to interfere with the discharge of his public duties—a piece of stoical conduct quite in accordance with the character of time-honoured Roman models—he also tells us that the Emperor spoke at the time of resigning his office to the Consuls or some other. According to Tacitus, the Emperor also addressed a long speech to the Senate, in which he deplored the extreme old age of Livia, and his own declining years still unprovided with grandchildren. This latter statement was not correct, for Drusus had left a son, a second Tiberius, unless indeed we are to assume that the Emperor did not think he was at liberty to count a descendant who was still too young to be introduced to the Senate. We are further told that Tiberius then begged

that the children of Germanicus, “the one consolation of his present misfortune,” might be brought into the Senate house, that the Consuls went out, and after encouraging the lads, placed them in front of the Emperor. He took them by the hand, and said: “Conscript Fathers, I entrusted these orphans to the care of their uncle, and begged him, although he had children of his own, to cherish them as he would cherish his own blood, and own them, and educate them for himself and posterity. Now that Drusus has been taken from us, I address my petition to you, and I implore you, in the presence of our gods and our country, to adopt, to guide the great-grandchildren of Augustus, descendants of such a splendid stock, and to fulfil your duty and my own. These worthy counsellors, Nero and Drusus, will be your parents. You have been born in such a position that your good or bad conduct is a matter of public concern.”

The funeral of Drusus was conducted with unusual pomp; the whole line of the Julians back to Æneas appeared in effigy in the procession, all the Alban kings, Romulus, the Sabine nobility, Attus Clausus, and the rest of the famous Claudians. The magnificence of the Imperial family in both branches was thus emphasized.

The death of Drusus, in fact, left Tiberius in much the same position as Augustus had been left by the death of Caius Cæsar. Neither the Claudian nor the Julian lines were represented by men of an age to lead the State. It is true that the brother of Germanicus, the future Emperor Claudius, was of mature age and in full enjoyment of such faculties as he possessed, but he had long been consigned to a private life, apparently with his own consent. The men who had worked with Tiberius all his life, Marcus Lepidus, Asinius Gallus, Lucius Piso, the Prefect of the city, and others, were now of very advanced age. Sejanus was the only administrator who held a position at all comparable to that which Tiberius had held during the later years of Augustus, but there was this important difference; Tiberius, apart from his personal merits and long experience, had been the representative of the old Roman aristocracy; his succession did no violence to the prejudices of the restored Senate. Sejanus, on the other hand, was a new man; if he represented any particular party, it was the Equestrians, the old enemies of senatorial pretensions; his exaltation was a victory of the officials over the survivors of the hereditary aristocracy.

The services which Sejanus had done to the State were not of that brilliant character which would seem to justify his promotion; he had not distinguished himself by conspicuous military service on the frontiers, though his uncle, Junius Blæsus, had dealt successfully with the mutineers early in the reign of Tiberius, and had more recently earned a triumph by a series of successful campaigns in northern Africa, and Sejanus may have enjoyed a reflected glory from these achievements. It is true that there may be a conspiracy of silence as to his exploits, but even Paterculus, his admirer, has nothing definite to record, and praises him in general terms only as the capable assistant of Tiberius.

It is probable that his merits were those of a good organizer, merits which would be known to those who were working at the centre of affairs, and would be appreciated by Tiberius himself at their true value, but would escape general attention, for the waywardness of human judgement is such that years of patient faithful and laborious devotion to the public service often fail to secure recognition, and a moment of victory weighs more in the public opinion than many hours spent in organizing the forces by which that victory is obtained.

The one great work of Sejanus has, quite undeservedly, involved his name in obloquy. He organized the Prætorian guards, and collected that portion of them who were on duty at Rome in barracks. The Prætorian guards constituted the home army of Italy; they were not only the bodyguard of the Emperor. Indeed, it seems that in the time of Augustus the Emperor's bodyguard was a selected troop of Germans, the Swiss guards of the Pope being thus curiously anticipated by the first Emperor. The organization of the Prætorians was slightly different from that of the rest of the army; they were divided not into legions—or, as we should say, regiments—of about 6,000 men, but into cohorts (the cohort, or battalion, ordinarily consisted of 600 men, but a Prætorian cohort numbered 1,000). In other words, the home army was divided into units available by their size for garrison purposes. These men received higher pay and better allowances than the legionaries, and were, in fact, the pick of the service. Everything was done that could be done to attach them to the person of the Emperor and to distinguish them from the rest of the army.

The mutinies in Pannonia and on the Rhine had indicated a weak spot in the organization of the Empire. How if the mutineers had been

successful, if Germanicus had not resisted their wish to make him Emperor? They would have marched upon Rome. It was clearly necessary that Italy should be provided with a sufficient force to defend the seat of government from its own armies and to demonstrate the inevitable failure of any attempt from the Provinces to overturn the civil power. It was probably considerations of this nature which impelled Tiberius to give careful attention to the organization of the Prætorians, and he doubtless considered himself fortunate in being able to entrust this important work to a capable officer of whose fidelity he was well assured.

The absence of barracks had proved a source of disorder; the Prætorians had been scattered in lodgings throughout the city and other towns. Not only was their discipline thus rendered a matter of difficulty, but their sense of corporate unity was impaired, and the language used of them inclines us to the supposition that so far from being an adequate police force, they were not infrequently themselves the source of disturbances in the streets. In order to correct these abuses, Sejanus built a large camp just outside the walls of Rome; it occupied the site of the well-known Pincian gardens. The force thus organized numbered twelve thousand men—three so-called Urban cohorts, nine Prætorian. The men were carefully chosen from the regions adjacent to the city, or from the ancient Latin colonies; care was taken to give them a specially Italian character.

The distinction between Urban and Prætorian cohorts, coupled with the statement of Suetonius that Tiberius placed garrisons throughout Italy, while there is no mention in Tacitus of any legion told off to the Italian service, suggests that the camp of the Prætorians at Rome only accommodated those cohorts which were on duty at the capital. It was the headquarters of the whole force, but was not habitually occupied by the whole force. It seems to have been felt that even the Prætorians were not strong enough by themselves to defend Italy in case of emergency, for there was a further provision in the shape of an arrangement with Cotys, the King of Thrace, by which he was bound to keep a force ready, if called upon, to defend northern Italy at the dangerous corner of the Adriatic. Sejanus undoubtedly showed capacity as organizing commander-in-chief in Italy, and Tiberius felt deeply the need for this assistance. He knew that the defence of the Empire was inadequate; he knew that the revenue appropriated to that defence was also inadequate, and it was for this reason

that he habitually prided himself upon solving difficulties with the frontier princes by diplomacy rather than by an appeal to arms. He was thus prepared to be grateful to a man who could find a means of increasing the efficiency of the home forces without adding to their numbers. Tiberius had, in fact, serious misgivings as to the quality of the troops. Addressing the Senate early in A.D. 23, he told them that the supply of voluntary soldiers was short, and that where the numbers were adequate the morale of the men was unsatisfactory, because the recruits were generally impoverished and homeless men. Apparently, compulsory service, except in the case of special agreements with recently conquered territories, such as the Thracian kings, had been allowed to fall into abeyance, and Tiberius talked of visiting the Provinces in order to revive the compulsory levies. It is not uninteresting to note that the organizers of the Roman Empire had to meet some of our own difficulties. Men would not enlist who had anything better to do; they had, as we have seen, the further artificial difficulty that they could not draw soldiers from the working classes, who were slaves.

Tacitus and his authorities, keeping their eyes fixed as usual upon Rome, do not tell us what arrangements were made for the rest of Italy, but it is not probable that the use of the barrack system was confined to the capital; the same cause will have everywhere been followed by the same results, and have demanded the same remedy. The innovation was an important one, for though the legions on active service, or in disturbed districts or imperfectly subjugated countries, lived in permanent camps, and though the military colonies in Italy had had something of the same character, a permanent standing army with permanent barracks was a new thing.

The arrangement at first met with universal approval. The towns were relieved of the presence of disorderly soldiers in the streets, and on the occasion of a riot the soldiers could be depended on to act together and preserve order; they were not united by various ties of familiarity with the rioters.

The fact that a new force had been created which could be used to coerce the Government escaped notice at first, and Sejanus was held to be a public benefactor.

He further achieved some measure of popularity by his energy and skill in stopping the spread of a conflagration which originated in the theatre of Pompeius, and the grateful Senate voted that his statue, magnificently gilded, should be set up in the place where he had saved the lives of the citizens.

When Drusus died Tiberius was sixty-five years of age. Nothing had occurred to shake his confidence in Sejanus. At home and abroad the Government seemed to be strong and settled, and the Emperor felt that he was at liberty to withdraw himself from any but the most urgent public business. Tacitus and the authorities whom he followed accused Tiberius, with their customary animosity, of mere hypocrisy when he talked of abdicating; they forgot that he had once before retired from public life, and only been brought back to it with difficulty, and that, in accepting the cares of the Empire, he had expressed a hope that the Senate would one day allow him a period of rest in his old age. From this time he, in fact, began tentatively to absent himself from Rome and to avoid public functions. Eventually, in A.D. 26, he finally withdrew to the island of Capreae, and though he sometimes approached the city, never entered it again. Meanwhile Sejanus acted as his Regent at Rome.

We are now approaching the great tragedy of the reign of Tiberius, a tragedy whose details will never be made clear unless some happy investigator in the libraries of a monastery or the sands of Egypt should recover for us the missing books and chapters of Tacitus, and other authors whose works we have lost.

Though after the death of Drusus Tiberius appeared less frequently in public, he still conducted business in the Senate, and even after he had definitely withdrawn from Rome occasionally appeared in the vicinity of the city. In the year 27 A.D. a temporary wooden theatre, constructed by a speculator at Fidenæ, not far outside the walls of Rome, collapsed, involving in its ruins no less than twenty-five thousand persons. This disaster was almost immediately followed by a fire on the Cælian Hill, a crowded quarter of Rome. On both occasions the Emperor gave lavish assistance from his private purse, and promoted measures likely to prevent the recurrence of such catastrophes. He continued to transact the business which appertained to what we should call the Foreign Office of the Empire, and on all important occasions communicated with the Senate by letter,

showing in such communications, at least up to the year 31 A.D., no abatement of his former ability; but he did, in fact, withdraw his attention from the details of government, and allowed the conduct of the legal processes in the Senate to pass into the hands of Sejanus.

Sejanus, so far as we can learn from our authorities, took advantage of the increasing aversion of the Emperor from public affairs to take his place, to promote his own favourites, and gradually to occupy even in the eyes of the Prætorians that position which really belonged to Tiberius. It is possible that his procedure in the Senate was more autocratic than that of the Emperor.

The situation was complicated by the continuance of the domestic rivalries of the Imperial household, which, on the death of the aged Livia in 29 A.D., broke out into a series of horrors whose exact nature cannot from want of evidence be determined, though it may be surmised.

The opposition to Sejanus was twofold: there was what may be called the constitutional and personal opposition of a large party in the Senate, who refused to submit to the domination of a new man, and there was the private opposition of members of the Imperial family, Tiberius being almost alone in his appreciation of the good qualities of his subordinate. Thus the sources of our information are discredited from the outset. The memoirs of Agrippina are coloured by her mother's long-standing feud with the Emperor and all whom he trusted, and the memoirs of Senators are equally likely to be coloured by detestation of the upstart. It is perhaps for this reason that the annals of the seven years succeeding the death of Drusus are more than usually filled with senatorial prosecutions and suggestions of unfairness. It is indeed possible that Sejanus took some pains to remove political adversaries by encouraging prosecutions against them, but, except in one instance, there is no sufficient evidence of perversion of the forms of justice, and as a rule the hostile comment amounts to little more than an affirmation of the maxims that a Senator could do no wrong, that he was always innocent if he committed suicide, and that somehow Tiberius or Sejanus, or both, were responsible for the act of cowardice which terminated his dishonoured existence.

In comparison with the greater interests of the Empire, the squalid scandals which ended in the fall of Sejanus may seem undignified; but they

have their interest also, not only in the obloquy with which they have covered the name of the “ablest of Roman Emperors,” but in the disparagement which through them has attached to the Empire itself. The fall of Sejanus was, in fact, the fall of Tiberius, and the sinister events with which it was accompanied have cast their shadow upon the whole subsequent history of the Emperors. A fashion was then set, and a tone was adopted, which has influenced historians for all time. The lives of the Cæsars in the pages of Suetonius are little better than a Newgate calendar; the various works of Tacitus are little better than a continued jeremiad, in which nobody is good except men unconnected with the administration, the Germans, and the historian’s father-in-law. For this peculiar attitude there was certainly no sufficient reason up to 23 A.D., and in the subsequent events till the accession of Caligula even the bitterly hostile evidence indicates that the Emperor was more sinned against than sinning.

The story as it has been handed down to us, so far as it can be collected from fragmentary documents, is to the following effect. Sejanus formed designs upon the succession at a comparatively early period; after the death of Germanicus one man alone, Drusus, stood between him and the object of his ambition. In order to compass the destruction of Drusus, Sejanus, a man certainly past fifty years of age, if not close upon sixty, laid siege to Livilla, the wife of Drusus, the sister of Germanicus. Successful in his assaults upon her not impenetrable chastity, he divorced his wife Apicata, and joined with Livilla and a favourite freedman of Drusus in a conspiracy. Drusus, according to the story, did not die a natural death; he was poisoned by Sejanus through the instrumentality of his favourite Lygdus. The way to the succession now lay clear, for the son of Drusus was still a child, and the eldest sons of Germanicus were little older; moreover, it was supposed that Tiberius disliked the family of Germanicus. To the disappointment of Sejanus, Tiberius showed an inclination to favour this family, and though he sharply reproved the Senate for attempting to confer premature honours upon them, he introduced them to the Senate, and as they advanced in years treated them as his probable successors along with his own grandson.

Sejanus then, we are told, by means of secret emissaries worked upon the excitable temperament of Agrippina in the hope that she would involve herself and her family in ruin by committing some unpardonable offence against Tiberius. In this he was eventually successful, though so long as

Tiberius continued to live at Rome the violence of Agrippina was met by somewhat amused contempt. Thus it is recorded that on one occasion Agrippina, goaded by the agents of Sejanus, burst in upon Tiberius when he was sacrificing in presence of the statue of Augustus. The scene is brought home to us if we imagine that the famous statue of the Prima Porta found on the site of Livia's villa was the statue in question. A friend, and indeed cousin, of Agrippina's, one Claudia Pulchra, had been accused of unchastity and of magical performances directed against the Emperor himself. It was suggested to Agrippina that she was the person really attacked, and being "always violent," as Tacitus says, she went straight to the Emperor, and, in allusion to the solemn occupation in which she found him engaged, declared that "a man had no right to offer victims to the sainted Augustus and at the same time persecute his posterity. The divine spirit had not passed into dumb images, but his real presentment, born of his divine blood, understood the inconsistency, and mourned." She went on to describe the attack upon Claudia as an attack upon herself. Tiberius for once was provoked to a retort, and, quoting a Greek poet, said, "Your only injury, daughter, is that you are not Queen." This scene in the calm presence of the statue of Augustus was followed by another. Cousin Claudia was found guilty of the offence with which she was charged; but Agrippina persisted in her grievances. She fell into ill-health; Tiberius visited her; she received him at first in silence, then burst into floods of tears. She bewailed her loneliness, and begged him to find her a husband; she was still young, she said; marriage alone would relieve her from the contumelious position in which she found herself; there were plenty of men in the State who would not disdain to welcome the wife and children of Germanicus.

Tiberius left her on this occasion without uttering a word. Then it was suggested to the aggrieved lady by the emissaries of Sejanus that her life was in danger, that poison was being prepared for her, that she should refuse to dine with the Emperor. In consequence, on the next occasion on which she partook of a meal with the head of the family she passed all the dishes, till Tiberius, noting her want of appetite, picked up a particularly fine apple and handed it to her with much praise of its merits; the unhappy lady at once passed the fruit to the slave who stood behind her. Tiberius merely turned to his mother and remarked that it would not be strange if he dealt severely with a woman who accused him of poisoning. This speech

led to diverse horrid surmises, but was obviously without any serious purpose, as Agrippina lived unmolested for another five years.

Tacitus tells us that he quoted these details directly from the memoirs of the younger Agrippina, who was possibly present on the last of the three occasions.

After Tiberius had retired to Capreæ the conspirators Sejanus and Livilla were able, we are told, to control the correspondence which was sent to him from the capital. Imprudent remarks made by Agrippina and her sons were carefully reported to him; the provocation which had occasioned them was not reported. The old man was induced to see in the conduct of his great-nephews a repetition of the excesses which had ruined Caius and Lucius Cæsar at the same age. Sejanus fomented discord between the brothers. Drusus the elder was given the office of Prefect of the city; he was encouraged to fear the jealousy of his brother, who was his mother's favourite. After the death of the aged Livia, Agrippina and her son Nero acted in such a way as to give an opportunity to their enemies; they courted popular favour, and their friends openly advised them to take refuge with the armies on the Rhine, or to take sanctuary with the Senate and invoke the protection of the Roman people. Meanwhile Sejanus had in A.D. 25 formally begged Tiberius to confer upon him the hand of Livilla, the widow of his son Drusus. Tacitus gives what profess to be extracts from the letter which he addressed to the Emperor on the subject, and from the reply which he received. They are to the following effect. Sejanus is represented to have said that "he had become so habituated to the kindness of Augustus, and then by many proofs to that of Tiberius, as to address his hopes and prayers to the ears of the Princes as soon as to the gods. He had never asked for brilliant office, he preferred to share with the common soldiers the toils of guarding the Emperor. Still he had obtained what he thought most honourable, he was thought worthy of association with Cæsar. On this his hopes were founded. And as he heard that Augustus had once taken into consideration the claims of Roman knights when he was thinking about placing his daughter, so he begged Tiberius, if a husband were sought for Livilla, to remember a friend who would be content with the mere honour of relationship. He did not wish to be relieved of the duties which had been imposed upon him; he thought it sufficient that the family should be strengthened against the malicious persecutions of Agrippina, and that for

the sake of the children. For himself the life which he had already lived with such a Prince would be much and more than enough.”

The genuineness of this document is certainly open to suspicion. It is notorious that Tiberius particularly disliked any form of address or exaggerated respect which put him on a level with the gods; nor could Sejanus have openly alluded to the extravagances of Agrippina without running the risk of incurring a smart rebuff, unless indeed he were already on such familiar terms with the Emperor that his previous humiliation of himself was unnecessary. The document has probably passed through the crucible of Agrippina’s memoirs. The reply attributed to Tiberius, though not beyond suspicion, has a more genuine note, and resembles other speeches and documents of the same author in its general character. The Emperor began with commending the loyal affection of Sejanus, and, after demanding time for full consideration, added that whereas other men have to think only of what is conducive to their own interests, Princes must think before all things of their reputation; and therefore he did not reply, as it was simple to do, that Livilla could decide for herself whether she would take another husband in succession to Drusus or would continue to live in the same house, that she had her mother and grandmother, her nearer advisers. He would deal more plainly. In the first place, there was the question of the animosity of Agrippina, which would be far more violent if the marriage of Livilla set the house of the Cæsars at variance. Even as things were, the rivalries of the women occasionally broke out, and his grandchildren were the victims of these discords. What if the rivalry were rendered more intense by such a marriage? “For you are mistaken, Sejanus, if you think that you will remain in the same rank, and that Livilla, who has been the wife of Caius Cæsar and then of Drusus, will be content to grow old with a mere Roman knight. Even though I should permit it, do you think that it would be allowed by those who have seen her brother, her father, and our ancestors in the very highest offices? You indeed are willing to stay in your present station; but those magistrates and nobles who break through to me against your will, and consult with me on every question, say without any concealment that you have already long ago passed beyond the highest Equestrian dignity, and gone far in advance of the friendship which my father showed you, and in consequence of their envy of you I too am blamed. But you say Augustus thought about conferring his daughter’s hand on a Roman knight. Surely we have no reason to be surprised that when

Augustus was distracted by every kind of anxiety, and foresaw that the man whom he should raise above others by such a match was immeasurably exalted, he did discuss the claims of Gaius Proculeius and some others of noted tranquillity of life, and in no way concerned with the business of the State. And if we are affected by the hesitation of Augustus, how much stronger an argument is the fact that he did place her with Marcus Agrippa and then with myself? In consideration of our friendship, I have not thought it right to conceal these considerations; however, I will not stand in the way of what you and Livilla propose. I will omit for the present to refer to some plans that I have formed, and to tell you the ties by which I propose to associate you with myself. I will only disclose this, that there is no position so lofty that it is not deserved by your virtues and your disposition towards myself; and when the opportunity comes, I will speak openly in the Senate, or in a public address.”

Even in this letter there are suspicious passages. Tiberius could hardly have spoken of the magistrates who broke into him against the will of Sejanus without an admission of weakness, which is almost incredible, unless we are to assume that he wished to snub Sejanus, an assumption, however, which is not supported by the conclusion of the letter. Nor was this letter a public document, preserved in the public records; if preserved at all, it was among the family papers.

One important hint we get from this letter: its writer or editor ranges Livilla and her child in opposition to Agrippina and her children, and saw in the possible marriage with Sejanus a strengthening of the children of Drusus against the children of Germanicus. A similar protection had been given thirty-six years previously to the children of Julia, when Tiberius was made their stepfather. Livilla never married Sejanus, but her attempt to marry him supplies a clue to the labyrinth of plots in the Imperial household. If the principle of heredity was to be recognized, the heirs to the throne were Livilla's son, the younger Tiberius, and Agrippina's sons, the former representing the Claudians, the latter the Julians, and the situation was repeated which had existed when Tiberius and his brother had represented the Claudians, Caius and Lucius Cæsar the Julians.

Livilla, anxious for the safety of her son and eager to promote his interests, endeavoured to fasten herself to the strongest man in the State,

who would unquestionably on the decease of Tiberius be in possession of the controlling military power.

According to the accepted story, there was a guilty connexion between Sejanus and Livilla before the death of her husband, and Sejanus had divorced his wife at the request of his paramour; the two together had poisoned Drusus.

All cases of poisoning are inherently suspect, and it is by no means incredible that Drusus was not really poisoned, and that the guilty intimacy of Livilla with Sejanus previous to the death of her husband was surmised at a later period when her subsequent conduct had given colour to such a story. According to the narrative supplied to us, Sejanus cannot have been under fifty when this intimacy began, and was probably nearer sixty; Livilla cannot have been less than five and thirty. If the story is true, they were certainly a mature couple of lovers.

It is at least as probable that on the death of Drusus Livilla endeavoured to enlist Sejanus in the cause of her son, and was prepared to marry him, he being only too ready to strengthen his position by such a match, as that Livilla had allowed a violent passion for a sexagenarian to tempt her into infidelity to her husband and actual crime. Again, Sejanus himself is never accused of plotting against Tiberius; had his heart been set upon the throne, he would not have waited for the Emperor's death, whom in the ordinary course of nature he was not likely to survive long. At the period when the Emperor finally retired to Capreae, and when he was moving from one villa to another in Campania, the roof of a grotto in which the party were dining suddenly fell in. Sejanus protected the Emperor's person at the risk of his own life. Had he been impatient for the succession, he would have contrived that a happy accident should open the way to the realization of his ambition.

So far as the records go, we are at liberty to believe that Sejanus made friends with the two probable successors and their supporters in the Imperial family, the elder of whom was Drusus the son of Germanicus; the younger, Tiberius the grandson of the Emperor. By so doing he incurred the enmity of Agrippina and her younger son Nero. He was restrained by no scruples of policy, no ties of kindred, from driving the latter to desperation, and doubtless had many private insults to avenge. He possibly considered it

his duty to the Emperor to protect him against the consequences of a pardonable weakness, which Agrippina had hitherto abused, and believed himself to be doing a signal service by eliminating from the Imperial circle such a dangerous conspirator; and he was, unfortunately for himself, so unwise as to use other than straightforward means to secure his ends. Meanwhile, as we have seen, he practically held the regency, he promoted and rewarded at will; he held a court at Rome, and it was generally understood that honours and emoluments were to be obtained exclusively by courting Sejanus. Some of the Senate fell in gladly with the new order, the majority secretly opposed it, and many were bitterly hostile, though restrained from showing their hostility by fear of Tiberius or respect for his long services.

In the year 29 A.D., soon after the death of the aged Livia, a letter came to the Senate from Tiberius charging Agrippina and her son with various offences, and demanding that they should be formally accused and the matter then referred to himself. At this point there is a gap in the Annals of Tacitus. We do not know what the steps were in the process, or what evidence was brought against the guilty. We gather from other sources that Agrippina was banished to the island of Pandateria, and her son to another island, in which he killed himself after a considerable interval, possibly at the suggestion of his guards. Agrippina disappears from history ‘semper atrox,’ for on her way into exile she was so abusive that the centurion in charge of the party was obliged to impose restraint by force, and in the struggle which ensued the lady lost an eye. The historians are silent as to the previous damage suffered by the centurion. Nor did she abandon her contumacious attitude on arriving at Pandateria. It was necessary to feed her by force, and, in spite of the well-intentioned efforts of her attendants, she is said to have succeeded two years later in dying of starvation. Agrippina was not a woman of any real strength of character; had she honestly revered her husband’s memory, and followed his example, she would not have continued the Julian feud and handed it down to two more generations. It is impossible not to feel some respect for so stout and so reckless a hater, and nobody has ever disputed her claim to certain domestic virtues which were lamentably absent from other ladies of her family, and were certainly sufficiently advertised by herself and her admirers; but in her maternal solicitude she was more pushing than wise, and the evil of her example influenced her children more than the good. The mother of Caligula, the

grandmother of Nero, was certainly not fortunate in the traditions which she transmitted to her posterity, and if Nero really did poison his half-brother Britannicus, with the connivance of his mother, the cup may be said to have been mixed by his grandmother.

The disgrace of Agrippina and her son Nero brought on the stormy stage of the family politics Antonia the mother of Germanicus. This aged and refined lady had carefully abstained from meddling in the feuds which disturbed the Imperial household. She was now left in charge of the younger children of Germanicus, of the future Emperor Caligula and his sisters. Alarmed by the increasing power of the adverse faction, she began to study the course of public events; she heard that Sejanus was taking advantage of the Emperor's retirement to tamper with the fidelity of the Prætorians; dark hints reached her ears as to the means by which Agrippina and her son had been entrapped, she feared some yet more terrible catastrophe, and having collected her information, she succeeded in getting it transmitted to Tiberius. The Emperor's confidence in his trusted friend and servant was shaken; he followed up the evidence, and came to the conclusion that Antonia was right. Suetonius quotes an extract from a private diary of Tiberius, in which he says that he punished Sejanus because he had persecuted the children of Germanicus. There is no reason to doubt the honesty of this statement, though the events which followed have rendered it suspect.

The blow must have been a severe one. Not only had Tiberius been disappointed in a friend, but it was not even certain that he could resume the reins of power and punish the offender if he wished. It is the behaviour of Tiberius at this period which has justifiably gained him credit for proficiency in dissimulation. He did not at once strike; he first of all tested the temper of the Senate by writing coolly on the subject of Sejanus, and sometimes expressing disapproval of his actions, but yet not in such a way as to declare a breach with him. Careful experiments proved that Sejanus had no real hold on the Senate. In the same way means were found of testing the Prætorian guards, and it was satisfactorily ascertained that they obeyed Sejanus simply as the Emperor's lieutenant. Tiberius took into his confidence Macro, the Commander of the cohorts on guard at Capreæ and in the neighbourhood, and agreed upon a plan of operations with him. Macro went to Rome with letters to the Senate and Sejanus; the attendance

of the latter at a meeting of the Senate was particularly requested, it was hinted that unexampled honours were in store for him. When Sejanus went to the Senate House, Macro went to the camp of the Prætorians. The proceedings in the Senate House were purposely protracted. A very long letter was read from Tiberius, the purport of which was for some time uncertain. Gradually it became evident that it was directed against Sejanus, and it concluded with a demand for his arrest. Meanwhile Macro had presented his credentials to the Prætorian guards; Sejanus was superseded, and Macro appointed Prefect in his place; the soldiers proceeded to renew their oath of fidelity to the Emperor, coupled with that of obedience to their new commander. By the time when the ceremony was over, the Senate had risen, and the body of Sejanus was being dragged about the streets.

No sooner had it become apparent that Sejanus was disgraced and no longer enjoyed the favour of the Emperor than the long smouldering hostility to the upstart broke out into a blaze of fury. Tiberius was given no time for repentance or consideration; the fallen favourite was judged and executed on the spot; his two children were similarly condemned and executed; his friends were sought out and assassinated. For some hours, if not for some days, there was a veritable reign of terror at Rome, whose horrors the Emperor in his distant retirement did not at first surmise, and when informed was powerless to check.

This was the end of the careful restoration of the Senate planned by Augustus and fostered by Tiberius, an outbreak of violence which recalled the days of the Gracchi and the proscriptions. Tiberius did not long remain inactive; order was restored, and judicial prosecutions took the place of unlicensed murders. To the Emperor himself the change to law and order brought but little comfort, rather a deeper depth of despair. The whole story of the plots of Livilla and Sejanus, as it was then believed, was revealed. Apicata, the divorced wife of Sejanus, gave possibly tainted evidence of the machinations by which the death of Drusus, the son of Tiberius, had been brought about. Tiberius found that he had been the accomplice of the murderer of his own son, and that in banishing Agrippina and Nero he had played into the hands of that unnatural son and brother the other Drusus. Many of his old and intimate friends were implicated with Sejanus; there had been a conspiracy of silence, if not an active partisanship, and it was difficult to determine the degrees of guilt. In spite of so many years of

public service and of single-hearted devotion to the interests of others, Tiberius found that at the age of seventy-two he stood alone in the world, hated and mistrusted by all.

After the first shock, the vigour of the old man returned; he checked the indiscriminate persecution of the friends of Sejanus, and he did his best to secure for them a fair trial. The Empire itself was not shaken by the blow, the effects of which did not extend beyond the city of Rome and Italy; but it must have been a grievous wound to his sensitive nature to discover that his oldest friends did not trust him, and that even such a tried associate as Asinius Gallus followed the example of the many weak-minded men who preferred suicide to facing an inquiry into their conduct. Prosecutions in connection with the Sejanus conspiracy seem to have continued for four years, but the order of events is not quite certain. It is not probable that Tiberius gave orders three years after the event to execute all the prisoners together without further hearing.

As Tiberius himself has generally been credited with responsibility for the disasters which accompanied the fall of Sejanus, it is as well to insist upon the evidence of Dio, who expressly says that Sejanus and his children were condemned by the Senate, and that Tiberius had only demanded his arrest. It had been found necessary on a previous occasion to check the tendency of the Senate to order immediate executions of persons whom they had condemned, and Tiberius had passed a decree that an interval of ten days was always to elapse between condemnation in capital offences and execution, in order that he might be communicated with, and have an opportunity of revising the sentence. The violence with which the adherents of Sejanus were persecuted was really a piece of political vengeance; it was a revival of the old quarrel between the Senatorial and Equestrian parties. In spite of the favour of Tiberius the Senatorial party had not gained upon the Equestrians; in fact, as the business of the Empire increased, the power of the Equestrians had increased with it. Sejanus was only one of many capable administrators whose activity and efficiency was in disagreeable contrast with Senatorial incapacity; the outbreak in which he lost his life was neither concerted nor foreseen. An opportunity occurred for indulging an animosity which had hitherto found its expression in private diaries and drawing-room conspiracies. The way of violence once opened, self-preservation enforced a continuance in that evil path. After the first blow

had been struck, root and branch work was inevitable. Sejanus was to leave no avengers behind him.

Contrasted with this furious punishment of a political enemy and his adherents is the curious patience of the Senate at a later date in submitting to the excesses of a Caligula or a Nero. Only seven years later Caligula succeeded his great-uncle. He apparently lost his reason soon after he ascended the throne; he persecuted the Senate in every possible way, he confiscated money, he dishonoured nobly born women, he fined and executed, he even poured contempt, for he made his horse Consul, and having sent for the trembling Senators in the middle of the night, had them conducted to a dark room, where they were relieved to find that nothing worse awaited them than the performance of a *pas seul* by the Emperor. Caligula was eventually assassinated, but not by the Senate, who punished his murderer; they had submitted to his caprices for more than two years. Nero, though sane, was scarcely less extravagant in his treatment of the leading men at Rome, but, as has been before observed, both Caligula and Nero are spoken of with less abhorrence than Tiberius.

It would seem that the Senators paid rather a heavy price for their outbreak, and that a reign of spies and informers actually did set in after the first disturbances, which followed the fall of Sejanus, had been quelled. If Tiberius became suspicious, if he became apprehensive for his personal safety, if he no longer interfered to stop trivial charges and prevent unjust confiscations, if the liberty of allusive libel was cut short, the Senate had given him very good reason for mistrusting them individually and collectively. At the same time the aristocratic party were smarting under a defeat; they had murdered Sejanus and his posterity, and cut off the greater number of his friends, but they had not succeeded in changing the constitution of the Empire, nor had they shaken the power of the Emperor, who mounted guard over them with his cohorts of Prætorians at the gates of Rome. The city itself was more or less under martial law, for the part which the populace had taken in hunting down the adherents of Sejanus had been a vivid reminder of previous disastrous events in the history of the capital. The very insecurity of the succession—for Caligula was barely of age, and not in good health, while the young Tiberius was little more than a child—impelled the aged Emperor to keep a tight hand upon the public order, lest his death, an event probably near at hand, should involve the State in civil

war. Of those members of the Imperial family who had known Augustus, Antonia and her son Claudius alone survived; the former had always abstained from interference in politics, and the latter was considered to be disqualified from appearance in any public capacity. Nor had any of the numerous marriages of the daughters and granddaughters of the immediate successors of Augustus brought into the world any man of such striking ability that he seemed worthy to govern.

A strange destiny pursued Tiberius; he could not retire, he could not shake off that servitude which was imposed upon him by the needs of the Roman people. As he had been compelled to return from Rhodes and share the burden of Augustus, so now he was compelled, if not to return from Capreæ, yet to feel that upon him, and upon him alone, still rested the responsibility for preserving the peace of the civilized world.

Meanwhile the diaries were steadily written up; every case of apparent persecution was faithfully recorded. Nor were the obscenities scribbled on the walls or silyly hinted at by the popular actors omitted from the record, and of such there was a plentiful supply, for though Tiberius had never been popular, and though his appearance in the streets of Rome had terrified rather than pleased, the commonalty was insulted by his absence. Undisguised contempt for the applause of the multitude stirs a bitterer hatred than active oppression, for so strange are the freaks of vanity that there are a large number of human beings who are happier in being harried and driven than in not attracting notice.

XVIII

The Retirement at Capreæ

THE life of a public man at Rome was conducted on lines which must have rendered the transaction even of private business a matter of difficulty, and must have caused serious inconvenience to one upon whom the burden fell of conducting the correspondence of the whole Empire. The Emperor, equally with other men of eminence, was expected to live largely in public; his day began with the dawn, when the crowd of private clients and public courtiers assembled to greet him in the hall of his house; the procession to the Senate House or the Forum followed, when the great man was expected to recognize acquaintances whom he met, and even to submit to being kissed by them, a practice which Tiberius had the courage to forbid in his own case. After the business of the Curia or the Courts was finished, the same solemn procession restored the Emperor to his house. A respite was allowed in the noonday heat; then followed the visits of friends, and the great meal of the day, which might be in itself of the nature of a public function, and an occasion for the informal transaction of business; after a short period of relaxation the secretaries came, and letters were written till late into the night. On the numerous occasions on which there was a public holiday the Emperor was expected to take part in the shows and processions, and a holiday for others was a hard day's work for the chief of the State. To escape unnecessary inroads upon his time, and to secure for himself a fair portion of leisure, Tiberius decided to live away from Rome, where it seemed to him that his presence was no longer indispensable. The state of his health also suggested retirement. In spite of a somewhat strict self-imposed regimen, Tiberius seems to have suffered from a form of eczema, which disfigured his countenance, and practically made it impossible for him to appear in public. The Romans were particularly sensitive on the subject of their personal appearance, and the Roman mob was by no means considerate of the feelings of those who were

afflicted with any deformity. The tall figure of the Emperor was now bowed with age, his once handsome face disfigured with blotches and sores and the unguents used as palliatives of a malady probably aggravated by the pestilential and dusty air of the crowded city. Under these untoward circumstances Tiberius did what any other man would have done who was suffering as he suffered: he looked for some spot healthily situated not far from Rome, close enough to the great lines of communication to enable him to correspond freely with all parts of the world, but sufficiently removed from the beaten track to relieve him of the throng of unwelcome and importunate visitors. After trying various country houses in Campania he fixed upon the island of Capreæ as the ideal residence. Those who have seen the island have no hesitation in commending the Emperor's taste.

Apart from its inaccessibility and the beauty of its surroundings, Capreæ had this further attraction for Tiberius, that its elevated rocks afforded ideal opportunities for the prosecution of his favourite pursuit, for the Emperor was, as we have seen, an astronomer. It would be rash to affirm that Tiberius in his astronomical research was free from the taint of superstition with which that branch of natural science was at that time infected, and indeed the fact that he is said to have built twelve villas on the island, which he named after the twelve planets, and inhabited at different periods, suggests that he was a believer in the influences of the stars, or possibly had a superstitious faith that places thus dedicated would be more favourable to his observations at different seasons of the year. It is, however, significant of the character of the intellect of Tiberius that he fastened upon the one branch of science which even in those days was tolerably exact, for though the real nature of the movements of the heavenly bodies was unknown to the ancients, their observations were accurate so far as they went; eclipses and occultations could be predicted with a near approach to accuracy, and though the vulgar were still terrified by the temporary disappearances of the sun or moon, to the educated such events were, though mysterious, part of the orderly laws by which the universe seemed to be governed.

Tiberius himself was believed to be an adept in astrology, and stories of his prescience have been handed down, based not improbably upon really successful calculations, by which the future movements of the planets were foretold. One of these stories is palpably absurd. It is said that Tiberius

predicted the future reign of Galba by quoting a Greek verse to the effect that he too would have a share of the Empire, but the story is also told of Augustus, and under circumstances which involve no power of prediction, but simply a promise made by a kindly potentate to an attractive child in the presence of his parents.

The companions whom Tiberius took to share his retirement were such men as a man with literary and scientific tastes would naturally select; his old friend and companion Thrasyllus the “mathematician” was one; there were also professors of literature; for the purposes of public business a small staff of Equestrians and freedmen. The few Senators who were invited to attend were private friends, a fact which caused displeasure in high circles at Rome, where it was not understood, or if understood was resented, that one object of the Emperor’s retirement was to avoid the distractions of an official court and the trammels of etiquette.

We may dismiss once and for all as unfounded, and indeed absurd, the stories of unmentionable obscenities and hideous cruelties practised by the Emperor upon his lonely island. No man after reaching the age of sixty-eight could suddenly fling himself into such an orgy of lust as is described by Suetonius, and then live for nine years, the thing is a physical impossibility. Again, Tiberius, though always stern, had never been cruel. Instances of his humanity are not wanting during his residence at Capreæ; he again gave lavish assistance to the sufferers from a fire on the Aventine, and was at considerable pains to relieve the distress of poor debtors, though the measures which he adopted were not such as would commend themselves to rigid political economists.

Again, as has been observed in an earlier portion of this narrative, up to the time of the retirement to Capreæ Tiberius is known to us only as an absolutely chaste man, as chaste as Agrippina herself. There is no record, no insinuation even, of the presence of sensual favourites in his camp or at his Court; he is not even accused of that politic amorousness which is ascribed to the sainted Augustus, or of the warmer amours which invest the life of the great Julius Cæsar with an atmosphere of romance. That a man close on seventy should suddenly change his habits is incredible, unless we are to assume the existence of a hideous form of senile dementia, whose victim is to be pitied rather than condemned. There are such cases, but the patients are most commonly those who have continuously led impure lives, not

those who have been distinguished by self-restraint. We may be asked, how then did such stories originate? It is impossible to track these falsehoods back to their source; a reason for one of them may, however, be suggested. Among the scandals of Capreæ was said to be the presence of a large number of young people of both sexes who were sacrificed to the Emperor's lusts; they were of the noblest blood of Rome, a fact which was supposed to have constituted their chief attraction. Now the two grandchildren of Tiberius were quite young when the Emperor went to Capreæ. Owing to his position he was guardian to many other such children, and it would have been entirely in accordance with Roman practice to educate all these young children together. We know that the suite which accompanied the Emperor contained professional teachers. For the sinister interpretation put upon the arrangement we have only to recall the ineffable prurience of the Italian imagination in ancient times. There are works of art, there are fragments of literature, there are household ornaments dating from this period, and earlier periods and later periods, which are simply indescribable in modern language. The mystery of the Emperor's seclusion was in itself enough to set the foul tongues wagging and to stimulate the impure inventiveness of the brothel-keepers in the capital; and there were men of rank, and possibly women, only too glad to note down in their diaries evidence collected from the mouths of slaves and other dependents. Similarly with the stories of cruelty. The disturbed condition of political life after the fall of Sejanus created an atmosphere of terror. Tiberius had always been dreaded, and the sensation-mongers could find ready credence for tales of atrocities, for which there was no such obvious contradiction as would have existed had Tiberius been spending his days in the full sight of his countrymen. These tales were believed because everybody wished to believe them, and because there was no evidence to the contrary. Because nothing was seen, anything was imagined.

Similarly in the sensational narrative of judicial murders and vexatious prosecutions with which Tacitus adorns his account of the last seven years of Tiberius, the record is so imperfect, the animus is so clear, that we may excusably suspend our judgment. In none of these cases are we given the full evidence against the prisoner; in all everything is told us that can be urged against the judge. It was further the practice of the historians of the time to attribute to Tiberius himself acts which were done by his agents even when he had certainly not ordered the act in question. Suetonius, for

instance, states that Tiberius knocked out the eye of the obstreperous Agrippina—he has the grace to add “by the agency of a centurion,” but the story is told in such a way that the odium rests upon the Emperor, and not upon the participants in an undignified scuffle. Similarly there is a ghastly tale of the death of Drusus, the son of Agrippina, by starvation, a process which is said to have lasted for two or three years, during which every word uttered by the prisoner, every groan, was faithfully reported to Tiberius; it is even represented that the miserable man in the extremity of his anguish devoured his cushions. That an official report was forwarded to Tiberius at regular intervals of the conduct of this prisoner of State is what we should naturally expect, nor is it impossible that an overzealous gaoler abounded in details, nor again is it impossible that Agrippina the younger, the sister of the prisoner, left an exceedingly harrowing, though improbable, story in her memoirs.

It is worthy of note that the elder Agrippina and her son Nero were not recalled from their respective islands after the fall of Sejanus. Seclusion in an island did not of itself involve any serious degree of suffering, and we have mention of occasions on which Tiberius selected for his exiles islands which were healthy or otherwise attractive. The exiles were, in fact, simply removed to places from which they could no longer disturb the public peace. Though it had transpired that Agrippina and Nero were to some extent the victims of Drusus and Sejanus, they had shown themselves inclined to be dangerous, and the situation with regard to the succession was now such as to demand exceptional precautions. In his dealings with Agrippina, Tiberius surprises us by his forbearance rather than by his severity.

As we do not know the exact nature of the conspiracy of Sejanus, so we do not know the exact degree of guilt of the younger Drusus. Since he was treated with exceptional rigour we may surmise that he was implicated in a plot to depose the Emperor and enter at once upon the coveted succession. After his death Tiberius wrote a letter to the Senate giving a full account of his misdemeanours, an act which is represented to have been scandalous, but was probably necessary. It must be remembered that Sejanus was disgraced because of his practices against Agrippina and Nero; he was immediately killed by the Senate. After his death a deeper plot, and indeed a series of plots, was revealed.

An attempt was made to implicate Caligula in the guilt of these dark transactions, but unsuccessfully. It was on this occasion that Tiberius wrote that despairing cry to the Senate in which Tacitus savagely triumphs—"If I know what I am to write to you, Conscript Fathers, or how I am to write to you, or what indeed I should not write to you at such a time, may the gods and goddesses drag me even into greater depths than those into which I feel that I am sinking day by day."

In spite of the perplexities that assailed him, Tiberius did not relax his hold upon Greater Rome. Encouraged by rumours of the Emperor's failure, the Parthians began to intrigue to reverse the order established on the Eastern frontier of the Empire, but they quickly learned that Tiberius, though aged and beaten upon, had not forgotten his diplomacy and still knew where to find, and how to choose, an able officer who could effectually quell any attempt to trifle with the dignity of the Roman name. The general appointed to settle affairs in the East was Lucius Vitellius, whose son was one day to enjoy a short and very inglorious career as Roman Emperor.

During the last three years of the Emperor's life Caligula rapidly advanced in his favour. He was formally adopted, and was continually named as the Emperor's heir along with the young Tiberius. The adviser and friend of Caligula at this time was the Jewish prince Agrippa, the half-brother of Herodias, the incestuous wife of Herod Antipas, and grandson of Herod the Great. The election of Caligula as successor to Tiberius is a somewhat puzzling circumstance. Tacitus says that he always showed signs of insanity, but at the same time credits him with great astuteness in winning the old man's favour. It is more probable, from other accounts, that the madness of Caligula was the result of an illness to which he fell a victim almost immediately after his succession, for that he was technically mad is undeniable. We have a curious picture of him from the pen of Philo the Jew, who arrived from Alexandria with a deputation of Jews to protest against being required to worship Caligula exclusively as a god. The envoys found Caligula superintending the building of one of his palaces at Baia. They were introduced to the half-finished edifice, where the Emperor was hurrying from one room to another, feverishly running up and down stairs. He suddenly observed his visitors, and remarking, "So you are those atheists," vanished; presently he reappeared, and after saying "Why don't

you eat pork?” finally disappeared. It is not likely that Tiberius would have entrusted the fate of the civilized world to a man whose intellect was so obviously disturbed. If, however, we ask who had an interest in the succession of Caligula, the answer is, Agrippa, who, according to Josephus, had found men to finance him in order that he might push his fortunes at Rome. In this he had been somewhat imprudent, and an impatient remark he made to Caligula was reported to Tiberius, who put him under guard for the rest of his reign; on the death of Tiberius he exchanged captivity for the throne of Herod the Great. There is a story that Tiberius, being in doubt as to whether he should nominate his own grandson, the younger Tiberius, or his adopted son Caligula, consulted his diviners, who told him to appoint the one of the two children who should first enter the room after both had been summoned; the Emperor fell in with the suggestion, and the parties interested then contrived that Caligula should be the first to arrive.

The historians do not allow Tiberius even to die in peace. We are told that when he became aware that his health was failing, he was nervously anxious to conceal the fact; he left Capreæ and took up his quarters in the villa of Lucullus on the mainland opposite the island. Having discovered that his physician had surreptitiously felt his pulse, he ordered a better dinner than usual, and ostentatiously enjoyed himself, but the effort was too much for him; he fainted, and a report was immediately spread through the household that he was dead. Caligula was receiving the congratulations of all, and was proceeding to act as Emperor, when there was a rumour that the old man had recovered. At the suggestion of Macro, orders were at once given to smother him beneath a pile of mattresses. The story is finely sensational, but it is to be hoped that it is not true.

Whatever was the exact nature of his end, Tiberius died in the seventy-eighth year of his life, and the twenty-third of his reign, having lived through such vicissitudes of fortune, and such a continuity of hard work, as have rarely fallen to the lot of any human being; but far stranger than the events of his life is the horrible reputation that has attached to the memory of the man who held that in all things princes were bound to consider their good name.

Even if we accept the sensational stories which have accumulated round the retirement at Capreæ, we have still to recognize a life of sixty-eight years unstained by vice or crime, and chiefly spent in the laborious

execution of the highest public duties. As a general, as a statesman, Tiberius stands, if not in the first rank, then at the very top of the second, and he deserves this additional credit, that public life was distasteful to him, power had no attraction for him, and had he been at liberty to choose for himself he would have lived in seclusion, a student of literature and natural science. We see in him, in fact, the best type of Roman, the best example of that peculiar character by which Rome rose to be mistress of the world. It was not the cleverness of the Romans, nor their military skill, that gave them the mastery, the Greeks were far cleverer, and Hannibal was greater than any Roman general, it was their strong sense of public duty, their passion for legality, their love of order, their tenacity in prosecuting large schemes, their self-restraint, their honour, which enabled them to succeed where Greek and Phœnician had failed before them, and where Gaul and Teuton were to fail after them. All these qualities are strongly represented in Tiberius; he is the ideal Roman Senator, the realization of those legendary types which formed the imagination of Roman children. It is not Cicero, the fluent orator, the versatile man of letters and agreeable gentleman, who represents the true Roman, nor Cato the bigot, nor Cæsar the man of genius: it is the dogged, dutiful, and just Tiberius, not over enthusiastic, not brilliant, devoid of personal fascination, awful rather than amiable, but wise enough and temperate enough and strong enough to do the work which was set before him.

Why then this perpetual stream of calumny, which has filtered down practically unchecked for nearly two thousand years? The immediate causes have been demonstrated in the foregoing pages; the subsequent causes Tiberius shares with the Roman Empire, of which he was in some sense an incarnation. It has been the custom of some Christian writers since the period of the Reformation to oppose Christianity to the Roman Empire; there is no trace of any such opposition in the earliest Christian writings. Neither the Gospels nor the Acts of the Apostles, nor the letters of St. Paul, nor those ascribed to the friends and contemporaries of Jesus of Nazareth, nor even the writings of the early Fathers, show the faintest indication of dissatisfaction with the Empire as such. The evidence, in fact, is in the contrary direction. But the later expounders of Christianity required a contrast, and it was an easy feat of rhetoric to collect all that is discreditable from the mass of Roman records and to compare it disadvantageously with the pure teaching of the Gospel. Tiberius himself had in this aspect the

misfortune to be the contemporary of the founder of Christianity, and in the idle tales of Suetonius and the studied malignity of Tacitus an opportunity was found for starting the contrast from the very commencement. This particular antithesis is so convenient that the wickedness of Tiberius has almost assumed the dignity of an “*articulus fidei*,” and to dispute it is to tread the perilous path of the heresiarch.

Let us hope that the prescience of Tiberius as he watched the sun setting over the Mediterranean from the cliffs of Capreæ did not enable him to contemplate the long roll of centuries during which his name would be held in execration by the posterity of those for whom he had laboured, and on continents far beyond his ken, or to anticipate that savage howl of “Tiberius to the Tiber” with which the graceless populace of Rome greeted his funeral, or the still more cruel repetition of its echo from one generation to another.

The Imperial Family.

There are five chief lines of descent—

From CAIUS JULIUS CÆSAR through his great-nephew and adopted son Octavianus, known after B.C. 27 as Augustus.

From CAIUS JULIUS CÆSAR through his great-niece Octavia, sister to Augustus.

From MARCUS ANTONIUS through his children by his second wife, Octavia.

From TIBERIUS CLAUDIUS NERO through his two sons by Livia, the second wife of Augustus.

From MARCUS VIPSANIUS AGRIPPA through his children by Julia I, the daughter of Augustus.

CAIUS JULIUS CÆSAR OCTAVIANUS AUGUSTUS

married

- I. A daughter of Marcus Antonius and Fulvia, whom he almost immediately repudiated.
- II. Scribonia, related by marriage to the family of Pompeius, issue one daughter, Julia I.

- III. Livia, no issue; but by her previous husband, Tiberius Claudius Nero, Livia had two sons, Tiberius and Drusus I.

OCTAVIA

married

- I. MARCUS MARCELLUS I, issue Marcus Marcellus II, and two daughters, Marcella I, Marcella II.

Marcus Marcellus II married Julia I, and died without issue, “tu Marcellus eris.”

Marcella I married first Agrippa, no issue, and then Julius Antonius, son of Marcus Antonius, by his first wife, Fulvia.

Marcella II, her marriage is not mentioned.

- II. MARCUS ANTONIUS, issue two daughters, Antonia I, Antonia II.

Antonia I married L. Domitius Abenobarbus, and thus became one of the grandmothers of the Emperor Nero.

Antonia II married Drusus I, issue Germanicus, Claudius, who succeeded Caligula as Emperor, Livilla. Germanicus married Agrippina I, Claudius eventually married Agrippina II. Livilla married Drusus II, the son of Tiberius.

MARCUS ANTONIUS

His blood ran in the family through his two daughters, Antonia I and Antonia II; his sons by his first wife, Fulvia, did not marry into the Julian or

Claudian families; one of them was put to death as a paramour of Julia I.

TIBERIUS CLAUDIUS NERO

married Livia, issue two sons, Tiberius the Emperor and Drusus I.

Tiberius married first Vipsania, daughter of Agrippa by his first wife, Pomponia, who was daughter of Pomponius Atticus, the banker, and friend of Cicero, issue one son, Drusus II, married Livilla, issue one son, Tiberius, murdered by Caligula.

Secondly, Julia I, daughter of Augustus, no issue.

Drusus I married Antonia II, issue Germanicus, Claudius, Livilla. Germanicus married Agrippina I, daughter of Julia I, granddaughter of Augustus and M. Vipsanius Agrippa; issue Nero I, Drusus III, Caius (Caligula) Agrippina II, Drusilla, Julia Livilla who married M. Vinicius, the friend of Paterculus.

These are the six children whose claims to represent the true Julian stock were so vehemently asserted by their mother, Agrippina I. They derived their Julian blood from Octavia, through their grandmother Antonia II, on the father's side, and from Augustus through their grandmother, Julia I, on the mother's side.

MARCUS VIPSANIUS AGRIPPA

married

- I. Pomponia, issue Vipsania the first wife of Tiberius, she was thus the mother of Drusus II; after her divorce from

Tiberius she married Caius Asinius Gallus.

II. Marcella I, sister to “tu Marcellus eris,” daughter of Octavia by her first husband, no issue; after her divorce she married Julius Antonius.

III. Julia I, daughter of Augustus, and his only child; issue Caius Cæsar, Lucius Cæsar, Julia II, Agrippina I, Agrippa Postumus; on the death of Agrippa, Julia I married Tiberius, she was afterwards divorced and banished on account of misconduct, which appears to have been political, at least as much as it was adulterous.

Caius Cæsar died without issue.

Lucius Cæsar died without issue.

(After being regarded as the probable heirs of Augustus.)

Julia II married an Æmilius Paullus, but was banished like her mother for similar reasons.

Agrippina I married Germanicus.

Agrippa Postumus, the intractable, was banished by Augustus, and put out of the way at the accession of Tiberius; by whose orders is not definitely certain.

Through Agrippina the obscure Agrippa was the grandfather of one Emperor, Caligula, and the great grandfather of another, Nero.

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